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CITATIONS TO OPINIONS ADOPTING OR AMENDING RULES

ORIGINAL ADOPTION, effective 1-1-67: 187 So.2d 598.

OTHER OPINIONS:	CITATION	RESULT OF OPINION
Effective 1-1-68:	211 So.2d 206.	Amended 1.010, 1.020(d)(2), (d)(3), 1.100(c), 1.250, 1.340, 1.370, 1.410(a), 1.420(b), (e), 1.440, 1.500(e), 1.530(b), (f), 1.550(a); added 1.481; deleted 1.650, 1.670, 1.690, 1.700, 1.710, 1.720.
Effective 10-1-68:	211 So.2d 174.	Added forms 1.900–1.991.
Effective 9-1-70:	237 So.2d 151.	Amended 1.370(a)–(b), 1.640(a), form 1.918.
Effective 12-31-71:	253 So.2d 404.	Amended 1.035, 1.070, 1.080, 1.100, 1.110, 1.200, 1.431, 1.450(d), 1.490, 1.943; added 1.611, 1.627, 1.950, 1.975, 1.983–1.984, 1.989, 1.995–1.996.
Effective 11-29-72:	269 So.2d 359.	Amended 1.020, 1.035, 1.500.
Effective 1-1-73:	265 So.2d 21.	Four-year-cycle revision. Amended 1.035, 1.070, 1.080, 1.100, 1.140, 1.170, 1.200, 1.250, 1.280, 1.310, 1.320, 1.330, 1.340, 1.350, 1.360, 1.370, 1.380, 1.390, 1.410, 1.430, 1.440, 1.442, 1.500, 1.560, 1.627, forms 1.915–1.916, 1.949, 1.951.
Effective 10-1-73:	281 So.2d 204.	Amended 1.431(b), 1.611(b).
Effective 1-1-77:	339 So.2d 626.	Four-year-cycle revision. Amended 1.020(f)–(g), 1.030, 1.080(a), (h), 1.310(b)(4), 1.340(e), 1.410(c), 1.420(e), 1.431(e), (f)(1)–(f)(2), (g), 1.440(c), 1.510(c), form 1.917; deleted 1.630.
Effective 6-13-77:	347 So.2d 599.	Amended 1.220.
Effective 9-1-77:	348 So.2d 325.	Amended 1.330(a)(6), 1.340(f).
Effective 7-1-79:	372 So.2d 449.	Amended 1.030(a), 1.310(b)(4); deleted 1.020, 1.025, 1.030(b)–(e), 1.035.
Effective 7-2-79:	368 So.2d 1293.	Amended 1.450(d); added 1.450(f).
Effective 1-1-80:	377 So.2d 971.	Amended 1.080(h)(1).
Effective 1-1-81:	391 So.2d 165.	Four-year-cycle revision. Amended 1.010, 1.060(b), 1.070(i), 1.090(e), 1.170(f), 1.190(a), 1.340(c), (e), 1.350(b), 1.400, 1.410(c), 1.420(e), 1.431(g), 1.440(b), 1.442, 1.460, 1.490(d), 1.570, 1.580, 1.610, forms 1.901–1.917, 1.919–1.920,

OTHER OPINIONS:	CITATION	RESULT OF OPINION
		1.931, 1.934, 1.938, 1.940–1.946, 1.948, 1.971–1.972, 1.980, 1.990, 1.995–1.996; renumbered 1.221; added 1.220, 1.351, 1.432, 1.625, forms 1.921, 1.922, 1.988; deleted 1.210(c), (d), 1.290(d), 1.627, 1.640, 1.660, 1.680, form 1.950.
Effective 1-1-82:	403 So.2d 926.	Amended 1.310(e), (f)(1), (f)(3), 1.320(b), 1.330(d)(4), 1.340(e); added 1.350(d); deleted 1.320(c), 1.450(d); effective date delayed 1.450(f).
Effective 1-1-82:	407 So.2d 197.	Amended 1.340(e).
Effective 6-1-84:	450 So.2d 810.	Amended 1.611(c), forms 1.943-1, 1.943-2, 1.995-1.
Effective 6-1-84:	458 So.2d 245.	Amended 1.611(c), forms 1.943(b)–(e), 1.995(b).
Effective 1-1-85:	458 So.2d 245.	Four-year-cycle revision. Amended 1.080(e), 1.180(a), 1.200, 1.280(a), 1.290(a)(4), 1.310, 1.340, 1.380(c), 1.420, 1.440; added 1.060(c), 1.630; deleted 1.450(d)–(e); transferred 1.450(f) to Fla. R. Jud. Admin. 2.075.
Effective 7-1-86:	488 So.2d 57.	Amended 1.100(c); added forms 1.997–1.998.
Effective 1-1-88:	518 So.2d 908.	Added 1.700, 1.710, 1.720, 1.730, 1.740, 1.750, 1.760, 1.770, 1.780, 1.800, 1.810, 1.820, 1.830.
Effective 3-1-88:	521 So.2d 118.	Added 1.491.
Effective 9-22-88:	541 So.2d 1121.	Added 1.222.
Effective 10-17-88:	532 So.2d 1058.	Added 1.612.
Effective 11-23-88:	534 So.2d 1150.	Amended 1.700(b), (c).
Effective 12-30-88:	536 So.2d 193.	Added 1.650.
Effective 1-1-89:	536 So.2d 974.	Four-year-cycle revision. Amended 1.140(a), 1.170(g), 1.190(a), 1.280(b)(3)(A) (renumbered (b)(4)(A)), 1.310(b)(4), (c), 1.340(a), 1.360, 1.380, 1.390(c), 1.440(c), 1.470(b), forms 1.948, 1.975; added 1.070(j), 1.200(a)(5), 1.280(b)(2) (renumbering the remaining subdivisions), (b)(4)(D), 1.431(f), forms 1.902(b), 1.923.
Effective 1-11-89:	536 So.2d 198.	Added 1.612 (revised opinion).
Effective 7-6-89:	545 So.2d 866.	Amended 1.280.

OTHER OPINIONS:	CITATION	RESULT OF OPINION
Effective 1-1-90:	550 So.2d 442.	Amended 1.442.
Effective 7-1-90:	563 So.2d 85.	Amended 1.700, 1.710, 1.720, 1.730, 1.740, 1.750, 1.760; deleted 1.770, 1.780.
Effective 7-6-90:	563 So.2d 1079.	Amended form 1.943(c).
Effective 10-25-90:	568 So.2d 1273.	Amended 1.650(d)(2).
Effective 4-4-91:	577 So.2d 580.	Amended 1.976.
Effective 5-28-92:	604 So.2d 764.	Amended 1.720(f); transferred 1.760 to Florida Rules for Certified and Court-Appointed Mediators as 10.010.
Effective 7-9-92:	608 So.2d 1.	Repealed 1.442.
Effective 1-1-93:	604 So.2d 1110.	Four-year-cycle revision. Substantively amended 1.070, 1.080(b), (f), 1.100(b), 1.200, 1.310(b)(4)(D), 1.420(f), 1.431(g)(2), 1.510(c), 1.530(e), 1.540(b), 1.611, forms 1.902(b), 1.907(b), 1.960, 1.988(b), standard interrogatories form 7; added new 1.442 directing compliance with statute; deleted 1.070(d) (renumbering the remaining subdivisions), 1.400, 1.612, 1.931.
Effective 1-1-93:	609 So.2d 465.	Deleted 1.432.
Effective 11-22-93:	627 So.2d 481.	Amended 1.650(d)(3).
Effective 6-16-94:	639 So.2d 22.	Corrected 1.630(c).
Effective 7-1-94:	641 So.2d 343.	Amended 1.700–1.720, 1.750, 1.800–1.830.
Effective 1-1-96:	663 So.2d 1049.	Amended 1.010, 1.360, 1.540, forms 1.918–1.919, 1.982; deleted 1.491, 1.611, 1.740, forms 1.943, 1.975, 1.995, standard interrogatories form 7 (because of adoption of Florida Family Law Rules of Procedure).
Effective 1-25-96:	674 So.2d 86.	Added 1.061.
Effective 1-1-97:	682 So.2d 105.	Four-year-cycle revision. Amended 1.061, 1.110, 1.280(b)(4), 1.310(c)–(d), (h), 1.351(b)–(c), 1.380, 1.442, 1.480(b), 1.710(b)(4), 1.730(b)–(c), 1.750(b), 1.800, forms 1.908, 1.916, 1.921–1.923, 1.997; added 1.070(i) and renumbered (j), added 1.280(b)(5), added 1.351 (d) and renumbered (e), (f), added 1.410 (a) and renumbered (a)–(f), added forms 1.902(c), 1.910(b), 1.911(b), 1.912(b), 1.913(b),

OTHER OPINIONS:	CITATION	RESULT OF OPINION
		1.922(c)–(d); deleted 1.450(a) and renumbered (b)–(c); added committee note to 1.907.
Effective 10-1-98:	718 So.2d 795.	Amended 1.140(b) and 1.330(a).
Effective 10-15-98:	723 So.2d 180.	Added form 1.995.
Effective 3-4-99:	746 So.2d 1084.	Amended 1.070(j).
Effective 3-11-99:	745 So.2d 946.	Amended 1.650(d)(3).
Effective 7-1-99:	756 So.2d 27.	Added rule 1.840 and form 1.999.
Effective 2-17-00:	754 So.2d 671.	Amended 1.070(j).
Effective 1-1-01:	773 So.2d 1098.	Four-year-cycle revision. Substantively amended 1.061, 1.442(b), (f)–(g), 1.560, 1.650(d), forms 1.988, 1.990–1.996; added 1.525, form 1.977.
Effective 10-23-03:	858 So.2d 1013.	Repealed 1.840, form 1.999.
Effective 1-1-04:	858 So.2d 1013.	Two-year-cycle revision. Amended 1.070(j), 1.190, 1.210(a), 1.370, 1.380, 1.525, 1.540, 1.650, 1.750, 1.810, 1.820, forms 1.902, 1.906, 1.977, 1.988; added 1.981; repealed 1.840, form 1.999.
Effective 10-1-04:	887 So.2d 1090.	Amended 1.200, 1.490.
Effective 1-1-06:	915 So.2d 145.	Amended 1.720(f).
Effective 1-1-06:	915 So.2d 612	Revised Statewide Uniform Guidelines for Taxation of Costs in Civil Actions.
Effective 1-1-06:	917 So.2d 176.	Two-year-cycle revision. Amended 1.380, 1.420(e), 1.431, 1.510, 1.525, forms 1.989, 1.997.
Effective 11-15-07:	969 So.2d 1003.	Amended 1.720(f)(2).
Effective 1-1-08:	966 So.2d 943.	Three-year-cycle revision. Amended 1.120, 1.140, 1.210, 1.221, 1.280, 1.310, 1.351, 1.360, 1.410, 1.650, 1.820, forms 1.902, 1.910–1.913, 1.922, 1.982.
Effective 1-1-08:	967 So.2d 178.	Amended 1.200 and 1.470; adopted 1.452 and 1.455.
Effective 5-28-09:	15 So.3d 558.	Amended 1.100, 1.200, 1.440; added 1.201, form 1.999.
Effective 10-1-09:	20 So.3d 376.	Amended form 1.985.
Effective 10-1-09:	15 So.3d 558.	Amended form 1.918.
Effective 10-15-09:	30 So.3d 477.	Amended form 1.998.
Effective 1-1-10:	30 So.3d 477.	Amended form 1.997.

OTHER OPINIONS:	CITATION	RESULT OF OPINION
Effective 2-11-10:	44 So.3d 555.	Amended 1.110, added forms 1.924; 1.996(a)–(b)
Effective 1-1-11:	52 So.3d 579.	Amended rules 1.080, 1.100, 1.310, 1.340, 1.351, 1.360, 1.410, 1.420, 1.442, 1.470, 1.480, 1.510, 1.525, forms 1.901, 1.923, 1.986; added rules 1.071, 1.285, form 1.975; deleted form 1.985.
Effective 10-1-11:	80 So.3d 317.	Amended rules 1.280, 1.310, 1.340, 1.350, forms 1.988, 1.990, 1.991, 1.993, 1.994, and 1.995.
Effective 1-1-12:	75 So.3d 264.	Amended rule 1.720.
Effective 9-1-12:	102 So.3d 505.	Amended rules 1.080, 1.170, 1.351, 1.410, 1.440, 1.442, 1.510, 1.630.
Effective 9-1-12:	95 So.3d 76.	Amended rules 1.200, 1.201, 1.280, 1.340, 1.350, 1.380, 1.410.
Effective 10-01-12:	95 So.3d 96.	Amended rule 1.090.
Effective 4-1-13:	102 So.3d 451.	Amended rules 1.030, 1.080.
Effective 4-11-13:	112 So.3d 1209.	Amended rule 1.442.
Effective 5-9-13:	113 So.3d 777.	Amended rule 1.490.
Effective 1-1-14:	131 So.3d 643	Amended rules 1.020, 1.380, 1.431, 1.442, 1.480, 1.490, 1.530, 1.560, 1.630, forms 1.910, 1.911, 1.912, 1.913, 1.922, 1.977, 1.981, 1.982, 1.997. Adopted rule 1.451.
Effective 2-20-14:	133 So.3d 928.	Amended rule 1.470.
Effective 3-13-14:	141 So.3d 179.	Amended rule 1.490. Adopted rule 1.491.
Effective 10-1-14:	141 So.3d 1172.	Amended rule 1.720.
Effective 12-11-14:	153 So.3d 258.	Amended rules 1.110, 1.994, 1.996. Adopted rule 1.115.
Effective 3-5-15:	159 So.3d 838.	Amended rules 1.490, 1.491.
Effective 1-14-16:	153 So.3d 258.	Amended rule 1.115, forms 1.944(a), 1.944(b), 1.944(c).
Effective 1-1-17:	199 So.3d 867.	Three-year-cycle rule and form amendments. Amended rules 1.020, 1.071, 1.100, 1.130, 1.140, 1.170, 1.200, 1.310, 1.320, 1.340, 1.410, 1.431, 1.500, 1.510, 1.625, 1.630, 1.900, forms 1.910, 1.911,1.912, 1.913, 1.918, 1.921, 1.922, 1.975, 1.980, 1.997. Adopted rule 1.545.
Effective 2-23-17:	211 So.3d 985	Amended form 1.983.
Effective 7-2-18:	244 So.3d 1009	Amended rule 1.570, renumbered form 1.914 to 1.914(a), adopted form 1.914(b) and 1.914(c)

OTHER OPINIONS:	CITATION	RESULT OF OPINION
Effective 1-1-19:	257 So.3d 66.	Amended 1.170, 1.351, 1.260, 1.410, 1.440, 1.442, and 1.510
Effective 1-1-20:	292 So.3d 660.	Amended 1.090, 1.350, 1.380, 1.510, 1.540, 1.610, 1.650, 1.730, 1.830, 1.902, 1.923, 1.984, 1.996(a), 1.996(b), Appendix I- Form 1 and Form 2. Adopted 1.535.
Effective 4-1-20:	2020 WL 1064825.	Amended Rule 1.470.
Effective 8-13-20:	302 So.3d 811.	Amended Form 1.997
Effective 1-28-21:	312 So.3d 445.	Amended Rule 1.470
Effective 4-8-21:	315 So.3d 635.	Amended 1.260
Effective 4-8-21:	315 So.3d 633.	Amended 1.650
Effective 4-8-21:	318 So.3d 1240.	Amended 1.080
Effective 5-1-21:	317 So.3d 72.	Amended 1.510
Effective 5-1-21:	317 So.3d 1090.	Amended 1.720
Effective 8-26-21:	324 So.3d 459.	Amended 1.280
Effective 10-15-21:	324 So.3d 459.	Amended 1.280
Effective 10-15-21:	345 So.3d 697.	Amended rules 1.280 and 1.340
Effective 10-28-21:	344 So.3d 940.	Amended rules 1.020, 1.090, 1.170, 1.310, 1.350, 1.351, 1.440, 1.442, 1.470, 1.983, 1.997, and 1.999
Effective 4-1-22:	334 So.3d 587.	Amended Form 1997
Effective 7-1-22:	345 So.3d 845.	Amended Rule 1.442
Effective 8-25-22:	346 So.3d 1161.	Amended Rule 1.530
Effective 10-1-22:	346 So.3d 1105.	Amended 1.310, 1.320, 1.410, 1.430, 1.440, 1.700, 1.720, 1.730, 1.750, and 1.830. Deleted 1.451.
Effective 10-1-22:	346 So.3d 1157.	Amended Rule 1.530. Deleted 1.535.
Effective 1-1-23:	351 So.3d 581.	Amended Appendix II.
Effective 1-19-23:	356 So.3d 206.	Amended 1.070 and 1.650.
Effective 3-30-23:	361 So.3d 291.	Adopted 1.453.
Effective 4-27-23:	48 FLW S69.	Amended 1.530.
Effective 10-19-23:	373 So.3d 1115.	Amended 1.530
Effective 1-1-24:	370 So.3d 888.	Amended 1.351.
Effective 4-1-24:	375 So.3d 211.	Adopted 1.041 and amended 1.933.
Effective 4-1-24:	377 So.3d 1111.	Amended 1.996(a) and 1.996(b).
Effective 7-1-24:	385 So.3d 1038.	Amended 1.061 and 1.983.
Effective 7-1-24:	386 So.3d 876.	Amended 1.110, 1.820, Form 1.923, Form 1.947.
Effective 7-11-24:	390 So.3d 1170.	Adopted Form 1.925.
Effective 8-29-24:	394 So.3d 656.	Amended 1.983.

OTHER OPINIONS:	CITATION	RESULT OF OPINION
Effective 10-1-24:	390 So.3d 604.	Amended 1.080 and 1.310.
Effective 1-1-25:	386 So.3d 497.	Amended 1.200, 1.201, 1.280, 1.440, 1.460.
Effective 1-1-25:	386 So.3d 117.	Amended 1.510, adopted 1.202.
Effective 1-1-25:	402 So.3d 925.	Amended 1.090, 1.200, 1.201, 1.280, 1.310, 1.340, 1.350, 1.370, 1.380, 1.410, 1.440, 1.460. (Corrected opinion issued 1-23-25 with corrections to 1.280 and 1.380.)
Effective 1-1-25:	397 So.3d 1018.	Amended 1.202 and 1.510.
Effective 4-1-25:	402 So.3d 284.	Amended 1.070, 1.410, 1.550, 1.560, and 1.730.
Effective 6-5-25:	412 So.3d 6.	Provided translations for Form 1.923(a).
Effective 6-19-25:	412 So.3d 718.	Amended 1.280.
Effective 1-1-26:	422 So.3d 149.	Amended 1.440 and 1.500.
Effective 1-1-26:	422 So.3d 152.	Amended 1.442, 1.902, and 1.938.
Effective 4-1-26:	426 So.3d 470.	Amended 1.070, 1.430, 1.902.
Effective 4-1-26:	426 So.3d 466.	Amended 1.350, 1.370.
Effective 10-1-26:	2026 WL 2603472.	Amended 1.080, 1.090.

NOTE TO USERS: Rules in this pamphlet are current through 2026 WL 2603472. Subsequent amendments, if any, can be found at www.floridasupremecourt.org/decisions/rules.shtml.

RULE 1.010. SCOPE AND TITLE OF RULES

These rules apply to all actions of a civil nature and all special statutory proceedings in the circuit courts and county courts except those to which the Florida Probate Rules, the Florida Family Law Rules of Procedure, or the Small Claims Rules apply. The form, content, procedure, and time for pleading in all special statutory proceedings shall be as prescribed by the statutes governing the proceeding unless these rules specifically provide to the contrary. These rules shall be construed to secure the just, speedy, and inexpensive determination of every action. These rules shall be known as the Florida Rules of Civil Procedure and abbreviated as Fla.R.Civ.P.

RULE 1.020. PRIVACY AND COURT RECORDS

Every pleading or other document filed with the court must comply with Florida Rules of General Practice and Judicial Administration 2.420, Public Access to and Protection of Judicial Branch Records and 2.425, Minimization of the Filing of Sensitive Information.

RULE 1.030. NONVERIFICATION OF PLEADINGS

Except when otherwise specifically provided by these rules or an applicable statute, every pleading or other document of a party represented by an attorney need not be verified or accompanied by an affidavit.

Committee Notes

1976 Amendment. Subdivisions (a)–(b) have been amended to require the addition of the filing party's telephone number on all pleadings and papers filed.

RULE 1.040. ONE FORM OF ACTION

There shall be one form of action to be known as "civil action."

RULE 1.041. LIMITED APPEARANCE ATTORNEYS

(a) Scope of Representation. An attorney may file a notice of limited appearance specifically limiting the attorney's appearance to particular proceedings or specified matters.

(b) Notice of Limited Appearance.

(1) A notice of limited appearance must be filed before any attorney's appearance before the court at any proceeding or hearing.

(2) A notice of limited appearance must specifically identify the particular proceedings and specified matters in which the attorney will represent the party.

(c) Filings by a Limited Appearance Attorney. Any pleading or other document filed by a limited appearance attorney must state in bold type on the signature page of that pleading or other document: "Attorney for [Plaintiff(s)] [Defendant(s)] for the limited purpose of [matter(s) or proceeding(s)]".

(d) Service. During the attorney's limited appearance:

(1) All pleadings or other documents, including all notices of hearing, must be served on all parties in the action, including the limited appearance attorney.

(2) If the limited appearance attorney receives notice of a hearing that is outside the scope of representation, the attorney must file a notice stating the attorney will not attend the court proceeding or hearing because it is outside the scope of the representation.

(e) Termination. A termination of limited appearance must be in accordance with Florida Rule of General Practice and Judicial Administration 2.505.

RULE 1.050. WHEN ACTION COMMENCED

Every action of a civil nature shall be deemed commenced when the complaint or petition is filed except that ancillary proceedings shall be deemed commenced when the writ is issued or the pleading setting forth the claim of the party initiating the action is filed.

RULE 1.060. TRANSFERS OF ACTIONS

(a) Transfers of Courts. If it should appear at any time that an action is pending in the wrong court of any county, it may be transferred to the proper court within said county by the same method as provided in rule 1.170(j).

(b) Wrong Venue. When any action is filed laying venue in the wrong county, the court may transfer the action in the manner provided in rule 1.170(j) to the proper court in any county where it might have been brought in accordance with the venue statutes. When the venue might have been laid in 2 or more counties, the person bringing the action may select the county to which the action is transferred, but if no such selection is made, the matter shall be determined by the court.

(c) Method. The service charge of the clerk of the court to which an action is transferred under this rule shall be paid by the party who commenced the action within 30 days from the date the order of transfer is entered, subject to taxation as provided by law when the action is determined. If the service charge is not paid within the 30 days, the action shall be dismissed without prejudice by the court that entered the order of transfer.

Court Commentary

1984 Amendment. Because of confusion in some circuits, subdivision (c) is added:

(a) to specify who is to pay the clerk's service charge on transfer;

(b) to provide for the circumstance in which the service charge is not paid; and

(c) to require the dismissal to be by the court which entered the order of transfer.

RULE 1.061. CHOICE OF FORUM

(a) Grounds for Dismissal. An action may be dismissed on the ground that a satisfactory remedy may be more conveniently sought in a jurisdiction other than Florida when:

(1) the trial court finds that an adequate alternate forum exists which possesses jurisdiction over the whole case, including all of the parties;

(2) the trial court finds that all relevant factors of private interest favor the alternate forum, weighing in the balance a strong presumption against disturbing plaintiffs' initial forum choice;

(3) if the balance of private interests is at or near equipoise, the court further finds that factors of public interest tip the balance in favor of trial in the alternate forum; and

(4) the trial judge ensures that plaintiffs can reinstate their suit in the alternate forum without undue inconvenience or prejudice.

The decision to grant or deny the motion for dismissal rests in the sound discretion of the trial court.

(b) Stipulations in General. The parties to any action for which a satisfactory remedy may be more conveniently sought in a jurisdiction other than Florida may stipulate to conditions on which a dismissal must be based on forum non conveniens, subject to approval by the trial court. The decision to accept or reject the stipulation rests in the sound discretion of the trial court.

A dismissal based on forum non conveniens must not be granted unless all defendants agree to the stipulations required by subdivision (c) and any additional stipulations required by the court.

(c) Statutes of Limitation. In moving for a dismissal based on forum non conveniens, defendants will be deemed to automatically stipulate that the action will be treated in the new forum as though it had been filed in that forum on the date it was filed in Florida, with service of process accepted as of that date.

(d) Failure to Refile Promptly. When an action is dismissed in Florida for forum non conveniens, plaintiffs will automatically be deemed to stipulate that they will lose the benefit of all stipulations made by the defendant, including the stipulation provided in subdivision (c) of this rule, if plaintiffs fail to file the action in the new forum within 120 days after the date the Florida dismissal becomes final.

(e) Waiver of Automatic Stipulations. With unanimous agreement, the parties may waive the conditions provided in subdivision (c) or (d), or both, only when they demonstrate and the trial court finds a compelling reason for the waiver.

(f) Reduction to Writing. The parties must reduce their stipulation to a writing signed by them, which must include all stipulations provided by this rule and which will be deemed incorporated by reference in any subsequent order of dismissal.

(g) Time for Moving for Dismissal. A motion to dismiss based on forum non conveniens must be served not later than 60 days after service of process on the moving party.

(h) Retention of Jurisdiction. The court will retain jurisdiction after the dismissal to enforce its order of dismissal and any conditions and stipulations in the order.

Committee Notes

2000 Amendment. Subdivision (a)(1) is amended to clarify that the alternative forum other than Florida must have jurisdiction over all of the parties for the trial court to grant a dismissal based on forum non conveniens.

Subdivision (b) is amended to clarify that all of the defendants, not just the moving defendant, must agree to the stipulations required by subdivision (c) as well as any additional stipulations required by the trial court before an action may be dismissed based on forum non conveniens.

Subdivision (g) is added to require that a motion to dismiss based on forum non conveniens be served not later than 60 days after service of process on the moving party.

Subdivision (h) is added to require the court to retain jurisdiction over the action after the dismissal for purposes of enforcing its order of dismissal and any conditions and stipulations contained in the order.

Court Commentary

This section was added to elaborate on Florida's adoption of the federal doctrine of forum non conveniens in *Kinney System, Inc. v. Continental Insurance Co.*, 674 So.2d 86 (Fla. 1996), and it should be interpreted in light of that opinion.

Subdivision (a) codifies the federal standard for reviewing motions filed under the forum-non-conveniens doctrine.

As stated in Kinney, the phrase "private interests" means adequate access to evidence and relevant sites, adequate access to witnesses, adequate enforcement of judgments, and the practicalities and expenses associated with the litigation. Private interests do not involve consideration of the availability or unavailability of advantageous legal theories, a history of generous or stingy damage awards, or procedural nuances that may affect outcomes but that do not effectively deprive the plaintiff of any remedy.

"Equipoise" means that the advantages and disadvantages of the alternative forum will not significantly undermine or favor the "private interests" of any particular party, as compared with the forum in which suit was filed.

"Public interests" are the ability of courts to protect their dockets from causes that lack significant connection to the jurisdiction; the ability of courts to encourage trial of controversies in the localities in which they arise; and the ability of courts to consider their familiarity with governing law when deciding whether to retain jurisdiction over a case. Even when the private conveniences of the litigants are nearly in balance, a trial court has discretion to grant a forum-non-conveniens dismissal upon finding that retention of jurisdiction would be unduly burdensome to the community, that there is little or no public interest in the dispute, or that foreign law will predominate if jurisdiction is retained.

Subdivision (b) provides that the parties can stipulate to conditions of a forum-non-conveniens dismissal, subject to the trial court's approval.

Subdivisions (c) and (d) provide automatic conditions that shall be deemed included in every forum-non-conveniens dismissal. The purpose underlying subdivision (c) is to ensure that any statute of limitation in the new forum is applied as though the action had been filed in that forum on the date it was filed in Florida. The purpose underlying subdivision (d) is to ensure that the action is promptly refiled in the new forum. Both of these stipulations are deemed to be a part of every stipulation that does not expressly state otherwise, subject to the qualification provided in subdivision (e).

Subdivision (e) recognizes that there may be extraordinary conditions associated with the new forum that would require the waiver of the conditions provided in subdivisions (c) and (d). Waivers should be granted sparingly. Thus, the parties by unanimous consent may stipulate to waive those conditions only upon showing a compelling reason to the trial court.

Subdivision (f) requires the parties to reduce their stipulation to written form, which the parties must sign. When and if the trial court accepts the stipulation, the parties' agreement then is treated as though it were incorporated by reference in the trial court's order of dismissal. To avoid confusion, the parties shall include the automatic stipulations provided by subdivisions (c) and (d) of this rule, unless the latter are properly waived under subdivision (e). However, the failure to include these automatic conditions in the stipulation does not waive them unless the dismissing court has expressly so ruled.

RULE 1.070. PROCESS

(a) Summons; Issuance. On the commencement of the action, summons or other process authorized by law must be promptly issued by the clerk or judge under the clerk's or the judge's signature and the seal of the court and delivered for service.

(b) Service; By Whom Made. Service of process may be made by an officer authorized by law to serve process, but the court may appoint any competent person not interested in the action to serve the process. The person serving process must make proof of service by affidavit promptly and in any event within the time during which the person served must respond to the process. Failure to make proof of service will not affect the validity of the service. When any process is returned not executed or returned improperly executed for any defendant, the party causing its issuance is entitled to any additional process against the unserved party as is required to effect service.

(c) Service; Numerous Defendants. If more than 1 defendant is named, the clerk or judge must issue as many writs of process against the several defendants as may be directed by the plaintiff or the plaintiff's attorney.

(d) Service by Publication or Any Other Means. Service of process by publication or any other means may be made as provided by statute.

(e) Copies of Initial Pleading for Persons Served. At the time of personal service of process, a copy of the initial pleading must be delivered to the party on whom service is made. The date and hour of service must be endorsed on the original process and all copies of it by the person making the service. The party seeking to effect personal service must provide the person making service with the necessary copies. When the service is made by publication, copies of the initial pleadings must be provided to the clerk and mailed by the clerk with the notice of action to all parties whose addresses are stated in the initial pleading or sworn statement.

(f) Service of Orders. If personal service of a court order is to be made, the original order must be filed with the clerk, who must certify or verify a copy of it without charge. The person making service must use the certified copy instead of the original order in the same manner as original process in making service.

(g) Fees; Service of Pleadings. The statutory compensation for making service will not be increased by the simultaneous delivery or mailing of the copy of the initial pleading in conformity with this rule.

(h) Pleading Basis. When service of process is to be made under statutes authorizing service on nonresidents of Florida, it is sufficient to plead the basis for service in the language of the statute without pleading the facts supporting service.

(i) Service of Process by Mail. A defendant may accept service of process by mail.

(1) Accepting service of a complaint by mail does not waive any objection to the venue or to the jurisdiction of the court over the defendant.

(2) A plaintiff may notify any defendant of the commencement of the action and request that the defendant waive service of a summons. The notice and request must:

(A) be in writing and be addressed directly to the defendant, if an individual, or to an officer or managing or general

agent of the defendant or other agent authorized by appointment or law to receive service of process;

(B) be dispatched by U.S. certified mail, return receipt requested, or by registered mail as defined by section 1.01, Florida Statutes;

(C) be accompanied by a copy of the complaint and identify the court in which it has been filed;

(D) inform the defendant of the consequences of compliance and of failure to comply with the request;

(E) state the date on which the request is sent;

(F) allow the defendant 20 days from the date on which the request is received to return the waiver, or, if the address of the defendant is outside of the United States, 30 days from the date on which it is received to return the waiver; and

(G) provide the defendant with an extra copy of the notice and request, including the waiver, and a prepaid means of compliance in writing.

(3) If a defendant fails to comply with a request for waiver within the time provided, the court must impose the costs subsequently incurred in effecting service on the defendant unless good cause for the failure is shown.

(4) A defendant who, before being served with process, timely returns a waiver is not required to respond to the complaint until 60 days after the date the defendant received the request for waiver of service. For purposes of computing any time prescribed or allowed by these rules, service of process will be deemed effected 20 days before the time required to respond to the complaint.

(5) When the plaintiff files a waiver of service with the court, the action must proceed, except as provided in subdivision (i)(4) above, as if a summons and complaint had been served at the time of filing the waiver, and no further proof of service is required.

(j) Summons; Time Limit. If service of the initial process and initial pleading is not made on a defendant within 120 days after filing of the initial pleading directed to that defendant the court, on its own initiative after notice or on motion, must direct that service be effected within a specified time or must dismiss the action without prejudice or drop that defendant as a party; provided that if the plaintiff shows good cause or excusable neglect for the failure, the court must extend the time for service for an appropriate period. When a motion for leave to amend with the attached proposed amended complaint is filed, the 120-day period for service of amended complaints on the new party or parties will begin on the entry of an order granting leave to amend. A dismissal under this subdivision will not be considered a voluntary dismissal or operate as an adjudication on the merits under rule 1.420(a)(1).

Committee Notes

1971 Amendment. Subdivisions (f), (g), and (h) of the existing rule are combined because they deal with the same subject matter. The "notice of suit" is changed to "notice of action" to comply with the statutory change in 1967. Subdivision (g) is new and provides for substitution of a certified or verified copy of a court order that must be served. The original is to be filed with the clerk and not removed. Subdivision (i) is relettered to (h).

1972 Amendment. Subdivision (a) is amended to require the officer issuing the process to sign it and place the court seal on it. This was required by former section 47.04, Florida Statutes, and is essential to the validity of process. When the statute was repealed these procedural requirements were omitted and inadvertently not included in the rule. Subdivision (b) is changed to eliminate the predicate for court appointment of a person to make service of process. This makes the rule more flexible and permits the court to appoint someone to make service at any appropriate time.

1980 Amendment. Subdivision (i) is added to eliminate pleading evidentiary facts for "long arm" service of process. It is based on the long-standing principle in service by publication that pleading the basis for service is sufficient if it is done in the language of the statute. See *McDaniel v. McElvy,* 91 Fla. 770, 108

So. 820 (1926). Confusion has been generated in the decisions under the "long arm" statute. See *Wm. E. Strasser Construction Corp. v. Linn*, 97 So. 2d 458 (Fla. 1957); *Hartman Agency, Inc. v. Indiana Farmers Mutual Insurance Co.*, 353 So. 2d 665 (Fla. 2d DCA 1978); and *Drake v. Scharlau*, 353 So. 2d 961 (Fla. 2d DCA 1978). The amendment is not intended to change the distinction between pleading and proof as enunciated in *Elmex Corp. v. Atlantic Federal Savings & Loan Association of Fort Lauderdale*, 325 So. 2d 58 (Fla. 4th DCA 1976). It is intended to eliminate the necessity of pleading evidentiary facts as well as those of pecuniary benefit that were used in the *Elmex* case. The amendment is limited to pleading. If the statutory allegations are attacked by motion, the pleader must then prove the evidentiary facts to support the statutory requirements. If denied in a pleading, the allegations must be proved at trial. Otherwise, the allegations will be admitted under rule 1.110(e).

1988 Amendment. Subdivision (j) has been added to require plaintiffs to cause service of original summons within 120 days of filing the complaint absent good cause for further delay.

1992 Amendment. Subdivision (d) is repealed because the reason for the rule ceased when process was permitted to run beyond county boundaries. The amendment to subdivision (j) (redesignated as (i)) is intended to clarify that a dismissal under this subdivision is not to be considered as an adjudication on the merits under rule 1.420(a)(1) of these rules.

1996 Amendment. Subdivision (i) is added to provide some formality to the practice of requesting waiver of service of process by a sheriff or person appointed to serve papers or by publication. The committee intends that only the manner of service will be waived by this procedure. By accepting service pursuant to this rule, the defendant will not waive any objection to venue or jurisdiction over the person or admit to the sufficiency of the pleadings or to allegations with regard to long-arm or personal jurisdiction. For example, service of process would be void should a motion to dismiss be granted because the complaint did not allege the basis for long-arm jurisdiction over a nonresident defendant. *City*

Contract Bus Service, Inc. v. H.E. Woody, 515 So. 2d 1354 (Fla. 1st DCA 1987). Under such circumstances, the defendant must be served pursuant to law or again waive service pursuant to this rule. Subdivision (i)(2)(F) allows the defendant 20 days from receipt (or 30 days if the defendant is outside of the United States) to return the waiver. Accordingly, the committee intends that the waiver be received by the plaintiff or the plaintiff's attorney by the twentieth day (or the thirtieth day if the defendant is outside of the United States). The former subdivision (i) has been redesignated as subdivision (j). Form 1.902 may be used to give notice of an action and request waiver of process pursuant to this rule.

2003 Amendment. Subdivision (j) is amended in accordance with *Totura & Co., Inc. v. Williams*, 754 So. 2d 671 (Fla. 2000). See the amendment to rule 1.190(a).

RULE 1.071. CONSTITUTIONAL CHALLENGE TO STATE STATUTE OR COUNTY OR MUNICIPAL CHARTER, ORDINANCE, OR FRANCHISE; NOTICE BY PARTY

A party that files a pleading, written motion, or other document drawing into question the constitutionality of a state statute or a county or municipal charter, ordinance, or franchise must promptly

(a) file a notice of constitutional question stating the question and identifying the document that raises it; and

(b) serve the notice and the pleading, written motion, or other document drawing into question the constitutionality of a state statute or a county or municipal charter, ordinance, or franchise on the Attorney General or the state attorney of the judicial circuit in which the action is pending, by either certified or registered mail.

Service of the notice and pleading, written motion, or other document does not require joinder of the Attorney General or the state attorney as a party to the action.

Committee Notes

2010 Adoption. This rule clarifies that, with respect to challenges to a state statute or municipal charter, ordinance, or franchise, service of the notice does not require joinder of the Attorney General or the state attorney as a party to the action; however, consistent with section 86.091, Florida Statutes, the Florida Attorney General has the discretion to participate and be heard on matters affecting the constitutionality of a statute. See, e.g., *Mayo v. National Truck Brokers, Inc.*, 220 So. 2d 11 (Fla. 1969); *State ex rel. Shevin v. Kerwin*, 279 So. 2d 836 (Fla. 1973) (Attorney General may choose to participate in appeal even though he was not required to be a party at the trial court). The rule imposes a new requirement that the party challenging the statute, charter, ordinance, or franchise file verification with the court of compliance with section 86.091, Florida Statutes. See form 1.975.

RULE 1.080. SERVICE AND FILING OF PLEADINGS; ORDERS; DOCUMENTS; AND TRANSCRIPTS

(a) Service. Every pleading after the initial pleading, all orders, and every other document filed with the court or required by statute or rule to be served in the action must be served in conformity with the requirements of Florida Rule of General Practice and Judicial Administration 2.516.

(b) Filing. All documents must be filed in conformity with the requirements of Florida Rule of General Practice and Judicial Administration 2.525.

(c) Documents. All documents filed with the court must be prepared in conformity with the requirements of Florida Rule of General Practice and Judicial Administration 2.520.

(d) Signature. All documents filed with the court or required by statute or rule to be served in the action must be signed as required by Florida Rule of General Practice and Judicial Administration 2.515.

(e) Writing and written defined. Writing or written means a document containing information, an application, or a stipulation.

(f) Format of Filed Transcripts. All transcripts filed with the court must be in full-page format, unless condensed transcripts are authorized by the court. The Portable Document Format ("PDF") file(s) of all transcripts must be text searchable.

Committee Notes

2024 Amendment. Rule 1.080(d) aligns the civil rules with the Florida Rules of Appellate Procedure, which require filing full-page format transcripts, including depositions, in all appellate courts. This rule does not prevent the use of condensed transcripts for other purposes.

RULE 1.090. TIME

(a) Computation. Computation of time is governed by Florida Rule of General Practice and Judicial Administration 2.514.

(b) Extending Time.

(1) *In General.* When an act may or must be done within a specified time, the court may, for good cause shown, extend the time:

(A) with or without motion or notice if the court acts, or if a request is made, before the original time or its extension expires; or

(B) on motion made after the time has expired if the party failed to act because of excusable neglect.

(2) *Exceptions.* The court may not extend the time for making a motion for new trial, for rehearing, or to alter or amend a judgment; making a motion for relief from a judgment under rule 1.540(b); taking an appeal or filing a petition for certiorari; or making a motion for a directed verdict. Extensions of deadlines in

case management orders are governed by rule 1.200 or rule 1.201, and trial continuances are governed by rule 1.460.

(c) Unaffected by Expiration of Term. The period of time provided for the doing of any act or the taking of any proceeding must not be affected or limited by the continued existence or expiration of a term of court. The continued existence or expiration of a term of court in no way affects the power of a court to do any act or take any proceeding in any action which is or has been pending before it.

(d) For Motions. A copy of any written motion which may not be heard ex parte and a copy of the notice of the hearing must be served a reasonable time before the time specified for the hearing.

RULE 1.100. PLEADINGS AND MOTIONS

(a) Pleadings. There must be a complaint or, when so designated by a statute or rule, a petition, and an answer to it; an answer to a counterclaim denominated as such; an answer to a crossclaim if the answer contains a crossclaim; a third-party complaint if a person who was not an original party is summoned as a third-party defendant; and a third-party answer if a third-party complaint is served. If an answer or third-party answer contains an affirmative defense and the opposing party seeks to avoid it, the opposing party must file a reply containing the avoidance. No other pleadings will be allowed.

(b) Motions. An application to the court for an order must be by motion which must be made in writing unless made during a hearing or trial, must state with particularity the grounds for it, and must set forth the relief or order sought. The requirement of writing is fulfilled if the motion is stated in a written notice of the hearing of the motion. All notices of hearing must specify each motion or other matter to be heard.

(c) Caption.

(1) Every pleading must have a caption containing the name of all of the parties, the name of the court, the file number, and a designation identifying the party filing it.

(2) Every motion, order, judgment, or other document must have a caption containing the name of the court, the case number, the name of the first party on each side with an appropriate indication of other parties, and a designation identifying the party filing it and its nature or the nature of the order, as the case may be.

(3) In any in rem proceeding, every pleading, motion, order, judgment, or other document must have a caption containing the name of the court, the case number, the style "In re" (followed by the name or general description of the property), and a designation of the person or entity filing it and its nature or the nature of the order, as the case may be.

(4) In an in rem forfeiture proceeding, the style must be "In re forfeiture of" (followed by the name or general description of the property).

(5) All documents filed in the action must be styled in such a manner as to indicate clearly the subject matter of the document and the party requesting or obtaining relief.

(d) Civil Cover Sheet. A civil cover sheet (form 1.997) must be completed and filed with the clerk at the time an initial complaint or petition is filed by the party initiating the action. If the cover sheet is not filed, the clerk must accept the complaint or petition for filing; but all proceedings in the action must be abated until a properly executed cover sheet is completed and filed. The clerk must complete the civil cover sheet for a party appearing pro se.

(e) Motion in Lieu of Scire Facias. Any relief available by scire facias may be granted on motion after notice without the issuance of a writ of scire facias.

Committee Notes

1971 Amendment. The change requires a more complete designation of the document that is filed so that it may be more rapidly identified. It also specifies the applicability of the subdivision to all of the various documents that can be filed. For example, a motion to dismiss should now be entitled "defendant's motion to dismiss the complaint" rather than merely "motion" or "motion to dismiss."

1972 Amendment. Subdivision (a) is amended to make a reply mandatory when a party seeks to avoid an affirmative defense in an answer or third-party answer. It is intended to eliminate thereby the problems exemplified by *Tuggle v. Maddox*, 60 So. 2d 158 (Fla. 1952), and *Dickerson v. Orange State Oil Co.*, 123 So. 2d 562 (Fla. 2d DCA 1960).

1992 Amendment. Subdivision (b) is amended to require all notices of hearing to specify the motions or other matters to be heard.

2010 Amendment. Subdivision (c) is amended to address separately the caption for in rem proceedings, including in rem forfeiture proceedings.

2016 Amendment. Subdivision (c) is amended to address the naming of parties in pleadings and amended pleadings similarly to Federal Rule of Civil Procedure 10(a). Subdivision (c)(2) on Civil Cover Sheets is moved to subdivision (d), and subdivision (c)(3) on Final Disposition Forms is moved to new rule 1.545.

RULE 1.110. GENERAL RULES OF PLEADING

(a) Forms of Pleadings. Forms of action and technical forms for seeking relief and of pleas, pleadings, or motions are abolished.

(b) Claims for Relief. A pleading which sets forth a claim for relief, whether an original claim, counterclaim, crossclaim, or third-party claim, must state a cause of action and must contain:

(1) a short and plain statement of the grounds on which the court's jurisdiction depends, unless the court already has

jurisdiction and the claim needs no new grounds of jurisdiction to support it;

(2) a short and plain statement of the ultimate facts showing that the pleader is entitled to relief; and

(3) a demand for judgment for the relief to which the pleader deems the pleader entitled.

Relief in the alternative or of several different types may be demanded. Every complaint will be considered to pray for general relief.

(c) The Answer. In the answer, a pleader must state in short and plain terms the pleader's defenses to each claim asserted and must admit or deny the averments on which the adverse party relies. If the defendant is without knowledge, the defendant must so state, and such statement will operate as a denial. Denial must fairly meet the substance of the averments denied. When a pleader intends in good faith to deny only a part of an averment, the pleader must specify so much of it as is true and must deny the remainder. Unless the pleader intends in good faith to controvert all of the averments of the preceding pleading, the pleader may make denials as specific denials of designated averments or may generally deny all of the averments except such designated averments as the pleader expressly admits. When the pleader does so intend to controvert all of its averments, including averments of the grounds on which the court's jurisdiction depends, the pleader may do so by general denial.

(d) Affirmative Defenses. In pleading to a preceding pleading, a party must set forth affirmatively: accord and satisfaction, arbitration and award, assumption of risk, contributory negligence, discharge in bankruptcy, duress, estoppel, failure of consideration, fraud, illegality, injury by fellow servant, laches, license, payment, release, res judicata, statute of frauds, statute of limitations, waiver, and any other matter constituting an avoidance or affirmative defense. A pleading that sets forth an affirmative defense must contain a short and plain statement of the ultimate facts supporting the avoidance or affirmative defense.

When a party has mistakenly designated a defense as a counterclaim or a counterclaim as a defense, the court, on terms if justice so requires, must treat the pleading as if there had been a proper designation. Affirmative defenses appearing on the face of a prior pleading may be asserted as grounds for a motion or defense under rule 1.140(b), provided this does not limit amendments under rule 1.190 even if such ground is sustained.

(e) Effect of Failure to Deny. Averments in a pleading to which a responsive pleading is required, other than those as to the amount of damages, are admitted when not denied in the responsive pleading. Averments in a pleading to which no responsive pleading is required or permitted must be taken as denied or avoided.

(f) Separate Statements. All averments of claim or defense must be made in consecutively numbered paragraphs. The contents of each paragraph must be limited as far as practicable to a statement of a single set of circumstances, and a paragraph may be referred to by number in all subsequent pleadings. Each claim founded on a separate transaction or occurrence and each defense other than denials must be stated in a separate count or defense when a separation facilitates the clear presentation of the matter set forth.

(g) Joinder of Causes of Action; Consistency. A pleader may set up in the same action as many claims or causes of action or defenses in the same right as the pleader has, and claims for relief may be stated in the alternative if separate items make up the cause of action, or if 2 or more causes of action are joined. A party may also set forth 2 or more statements of a claim or defense alternatively, either in 1 count or defense or in separate counts or defenses. When 2 or more statements are made in the alternative and 1 of them, if made independently, would be sufficient, the pleading is not made insufficient by the insufficiency of 1 or more of the alternative statements. A party may also state as many separate claims or defenses as that party has, regardless of consistency and whether based on legal or equitable grounds or both. All pleadings must be construed so as to do substantial justice.

(h) Subsequent Pleadings. When the nature of an action permits pleadings subsequent to final judgment, and the jurisdiction of the court over the parties has not terminated, the initial pleading subsequent to final judgment must be designated a supplemental complaint or petition. The action must then proceed in the same manner and time as though the supplemental complaint or petition were the initial pleading in the action, including the issuance of any needed process. This subdivision does not apply to proceedings that may be initiated by motion under these rules.

Committee Notes

1971 Amendment. Subdivision (h) is added to cover a situation usually arising in divorce judgment modifications, supplemental declaratory relief actions, or trust supervision. When any subsequent proceeding results in a pleading in the strict technical sense under rule 1.100(a), response by opposing parties will follow in the same course as though the new pleading were the initial pleading in the action. The time for answering and authority for defenses under rule 1.140 will apply. The last sentence exempts post judgment motions under rules 1.480(c), 1.530, and 1.540, and similar proceedings from its purview.

2014 Amendment. The last two paragraphs of rule 1.110(b) regarding pleading requirements for certain mortgage foreclosure actions were deleted and incorporated in new rule 1.115.

RULE 1.115. PLEADING MORTGAGE FORECLOSURES

(a) Claim for Relief. A claim for relief that seeks to foreclose a mortgage or other lien which secures a promissory note on residential real property, including individual units of condominiums and cooperatives designed principally for occupation by one to four families, must: (1) contain affirmative allegations expressly made by the claimant at the time the proceeding is commenced that the claimant is the holder of the original note secured by the mortgage; or (2) allege with specificity the factual basis by which the claimant is a person entitled to enforce the note under section 673.3011, Florida Statutes.

(b) Delegated Claim for Relief. If a claimant has been delegated the authority to institute a mortgage foreclosure action on behalf of the person entitled to enforce the note, the claim for relief shall describe the authority of the claimant and identify with specificity the document that grants the claimant the authority to act on behalf of the person entitled to enforce the note. The term "original note" or "original promissory note" means the signed or executed promissory note rather than a copy of it. The term includes any renewal, replacement, consolidation, or amended and restated note or instrument given in renewal, replacement, or substitution for a previous promissory note. The term also includes a transferrable record, as defined by the Uniform Electronic Transaction Act in section 668.50(16), Florida Statutes.

(c) Possession of Original Promissory Note. If the claimant is in possession of the original promissory note, the claimant must file under penalty of perjury a certification contemporaneously with the filing of the claim for relief for foreclosure that the claimant is in possession of the original promissory note. The certification must set forth the location of the note, the name and title of the individual giving the certification, the name of the person who personally verified such possession, and the time and date on which the possession was verified. Correct copies of the note and all allonges to the note must be attached to the certification. The original note and the allonges must be filed with the court before the entry of any judgment of foreclosure or judgment on the note.

(d) Lost, Destroyed, or Stolen Instrument. If the claimant seeks to enforce a lost, destroyed, or stolen instrument, an affidavit executed under penalty of perjury must be attached to the claim for relief. The affidavit must: (1) detail a clear chain of all endorsements, transfers, or assignments of the promissory note that is the subject of the action; (2) set forth facts showing that the claimant is entitled to enforce a lost, destroyed, or stolen instrument pursuant to section 673.3091, Florida Statutes; and (3) include as exhibits to the affidavit such copies of the note and the allonges to the note, audit reports showing receipt of the original note, or other evidence of the acquisition, ownership, and possession of the note as may be available to the claimant.

Adequate protection as required and identified under sections 673.3091(2) and 702.11(1), Florida Statutes, shall be provided before the entry of final judgment.

(e) Verification. When filing an action for foreclosure on a mortgage for residential real property the claim for relief shall be verified by the claimant seeking to foreclose the mortgage. When verification of a document is required, the document filed shall include an oath, affirmation, or the following statement:

"Under penalties of perjury, I declare that I have read the foregoing, and the facts alleged therein are true and correct to the best of my knowledge and belief."

RULE 1.120. PLEADING SPECIAL MATTERS

(a) Capacity. It is not necessary to aver the capacity of a party to sue or be sued, the authority of a party to sue or be sued in a representative capacity, or the legal existence of an organized association of persons that is made a party, except to the extent required to show the jurisdiction of the court. The initial pleading served on behalf of a minor party shall specifically aver the age of the minor party. When a party desires to raise an issue as to the legal existence of any party, the capacity of any party to sue or be sued, or the authority of a party to sue or be sued in a representative capacity, that party shall do so by specific negative averment which shall include such supporting particulars as are peculiarly within the pleader's knowledge.

(b) Fraud, Mistake, Condition of the Mind. In all averments of fraud or mistake, the circumstances constituting fraud or mistake shall be stated with such particularity as the circumstances may permit. Malice, intent, knowledge, mental attitude, and other condition of mind of a person may be averred generally.

(c) Conditions Precedent. In pleading the performance or occurrence of conditions precedent, it is sufficient to aver generally that all conditions precedent have been performed or have occurred.

A denial of performance or occurrence shall be made specifically and with particularity.

(d) Official Document or Act. In pleading an official document or official act it is sufficient to aver that the document was issued or the act done in compliance with law.

(e) Judgment or Decree. In pleading a judgment or decree of a domestic or foreign court, a judicial or quasi-judicial tribunal, or a board or officer, it is sufficient to aver the judgment or decree without setting forth matter showing jurisdiction to render it.

(f) Time and Place. For the purpose of testing the sufficiency of a pleading, averments of time and place are material and shall be considered like all other averments of material matter.

(g) Special Damage. When items of special damage are claimed, they shall be specifically stated.

RULE 1.130. ATTACHING COPY OF CAUSE OF ACTION AND EXHIBITS

(a) Instruments Attached. All bonds, notes, bills of exchange, contracts, accounts, or documents on which action may be brought or defense made, or a copy thereof or a copy of the portions thereof material to the pleadings, must be incorporated in or attached to the pleading. No documents shall be unnecessarily annexed as exhibits. The pleadings must contain no unnecessary recitals of deeds, documents, contracts, or other instruments.

(b) Part for All Purposes. Any exhibit attached to a pleading must be considered a part thereof for all purposes. Statements in a pleading may be adopted by reference in a different part of the same pleading, in another pleading, or in any motion.

RULE 1.140. DEFENSES

(a) When Presented.

(1) Unless a different time is prescribed in a statute of Florida, a defendant must serve an answer within 20 days after service of original process and the initial pleading on the defendant, or not later than the date fixed in a notice by publication. A party served with a pleading stating a crossclaim against that party must serve an answer to it within 20 days after service on that party. The plaintiff must serve an answer to a counterclaim within 20 days after service of the counterclaim. If a reply is required, the reply must be served within 20 days after service of the answer.

(2) (A) Except when sued pursuant to section 768.28, Florida Statutes, the state of Florida, an agency of the state, or an officer or employee of the state sued in an official capacity must serve an answer to the complaint or crossclaim, or a reply to a counterclaim, within 40 days after service.

(B) When sued pursuant to section 768.28, Florida Statutes, the Department of Financial Services or the defendant state agency has 30 days from the date of service within which to serve an answer to the complaint or crossclaim or a reply to a counterclaim.

(3) The service of a motion under this rule, except a motion for judgment on the pleadings or a motion to strike under subdivision (f), alters these periods of time so that if the court denies the motion or postpones its disposition until the trial on the merits, the responsive pleadings must be served within 10 days after the filing of the court's order or, if the court grants a motion for a more definite statement, the responsive pleadings must be served within 10 days after service of the more definite statement unless a different time is fixed by the court in either case.

(4) If the court permits or requires an amended or responsive pleading or a more definite statement, the pleading or statement must be served within 10 days after the filing of the court's order unless a different time is fixed by the court. Responses to the pleadings or statements must be served within 10 days of service of the pleadings or statements.

(b) How Presented. Every defense in law or fact to a claim for relief in a pleading must be asserted in the responsive pleading, if one is required, but the following defenses may be made by motion at the option of the pleader: (1) lack of jurisdiction over the subject matter, (2) lack of jurisdiction over the person, (3) improper venue, (4) insufficiency of process, (5) insufficiency of service of process, (6) failure to state a cause of action, and (7) failure to join indispensable parties. A motion making any of these defenses must be made before pleading if a further pleading is permitted. The grounds on which any of the enumerated defenses are based and the substantial matters of law intended to be argued must be stated specifically and with particularity in the responsive pleading or motion. Any ground not stated must be deemed to be waived except any ground showing that the court lacks jurisdiction of the subject matter may be made at any time. No defense or objection is waived by being joined with other defenses or objections in a responsive pleading or motion. If a pleading sets forth a claim for relief to which the adverse party is not required to serve a responsive pleading, the adverse party may assert any defense in law or fact to that claim for relief at the trial, except that the objection of failure to state a legal defense in an answer or reply must be asserted by motion to strike the defense within 20 days after service of the answer or reply.

(c) Motion for Judgment on the Pleadings. After the pleadings are closed, but within such time as not to delay the trial, any party may move for judgment on the pleadings.

(d) Preliminary Hearings. The defenses 1 to 7 in subdivision (b) of this rule, whether made in a pleading or by motion, and the motion for judgment in subdivision (c) of this rule must be heard and determined before trial on application of any party unless the court orders that the hearing and determination must be deferred until the trial.

(e) Motion for More Definite Statement. If a pleading to which a responsive pleading is permitted is so vague or ambiguous that a party cannot reasonably be required to frame a responsive pleading, that party may move for a more definite statement before

interposing a responsive pleading. The motion must point out the defects complained of and the details desired. If the motion is granted and the order of the court is not obeyed within 10 days after the filing of the order or such other time as the court may fix, the court may strike the pleading to which the motion was directed or make such order as it deems just.

(f) Motion to Strike. A party may move to strike or the court may strike redundant, immaterial, impertinent, or scandalous matter from any pleading at any time.

(g) Consolidation of Defenses. A party who makes a motion under this rule may join with it the other motions herein provided for and then available to that party. If a party makes a motion under this rule but omits from it any defenses or objections then available to that party that this rule permits to be raised by motion, that party shall not thereafter make a motion based on any of the defenses or objections omitted, except as provided in subdivision (h)(2) of this rule.

(h) Waiver of Defenses.

(1) A party waives all defenses and objections that the party does not present either by motion under subdivisions (b), (e), or (f) of this rule or, if the party has made no motion, in a responsive pleading except as provided in subdivision (h)(2).

(2) The defenses of failure to state a cause of action or a legal defense or to join an indispensable party may be raised by motion for judgment on the pleadings or at the trial on the merits in addition to being raised either in a motion under subdivision (b) or in the answer or reply. The defense of lack of jurisdiction of the subject matter may be raised at any time.

Committee Notes

1972 Amendment. Subdivision (a) is amended to eliminate the unnecessary statement of the return date when service is made by publication, and to accommodate the change proposed in rule 1.100(a) making a reply mandatory under certain circumstances.

Motions to strike under subdivision (f) are divided into 2 categories, so subdivision (a) is also amended to accommodate this change by eliminating motions to strike under the new subdivision (f) as motions that toll the running of time. A motion to strike an insufficient legal defense will now be available under subdivision (b) and continue to toll the time for responsive pleading. Subdivision (b) is amended to include the defense of failure to state a sufficient legal defense. The proper method of attack for failure to state a legal defense remains a motion to strike. Subdivision (f) is changed to accommodate the 2 types of motions to strike. The motion to strike an insufficient legal defense is now in subdivision (b). The motion to strike under subdivision (f) does not toll the time for responsive pleading and can be made at any time, and the matter can be stricken by the court on its initiative at any time. Subdivision (g) follows the terminology of Federal Rule of Civil Procedure 12(g). Much difficulty has been experienced in the application of this and the succeeding subdivision with the result that the same defenses are being raised several times in an action. The intent of the rule is to permit the defenses to be raised one time, either by motion or by the responsive pleading, and thereafter only by motion for judgment on the pleadings or at the trial. Subdivision (h) also reflects this philosophy. It is based on federal rule 12(h) but more clearly states the purpose of the rule.

1988 Amendment. The amendment to subdivision (a) is to fix a time within which amended pleadings, responsive pleadings, or more definite statements required by the court and responses to those pleadings or statements must be served when no time limit is fixed by the court in its order. The court's authority to alter these time periods is contained in rule 1.090(b).

2007 Amendment. Subdivision (a) is amended to conform rule 1.140 to the statutory requirements of sections 48.111, 48.121, and 768.28, Florida Statutes. The rule is similar to Federal Rule of Civil Procedure 12(a).

RULE 1.150. SHAM PLEADINGS

(a) Motion to Strike. If a party deems any pleading or part thereof filed by another party to be a sham, that party may move to

strike the pleading or part thereof before the cause is set for trial and the court shall hear the motion, taking evidence of the respective parties, and if the motion is sustained, the pleading to which the motion is directed shall be stricken. Default and summary judgment on the merits may be entered in the discretion of the court or the court may permit additional pleadings to be filed for good cause shown.

(b) Contents of Motion. The motion to strike shall be verified and shall set forth fully the facts on which the movant relies and may be supported by affidavit. No traverse of the motion shall be required.

RULE 1.160. MOTIONS

All motions and applications in the clerk's office for the issuance of mesne process and final process to enforce and execute judgments, for entering defaults, and for such other proceedings in the clerk's office as do not require an order of court shall be deemed motions and applications grantable as of course by the clerk. The clerk's action may be suspended or altered or rescinded by the court upon cause shown.

RULE 1.170. COUNTERCLAIMS AND CROSSCLAIMS

(a) Compulsory Counterclaims. A pleading must state as a counterclaim any claim which at the time of serving the pleading the pleader has against any opposing party, provided it arises out of the transaction or occurrence that is the subject matter of the opposing party's claim and does not require for its adjudication the presence of third parties over whom the court cannot acquire jurisdiction. But the pleader need not state a claim if (1) at the time the action was commenced the claim was the subject of another pending action, or (2) the opposing party brought suit on that party's claim by attachment or other process by which the court did not acquire jurisdiction to render a personal judgment on the claim and the pleader is not stating a counterclaim under this rule.

(b) Permissive Counterclaim. A pleading may state as a counterclaim any claim against an opposing party not arising out of

the transaction or occurrence that is the subject matter of the opposing party's claim.

(c) Counterclaim Exceeding Opposing Claim. A counterclaim may or may not diminish or defeat the recovery sought by the opposing party. It may claim relief exceeding in amount or different in kind from that sought in the pleading of the opposing party.

(d) Counterclaim against the State. These rules shall not be construed to enlarge beyond the limits established by law the right to assert counterclaims or to claim credits against the state or any of its subdivisions or other governmental organizations thereof subject to suit or against a municipal corporation or against an officer, agency, or administrative board of the state.

(e) Counterclaim Maturing or Acquired after Pleading. A claim which matured or was acquired by the pleader after serving the pleading may be presented as a counterclaim by supplemental pleading with the permission of the court.

(f) Omitted Counterclaim or Crossclaim. When a pleader fails to set up a counterclaim or crossclaim through oversight, inadvertence, or excusable neglect, or when justice requires, the pleader may set up the counterclaim or crossclaim by amendment with leave of the court.

(g) Crossclaim against Co-Party. A pleading may state as a crossclaim any claim by one party against a co-party arising out of the transaction or occurrence that is the subject matter of either the original action or a counterclaim therein, or relating to any property that is the subject matter of the original action. The crossclaim may include a claim that the party against whom it is asserted is or may be liable to the crossclaimant for all or part of a claim asserted in the action against the crossclaimant. Service of a crossclaim on a party who has appeared in the action must be made under Florida Rule of General Practice and Judicial Administration. Service of a crossclaim against a party who has not appeared in the action must be made in the manner provided for service of summons.

(h) Additional Parties May Be Brought In. When the presence of parties other than those to the original action is required to grant complete relief in the determination of a counterclaim or crossclaim, they must be named in the counterclaim or crossclaim and be served with process and must be parties to the action thereafter if jurisdiction of them can be obtained and their joinder will not deprive the court of jurisdiction of the action. Rules 1.250(b) and (c) apply to parties brought in under this subdivision.

(i) Separate Trials; Separate Judgment. If the court orders separate trials as provided in rule 1.270(b), judgment on a counterclaim or crossclaim may be rendered when the court has jurisdiction to do so even if a claim of the opposing party has been dismissed or otherwise disposed of.

(j) Demand Exceeding Jurisdiction; Transfer of Action. If the demand of any counterclaim or crossclaim exceeds the jurisdiction of the court in which the action is pending, the action must be transferred immediately to the court of the same county having jurisdiction of the demand in the counterclaim or crossclaim with only such alterations in the pleadings as are essential. The court must order the transfer of the action and the transmittal of all documents in it to the proper court if the party asserting the demand exceeding the jurisdiction deposits with the court having jurisdiction a sum sufficient to pay the clerk's service charge in the court to which the action is transferred at the time of filing the counterclaim or crossclaim. Thereupon the original documents and deposit must be transmitted and filed with a certified copy of the order. The court to which the action is transferred shall have full power and jurisdiction over the demands of all parties. Failure to make the service charge deposit at the time the counterclaim or crossclaim is filed, or within such further time as the court may allow, will reduce a claim for damages to an amount within the jurisdiction of the court where the action is pending and waive the claim in other cases.

Committee Notes

1972 Amendment. Subdivision (h) is amended to conform with the philosophy of the 1968 amendment to rule 1.250(c). No justification exists to require more restrictive joinder provisions for counterclaims and crossclaims than is required for the initial pleading. The only safeguard required is that joinder does not deprive the court of jurisdiction. Subdivision (j) is amended to require deposit of the service charge for transfer when a counterclaim or crossclaim exceeding the jurisdiction of the court in which the action is pending is filed. This cures a practical problem when the defendant files a counterclaim or crossclaim exceeding the jurisdiction but neglects to pay the service charge to the court to which the action is transferred. The matter then remains in limbo and causes procedural difficulties in progressing the action.

1988 Amendment. The last 2 sentences were added to subdivision (g) to counter the construction of these rules and section 48.031(1), Florida Statutes, by an appellate court in Fundaro v. Canadiana Corp., 409 So. 2d 1099 (Fla. 4th DCA 1982), to require service of all crossclaims with summons pursuant to rule 1.070. The purpose of this amendment is to make it clear that crossclaims must be served as initial pleadings only against a party who has not previously entered an appearance in the action.

2012 Amendment. Subdivision (g) is amended to reflect the relocation of the service rule from rule 1.080 to Fla. R. Jud. Admin. 2.516.

RULE 1.180. THIRD-PARTY PRACTICE

(a) When Available. At any time after commencement of the action a defendant may have a summons and complaint served on a person not a party to the action who is or may be liable to the defendant for all or part of the plaintiff's claim against the defendant, and may also assert any other claim that arises out of the transaction or occurrence that is the subject matter of the plaintiff's claim. The defendant need not obtain leave of court if the defendant files the third-party complaint not later than 20 days after the defendant serves the original answer. Otherwise, the defendant must obtain leave on motion and notice to all parties to the action. The person served with the summons and third-party

complaint, herein called the third-party defendant, shall make defenses to the defendant's claim as provided in rules 1.110 and 1.140 and counterclaims against the defendant and crossclaims against other third-party defendants as provided in rule 1.170. The third-party defendant may assert against the plaintiff any defenses that the defendant has to the plaintiff's claim. The third-party defendant may also assert any claim against the plaintiff arising out of the transaction or occurrence that is the subject matter of the plaintiff's claim against the defendant. The plaintiff may assert any claim against the third-party defendant arising out of the transaction or occurrence that is the subject matter of the plaintiff's claim against the defendant, and the third-party defendant thereupon shall assert a defense as provided in rules 1.110 and 1.140 and counterclaims and crossclaims as provided in rule 1.170. Any party may move to strike the third-party claim or for its severance or separate trial. A third-party defendant may proceed under this rule against any person not a party to the action who is or may be liable to the third-party defendant for all or part of the claim made in the action against the third-party defendant.

(b) When Plaintiff May Bring in Third Party. When a counterclaim is asserted against the plaintiff, the plaintiff may bring in a third party under circumstances which would entitle a defendant to do so under this rule.

Court Commentary

1984 Amendment. Subdivision (a) is amended to permit the defendant to have the same right to assert claims arising out of the transaction or occurrence that all of the other parties to the action have. It overrules the decisions in *Miramar Construction, Inc. v. El Conquistador Condominium*, 303 So. 2d 81 (Fla. 3d DCA 1974), and *Richard's Paint Mfg. Co. v. Onyx Paints*, Inc., 363 So. 2d 596 (Fla. 4th DCA 1978), to that extent. The term defendant is used throughout instead of third-party plaintiff for clarity and brevity reasons and refers to the defendant serving the summons and third-party complaint on a third-party defendant or, when applicable, to the similar summons and fourth party.

RULE 1.190. AMENDED AND SUPPLEMENTAL PLEADINGS

(a) Amendments. A party may amend a pleading once as a matter of course at any time before a responsive pleading is served or, if the pleading is one to which no responsive pleading is permitted and the action has not been placed on the trial calendar, may so amend it at any time within 20 days after it is served. Otherwise a party may amend a pleading only by leave of court or by written consent of the adverse party. If a party files a motion to amend a pleading, the party shall attach the proposed amended pleading to the motion. Leave of court shall be given freely when justice so requires. A party shall plead in response to an amended pleading within 10 days after service of the amended pleading unless the court otherwise orders.

(b) Amendments to Conform with the Evidence. When issues not raised by the pleadings are tried by express or implied consent of the parties, they shall be treated in all respects as if they had been raised in the pleadings. Such amendment of the pleadings as may be necessary to cause them to conform to the evidence and to raise these issues may be made upon motion of any party at any time, even after judgment, but failure so to amend shall not affect the result of the trial of these issues. If the evidence is objected to at the trial on the ground that it is not within the issues made by the pleadings, the court may allow the pleadings to be amended to conform with the evidence and shall do so freely when the merits of the cause are more effectually presented thereby and the objecting party fails to satisfy the court that the admission of such evidence will prejudice the objecting party in maintaining an action or defense upon the merits.

(c) Relation Back of Amendments. When the claim or defense asserted in the amended pleading arose out of the conduct, transaction, or occurrence set forth or attempted to be set forth in the original pleading, the amendment shall relate back to the date of the original pleading.

(d) Supplemental Pleadings. Upon motion of a party the court may permit that party, upon reasonable notice and upon such terms as are just, to serve a supplemental pleading setting

forth transactions or occurrences or events which have happened since the date of the pleading sought to be supplemented. If the court deems it advisable that the adverse party plead thereto, it shall so order, specifying the time therefor.

(e) Amendments Generally. At any time in furtherance of justice, upon such terms as may be just, the court may permit any process, proceeding, pleading, or record to be amended or material supplemental matter to be set forth in an amended or supplemental pleading. At every stage of the action the court must disregard any error or defect in the proceedings which does not affect the substantial rights of the parties.

(f) Claims for Punitive Damages. A motion for leave to amend a pleading to assert a claim for punitive damages shall make a reasonable showing, by evidence in the record or evidence to be proffered by the claimant, that provides a reasonable basis for recovery of such damages. The motion to amend can be filed separately and before the supporting evidence or proffer, but each shall be served on all parties at least 20 days before the hearing.

Committee Notes

1980 Amendment. The last clause of subdivision (a) is deleted to restore the decision in *Scarfone v. Denby*, 156 So. 2d 694 (Fla. 2d DCA 1963). The adoption of rule 1.500 requiring notice of an application for default after filing or serving of any paper eliminates the need for the clause. This will permit reinstatement of the procedure in federal practice and earlier Florida practice requiring a response to each amended pleading, thus simplifying the court file under the doctrine *of Dee v. Southern Brewing Co.*, 146 Fla. 588, 1 So. 2d 562 (1941).

2003 Amendment. Subdivision (a) is amended in accordance with *Totura & Co., Inc. v. Williams*, 754 So. 2d 671 (Fla. 2000). See the amendment to rule 1.070(j). Subdivision (f) is added to state the requirements for a party moving for leave of court to amend a pleading to assert a claim for punitive damages. See *Beverly Health & Rehabilitation Services, Inc. v. Meeks*, 778 So. 2d 322 (Fla. 2d DCA 2000).

RULE 1.200. CASE MANAGEMENT; PRETRIAL PROCEDURE

(a) Applicability; Exemptions. The requirements of this rule apply to all civil actions except:

(1) actions required to proceed under section 51.011, Florida Statutes;

(2) actions proceeding under section 45.075, Florida Statutes;

(3) actions subject to the Florida Small Claims Rules, unless the court, under rule 7.020(c), has ordered the action to proceed under one or more of the Florida Rules of Civil Procedure and the deadline for the trial date specified in rule 7.090(d) no longer applies;

(4) an action or proceeding initiated under chapters 731–736, 738, and 744, Florida Statutes;

(5) an action for review of an administrative proceeding;

(6) eminent domain actions under article X, section 6 of the Florida Constitution or chapters 73 and 74, Florida Statutes;

(7) a forfeiture action in rem arising from a state statute;

(8) a petition for habeas corpus or any other proceeding to challenge a criminal conviction or sentence;

(9) an action brought without an attorney by a person in the custody of the United States, a state, or a state subdivision;

(10) an action to enforce or quash an administrative summons or subpoena;

(11) a proceeding ancillary to a proceeding in another court;

(12) an action to enforce an arbitration award;

(13) an action involving an extraordinary writ or remedy under rule 1.630;

(14) actions to confirm or enforce foreign judgments;

(15) all proceedings under chapter 56, Florida Statutes;

(16) a civil action pending in a special division of the court established by administrative order issued by the chief judge of the circuit or local rule (*e.g.*, a complex business division or a complex civil division) that enters case management orders;

(17) all proceedings under chapter 415, Florida Statutes, and sections 393.12 and 825.1035, Florida Statutes; and

(18) a claim requiring expedited or priority resolution under an applicable statute or rule.

(b) Case Track Assignment. Not later than 120 days after an action commences as provided in rule 1.050, the court must assign each civil case to 1 of 3 case management tracks either by an initial case management order or an administrative order on case management issued by the chief judge of the circuit: streamlined, general, or complex. Assignment is not based on the financial value of the case but rather the amount of judicial attention required for resolution.

(1) *"Complex"* cases are actions designated by court order as complex under rule 1.201. Complex cases must proceed as provided in rule 1.201.

(2) *"Streamlined"* cases are actions that reflect some mutual knowledge about the underlying facts, have limited needs for discovery, well-established legal issues related to liability and damages, few anticipated dispositive pretrial motions, minimal documentary evidence, and an anticipated trial length of no more than 3 days. Uncontested cases should generally be presumed to be streamlined cases.

(3) *"General"* cases are all other actions that do not meet the criteria for streamlined or complex.

(c) Changes in Track Assignment.

(1) *Change Requested by a Party.* Any motion to change the track to which a case is assigned must be filed promptly after the appearance of good cause to support the motion.

(2) *Change Directed by the Court.* A track assignment may be changed by the court on its own motion.

(d) Case Management Order.

(1) *Complex Cases.* Case management orders in complex cases must issue as provided in rule 1.201.

(2) *Streamlined and General Cases.* In streamlined and general cases, the court must issue a case management order that specifies the projected or actual trial period based on the case track assignment, consistent with administrative orders entered by the chief judge of the circuit. The order must also set deadlines that are differentiated based on whether the case is streamlined or general and must be consistent with the time standards specified in Florida Rule of General Practice and Judicial Administration 2.250(a)(1)(B) for the completion of civil cases. The order must specify no less than the following deadlines:

(A) service of complaints;

(B) service under extensions;

(C) adding new parties;

(D) completion of fact discovery;

(E) completion of expert discovery;

(F) filing and service of motion for summary judgment;

(G) filing and resolution of all objections to pleadings;

(H) filing and resolution of all pretrial motions; and

(I) completion of alternative dispute resolution.

(3) *Strict Enforcement of Deadlines.* The case management order must indicate that the deadlines established in the order will be strictly enforced unless changed by court order.

(4) *Timing of Issuance.* The court must issue the case management order no later than 120 days after commencement of the action as provided in rule 1.050. No case management conference is required to be set by the court before issuance.

(e) Extensions of Time; Modification of Deadlines.

(1) *Deadlines are Strictly Enforced.* Deadlines in a case management order must be strictly enforced unless changed by court order. Parties may submit an agreed order to extend a deadline if the extension does not affect the ability to comply with the remaining dates in the case management order. If extending an individual case management deadline may affect a subsequent deadline in the case management order, parties must seek an amendment of the case management order, rather than submitting a motion for extension of an individual deadline.

(2) *Modification of Actual Trial Period.* Once an actual trial period is set, the parties must satisfy the requirements of rule 1.460 to change that period. During the time a trial period is still a projection, the parties may seek to change the projected trial period through the process in subdivision (e)(3).

(3) *Modifications of Deadlines or Projected Trial Period.* Any motion to extend a deadline, amend a case management order, or alter a projected trial period must specify:

(A) the basis of the need for the extension, including when the basis became known to the movant;

(B) whether the motion is opposed;

(C) the specific date to which the movant is requesting the deadline or projected trial period be extended, and whether that date is agreed by all parties; and

(D) the action and specific dates for the action that will enable the movant to meet the proposed new deadline or projected trial period, including, but not limited to, confirming the specific date any required participants such as third-party witnesses or experts are available.

(f) Notices of Unavailability. Notices of unavailability have no effect on the deadlines set by the case management order. If a party is unable to comply with a deadline in a case management order, the party must take action consistent with subdivision (e)(1).

(g) Inability to Meet Case Management Deadlines. If any party is unable to meet the deadlines set forth in the case management order for any reason, including due to the unavailability of hearing time, the affected party may promptly set a case management conference and alert the court. The notice of case management conference must identify the issues to be addressed in the case management conference.

(h) If Trial Is Not Reached During Trial Period. If a trial is not reached during the trial period set by court order, the court must enter an order setting a new trial period that is as soon as practicable, given the needs of the case and resources of the court. The order resetting the trial period must reflect what further activity will or will not be permitted.

(i) Forms. Except for case management orders issued in cases governed by rule 1.201, the forms for case management orders will be set by the chief judge of the circuit. The form orders must comply with the requirements of this rule.

(j) Case Management Conferences.

(1) *Scheduling.* The court may set case management conferences at any time on its own notice or on proper notice by a party. Whether set by the court or a party, the amount of notice must be reasonable. If noticed by a party, the notice itself must identify the specific issues to be addressed during the case management conference and must also provide a list of all pending motions. The court may set, or the parties may request, case management conferences on an as-needed basis or an ongoing, periodic basis.

(2) *Issues That May Be Addressed.* During a case management conference, the court may address all scheduling issues, including requests to amend the case management order, and other issues that may impact trial of the case. In addition, on reasonable notice to the parties and adequate time available during the conference, the court may elect to hear a pending motion, other than motions for summary judgment and motions requiring evidentiary hearings, even if the parties have not identified the motion as an issue to be resolved. Motions for summary judgment and motions requiring evidentiary hearings may not be heard as part of a case management conference, unless agreed to by the parties.

(3) *Preparation Required.* Attorneys and self-represented litigants who appear at a case management conference must be prepared on the pending matters in the case, be prepared to make decisions about future progress and conduct of the case, and have authority to make representations to the court and enter into binding agreements concerning motions, issues, and scheduling. If a party is represented by more than 1 attorney, the attorney(s) present at a case management conference must be prepared with all attorneys' availability for future events.

(4) *Other Hearings Convertible.* Any scheduled hearing may be converted to a sua sponte case management conference by agreement of the parties at the time of the hearing.

(5) *Proposed Orders.* At the conclusion of the case management conference, unless the court is drafting its own order, the court must set a deadline for submitting proposed orders arising out of the case management conference. A proposed order must be submitted by that deadline unless an extension is requested. If the parties do not agree to the contents of a proposed order, competing proposed orders must be submitted to the court. The parties must notify the court of the basis of any objections at the time the competing orders are submitted.

(6) *Failure to Appear.* On failure of a party to attend a case management conference, the court may dismiss the action, strike the pleadings, limit proof or witnesses, or take any other appropriate action against a party failing to attend.

(k) Pretrial Conference. After the action has been set for an actual trial period, the court itself may, or must on the timely motion of any party, require the parties to appear for a pretrial conference to consider and determine:

(1) a statement of the issues to be tried;

(2) the possibility of obtaining evidentiary and other stipulations that will avoid unnecessary proof;

(3) the witnesses who are expected to testify, evidence expected to be proffered, and any associated logistical or scheduling issues;

(4) the use of technology and other means to facilitate the presentation of evidence and demonstrative aids at trial;

(5) the order of proof at trial, time to complete the trial, and reasonable time estimates for voir dire, opening statements, closing arguments, and any other part of the trial;

(6) the numbers of prospective jurors required for a venire, alternate jurors, and peremptory challenges for each party;

(7) finalize jury instructions and verdict forms; and

(8) any other matters the court considers appropriate.

Committee Notes

1971 Amendment. The 3 paragraphs of the rule are lettered and given subtitles. The present last paragraph is placed second as subdivision (b) because the proceeding required under it is taken before that in the present second paragraph. The time for implementation is changed from settling the issues because the language is erroneous, the purpose of the conference being to settle some and prepare for the trial of other issues. The last 2 sentences of subdivision (b) are added to require uniformity by all judges of the court and to require specification of the documentary requirements for the conference. The last sentence of subdivision (c) is deleted since it is covered by the local rule provisions of rule 1.020(d). The reference to the parties in substitution for attorneys and counsel is one of style because the rules generally impose obligations on the parties except when the attorneys are specifically intended. It should be understood that those parties represented by attorneys will have the attorneys perform for them in the usual manner.

1972 Amendment. Subdivision (a) is amended to require the motion for a pretrial by a party to be timely. This is done to avoid motions for pretrial conferences made a short time before trial and requests for a continuance of the trial as a result of the pretrial conference order. The subdivision is also amended to require the clerk to send to the judge a copy of the motion by a party for the pretrial conference.

1988 Amendment. The purpose of adding subdivision (a)(5) is to spell out clearly for the bench and bar that case management conferences may be used for scheduling the disclosure of expert witnesses and the discovery of the opinion and factual information held by those experts. Subdivision (5) is not intended to expand discovery.

1992 Amendment. Subdivision (a) is amended to allow a party to set a case management conference in the same manner as a party may set a hearing on a motion. Subdivision (c) is amended

to remove the mandatory language and make the notice requirement for a case management conference the same as that for a hearing on a motion; *i.e.*, reasonable notice.

2012 Amendment. Subdivisions (a)(5) to (a)(7) are added to address issues involving electronically stored information.

Court Commentary

1984 Amendment. This is a substantial rewording of rule 1.200. Subdivision (a) is added to authorize case management conferences in an effort to give the court more control over the progress of the action. All of the matters that the court can do under the case management conference can be done at the present time under other rules or because of the court's authority otherwise. The new subdivision merely emphasizes the court's authority and arranges an orderly method for the exercise of that authority. Subdivisions (a), (b), and (c) of the existing rule are relettered accordingly. Subdivision (a) of the existing rule is also amended to delete the reference to requiring the attorneys to appear at a pretrial conference by referring to the parties for that purpose. This is consistent with the language used throughout the rules and does not contemplate a change in present procedure. Subdivisions (a)(5) and (a)(6) of the existing rule are deleted since they are now covered adequately under the new subdivision (a). Subdivisions (b) and (c) of the existing rule are amended to accommodate the 2 types of conferences that are now authorized by the rules.

2024 Amendment. Rule 1.200 as amended is intended to supersede any case management rules issued by circuit courts and administrative orders on case management to the extent of contradiction. The rule is not intended to preclude the possibility of administrative orders issued by circuit chief judges and local rules under Florida Rule of General Practice and Judicial Administration 2.215 that refine and supplement the procedures delineated in the rule, including rollover practices for situations where a trial is not reached during the scheduled trial period.

RULE 1.201. COMPLEX LITIGATION

(a) Complex Litigation Defined. At any time after all defendants have been served, and an appearance has been entered in response to the complaint by each party or a default entered, any party, or the court on its own motion, may move to declare an action complex. However, any party may move to designate an action complex before all defendants have been served subject to a showing to the court why service has not been made on all defendants. The court may convene a hearing to determine whether the action requires the use of complex litigation procedures.

(1) A "complex action" is one that is likely to involve complicated legal or case management issues and that may require extensive judicial management to expedite the action, keep costs reasonable, or promote judicial efficiency.

(2) In deciding whether an action is complex, the court must consider whether the action is likely to involve:

(A) numerous pretrial motions raising difficult or novel legal issues or legal issues that are inextricably intertwined that will be time-consuming to resolve;

(B) management of a large number of separately represented parties;

(C) coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court;

(D) pretrial management of a large number of witnesses or a substantial amount of documentary evidence;

(E) substantial time required to complete the trial;

(F) management at trial of a large number of experts, witnesses, attorneys, or exhibits;

(G) substantial post-judgment judicial supervision; and

(H) any other analytical factors identified by the court or a party that tend to complicate comparable actions and which are likely to arise in the context of the instant action.

(b) Initial Case Management Report and Conference. The court must hold an initial case management conference within 60 days from the date of the order declaring the action complex.

(1) At least 20 days prior to the date of the initial case management conference, attorneys for the parties as well as any parties appearing pro se must confer and prepare a joint statement, which must be filed with the clerk of the court no later than 14 days before the conference, outlining a discovery plan and stating:

(A) a brief factual statement of the action, which includes the claims and defenses;

(B) a brief statement on the theory of damages by any party seeking affirmative relief;

(C) the likelihood of settlement;

(D) the likelihood of appearance in the action of additional parties and identification of any nonparties to whom any of the parties will seek to allocate fault;

(E) the proposed limits on the time:

(i) to join other parties and to amend the pleadings;

(ii) to file and hear motions;

(iii) to identify any nonparties whose identity is known, or otherwise describe as specifically as practicable any nonparties whose identity is not known;

(iv) to disclose expert witnesses; and

(v) to complete discovery;

(F) the names of the attorneys responsible for handling the action;

(G) the necessity for a protective order to facilitate discovery;

(H) proposals for the formulation and simplification of issues, including the elimination of frivolous claims or defenses, and the number and timing of motions for summary judgment or partial summary judgment;

(I) the possibility of obtaining admissions of fact and voluntary exchange of documents and electronically stored information, stipulations regarding authenticity of documents, electronically stored information, and the need for advance rulings from the court on admissibility of evidence;

(J) the possibility of obtaining agreements among the parties regarding the extent to which such electronically stored information should be preserved, the form in which such information should be produced, and whether discovery of such information should be conducted in phases or limited to particular individuals, time periods, or sources;

(K) suggestions on the advisability and timing of referring matters to a magistrate, master, other neutral, or mediation;

(L) a preliminary estimate of the time required for trial;

(M) requested date or dates for conferences before trial, a final pretrial conference, and trial;

(N) a description of pertinent documents and a list of fact witnesses the parties believe to be relevant;

(*O*) number of experts and fields of expertise; and

(P) any other information that might be helpful to the court in setting further conferences and the trial period.

(2) Lead trial counsel and a client representative must attend the initial case management conference.

(3) At the initial case management conference, the court will set the trial period no sooner than 6 months and no later than 24 months from the date of the conference unless good cause is shown for an earlier or later setting. The trial period must be on a docket having sufficient time within which to try the action and, when feasible, for a date or dates certain. The trial period must be set after consultation with counsel and in the presence of all clients or authorized client representatives. The court must, no later than 2 months before the date scheduled for jury selection, arrange for a sufficient number of available jurors. Continuance of the trial of a complex action should rarely be granted and then only upon good cause shown. Any motion for continuance will be governed by rule 1.460.

(c) The Case Management Order. Within 10 days after completion of the initial case management conference, the court must enter a case management order. The case management order must address each matter set forth under rule 1.200(d)(2) and set the action for a pretrial conference and trial. The case management order also must specify the following:

(1) Dates by which all parties must name their expert witnesses and provide the expert information required by rule 1.280(c)(5). If a party has named an expert witness in a field in which any other parties have not identified experts, the other parties may name experts in that field within 30 days thereafter. No additional experts may be named unless good cause is shown.

(2) Not more than 10 days after the date set for naming experts, the parties must meet and schedule dates for deposition of experts and all other witnesses not yet deposed. At the time of the meeting each party is responsible for having secured three confirmed dates for its expert witnesses. In the event the parties cannot agree on a discovery deposition schedule, the court, on

motion, must set the schedule. Any party may file the completed discovery deposition schedule agreed on or entered by the court. Once filed, the deposition dates in the schedule may not be altered without consent of all parties or on order of the court. Failure to comply with the discovery schedule may result in sanctions in accordance with rule 1.380.

(3) Dates by which all parties are to complete all other discovery.

(4) The court must schedule periodic case management conferences and hearings on lengthy motions at reasonable intervals based on the particular needs of the action. In addition to the conferral required under rule 1.202, the attorneys for the parties as well as any parties appearing pro se must confer no later than 15 days prior to each case management conference or hearing. The parties must notify the court immediately if a case management conference or hearing time becomes unnecessary. Failure to timely notify the court that a case management conference or hearing time is unnecessary may result in sanctions.

(5) The case management order may include a briefing schedule setting forth a time period within which to file briefs or memoranda, responses, and reply briefs or memoranda, prior to the court considering such matters.

(6) A deadline for conducting alternative dispute resolution.

(7) The case management order must be consistent with the time standard in Florida Rule of General Practice and Judicial Administration 2.250(a)(1)(B) for the completion of complex cases.

(d) Final Case Management Conference. The court must schedule a final case management conference not less than 90 days before the date the case is set for trial. At least 10 days before the final case management conference the parties must confer to prepare a case status report, which must be filed with the clerk of the court either before or at the time of the final case management

conference. The status report must contain in separately numbered paragraphs:

(1) A list of all pending motions requiring action by the court and the date those motions are set for hearing.

(2) Any change regarding the estimated trial time.

(3) The names of the attorneys who will try the case.

(4) A list of the names and addresses of all non-expert witnesses (including impeachment and rebuttal witnesses) intended to be called at trial. However, impeachment or rebuttal witnesses not identified in the case status report may be allowed to testify if the need for their testimony could not have been reasonably foreseen at the time the case status report was prepared.

(5) A list of all exhibits intended to be offered at trial.

(6) Certification that copies of witness and exhibit lists will be filed with the clerk of the court at least 48 hours before the date and time of the final case management conference.

(7) A deadline for the filing of amended lists of witnesses and exhibits, which amendments will be allowed only upon motion and for good cause shown.

(8) Any other matters which could impact the timely and effective trial of the action.

Committee Notes

2012 Amendment. Subdivision (b)(1)(J) is added to address issues involving electronically stored information.

RULE 1.202. CONFERRAL PRIOR TO FILING MOTIONS

(a) Duty. Before filing a non-dispositive motion, the movant must confer with the opposing party in a good-faith effort to resolve the issues raised in the motion.

(b) Certificate of Conferral. At the end of the motion and above the signature block, the movant must include a certificate of conferral in substantially the following form:

"I certify that prior to filing this motion, I discussed the relief requested in this motion by [method of communication and date] with the opposing party and [the opposing party (agrees or disagrees) on the resolution of all or part of the motion] OR [the opposing party did not respond (describing with particularity all of the efforts undertaken to accomplish dialogue with the opposing party prior to filing the motion)]."

OR

"I certify that conferral prior to filing is not required under rule 1.202."

(c) Applicability; Exemptions. The requirements of this rule do not apply when the movant or the nonmovant is unrepresented by counsel (pro se). Conferral is not required prior to filing the following motions:

(1) for time to extend service of initial process;

(2) for default;

(3) for injunctive relief;

(4) for judgment on the pleadings;

(5) for summary judgment;

(6) to dismiss for failure to state a claim on which relief can be granted;

(7) to permit maintenance of a class action;

(8) to involuntarily dismiss an action;

(9) to dismiss for failure to prosecute;

(10) for directed verdict and motions filed under rule 1.530;

(11) for garnishment, attachment, or other motions for enforcement of a judgment under rule 1.570;

(12) for writ of possession under rule 1.580;

(13) filed in actions proceeding under section 51.011, Florida Statutes; and

(14) that do not require notice to the other party under statute or rule.

(d) Sanctions. Failure to comply with the requirements of this rule may result in an appropriate sanction, including denial of a motion without prejudice. The purposeful evasion of communication under this rule may result in an appropriate sanction.

RULE 1.210. PARTIES

(a) Parties Generally. Every action may be prosecuted in the name of the real party in interest, but a personal representative, administrator, guardian, trustee of an express trust, a party with whom or in whose name a contract has been made for the benefit of another, or a party expressly authorized by statute may sue in that person's own name without joining the party for whose benefit the action is brought. All persons having an interest in the subject of the action and in obtaining the relief demanded may join as plaintiffs and any person may be made a defendant who has or claims an interest adverse to the plaintiff. Any person may at any time be made a party if that person's presence is necessary or proper to a complete determination of the cause. Persons having a united interest may be joined on the same side as plaintiffs or defendants, and anyone who refuses to join may for such reason be made a defendant.

(b) Minors or Incompetent Persons. When a minor or incompetent person has a representative, such as a guardian or

other like fiduciary, the representative may sue or defend on behalf of the minor or incompetent person. A minor or incompetent person who does not have a duly appointed representative may sue by next friend or by a guardian ad litem. The court shall appoint a guardian ad litem for a minor or incompetent person not otherwise represented in an action or shall make such other order as it deems proper for the protection of the minor or incompetent person.

Committee Notes

1980 Amendment. Subdivisions (c) and (d) are deleted. Both are obsolete. They were continued in effect earlier because the committee was uncertain about the need for them at the time. Subdivision (c) has been supplanted by section 737.402(2)(z), Florida Statutes (1979), that gives trustees the power to prosecute and defend actions, regardless of the conditions specified in the subdivision. The adoption of section 733.212, Florida Statutes (1979), eliminates the need for subdivision (d) because it provides an easier and less expensive method of eliminating the interests of an heir at law who is not a beneficiary under the will. To the extent that an heir at law is an indispensable party to a proceeding concerning a testamentary trust, due process requires notice and an opportunity to defend, so the rule would be unconstitutionally applied.

2003 Amendment. In subdivision (a), "an executor" is changed to "a personal representative" to conform to statutory language. See § 731.201(25), Fla. Stat. (2002).

RULE 1.220. CLASS ACTIONS

(a) Prerequisites to Class Representation. Before any claim or defense may be maintained on behalf of a class by one party or more suing or being sued as the representative of all the members of a class, the court shall first conclude that (1) the members of the class are so numerous that separate joinder of each member is impracticable, (2) the claim or defense of the representative party raises questions of law or fact common to the questions of law or fact raised by the claim or defense of each member of the class, (3) the claim or defense of the representative

party is typical of the claim or defense of each member of the class, and (4) the representative party can fairly and adequately protect and represent the interests of each member of the class.

(b) Claims and Defenses Maintainable. A claim or defense may be maintained on behalf of a class if the court concludes that the prerequisites of subdivision (a) are satisfied, and that:

(1) the prosecution of separate claims or defenses by or against individual members of the class would create a risk of either:

(A) inconsistent or varying adjudications concerning individual members of the class which would establish incompatible standards of conduct for the party opposing the class; or

(B) adjudications concerning individual members of the class which would, as a practical matter, be dispositive of the interests of other members of the class who are not parties to the adjudications, or substantially impair or impede the ability of other members of the class who are not parties to the adjudications to protect their interests; or

(2) the party opposing the class has acted or refused to act on grounds generally applicable to all the members of the class, thereby making final injunctive relief or declaratory relief concerning the class as a whole appropriate; or

(3) the claim or defense is not maintainable under either subdivision (b)(1) or (b)(2), but the questions of law or fact common to the claim or defense of the representative party and the claim or defense of each member of the class predominate over any question of law or fact affecting only individual members of the class, and class representation is superior to other available methods for the fair and efficient adjudication of the controversy. The conclusions shall be derived from consideration of all relevant facts and circumstances, including (A) the respective interests of each member of the class in individually controlling the prosecution of separate claims or defenses, (B) the nature and extent of any

pending litigation to which any member of the class is a party and in which any question of law or fact controverted in the subject action is to be adjudicated, (C) the desirability or undesirability of concentrating the litigation in the forum where the subject action is instituted, and (D) the difficulties likely to be encountered in the management of the claim or defense on behalf of a class.

(c) Pleading Requirements. Any pleading, counterclaim, or crossclaim alleging the existence of a class shall contain the following:

(1) Next to its caption the designation: "Class Representation."

(2) Under a separate heading, designated as "Class Representation Allegations," specific recitation of:

(A) the particular provision of subdivision (b) under which it is claimed that the claim or defense is maintainable on behalf of a class;

(B) the questions of law or fact that are common to the claim or defense of the representative party and the claim or defense of each member of the class;

(C) the particular facts and circumstances that show the claim or defense advanced by the representative party is typical of the claim or defense of each member of the class;

(D) (i) the approximate number of class members, (ii) a definition of the alleged class, and (iii) the particular facts and circumstances that show the representative party will fairly and adequately protect and represent the interests of each member of the class; and

(E) the particular facts and circumstances that support the conclusions required of the court in determining that the action may be maintained as a class action pursuant to the particular provision of subdivision (b) under which it is claimed that the claim or defense is maintainable on behalf of a class.

(d) Determination of Class Representation; Notice; Judgment: Claim or Defense Maintained Partly on Behalf of a Class.

(1) As soon as practicable after service of any pleading alleging the existence of a class under this rule and before service of an order for pretrial conference or a notice for trial, after hearing the court shall enter an order determining whether the claim or defense is maintainable on behalf of a class on the application of any party or on the court's initiative. Irrespective of whether the court determines that the claim or defense is maintainable on behalf of a class, the order shall separately state the findings of fact and conclusions of law upon which the determination is based. In making the determination the court (A) may allow the claim or defense to be so maintained, and, if so, shall state under which subsection of subdivision (b) the claim or defense is to be maintained, (B) may disallow the class representation and strike the class representation allegations, or (C) may order postponement of the determination pending the completion of discovery concerning whether the claim or defense is maintainable on behalf of a class. If the court rules that the claim or defense shall be maintained on behalf of a class under subdivision (b)(3), the order shall also provide for the notice required by subdivision (d)(2). If the court rules that the claim or defense shall be maintained on behalf of a class under subdivision (b)(1) or subdivision (b)(2), the order shall also provide for the notice required by subdivision (d)(2), except when a showing is made that the notice is not required, the court may provide for another kind of notice to the class as is appropriate. When the court orders postponement of its determination, the court shall also establish a date, if possible, for further consideration and final disposition of the motion. An order under this subsection may be conditional and may be altered or amended before entry of a judgment on the merits of the action.

(2) As soon as is practicable after the court determines that a claim or defense is maintainable on behalf of a class, notice of the pendency of the claim or defense shall be given by the party asserting the existence of the class to all the members of the class. The notice shall be given to each member of the class who can be

identified and located through reasonable effort and shall be given to the other members of the class in the manner determined by the court to be most practicable under the circumstances. Unless otherwise ordered by the court, the party asserting the existence of the class shall initially pay for the cost of giving notice. The notice shall inform each member of the class that (A) any member of the class who files a statement with the court by the date specified in the notice asking to be excluded shall be excluded from the class, (B) the judgment, whether favorable or not, will include all members who do not request exclusion, and (C) any member who does not request exclusion may make a separate appearance within the time specified in the notice.

(3) The judgment determining a claim or defense maintained on behalf of a class under subdivision (b)(1) or (b)(2), whether or not favorable to the class, shall include and describe those persons whom the court finds to be members of the class. The judgment determining a claim or defense maintained on behalf of a class under subdivision (b)(3), whether or not favorable to the class, shall include and identify those to whom the notice provided in subdivision (d)(2) was directed, who have not requested exclusion and whom the court finds to be members of the class.

(4) When appropriate, (A) a claim or defense may be brought or maintained on behalf of a class concerning particular issues, or (B) class representation may be divided into subclasses, and each subclass may be treated as a separate and distinct class and the provisions of this rule shall be applied accordingly.

(e) Dismissal or Compromise. After a claim or defense is determined to be maintainable on behalf of a class under subdivision (d), the claim or defense shall not be voluntarily withdrawn, dismissed, or compromised without approval of the court after notice and hearing. Notice of any proposed voluntary withdrawal, dismissal, or compromise shall be given to all members of the class as the court directs.

Committee Notes

1980 Amendment. The class action rule has been completely revised to bring it in line with modern practice. The rule is based on Federal Rule of Civil Procedure 23, but a number of changes have been made to eliminate problems in the federal rule through court decisions. Generally, the rule provides for the prerequisites to class representation, an early determination about whether the claim or defense is maintainable on behalf of a class, notice to all members of the class, provisions for the members of the class to exclude themselves, the form of judgment, and the procedure governing dismissal or compromise of a claim or defense maintained on behalf of a class. The prerequisites of subdivision (a) are changed from those in federal rule 23 only to the extent necessary to incorporate the criteria enunciated in *Port Royal v. Conboy*, 154 So. 2d 734 (Fla. 2d DCA 1963). The notice requirements have been made more explicit and stringent than those in the federal rule.

RULE 1.221. HOMEOWNERS' ASSOCIATIONS AND CONDOMINIUM ASSOCIATIONS

A homeowners' or condominium association, after control of such association is obtained by homeowners or unit owners other than the developer, may institute, maintain, settle, or appeal actions or hearings in its name on behalf of all association members concerning matters of common interest to the members, including, but not limited to: (1) the common property, area, or elements; (2) the roof or structural components of a building, or other improvements (in the case of homeowners' associations, being specifically limited to those improvements for which the association is responsible); (3) mechanical, electrical, or plumbing elements serving a property or an improvement or building (in the case of homeowners' associations, being specifically limited to those elements for which the association is responsible); (4) representations of the developer pertaining to any existing or proposed commonly used facility; (5) protests of ad valorem taxes on commonly used facilities; and, in the case of homeowners' associations, (6) defense of actions in eminent domain or prosecution of inverse condemnation actions. If an association has the authority to maintain a class action under this rule, the association may be joined in an action as representative of that

class with reference to litigation and disputes involving the matters for which the association could bring a class action under this rule. Nothing herein limits any statutory or common law right of any individual homeowner or unit owner, or class of such owners, to bring any action that may otherwise be available. An action under this rule shall not be subject to the requirements of rule 1.220.

Committee Notes

1980 Adoption. The present rule relating to condominium associations [1.220(b)] is left intact but renumbered as rule 1.221.

2007 Amendment. Consistent with amendments to section 720.303(1), Florida Statutes, homeowners' associations have been added to the rule.

RULE 1.222. MOBILE HOMEOWNERS' ASSOCIATIONS

A mobile homeowners' association may institute, maintain, settle, or appeal actions or hearings in its name on behalf of all homeowners concerning matters of common interest, including, but not limited to: the common property; structural components of a building or other improvements; mechanical, electrical, and plumbing elements serving the park property; and protests of ad valorem taxes on commonly used facilities. If the association has the authority to maintain a class action under this rule, the association may be joined in an action as representative of that class with reference to litigation and disputes involving the matters for which the association could bring a class action under this rule. Nothing herein limits any statutory or common law right of any individual homeowner or class of homeowners to bring any action which may otherwise be available. An action under this rule shall not be subject to the requirements of rule 1.220.

RULE 1.230. INTERVENTIONS

Anyone claiming an interest in pending litigation may at any time be permitted to assert a right by intervention, but the intervention shall be in subordination to, and in recognition of, the

propriety of the main proceeding, unless otherwise ordered by the court in its discretion.

RULE 1.240. INTERPLEADER

Persons having claims against the plaintiff may be joined as defendants and required to interplead when their claims are such that the plaintiff is or may be exposed to double or multiple liability. It is not ground for objection to the joinder that the claim of the several claimants or the titles on which their claims depend do not have a common origin or are not identical but are adverse to and independent of one another, or that the plaintiff avers that the plaintiff is not liable in whole or in part to any or all of the claimants. A defendant exposed to similar liability may obtain such interpleader by way of crossclaim or counterclaim. The provisions of this rule supplement and do not in any way limit the joinder of parties otherwise permitted.

RULE 1.250. MISJOINDER AND NONJOINDER OF PARTIES

(a) Misjoinder. Misjoinder of parties is not a ground for dismissal of an action. Any claim against a party may be severed and proceeded with separately.

(b) Dropping Parties. Parties may be dropped by an adverse party in the manner provided for voluntary dismissal in rule 1.420(a)(1) subject to the exception stated in that rule. If notice of lis pendens has been filed in the action against a party so dropped, the notice of dismissal shall be recorded and cancels the notice of lis pendens without the necessity of a court order. Parties may be dropped by order of court on its own initiative or the motion of any party at any stage of the action on such terms as are just.

(c) Adding Parties. Parties may be added once as a matter of course within the same time that pleadings can be so amended under rule 1.190(a). If amendment by leave of court or stipulation of the parties is permitted, parties may be added in the amended pleading without further order of court. Parties may be added by order of court on its own initiative or on motion of any party at any stage of the action and on such terms as are just.

Committee Notes

1972 Amendment. Subdivision (c) is amended to permit the addition of parties when the pleadings are amended by stipulation. This conforms the subdivision to all of the permissive types of amendment under rule 1.190(a). It was an inadvertent omission by the committee when the rule in its present form was adopted in 1968 as can be seen by reference to the 1968 committee note.

RULE 1.260. SURVIVOR; SUBSTITUTION OF PARTIES

(a) Death.

(1) If a party dies and the claim is not thereby extinguished, the court may order substitution of the proper parties. The motion for substitution may be made by any party or by the successors or representatives of the deceased party and, together with the notice of hearing, shall be filed and served on all parties as provided in Florida Rule of General Practice and Judicial Administration 2.516 and upon persons not parties in the manner provided for the service of a summons. Unless the motion for substitution is made within 90 days after a statement noting the death is filed and served on all parties as provided in Rule of General Practice and Judicial Administration 2.516, the action shall be dismissed as to the deceased party.

(2) In the event of the death of one or more of the plaintiffs or of one or more of the defendants in an action in which the right sought to be enforced survives only to the surviving plaintiffs or only against the surviving defendants, the action shall not abate. A statement noting the death shall be filed and served on all parties as provided in Rule of General Practice and Judicial Administration 2.516 and the action shall proceed in favor of or against the surviving parties.

(b) Incompetency. If a party becomes incompetent, the court, upon motion filed and served as provided in subdivision (a) of this rule, may allow the action to be continued by or against that person's representative.

(c) Transfer of Interest. In case of any transfer of interest, the action may be continued by or against the original party, unless the court upon motion directs the person to whom the interest is transferred to be substituted in the action or joined with the original party. Service of the motion shall be made as provided in subdivision (a) of this rule.

(d) Public Officers; Death or Separation from Office

(1) When a public officer is a party to an action in an official capacity and during its pendency dies, resigns, or otherwise ceases to hold office, the action does not abate and the officer's successor is automatically substituted as a party. Proceedings following the substitution shall be in the name of the substituted party, but any misnomer not affecting the substantial rights of the parties shall be disregarded. An order of substitution may be entered at any time, but the omission to enter such an order shall not affect the substitution.

(2) When a public officer sues or is sued in an official capacity, the officer may be described as a party by the official title rather than by name but the court may require the officer's name to be added.

RULE 1.270. CONSOLIDATION; SEPARATE TRIALS

(a) Consolidation. When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated; and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

(b) Separate Trials. The court in furtherance of convenience or to avoid prejudice may order a separate trial of any claim, crossclaim, counterclaim, or third-party claim or of any separate issue or of any number of claims, crossclaims, counterclaims, third-party claims, or issues.

RULE 1.280. GENERAL PROVISIONS GOVERNING DISCOVERY

(a) Initial Discovery Disclosure.

(1) *In General.* Except as exempted by subdivision (a)(2) or as ordered by the court, a party must, without awaiting a discovery request, provide to the other parties the following initial discovery disclosures unless privileged or protected from disclosure:

(A) the name and, if known, the address, telephone number, and e-mail address of each individual likely to have discoverable information—along with the subjects of that information—that the disclosing party may use to support its claims or defenses, unless the use would be solely for impeachment;

(B) a copy—or a description by category and location—of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control (or, if not in the disclosing party's possession, custody, or control, a description by category and location of such information) and may use to support its claims or defenses, unless the use would be solely for impeachment;

(C) a computation for each category of damages claimed by the disclosing party and a copy of the documents or other evidentiary material, unless privileged or protected from disclosure, on which each computation is based, including materials bearing on the nature and extent of injuries suffered; provided that a party is not required to provide computations as to noneconomic damages, but the party must identify categories of damages claimed and provide supporting documents; and

(D) a copy of any insurance policy or agreement under which an insurance business may be liable to satisfy all or part of a possible judgment in the action or to indemnify or reimburse for payments made to satisfy the judgment.

(2) *Proceedings Exempt from Initial Discovery Disclosure.* Unless ordered by the court, actions and claims listed in rule 1.200(a) are exempt from initial discovery disclosure.

(3) *Time for Initial Discovery Disclosures.* A party must make the initial discovery disclosures required by this rule within 60 days after the service of the complaint or joinder, unless a different time is set by court order.

(4) *Basis for Initial Discovery Disclosure; Unacceptable Excuses; Objections.* A party must make its initial discovery disclosures based on the information then reasonably available to it. A party is not excused from making its initial discovery disclosures because it has not fully investigated the case or because it challenges the sufficiency of another party's initial discovery disclosures or because another party has not made its initial discovery disclosures. A party who formally objects to providing certain information is not excused from making all other initial discovery disclosures required by this rule in a timely manner.

(b) Discovery Methods. Parties may obtain discovery by 1 or more of the following methods: depositions on oral examination or written questions; written interrogatories; production of documents or things or permission to enter on land or other property for inspection and other purposes; physical and mental examinations; and requests for admission. Unless the court orders otherwise and under subdivision (d), the frequency of use of these methods is not limited, except as provided in rules 1.200, 1.340, and 1.370.

(c) Scope of Discovery. Unless otherwise limited by court order, the scope of discovery is as follows:

(1) *In General.* Parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case, considering the importance of the issues at stake in the action, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed

discovery outweighs its likely benefit. Information within this scope of discovery need not be admissible in evidence to be discoverable.

(2) *Indemnity Agreements.* A party may obtain discovery of the existence and contents of any agreement under which any person may be liable to satisfy part or all of a judgment that may be entered in the action or to indemnify or to reimburse a party for payments made to satisfy the judgment. Information concerning the agreement is not admissible in evidence at trial by reason of disclosure.

(3) *Electronically Stored Information.* A party may obtain discovery of electronically stored information under these rules.

(4) *Trial Preparation; Materials.* Subject to the provisions of subdivision (c)(5), a party may obtain discovery of documents and tangible things otherwise discoverable under subdivision (c)(1) and prepared in anticipation of litigation or for trial by or for another party or by or for that party's representative, including that party's attorney, consultant, surety, indemnitor, insurer, or agent, only on a showing that the party seeking discovery has need of the materials in the preparation of the case and is unable without undue hardship to obtain the substantial equivalent of the materials by other means. In ordering discovery of the materials when the required showing has been made, the court must protect against disclosure of the mental impressions, conclusions, opinions, or legal theories of an attorney or other representative of a party concerning the litigation. Without the required showing a party may obtain a copy of a statement concerning the action or its subject matter previously made by that party. On request without the required showing a person not a party may obtain a copy of a statement concerning the action or its subject matter previously made by that person. If the request is refused, the person may move for an order to obtain a copy. The provisions of rule 1.380(a)(4) apply to the award of expenses incurred as a result of making the motion. For purposes of this paragraph, a statement previously made is a written statement signed or otherwise adopted or approved by the person making it, or a stenographic, mechanical, electrical, or other recording or

transcription of it that is a substantially verbatim recital of an oral statement by the person making it and contemporaneously recorded.

(5) *Trial Preparation; Experts.* Discovery of facts known and opinions held by experts, otherwise discoverable under the provisions of subdivision (c)(1) and acquired or developed in anticipation of litigation or for trial, may be obtained only as follows:

(A) (i) By interrogatories a party may require any other party to identify each person whom the other party expects to call as an expert witness at trial and to state the subject matter on which the expert is expected to testify, and to state the substance of the facts and opinions to which the expert is expected to testify and a summary of the grounds for each opinion.

(ii) Any person disclosed by interrogatories or otherwise as a person expected to be called as an expert witness at trial may be deposed in accordance with rule 1.390 without motion or order of court.

(iii) A party may obtain the following discovery regarding any person disclosed by interrogatories or otherwise as a person expected to be called as an expert witness at trial:

1. The scope of employment in the pending case and the compensation for such service.

2. The expert's general litigation experience, including the percentage of work performed for plaintiffs and defendants.

3. The identity of other cases, within a reasonable time period, in which the expert has testified by deposition or at trial.

4. An approximation of the portion of the expert's involvement as an expert witness, which may be based

on the number of hours, percentage of hours, or percentage of earned income derived from serving as an expert witness; however, the expert will not be required to disclose the expert's earnings as an expert witness or income derived from other services.

An expert may be required to produce financial and business records only under the most unusual or compelling circumstances and may not be compelled to compile or produce nonexistent documents. On motion, the court may order further discovery by other means, subject to such restrictions as to scope and other provisions under subdivision (c)(5)(C) concerning fees and expenses as the court may deem appropriate.

(B) A party may discover facts known or opinions held by an expert who has been retained or specially employed by another party in anticipation of litigation or preparation for trial and who is not expected to be called as a witness at trial, only as provided in rule 1.360(b) or upon a showing of exceptional circumstances under which it is impracticable for the party seeking discovery to obtain facts or opinions on the same subject by other means.

(C) Unless manifest injustice would result, the court will require that the party seeking discovery pay the expert a reasonable fee for time spent in responding to discovery under subdivisions (c)(5)(A) and (c)(5)(B); and concerning discovery from an expert obtained under subdivision (c)(5)(A) the court may require, and concerning discovery obtained under subdivision (c)(5)(B) will require, the party seeking discovery to pay the other party a fair part of the fees and expenses reasonably incurred by the latter party in obtaining facts and opinions from the expert.

(D) As used in these rules an expert witness is defined in rule 1.390(a).

(6) *Claims of Privilege or Protection of Trial Preparation Materials.* When a party withholds information otherwise discoverable under these rules by claiming that it is privileged or subject to protection as trial preparation material, the party must make the claim expressly and must describe the nature of the

documents, communications, or things not produced or disclosed in a manner that, without revealing information itself privileged or protected, will enable other parties to assess the applicability of the privilege or protection.

(d) Protective Orders. On motion by a party or by the person from whom discovery is sought, and for good cause shown, the court in which the action is pending may make any order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense that justice requires, including 1 or more of the following:

(1) that the discovery not be had;

(2) that the discovery may be had only on specified terms and conditions, including a designation of the time or place or the allocation of expenses;

(3) that the discovery may be had only by a method of discovery other than that selected by the party seeking discovery;

(4) that certain matters not be inquired into, or that the scope of the discovery be limited to certain matters;

(5) that discovery be conducted with no one present except persons designated by the court;

(6) that a deposition after being sealed be opened only by order of the court;

(7) that a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a designated way; and

(8) that the parties simultaneously file specified documents or information enclosed in sealed envelopes to be opened as directed by the court.

If the motion for a protective order is denied in whole or in part, the court may, on such terms and conditions as are just, order that any

party or person provide or permit discovery. The provisions of rule 1.380(a)(4) apply to the award of expenses incurred in relation to the motion.

(e) Limitations on Discovery of Electronically Stored Information.

(1) A person may object to discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of burden or cost. On motion to compel discovery or for a protective order, the person from whom discovery is sought must show that the information sought or the format requested is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order the discovery from such sources or in such formats if the requesting party shows good cause. The court may specify conditions of the discovery, including ordering that some or all of the expenses incurred by the person from whom discovery is sought be paid by the party seeking the discovery.

(2) In determining any motion involving discovery of electronically stored information, the court must limit the frequency or extent of discovery otherwise allowed by these rules if it determines that:

(A) the discovery sought is unreasonably cumulative or duplicative, or can be obtained from another source or in another manner that is more convenient, less burdensome, or less expensive; or

(B) the burden or expense of the discovery outweighs its likely benefit, considering the needs of the case, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues.

(f) Timing and Sequence of Discovery.

(1) *Timing.* A party may not seek discovery from any source before that party's initial disclosures are served on the other party, except when authorized by stipulation or by court order.

(2) *Sequence.* Except as provided in subdivision (c)(5), or unless the parties stipulate or the court orders otherwise, methods of discovery may be used in any sequence, and the fact that a party is conducting discovery, whether by deposition or otherwise, must not delay any other party's discovery.

(g) Supplementing of Responses. A party who has made a disclosure under this rule or who has responded to an interrogatory, a request for production, or a request for admission must supplement or correct its disclosure or response:

(1) in a timely manner if the party learns that in some material respect the disclosure or response is incomplete or incorrect, and if the additional or corrective information has not otherwise been made known to the other parties during the discovery process or in writing; or

(2) as ordered by the court.

(h) Court Filing of Documents and Discovery. Information obtained during discovery may not be filed with the court until such time as it is filed for good cause. The requirement of good cause is satisfied only when the filing of the information is allowed or required by another applicable rule of procedure or by court order. All filings of discovery documents must comply with Florida Rule of General Practice and Judicial Administration 2.425. The court has the authority to impose sanctions for violation of this rule.

(i) Apex Doctrine. A current or former high-level government or corporate officer may seek an order preventing the officer from being subject to a deposition. The motion, whether by a party or by the person of whom the deposition is sought, must be accompanied by an affidavit or declaration of the officer explaining that the officer lacks unique, personal knowledge of the issues being litigated. If the officer meets this burden of production, the court shall issue an order preventing the deposition, unless the

party seeking the deposition demonstrates that it has exhausted other discovery, that such discovery is inadequate, and that the officer has unique, personal knowledge of discoverable information. The court may vacate or modify the order if, after additional discovery, the party seeking the deposition can meet its burden of persuasion under this rule. The burden to persuade the court that the officer is high-level for purposes of this rule lies with the person or party opposing the deposition.

(j) Form of Responses to Written Discovery Requests. When responding to requests for production served under rule 1.310(b)(5), written deposition questions served under rule 1.320, interrogatories served under rule 1.340, requests for production or inspection served under rule 1.350, requests for production of documents or things without deposition served under rule 1.351, requests for admissions served under rule 1.370, or requests for the production of documentary evidence served under rule 1.410(c), the responding party must state each deposition question, interrogatory, or discovery request in full as numbered, followed by the answer, objection, or other response.

(k) Signing Disclosures and Discovery Requests; Responses; and Objections. Every initial discovery disclosure under subdivision (a) of this rule and every discovery request, response, or objection made by a party represented by an attorney must be signed by at least 1 attorney of record and must include the attorney's address, e-mail address, and telephone number. A self-represented litigant must sign the request, response, or objection and must include the self-represented litigant's address, e-mail address, and telephone number. By signing, an attorney or self-represented litigant certifies that to the best of the person's knowledge, information, and belief formed after a reasonable inquiry:

(1) with respect to a disclosure, it is complete and correct as of the time it is made; and

(2) with respect to a discovery request, response, or objection, it is:

(A) consistent with these rules and warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law;

(B) not interposed for any improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation; and

(C) not unreasonable or unduly burdensome or expensive, given the needs of the case, the discovery already had in the case, the amount in controversy, and the importance of the issues at stake in the litigation.

No party has a duty to act on an unsigned disclosure, request, response, or objection until it is signed. If a certification violates this rule without substantial justification, the court, on motion or on its own, must impose an appropriate sanction on the signer, the party on whose behalf the signer was acting, or both. The sanction may include an order to pay the reasonable expenses, including attorney's fees, caused by the violation.

Committee Notes

1972 Amendment. The rule is derived from Federal Rule of Civil Procedure 26 as amended in 1970. Subdivisions (a), (b)(2), and (b)(3) are new. Subdivision (c) contains material from former rule 1.310(b). Subdivisions (d) and (e) are new, but the latter is similar to former rule 1.340(d). Significant changes are made in discovery from experts. The general rearrangement of the discovery rule is more logical and is the result of 35 years of experience under the federal rules.

1988 Amendment. Subdivision (b)(2) has been added to enable discovery of the existence and contents of indemnity agreements and is the result of the enactment of sections 627.7262 and 627.7264, Florida Statutes, proscribing the joinder of insurers but providing for disclosure. This rule is derived from Federal Rule of Civil Procedure 26(b)(2). Subdivisions (b)(2) and (b)(3) have been redesignated as (b)(3) and (b)(4) respectively.

The purpose of the amendment to subdivision (b)(3)(A) (renumbered (b)(4)(A)) is to allow, without leave of court, the depositions of experts who have been disclosed as expected to be used at trial. The purpose of subdivision (b)(4)(D) is to define the term "expert" as used in these rules.

1996 Amendment. The amendments to subdivision (b)(4)(A) are derived from the Supreme Court's decision in *Elkins v. Syken*, 672 So. 2d 517 (Fla. 1996). They are intended to avoid annoyance, embarrassment, and undue expense while still permitting the adverse party to obtain relevant information regarding the potential bias or interest of the expert witness.

Subdivision (b)(5) is added and is derived from Federal Rule of Civil Procedure 26(b)(5) (1993).

2011 Amendment. Subdivision (f) is added to ensure that information obtained during discovery is not filed with the court unless there is good cause for the documents to be filed, and that information obtained during discovery that includes certain private information shall not be filed with the court unless the private information is redacted as required by Florida Rule of Judicial Administration 2.425.

2012 Amendment. Subdivisions (b)(3) and (d) are added to address discovery of electronically stored information.

The parties should consider conferring with one another at the earliest practical opportunity to discuss the reasonable scope of preservation and production of electronically stored information. These issues may also be addressed by means of a rule 1.200 or rule 1.201 case management conference.

Under the good cause test in subdivision (d)(1), the court should balance the costs and burden of the requested discovery, including the potential for disruption of operations or corruption of the electronic devices or systems from which discovery is sought, against the relevance of the information and the requesting party's need for that information. Under the proportionality and reasonableness factors set out in subdivision (d)(2), the court must

limit the frequency or extent of discovery if it determines that the discovery sought is excessive in relation to the factors listed.

In evaluating the good cause or proportionality tests, the court may find its task complicated if the parties know little about what information the sources at issue contain, whether the information sought is relevant, or how valuable it may be to the litigation. If appropriate, the court may direct the parties to develop the record further by engaging in focused discovery, including sampling of the sources, to learn more about what electronically stored information may be contained in those sources, what costs and burdens are involved in retrieving, reviewing, and producing the information, and how valuable the information sought may be to the litigation in light of the availability of information from other sources or methods of discovery, and in light of the parties' resources and the issues at stake in the litigation.

Court Commentary

2000 Amendment. *Allstate Insurance Co. v. Boecher*, 733 So. 2d 993, 999 (Fla. 1999), clarifies that subdivision (b)(4)(A)(iii) is not intended "to place a blanket bar on discovery from parties about information they have in their possession about an expert, including the party's financial relationship with the expert."

2024 Amendment. The scope of discovery in subdivision (c)(1) is amended to adopt almost all the text of Federal Rule of Civil Procedure 26(b)(1) and is to be construed and applied in accordance with the federal proportionality standard.

RULE 1.285. INADVERTENT DISCLOSURE OF PRIVILEGED MATERIALS

(a) Assertion of Privilege as to Inadvertently Disclosed Materials. Any party, person, or entity, after inadvertent disclosure of any materials pursuant to these rules, may thereafter assert any privilege recognized by law as to those materials. This right exists without regard to whether the disclosure was made pursuant to formal demand or informal request. In order to assert the privilege, the party, person, or entity, shall, within 10 days of actually

discovering the inadvertent disclosure, serve written notice of the assertion of privilege on the party to whom the materials were disclosed. The notice shall specify with particularity the materials as to which the privilege is asserted, the nature of the privilege asserted, and the date on which the inadvertent disclosure was actually discovered.

(b) Duty of the Party Receiving Notice of an Assertion of Privilege. A party receiving notice of an assertion of privilege under subdivision (a) shall promptly return, sequester, or destroy the materials specified in the notice, as well as any copies of the material. The party receiving the notice shall also promptly notify any other party, person, or entity to whom it has disclosed the materials of the fact that the notice has been served and of the effect of this rule. That party shall also take reasonable steps to retrieve the materials disclosed. Nothing herein affects any obligation pursuant to R. Regulating Fla. Bar 4-4.4(b).

(c) Right to Challenge Assertion of Privilege. Any party receiving a notice made under subdivision (a) has the right to challenge the assertion of privilege. The grounds for the challenge may include, but are not limited to, the following:

(1) The materials in question are not privileged.

(2) The disclosing party, person, or entity lacks standing to assert the privilege.

(3) The disclosing party, person, or entity has failed to serve timely notice under this rule.

(4) The circumstances surrounding the production or disclosure of the materials warrant a finding that the disclosing party, person, or entity has waived its assertion that the material is protected by a privilege.

Any party seeking to challenge the assertion of privilege shall do so by serving notice of its challenge on the party, person, or entity asserting the privilege. Notice of the challenge shall be served within 20 days of service of the original notice given by the disclosing

party, person, or entity. The notice of the recipient's challenge shall specify the grounds for the challenge. Failure to serve timely notice of challenge is a waiver of the right to challenge.

(d) Effect of Determination that Privilege Applies. When an order is entered determining that materials are privileged or that the right to challenge the privilege has been waived, the court shall direct what shall be done with the materials and any copies so as to preserve all rights of appellate review. The recipient of the materials shall also give prompt notice of the court's determination to any other party, person, or entity to whom it had disclosed the materials.

RULE 1.290. DEPOSITIONS BEFORE ACTION OR PENDING APPEAL

(a) Before Action.

(1) *Petition.* A person who desires to perpetuate that person's own testimony or that of another person regarding any matter that may be cognizable in any court of this state may file a verified petition in the circuit court in the county of the residence of any expected adverse party. The petition shall be entitled in the name of the petitioner and shall show: (1) that the petitioner expects to be a party to an action cognizable in a court of Florida, but is presently unable to bring it or cause it to be brought, (2) the subject matter of the expected action and the petitioner's interest therein, (3) the facts which the petitioner desires to establish by the proposed testimony and the petitioner's reasons for desiring to perpetuate it, (4) the names or a description of the persons the petitioner expects will be adverse parties and their addresses so far as known, and (5) the names and addresses of the persons to be examined and the substance of the testimony which the petitioner expects to elicit from each; and shall ask for an order authorizing the petitioner to take the deposition of the persons to be examined named in the petition for the purpose of perpetuating their testimony.

(2) *Notice and Service.* The petitioner shall thereafter serve a notice upon each person named in the petition as an

expected adverse party, together with a copy of the petition, stating that the petitioner will apply to the court at a time and place named therein for an order described in the petition. At least 20 days before the date of hearing the notice shall be served either within or without the county in the manner provided by law for service of summons, but if such service cannot with due diligence be made upon any expected adverse party named in the petition, the court may make an order for service by publication or otherwise, and shall appoint an attorney for persons not served in the manner provided by law for service of summons who shall represent them, and if they are not otherwise represented, shall cross-examine the deponent.

(3) *Order and Examination.* If the court is satisfied that the perpetuation of the testimony may prevent a failure or delay of justice, it shall make an order designating or describing the persons whose depositions may be taken and specifying the subject matter of the examination and whether the deposition shall be taken upon oral examination or written interrogatories. The deposition may then be taken in accordance with these rules and the court may make orders in accordance with the requirements of these rules. For the purpose of applying these rules to depositions for perpetuating testimony, each reference therein to the court in which the action is pending shall be deemed to refer to the court in which the petition for such deposition was filed.

(4) *Use of Deposition.* A deposition taken under this rule may be used in any action involving the same subject matter subsequently brought in any court in accordance with rule 1.330.

(b) Pending Appeal. If an appeal has been taken from a judgment of any court or before the taking of an appeal if the time therefor has not expired, the court in which the judgment was rendered may allow the taking of the depositions of witnesses to perpetuate their testimony for use in the event of further proceedings in the court. In such case the party who desires to perpetuate the testimony may make a motion for leave to take the deposition upon the same notice and service as if the action was pending in the court. The motion shall show (1) the names and

addresses of persons to be examined and the substance of the testimony which the movant expects to elicit from each, and (2) the reason for perpetuating their testimony. If the court finds that the perpetuation of the testimony is proper to avoid a failure or delay in justice, it may make an order allowing the deposition to be taken and may make orders of the character provided for by these rules, and thereupon the deposition may be taken and used in the same manner and under the same conditions as are prescribed in these rules for depositions taken in actions pending in the court.

(c) Perpetuation by Action. This rule does not limit the power of a court to entertain an action to perpetuate testimony.

Committee Notes

1980 Amendment. Subdivision (d) is repealed because depositions de bene esse are obsolete. Rules 1.280 and 1.310 with the remainder of this rule cover all needed deposition circumstances and do so better. Subdivision (d) was taken from former chapter 63, Florida Statutes, and is not a complete procedure without reference to the parts of the statute not carried forward in the rule.

RULE 1.300. PERSONS BEFORE WHOM DEPOSITIONS MAY BE TAKEN

(a) Persons Authorized. Depositions may be taken before any notary public or judicial officer or before any officer authorized by the statutes of Florida to take acknowledgments or proof of executions of deeds or by any person appointed by the court in which the action is pending.

(b) In Foreign Countries. In a foreign country depositions may be taken (1) on notice before a person authorized to administer oaths in the place in which the examination is held, either by the law thereof or by the law of Florida or of the United States, (2) before a person commissioned by the court, and a person so commissioned shall have the power by virtue of the commission to administer any necessary oath and take testimony, or (3) pursuant to a letter rogatory. A commission or a letter rogatory shall be

issued on application and notice and on terms that are just and appropriate. It is not requisite to the issuance of a commission or a letter rogatory that the taking of the deposition in any other manner is impracticable or inconvenient, and both a commission and a letter rogatory may be issued in proper cases. A notice or commission may designate the person before whom the deposition is to be taken either by name or descriptive title. A letter rogatory may be addressed "To the Appropriate Authority in .....(name of country)....." Evidence obtained in response to a letter rogatory need not be excluded merely for the reason that it is not a verbatim transcript or that the testimony was not taken under oath or any similar departure from the requirements for depositions taken within Florida under these rules.

(c) Selection by Stipulation. If the parties so stipulate in writing, depositions may be taken before any person at any time or place upon any notice and in any manner and when so taken may be used like other depositions.

(d) Persons Disqualified. Unless so stipulated by the parties, no deposition shall be taken before a person who is a relative, employee, attorney, or counsel of any of the parties, is a relative or employee of any of the parties' attorney or counsel, or is financially interested in the action.

RULE 1.310. DEPOSITIONS ON ORAL EXAMINATION

(a) When Depositions May Be Taken. After commencement of the action any party may take the testimony of any person, including a party, by deposition on oral examination. Leave of court, granted with or without notice, must be obtained only if the plaintiff seeks to take a deposition within 30 days after service of the process and initial pleading on any defendant, except that leave is not required:

(1) if a defendant has served a notice of taking deposition or otherwise sought discovery; or

(2) if special notice is given as provided in subdivision (b)(2) of this rule.

The attendance of witnesses may be compelled by subpoena as provided in rule 1.410. The deposition of a person confined in prison may be taken only by leave of court on terms set by the court.

(b) Notice; Method of Taking; Production at Deposition.

(1) A party desiring to take the deposition of any person on oral examination must give reasonable notice in writing to every other party to the action. The notice must state the time and place for taking the deposition and the name and address of each person to be examined, if known, and, if the name is not known, a general description sufficient to identify the person or the particular class or group to which the person belongs. If a subpoena duces tecum is to be served on the person to be examined, the designation of the materials to be produced under the subpoena must be attached to or included in the notice.

(2) Leave of court is not required for the taking of a deposition by plaintiff if the notice states that the person to be examined is about to go out of the state and will be unavailable for examination unless a deposition is taken before expiration of the 30-day period under subdivision (a). If a party shows that when served with notice under this subdivision that party was unable through the exercise of diligence to obtain counsel to represent the party at the taking of the deposition, the deposition may not be used against that party.

(3) For cause shown the court may enlarge or shorten the time for taking the deposition.

(4) Any deposition may be audiovisually recorded without leave of the court or stipulation of the parties, provided the deposition is taken in accordance with this subdivision.

(A) Notice. In addition to the requirements in subdivision (b)(1), a party intending to audiovisually record a deposition must:

i. state that the deposition is to audiovisually recorded in the title of the notice; and

ii. identify the method for audiovisually recording the deposition and, if applicable, provide the name and address of the operator of the audiovisual recording equipment in the body of the notice.

(B) Stenographer. Audiovisually recorded depositions must also be recorded stenographically, unless all parties agree otherwise.

(C) Procedure. At the beginning of the deposition, the officer before whom it is taken must, on camera:

(i) identify the style of the action;

(ii) state the date; and

(iii) put the witness under oath as provided in subdivision (c)(1).

(D) Responsibility for Recordings and Copies. The attorney for the party or the pro se party requesting the audiovisual recording of the deposition is responsible for safeguarding the recording, must permit the viewing of it by the opposing party, and, if requested, must provide access to a copy of the recording at the expense of the party requesting the copy.

(E) Cost of Audiovisually Recorded Depositions. The party requesting the audiovisual recording must bear the initial cost of the recording.

(5) The notice to a party deponent may be accompanied by a request made in compliance with rule 1.350 for the production of documents and tangible things at the taking of the deposition. The procedure of rule 1.350 applies to the request. Rule 1.351 provides the exclusive procedure for obtaining documents or things by subpoena from nonparties without deposing the custodian or other person in possession of the documents.

(6) In the notice a party may name as the deponent a public or private corporation, a partnership or association, or a governmental agency, or other entity, and designate with reasonable particularity the matters on which examination is requested. The organization so named must designate 1 or more officers, directors, or managing agents, or other persons who consent to do so, to testify on its behalf and may state the matters on which each person designated will testify. The persons so designated must testify about matters known or reasonably available to the organization. This subdivision does not prohibit taking a deposition by any other procedure authorized in these rules.

(7) A deposition may be taken by communication technology, as that term is defined in Florida Rule of General Practice and Judicial Administration 2.530, if stipulated by the parties or if ordered by the court on its own motion or on motion of a party. The order may direct the method by which the deposition will be taken. In addition to the requirements of subdivision (b)(1), a party intending to take a deposition by communication technology must:

(A) state that the deposition is to be taken using communication technology in the title of the notice; and

(B) identify the specific form of communication technology to be used and provide instructions for access to the communication technology in the body of the notice.

(8) Any minor subpoenaed for testimony has the right to be accompanied by a parent or guardian at all times during the taking of testimony notwithstanding the invocation of the rule of sequestration of section 90.616, Florida Statutes, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the credibility or accuracy of the minor's testimony, or that the interests of the parent or guardian are in actual or potential conflict with the interests of the minor.

(c) Examination and Cross-Examination; Record of Examination; Oath; Objections; Transcription.

(1) Examination and cross-examination of witnesses may proceed as permitted at the trial. The officer before whom the deposition is to be taken must put the witness under oath and must personally, or by someone acting under the officer's direction and in the officer's presence, record the testimony of the witness, except that when a deposition is being taken by communication technology under subdivision (b)(7), the witness must be put under oath as provided in Florida Rule of General Practice and Judicial Administration 2.530(b)(2)(B). The testimony must be taken stenographically or audiovisually recorded under subdivision (b)(4). All objections made at the time of the examination to the qualifications of the officer taking the deposition, the manner of taking it, the evidence presented, or the conduct of any party, and any other objection to the proceedings must be noted by the officer on the deposition. Any objection during a deposition must be stated concisely and in a nonargumentative and nonsuggestive manner. A party may instruct a deponent not to answer only when necessary to preserve a privilege, to enforce a limitation on evidence directed by the court, or to present a motion under subdivision (d). Otherwise, evidence objected to must be taken subject to the objections. Instead of participating in the oral examination, parties may serve written questions in a sealed envelope on the party taking the deposition and that party must transmit them to the officer, who must propound them to the witness and record the answers verbatim.

(2) If requested by a party, the testimony must be transcribed at the initial cost of the requesting party and prompt notice of the request must be given to all other parties. A party who intends to use an audio or audiovisual recording of testimony at a hearing or trial must have the testimony transcribed and must file a copy of the transcript with the court.

(d) Motion to Terminate or Limit Examination. At any time during the taking of the deposition, on motion of a party or of the deponent and on a showing that the examination is being conducted in bad faith or in any manner as unreasonably to annoy, embarrass, or oppress the deponent or party, or that objection and instruction to a deponent not to answer are being made in violation

of rule 1.310(c), the court in which the action is pending or the circuit court where the deposition is being taken may order the officer conducting the examination to cease immediately from taking the deposition or may limit the scope and manner of the taking of the deposition under rule 1.280(d). If the order terminates the examination, it will be resumed thereafter only on the order of the court in which the action is pending. On demand of any party or the deponent, the taking of the deposition must be suspended for the time necessary to make a motion for an order. Rule 1.380(a) applies to the award of expenses incurred in relation to the motion.

(e) Witness Review. If the testimony is transcribed, the transcript must be provided to the witness for examination and must be read to or by the witness unless the examination and reading are waived by the witness and by the parties. Any changes in form or substance that the witness wants to make must be listed in writing by the officer with a statement of the reasons given by the witness for making the changes. The changes must be attached to the transcript. It must then be signed by the witness unless the parties waived the signing or the witness is ill, cannot be found, or refuses to sign. If the transcript is not signed by the witness within a reasonable time after it is provided to the witness, the officer must sign the transcript and state on the transcript the waiver, illness, absence of the witness, or refusal to sign with any reasons given therefor. The deposition may then be used as fully as though signed unless the court holds that the reasons given for the refusal to sign require rejection of the deposition wholly or partly, on motion under rule 1.330(d)(4).

(f) Filing; Exhibits.

(1) If the deposition is transcribed, the officer must certify on each copy of the deposition that the witness was duly sworn by the officer and that the deposition is a true record of the testimony given by the witness. Documents and things produced for inspection during the examination of the witness must be marked for identification and annexed to and returned with the deposition on the request of a party, and may be inspected and copied by any party, except that the person producing the materials may

substitute copies to be marked for identification if that person affords to all parties fair opportunity to verify the copies by comparison with the originals. If the person producing the materials requests their return, the officer must mark them, give each party an opportunity to inspect and copy them, and return them to the person producing them and the materials may then be used in the same manner as if annexed to and returned with the deposition.

(2) After payment of reasonable charges, the officer must provide a copy of the deposition to any party or to the deponent.

(3) A copy of a deposition may be filed only under the following circumstances:

(A) It may be filed in compliance with Florida Rule of General Practice and Judicial Administration 2.425 and rule 1.280 by a party or the witness when the contents of the deposition must be considered by the court on any matter pending before the court. Prompt notice of the filing of the deposition must be given to all parties unless notice is waived. A party filing the deposition must provide a copy of the deposition or the part being filed to other parties unless the party already has a copy.

(B) If the court determines that a deposition previously taken is necessary for the decision of a matter pending before the court, the court may order that a copy be filed by any party at the initial cost of the party, and the filing party must comply with rules 2.425 and 1.280.

(C) Deposition transcripts filed with the court must be filed in full-page format, unless condensed transcripts are authorized by the court.

(g) Obtaining Copies. A party or witness who does not have a copy of the deposition may obtain it from the officer taking the deposition unless the court orders otherwise. If the deposition is obtained from a person other than the officer, the reasonable cost of reproducing the copies must be paid to the person by the requesting party or witness.

(h) Failure to Attend or to Serve Subpoena; Expenses.

(1) If the party giving the notice of the taking of a deposition fails to attend and proceed therewith and another party attends in person or by attorney under the notice, the court may order the party giving the notice to pay to the other party the reasonable expenses incurred by the other party and the other party's attorney in attending, including reasonable attorneys' fees.

(2) If the party giving the notice of the taking of a deposition of a witness fails to serve a subpoena on the witness and the witness because of the failure does not attend and if another party attends in person or by attorney because that other party expects the deposition of that witness to be taken, the court may order the party giving the notice to pay to the other party the reasonable expenses incurred by that other party and that other party's attorney in attending, including reasonable attorneys' fees.

Committee Notes

1972 Amendment. Derived from Federal Rule of Civil Procedure 30 as amended in 1970. Subdivision (a) is derived from rule 1.280(a); subdivision (b) from rule 1.310(a) with additional matter added; the first sentence of subdivision (c) has been added and clarifying language added throughout the remainder of the rule.

1976 Amendment. Subdivision (b)(4) has been amended to allow the taking of a videotaped deposition as a matter of right. Provisions for the taxation of costs and the entry of a standard order are included as well. This new amendment allows the contemporaneous stenographic transcription of a videotaped deposition.

1988 Amendment. The amendments to subdivision (b)(4) are to provide for depositions by videotape as a matter of right.

The notice provision is to ensure that specific notice is given that the deposition will be videotaped and to disclose the identity of the operator. It was decided not to make special provision for a number of days' notice.

The requirement that a stenographer be present (who is also the person likely to be swearing the deponent) is to ensure the availability of a transcript (although not required). The transcript would be a tool to ensure the accuracy of the videotape and thus eliminate the need to establish other procedures aimed at the same objective (like time clocks in the picture and the like). This does not mean that a transcript must be made. As at ordinary depositions, this would be up to the litigants.

Technical videotaping procedures were not included. It is anticipated that technical problems may be addressed by the court on motions to quash or motions for protective orders.

Subdivision (c) has been amended to accommodate the taking of depositions by telephone. The amendment requires the deponent to be sworn by a person authorized to administer oaths in the deponent's location and who is present with the deponent.

1992 Amendment. Subdivision (b)(4)(D) is amended to clarify an ambiguity in whether the cost of the videotape copy is to be borne by the party requesting the videotaping or by the party requesting the copy. The amendment requires the party requesting the copy to bear the cost of the copy.

1996 Amendment. Subdivision (c) is amended to state the existing law, which authorizes attorneys to instruct deponents not to answer questions only in specific situations. This amendment is derived from Federal Rule of Civil Procedure 30(d) as amended in 1993.

2010 Amendment. Subdivision (b)(5) is amended to clarify that the procedure set forth in rule 1.351 must be followed when requesting or receiving documents or things without testimony, from nonparties pursuant to a subpoena. The amendment is intended to prevent the use of rules 1.310 and 1.410 to request documents from nonparties pursuant to a subpoena without giving the opposing party the opportunity to object to the subpoena before it is served on the nonparty as required by rule 1.351.

2011 Amendment. A reference to Florida Rule of Judicial Administration 2.425 and rule 1.280(f) is added to require persons filing discovery materials with the court to make sure that good cause exists prior to filing discovery materials and that certain specific personal information is redacted.

2024 Amendment. Subdivision (b)(6) is amended, see Fed. R. Civ. P. 30(b)(6), Committee Notes on 2007 Amendment. Subdivision (f)(3)(C) is added to align the civil rules with the Florida Rules of Appellate Procedure, which require filing of full-page format transcripts, including depositions, in all appellate courts. This rule does not prevent the use of condensed transcripts for other purposes.

Court Commentary

1984 Amendment. Subdivision (b)(7) is added to authorize deposition by telephone, with provision for any party to have a stenographic transcription at that party's own initial expense.

Subdivision (d) is changed to permit any party to terminate the deposition, not just the objecting party.

Subdivision (e) is changed to eliminate the confusing requirement that a transcript be submitted to the witness. The term has been construed as requiring the court reporter to travel, if necessary, to the witness, and creates a problem when a witness is deposed in Florida and thereafter leaves the state before signing. The change is intended to permit the parties and the court reporter to handle such situations on an ad hoc basis as is most appropriate.

Subdivision (f) is the committee's action in response to the petition seeking amendment to rule 1.310(f) filed in the Supreme Court Case No. 62,699. Subdivision (f) is changed to clarify the need for furnishing copies when a deposition, or part of it, is properly filed, to authorize the court to require a deposition to be both transcribed and filed, and to specify that a party who does not obtain a copy of the deposition may get it from the court reporter unless ordered otherwise by the court. This eliminates the present

requirement of furnishing a copy of the deposition, or material part of it, to a person who already has a copy in subdivision (f)(3)(A).

Subdivision (f)(3)(B) broadens the authority of the court to require the filing of a deposition that has been taken, but not transcribed.

Subdivision (g) requires a party to obtain a copy of the deposition from the court reporter unless the court orders otherwise. Generally, the court should not order a party who has a copy of the deposition to furnish it to someone who has neglected to obtain it when the deposition was transcribed. The person should obtain it from the court reporter unless there is a good reason why it cannot be obtained from the reporter.

RULE 1.320. DEPOSITIONS UPON WRITTEN QUESTIONS

(a) Serving Questions; Notice. After commencement of the action any party may take the testimony of any person, including a party, by deposition upon written questions. The attendance of witnesses may be compelled by the use of subpoena as provided in rule 1.410. The deposition of a person confined in prison may be taken only by leave of court on such terms as the court prescribes. A party desiring to take a deposition upon written questions must serve them with a notice stating (1) the name and address of the person who is to answer them, if known, and, if the name is not known, a general description sufficient to identify the person or the particular class or group to which that person belongs, and (2) the name or descriptive title and address of the officer before whom the deposition is to be taken. A deposition upon written questions may be taken of a public or private corporation, a partnership or association, or a governmental agency in accordance with rule 1.310(b)(6). Within 30 days after the notice and written questions are served, a party may serve cross questions on all other parties. Within 10 days after being served with redirect questions, a party may serve recross questions on all other parties. Notwithstanding any contrary provision of rule 1.310(c), objections to the form of written questions are waived unless served in writing on the party propounding them within the time allowed for serving the succeeding cross or other questions and within 10 days after

service of the last questions authorized. The court may for cause shown enlarge or shorten the time.

(b) Officer to Take Responses and Prepare Record. A copy of the notice and copies of all questions served must be delivered by the party taking the depositions to the officer designated in the notice, who must proceed promptly to take the testimony of the witness in the manner provided by rules 1.310(c), (e), and (f) in response to the questions and to prepare the deposition, attaching the copy of the notice and the questions received by the officer. The questions must not be filed separately from the deposition unless a party seeks to have the court consider the questions before the questions are submitted to the witness. Any deposition may be audiovisually recorded without leave of the court or stipulation of the parties, provided the deposition is taken in accordance with rule 1.310(b)(4).

Committee Notes

1972 Amendment. Derived from Federal Rule of Civil Procedure 31 as amended in 1970. The name of interrogatories has been changed to questions to avoid confusion with interrogatories to parties under rule 1.340. Language changes resulting from the rearrangement of the discovery rules have been inserted and subdivision (d) deleted.

RULE 1.330. USE OF DEPOSITIONS IN COURT PROCEEDINGS

(a) Use of Depositions. At the trial or upon the hearing of a motion or an interlocutory proceeding, any part or all of a deposition may be used against any party who was present or represented at the taking of the deposition or who had reasonable notice of it so far as admissible under the rules of evidence applied as though the witness were then present and testifying in accordance with any of the following provisions:

(1) Any deposition may be used by any party for the purpose of contradicting or impeaching the testimony of the deponent as a witness or for any purpose permitted by the Florida Evidence Code.

(2) The deposition of a party or of anyone who at the time of taking the deposition was an officer, director, or managing agent or a person designated under rule 1.310(b)(6) or 1.320(a) to testify on behalf of a public or private corporation, a partnership or association, or a governmental agency that is a party may be used by an adverse party for any purpose.

(3) The deposition of a witness, whether or not a party, may be used by any party for any purpose if the court finds: (A) that the witness is dead; (B) that the witness is at a greater distance than 100 miles from the place of trial or hearing, or is out of the state, unless it appears that the absence of the witness was procured by the party offering the deposition; (C) that the witness is unable to attend or testify because of age, illness, infirmity, or imprisonment; (D) that the party offering the deposition has been unable to procure the attendance of the witness by subpoena; (E) upon application and notice, that such exceptional circumstances exist as to make it desirable, in the interest of justice and with due regard to the importance of presenting the testimony of witnesses orally in open court, to allow the deposition to be used; or (F) the witness is an expert or skilled witness.

(4) If only part of a deposition is offered in evidence by a party, an adverse party may require the party to introduce any other part that in fairness ought to be considered with the part introduced, and any party may introduce any other parts.

(5) Substitution of parties pursuant to rule 1.260 does not affect the right to use depositions previously taken and, when an action in any court of the United States or of any state has been dismissed and another action involving the same subject matter is afterward brought between the same parties or their representatives or successors in interest, all depositions lawfully taken and duly filed in the former action may be used in the latter as if originally taken for it.

(6) If a civil action is afterward brought, all depositions lawfully taken in a medical liability mediation proceeding may be used in the civil action as if originally taken for it.

(b) Objections to Admissibility. Subject to the provisions of rule 1.300(b) and subdivision (d)(3) of this rule, objection may be made at the trial or hearing to receiving in evidence any deposition or part of it for any reason that would require the exclusion of the evidence if the witness were then present and testifying.

(c) Effect of Taking or Using Depositions. A party does not make a person the party's own witness for any purpose by taking the person's deposition. The introduction in evidence of the deposition or any part of it for any purpose other than that of contradicting or impeaching the deponent makes the deponent the witness of the party introducing the deposition, but this shall not apply to the use by an adverse party of a deposition under subdivision (a)(2) of this rule. At the trial or hearing any party may rebut any relevant evidence contained in a deposition whether introduced by that party or by any other party.

(d) Effect of Errors and Irregularities.

(1) *As to Notice.* All errors and irregularities in the notice for taking a deposition are waived unless written objection is promptly served upon the party giving the notice.

(2) *As to Disqualification of Officer.* Objection to taking a deposition because of disqualification of the officer before whom it is to be taken is waived unless made before the taking of the deposition begins or as soon thereafter as the disqualification becomes known or could be discovered with reasonable diligence.

(3) *As to Taking of Deposition.*

(A) Objections to the competency of a witness or to the competency, relevancy, or materiality of testimony are not waived by failure to make them before or during the taking of the deposition unless the ground of the objection is one that might have been obviated or removed if presented at that time.

(B) Errors and irregularities occurring at the oral examination in the manner of taking the deposition, in the form of the questions or answers, in the oath or affirmation, or in the

conduct of parties and errors of any kind that might be obviated, removed, or cured if promptly presented are waived unless timely objection to them is made at the taking of the deposition.

(C) Objections to the form of written questions submitted under rule 1.320 are waived unless served in writing upon the party propounding them within the time allowed for serving the succeeding cross or other questions and within 10 days after service of the last questions authorized.

(4) *As to Completion and Return.* Errors and irregularities in the manner in which the testimony is transcribed or the deposition is prepared, signed, certified, or otherwise dealt with by the officer under rules 1.310 and 1.320 are waived unless a motion to suppress the deposition or some part of it is made with reasonable promptness after the defect is, or with due diligence might have been, discovered.

Committee Notes

1972 Amendment. Derived from Federal Rule of Civil Procedure 32 as amended in 1970. Subdivisions (a), (b), and (c) are former rules 1.280(d), (f), and (g) respectively. Subdivision (d) is derived from the entire former rule 1.330.

1998 Amendment. Subdivision (a)(1) was amended to clarify that, in addition to the uses of depositions prescribed by these rules, depositions may be used for any purpose permitted by the Florida Evidence Code (chapter 90, Fla. Stat.). This amendment is consistent with the 1980 amendment to Rule 32 of the Federal Rules of Civil Procedure.

RULE 1.340. INTERROGATORIES TO PARTIES

(a) Procedure for Use.

(1) Without leave of court, any party may serve on any other party written interrogatories to be answered:

(A) by the party to whom the interrogatories are directed; or

(B) if that party is a public corporation, private corporation, partnership, association, or governmental agency, by any officer or agent, who must furnish the information available to that party.

(2) Interrogatories may be served on the plaintiff after commencement of the action and on any other party with or after service of the process and initial pleading on that party.

(3) The interrogatories must not exceed 30, including all subparts, unless the court permits a larger number on motion and notice and for good cause.

(4) If the supreme court has approved a form of interrogatories for the type of action, the initial interrogatories on a subject included within must be from the form approved by the court.

(5) A party may serve fewer than all of the approved interrogatories within a form.

(6) Other interrogatories may be added to the approved forms without leave of court, so long as the total of approved and additional interrogatories does not exceed 30.

(7) Each interrogatory must be answered separately and fully in writing under oath unless it is objected to, in which event the grounds for objection must be stated and signed by the attorney making it.

(8) The grounds for objecting to an interrogatory must be stated with specificity, including the reasons. Any ground not stated in a timely objection is waived unless the court, for good cause, excuses the failure.

(9) The party to whom the interrogatories are directed must serve the answers and any objections within 30 days after the

service of the interrogatories, except that a defendant may serve answers or objections within 45 days after service of the process and initial pleading on that defendant. The court may allow a shorter or longer time.

(10) The party submitting the interrogatories may move for an order under rule 1.380(a) on any objection to or other failure to answer an interrogatory.

(b) Scope; Use at Trial.

(1) Interrogatories may relate to any matters that can be inquired into under rule 1.280(c), and the answers may be used to the extent permitted by the rules of evidence except as otherwise provided in subdivision (b).

(2) An interrogatory otherwise proper is not objectionable merely because an answer to the interrogatory involves an opinion or contention that relates to fact or calls for a conclusion or asks for information not within the personal knowledge of the party.

(3) A party must respond to an otherwise proper interrogatory by giving the information the party has and the source on which the information is based.

(4) A qualified answer may not be used as direct evidence for or impeachment against the party giving the answer unless the court finds it otherwise admissible under the rules of evidence.

(5) If a party introduces an answer to an interrogatory, any other party may require that party to introduce any other interrogatory and answer that in fairness ought to be considered with it.

(c) Option to Produce Records.

(1) When the answer to an interrogatory may be derived or ascertained from the records (including electronically stored

information) of the party to whom the interrogatory is directed or from an examination, audit, or inspection of the records or from a compilation, abstract, or summary based on the records and the burden of deriving or ascertaining the answer is substantially the same for the party serving the interrogatory as for the party to whom it is directed, then an answer to the interrogatory specifying the records from which the answer may be derived or ascertained and offering to give the party serving the interrogatory a reasonable opportunity to examine, audit, or inspect the records and to make copies, compilations, abstracts, or summaries is a sufficient answer.

(2) An answer must be in sufficient detail to permit the interrogating party to locate and to identify, as readily as can the party interrogated, the records from which the answer may be derived or ascertained, or must identify a person or persons representing the interrogated party who will be available to assist the interrogating party in locating and identifying the records at the time they are produced.

(3) If the records to be produced consist of electronically stored information, the records must be produced in a form or forms in which they are ordinarily maintained or in a reasonably usable form or forms.

(d) Effect on Co-Party. Answers made by a party are not binding on a co-party.

(e) Service and Filing.

(1) Interrogatories must be served on the party to whom the interrogatories are directed and copies must be served on all other parties.

(2) A certificate of service of the interrogatories must be filed, giving the date of service and the name of the party to whom they were directed.

(3) The answers to the interrogatories must be served on the party originally propounding the interrogatories and a copy must be served on all other parties by the answering party.

(4) The answers to interrogatories may be filed in compliance with Florida Rule of General Practice Judicial Administration 2.425 and rule 1.280(h) by any party when the court should consider the answers to interrogatories in determining any matter pending before the court.

(5) The court may order that the answers to interrogatories be filed at any time when the court determines that examination of the answers to interrogatories is necessary to determine any matter pending before the court.

Committee Notes

1972 Amendment. Subdivisions (a), (b), and (c) are derived from Federal Rule of Civil Procedure 33 as amended in 1970. Changes from the existing rule expand the time for answering, permit interrogatories to be served with the initial pleading or at any time thereafter, and eliminate the requirement of a hearing on objections. If objections are made, the interrogating party has the responsibility of setting a hearing if that party wants an answer. If the interrogatories are not sufficiently important, the interrogating party may let the matter drop. Subdivision (b) covers the same matter as the present rule 1.340(b) except those parts that have been transferred to rule 1.280. It also eliminates the confusion between facts and opinions or contentions by requiring that all be given. Subdivision (c) gives the interrogated party an option to produce business records from which the interrogating party can derive the answers to questions. Subdivision (d) is former subdivision (c) without change. Former subdivision (d) is repealed because it is covered in rule 1.280(e). Subdivision (e) is derived from the New Jersey rules and is intended to place both the interrogatories and the answers to them in a convenient place in the court file so that they can be referred to with less confusion. The requirement for filing a copy before the answers are received is necessary in the event of a dispute concerning what was done or the appropriate times involved.

1988 Amendment. The word "initial" in the 1984 amendment to subdivision (a) resulted in some confusion, so it has been deleted. Also the total number of interrogatories which may be propounded without leave of court is enlarged to 30 from 25. Form interrogatories which have been approved by the supreme court must be used; and those so used, with their subparts, are included in the total number permitted. The amendments are not intended to change any other requirement of the rule.

2011 Amendment. A reference to Florida Rule of General Practice and Judicial Administration 2.425 and rule 1.280(f) is added to require persons filing discovery materials with the court to make sure that good cause exists prior to filing discovery materials and that certain specific personal information is redacted.

2012 Amendments. Subdivision (c) is amended to provide for the production of electronically stored information in answer to interrogatories and to set out a procedure for determining the form in which to produce electronically stored information.

Court Commentary

1984 Amendment. Subdivision (a) is amended by adding the reference to approved forms of interrogatories. The intent is to eliminate the burden of unnecessary interrogatories.

Subdivision (c) is amended to add the requirement of detail in identifying records when they are produced as an alternative to answering the interrogatory or to designate the persons who will locate the records.

Subdivision (e) is changed to eliminate the requirement of serving an original and a copy of the interrogatories and of the answers in light of the 1981 amendment that no longer permits filing except in special circumstances.

Subdivision (f) is deleted since the Medical Liability Mediation Proceedings have been eliminated.

2024 Amendment. Any use of standard interrogatories must be adjusted for proportional discovery.

RULE 1.350. PRODUCTION OF DOCUMENTS AND THINGS AND ENTRY ON LAND FOR INSPECTION AND OTHER PURPOSES

(a) Request; Scope. Any party may request any other party:

(1) to produce and permit the party making the request, or someone acting in the requesting party's behalf, to inspect and copy any designated documents, including electronically stored information, writings, drawings, graphs, charts, photographs, audio, visual, and audiovisual recordings, and other data compilations from which information can be obtained, translated, if necessary, by the party to whom the request is directed through detection devices into reasonably usable form, that constitute or contain matters within the scope of rule 1.280(c) and that are in the possession, custody, or control of the party to whom the request is directed;

(2) to inspect and copy, test, or sample any tangible things that constitute or contain matters within the scope of rule 1.280(c) and that are in the possession, custody, or control of the party to whom the request is directed; or

(3) to permit entry on designated land or other property in the possession or control of the party on whom the request is served for the purpose of inspection and measuring, surveying, photographing, testing, or sampling the property or any designated object or operation on it within the scope of rule 1.280(c).

(b) Procedure.

(1) Without leave of court the request may be served on the plaintiff after commencement of the action and on any other party with or after service of the process and initial pleading on that party.

(2) Requests must be served on all parties. The request must set forth the items to be inspected, either by individual item or category, and describe each item and category with reasonable particularity.

(3) The request must specify a reasonable time, place, and manner of making the inspection or performing the related acts. The party to whom the request is directed must serve a written response within 30 days after service of the request, except that a defendant may serve a response within 45 days after service of the process and initial pleading on that defendant. The court may allow a shorter or longer time.

(4) Responses must be served on all parties. For each item or category the response must state that inspection and related activities will be permitted as requested or state with specificity the grounds for objecting to the request, including the reasons.

(5) If an objection is made to part of an item or category, the objection must state with specificity the grounds for objecting, including the reasons.

(6) An objection must state whether any responsive materials are being withheld on the basis of that objection. An objection to part of a request must specify the part and permit inspection of the rest.

(7) When producing documents, the producing party must either produce them as they are kept in the usual course of business or must identify them to correspond with the categories in the request.

(8) A request for electronically stored information may specify the form or forms in which electronically stored information is to be produced. If the responding party objects to a requested form, or if no form is specified in the request, the responding party must state the form or forms it intends to use. If a request for electronically stored information does not specify the form of production, the producing party must produce the information in a

form or forms in which it is ordinarily maintained or in a reasonably usable form or forms.

(9) The party submitting the request may move for an order under rule 1.380 concerning any objection, failure to respond to the request, or any part of it, or failure to permit the inspection as requested.

(c) Persons Not Parties. This rule does not preclude an independent action against a person not a party for production of documents and things and permission to enter on land.

(d) Filing of Documents. Unless required by the court, a party must not file any of the documents or things produced with the response. Documents or things may be filed in compliance with Florida Rule of General Practice and Judicial Administration 2.425 and rule 1.280(h) when they should be considered by the court in determining a matter pending before the court.

Committee Notes

1972 Amendment. Derived from Federal Rule of Civil Procedure 34 as amended in 1970. The new rule eliminates the good cause requirement of the former rule, changes the time for making the request and responding to it, and changes the procedure for the response. If no objection to the discovery is made, inspection is had without a court order. While the good cause requirement has been eliminated, the change is not intended to overrule cases limiting discovery under this rule to the scope of ordinary discovery, nor is it intended to overrule cases limiting unreasonable requests such as those reviewed in *Van Devere v. Holmes*, 156 So. 2d 899 (Fla. 3d DCA 1963); *IBM v. Elder*, 187 So. 2d 82 (Fla. 3d DCA 1966); and *Miami v. Florida Public Service Commission*, 226 So. 2d 217 (Fla. 1969). It is intended that the court review each objection and weigh the need for discovery and the likely results of it against the right of privacy of the party or witness or custodian.

1980 Amendment. Subdivision (b) is amended to require production of documents as they are kept in the usual course of business or in accordance with the categories in the request.

2011 Amendment. A reference to Florida Rule of Judicial Administration 2.425 and rule 1.280(f) is added to require persons filing discovery materials with the court to make sure that good cause exists prior to filing discovery materials and that certain specific personal information is redacted.

2012 Amendment. Subdivision (a) is amended to address the production of electronically stored information. Subdivision (b) is amended to set out a procedure for determining the form to be used in producing electronically stored information.

RULE 1.351. PRODUCTION OF DOCUMENTS AND THINGS WITHOUT DEPOSITION

(a) Request; Scope. A party may seek inspection and copying of any documents or things within the scope of rule 1.350(a) from a person who is not a party by issuance of a subpoena directing the production of the documents or things when the requesting party does not seek to depose the custodian or other person in possession of the documents or things. This rule provides the exclusive procedure for obtaining documents or things by subpoena from nonparties without deposing the custodian or other person in possession of the documents or things pursuant to rule 1.310.

(b) Procedure. A party desiring production under this rule may not cause a subpoena to be issued until 10 days after notice by delivery or e-mail service (15 days after notice by mail service) on every other party of the intent to serve a subpoena. If the notice is served with original process, the subpoena shall not issue earlier than 45 days after service on the last-served party. The proposed subpoena shall be attached to the notice and shall state the time, place, and method for production of the documents or things, and the name and address of the person who is to produce the documents or things, if known, and if not known, a general description sufficient to identify the person or the particular class

or group to which the person belongs; shall include a designation of the items to be produced; and shall state that the person who will be asked to produce the documents or things has the right to object to the production under this rule and that the person will not be required to surrender the documents or things. A copy of the notice and proposed subpoena shall not be furnished to the person upon whom the subpoena is to be served. If any party serves an objection to production under this rule within 10 days of service by delivery or e-mail of the notice, (15 days if service by U.S. mail), or within 45 days of service of process if the notice is served with original process, the documents or things shall not be produced pending resolution of the objection in accordance with subdivision (d).

(c) Subpoena. If no objection is made by a party under subdivision (b), an attorney of record in the action may issue a subpoena or the party desiring production shall deliver to the clerk for issuance a subpoena together with a certificate of counsel or pro se party that no timely objection has been received from any party, and the clerk shall issue the subpoena and deliver it to the party desiring production. Service within the state of Florida of a nonparty subpoena shall be deemed sufficient if it complies with rule 1.410(d) or if (1) service is accomplished by mail or hand delivery by a commercial delivery service, and (2) written confirmation of delivery, with the date of service and the name and signature of the person accepting the subpoena, is obtained and filed by the party seeking production. The subpoena shall be identical to the copy attached to the notice and shall specify that no testimony may be taken and shall require only production of the documents or things specified in it. The subpoena may give the recipient an option to deliver or mail legible copies of the documents or things to the party serving the subpoena. The person upon whom the subpoena is served may condition the preparation of copies on the payment in advance of the reasonable costs of preparing the copies. The subpoena shall require production only in the county of the residence of the custodian or other person in possession of the documents or things or in the county where the documents or things are located or where the custodian or person in possession usually conducts business. If the person upon whom the subpoena is served objects at any time before the production of the

documents or things, the documents or things shall not be produced under this rule, and relief may be obtained pursuant to rule 1.310.

(d) Ruling on Objection. If an objection is made by a party under subdivision (b), the party desiring production may file a motion with the court seeking a ruling on the objection or may proceed pursuant to rule 1.310.

(e) Copies Furnished. If the subpoena is complied with by delivery or mailing of copies as provided in subdivision (c), the party receiving the copies shall furnish a legible copy of each item furnished to any other party who requests it upon the payment of the reasonable cost of preparing the copies.

(f) Independent Action. This rule does not affect the right of any party to bring an independent action for production of documents and things or permission to enter upon land.

Committee Notes

1980 Adoption. This rule is designed to eliminate the need of taking a deposition of a records custodian when the person seeking discovery wants copies of the records only. It authorizes objections by any other party as well as the custodian of the records. If any person objects, recourse must be had to rule 1.310.

1996 Amendment. This rule was amended to avoid premature production of documents by nonparties, to clarify the clerk's role in the process, and to further clarify that any objection to the use of this rule does not contemplate a hearing before the court but directs the party to rule 1.310 to obtain the desired production. This amendment is not intended to preclude all communication between parties and nonparties. It is intended only to prohibit a party from prematurely sending to a nonparty a copy of the required notice or the proposed subpoena. This rule was also amended along with rule 1.410 to allow attorneys to issue subpoenas. See Committee Note for rule 1.410.

2007 Amendment. Subdivisions (b) and (d) were amended to permit a party seeking nonparty discovery to have other parties' objections resolved by the court.

2010 Amendment. Subdivision (a) is amended to clarify that the procedure set forth in rule 1.351, not rule 1.310, shall be followed when requesting or receiving documents or things, without testimony, from nonparties pursuant to a subpoena.

2012 Amendment. Subdivision (b) is amended to include e-mail service as provided in Fla. R. Jud. Admin. 2.516.

RULE 1.360. EXAMINATION OF PERSONS

(a) Request; Scope.

(1) A party may request any other party to submit to, or to produce a person in that other party's custody or legal control for, examination by a qualified expert when the condition that is the subject of the requested examination is in controversy.

(A) When the physical condition of a party or other person under subdivision (a)(1) is in controversy, the request may be served on the plaintiff without leave of court after commencement of the action, and on any other person with or after service of the process and initial pleading on that party. The request shall specify a reasonable time, place, manner, conditions, and scope of the examination and the person or persons by whom the examination is to be made. The party to whom the request is directed shall serve a response within 30 days after service of the request, except that a defendant need not serve a response until 45 days after service of the process and initial pleading on that defendant. The court may allow a shorter or longer time. The response shall state that the examination will be permitted as requested unless the request is objected to, in which event the reasons for the objection shall be stated. If the examination is to be recorded or observed by others, the request or response shall also include the number of people attending, their role, and the method or methods of recording.

(B) In cases where the condition in controversy is not physical, a party may move for an examination by a qualified expert as in subdivision (a)(1). The order for examination shall be made only after notice to the person to be examined and to all parties, and shall specify the time, place, manner, conditions, and scope of the examination and the person or persons by whom it is to be made.

(C) Any minor required to submit to examination pursuant to this rule shall have the right to be accompanied by a parent or guardian at all times during the examination, except upon a showing that the presence of a parent or guardian is likely to have a material, negative impact on the minor's examination.

(2) An examination under this rule is authorized only when the party submitting the request has good cause for the examination. At any hearing the party submitting the request shall have the burden of showing good cause.

(3) Upon request of either the party requesting the examination or the party or person to be examined, the court may establish protective rules governing such examination.

(b) Report of Examiner.

(1) If requested by the party to whom a request for examination or against whom an order is made under subdivision (a)(1)(A) or (a)(1)(B) or by the person examined, the party requesting the examination to be made shall deliver to the other party a copy of a detailed written report of the examiner setting out the examiner's findings, including results of all tests made, diagnosis, and conclusions, with similar reports of all earlier examinations of the same condition. After delivery of the detailed written report, the party requesting the examination to be made shall be entitled upon request to receive from the party to whom the request for examination or against whom the order is made a similar report of any examination of the same condition previously or thereafter made, unless in the case of a report of examination of a person not a party the party shows the inability to obtain it. On motion, the court may order delivery of a report on such terms as are just; and

if an examiner fails or refuses to make a report, the court may exclude the examiner's testimony if offered at the trial.

(2) By requesting and obtaining a report of the examination so ordered or requested or by taking the deposition of the examiner, the party examined waives any privilege that party may have in that action or any other involving the same controversy regarding the testimony of every other person who has examined or may thereafter examine that party concerning the same condition.

(3) This subdivision applies to examinations made by agreement of the parties unless the agreement provides otherwise. This subdivision does not preclude discovery of a report of an examiner or taking the deposition of the examiner in accordance with any other rule.

(c) Examiner as Witness. The examiner may be called as a witness by any party to the action, but shall not be identified as appointed by the court.

Committee Notes

1972 Amendment. Derived from Federal Rule of Civil Procedure 35 as amended in 1970. The good cause requirement under this rule has been retained so that the requirements of *Schlagenhauf v. Holder*, 379 U.S. 104, 85 S. Ct. 234, 13 L. Ed. 2d 152 (1964), have not been affected. Subdivision (b) is changed to make it clear that reports can be obtained whether an order for the examination has been entered or not and that all earlier reports of the same condition can also be obtained.

1988 Amendment. This amendment to subdivision (a) is intended to broaden the scope of rule 1.360 to accommodate the examination of a person by experts other than physicians.

RULE 1.370. REQUESTS FOR ADMISSION

(a) Request for Admission.

(1) A party may serve on any other party a written request for the admission of the truth of any matters within the scope of rule 1.280(c) set forth in the request that relate to statements or opinions of fact or of the application of law to fact, including the genuineness of any documents described in the request.

(2) Requests and responses must be served on all parties. Copies of documents must be served with the request unless they have been or are otherwise furnished or made available for inspection and copying.

(3) Without leave of court the request may be served on the plaintiff after commencement of the action and on any other party with or after service of the process and initial pleading on that party.

(4) The request for admission must not exceed 30 requests, including all subparts, unless the court permits a larger number on motion and notice and for good cause, or the parties propounding and responding to the requests stipulate to a larger number.

(5) Each matter of which an admission is requested must be separately set forth.

(6) The matter is admitted unless the party to whom the request is directed serves on the party requesting the admission a written answer or objection addressed to the matter within 30 days after service of the request or such shorter or longer time as the court may allow but, unless the court shortens the time, a defendant is not required to serve answers or objections before the expiration of 45 days after service of the process and initial pleading on the defendant.

(7) If objection is made, the reasons must be stated.

(8) The answer must specifically deny the matter or set forth in detail the reasons why the answering party cannot truthfully admit or deny the matter.

(9) A denial must fairly meet the substance of the requested admission, and when good faith requires that a party qualify an answer or deny only a part of the matter of which an admission is requested, the party must specify so much of it as is true and qualify or deny the remainder.

(10) An answering party may not give lack of information or knowledge as a reason for failure to admit or deny unless that party states that that party has made reasonable inquiry and that the information known or readily obtainable by that party is insufficient to enable that party to admit or deny.

(11) A party who considers that a matter of which an admission has been requested presents a genuine issue for trial may not object to the request on that ground alone; the party may deny the matter or set forth reasons why the party cannot admit or deny it, subject to rule 1.380(c).

(12) The party who has requested the admissions may move to determine the sufficiency of the answers or objections.

(13) Unless the court determines that an objection is justified, it will order that an answer be served.

(14) If the court determines that an answer does not comply with the requirements of this rule, it may order either that the matter is admitted or that an amended answer be served.

(15) Instead of these orders the court may determine that final disposition of the request be made at a pretrial conference or at a designated time before trial.

(16) The provisions of rule 1.380(a)(4) apply to the award of expenses incurred in relation to the motion.

(b) Effect of Admission.

(1) Any matter admitted under this rule is conclusively established unless the court on motion permits withdrawal or amendment of the admission.

(2) Subject to rule 1.200 governing amendment of a pretrial order, the court may permit withdrawal or amendment when the presentation of the merits of the action will be subserved by it and the party who obtained the admission fails to satisfy the court that withdrawal or amendment will prejudice that party in maintaining an action or defense on the merits.

(3) Any admission made by a party under this rule is for the purpose of the pending action only and is not an admission for any other purpose nor may it be used against that party in any other proceeding.

Committee Notes

1972 Amendment. Derived from Federal Rule of Civil Procedure 36 as amended in 1970. The rule is changed to eliminate distinctions between questions of opinion, fact, and mixed questions. The time sequences are changed in accordance with the other discovery rules, and case law is incorporated by providing for amendment and withdrawal of the answers and for judicial scrutiny to determine the sufficiency of the answers.

2003 Amendment. The total number of requests for admission that may be served without leave of court is limited to 30, including all subparts.

RULE 1.380. FAILURE TO MAKE DISCOVERY; SANCTIONS

(a) Motion for Order Compelling Discovery. On reasonable notice to other parties and all persons affected, a party may apply for an order compelling discovery as follows:

(1) *Appropriate Court.* An application for an order to a party may be made to the court in which the action is pending or in accordance with rule 1.310(d). An application for an order to a deponent who is not a party must be made to the circuit court where the deposition is being taken.

(2) *Motion.*

(A) If a party fails to make a disclosure required by rule 1.280(a), any other party may move to compel disclosure and for appropriate sanctions.

(B) The discovering party may move for an order compelling an answer if:

(i) a deponent fails to answer a question propounded or submitted under rule 1.310 or 1.320; or

(ii) a party fails to answer an interrogatory submitted under rule 1.340.

(C) The discovering party may move for an order compelling a designation if a corporation or other entity fails to make a designation under rule 1.310(b)(6) or 1.320(a).

(D) The discovering party may move for an order compelling an inspection if a party in response to a request for inspection submitted under rule 1.350 fails to respond that inspection will be permitted as requested or fails to permit inspection as requested.

(E) The discovering party may move for an order compelling an examination if a party:

(i) in response to a request for examination of a person submitted under rule 1.360(a) objects to the examination;

(ii) fails to respond that the examination will be permitted as requested;

(iii) fails to submit to examination; or

(iv) fails to produce a person in that party's custody or legal control for examination

(F) A discovering party may move for an order compelling a response if a party fails to produce documents and things under rule 1.350(b).

(G) When taking a deposition on oral examination, the proponent of the question may complete or adjourn the examination before applying for an order.

(H) If the court denies the motion in whole or in part, it may make the protective order as it would have been empowered to make on a motion made under rule 1.280(d).

(3) *Evasive or Incomplete Answer.* For purposes of this subdivision an evasive or incomplete answer is treated as a failure to answer.

(4) *Award of Expenses of Motion.*

(A) If the motion is granted and after opportunity for hearing, the court must require the party or deponent whose conduct necessitated the motion, or the party or counsel advising the conduct, to pay to the moving party the reasonable expenses incurred in obtaining the order that may include attorneys' fees, unless the court finds that the opposition to the motion was substantially justified or that other circumstances make an award of expenses unjust.

(B) If the motion is denied and after opportunity for hearing, the court must require the moving party to pay to the party or deponent who opposed the motion the reasonable expenses incurred in opposing the motion that may include attorneys' fees, unless the court finds that the making of the motion was substantially justified or that other circumstances make an award of expenses unjust.

(C) If the motion is granted in part and denied in part, the court may apportion the reasonable expenses incurred as a result of making the motion among the parties and persons.

(b) Failure to Comply with Order.

(1) If, after being ordered to do so by the court, a deponent fails to be sworn or to answer a question or produce documents, the failure may be considered a contempt of the court.

(2) If a party or an officer, director, or managing agent of a party or a person designated under rule 1.310(b)(6) or 1.320(a) to testify on behalf of a party fails to obey an order to provide or permit discovery, including an order made under subdivision (a) of this rule or rule 1.360, the court in which the action is pending may make any of the following orders:

(A) An order that the matters regarding which the questions were asked or any other designated facts will be taken to be established for the purposes of the action in accordance with the claim of the party obtaining the order.

(B) An order refusing to allow the disobedient party to support or oppose designated claims or defenses, or prohibiting that party from introducing designated matters in evidence.

(C) An order striking out pleadings or parts of them or staying further proceedings until the order is obeyed, or dismissing the action or proceeding or any part of it, or rendering a judgment by default against the disobedient party.

(D) Instead of any of the foregoing orders or in addition to them, an order treating as a contempt of court the failure to obey any orders except an order to submit to an examination made under rule 1.360(a)(1)(B) or subdivision (a)(2) of this rule.

(E) When a party has failed to comply with an order under rule 1.360(a)(1)(B) requiring that party to produce another for examination, the orders listed in subdivisions (b)(2)(A), (b)(2)(B), (b)(2)(C), and (b)(2)(D) of this rule, unless the party failing to comply shows the inability to produce the person for examination.

(3) Instead of any of the foregoing orders or in addition to them, the court must require the party failing to obey the order to pay the reasonable expenses caused by the failure, which may include attorneys' fees, unless the court finds that the failure was

substantially justified or that other circumstances make an award of expenses unjust.

(c) Expenses on Failure to Admit. If a party fails to admit the genuineness of any document or the truth of any matter as requested under rule 1.370 and if the party requesting the admissions thereafter proves the genuineness of the document or the truth of the matter, the requesting party may file a motion for an order requiring the other party to pay the requesting party the reasonable expenses incurred in making that proof, which may include attorneys' fees. The court must issue the order at the time a party requesting the admissions proves the genuineness of the document or the truth of the matter, on motion by the requesting party, unless it finds that:

(1) the request was held objectionable under rule 1.370(a);

(2) the admission sought was of no substantial importance; or

(3) there was other good reason for the failure to admit.

(d) Failure to Disclose or to Supplement an Earlier Response. If a party fails to provide information or identify a witness as required by rule 1.280(a) or (g), the party is not allowed to use that information or witness to supply evidence on a motion, at a hearing, or at a trial, unless the failure was substantially justified or is harmless. In addition to or instead of this sanction, the court, on motion and after giving an opportunity to be heard:

(1) may order payment of the reasonable expenses, including attorneys' fees, caused by the failure;

(2) may inform the jury of the party's failure; and

(3) may impose other appropriate sanctions, including any of the orders listed in rule 1.380(b)(2)(A)–(b)(2)(D).

(e) Failure of Party to Attend at Own Deposition or Serve Answers to Interrogatories or Respond to Request for Inspection.

(1) The court in which the action is pending may take any action authorized under subdivisions (b)(2)(A)–(b)(2)(C) of this rule if a party or an officer, director, or managing agent of a party or a person designated under rule 1.310(b)(6) or 1.320(a) to testify on behalf of a party fails:

(A) to appear before the officer who is to take the deposition after being served with a proper notice;

(B) to serve answers or objections to interrogatories submitted under rule 1.340 after proper service of the interrogatories; or

(C) to serve a written response to a request for inspection submitted under rule 1.350 after proper service of the request.

(2) Instead of any order or in addition to it, the court must require the party failing to act to pay the reasonable expenses caused by the failure, which may include attorneys' fees, unless the court finds that the failure was substantially justified or that other circumstances make an award of expenses unjust.

(3) The failure to act described in this subdivision may not be excused on the ground that the discovery sought is objectionable unless the party failing to act has applied for a protective order as provided by rule 1.280(d).

(f) Failure to Preserve Electronically Stored Information. If electronically stored information that should have been preserved in the anticipation or conduct of litigation is lost because a party failed to take reasonable steps to preserve it, and it cannot be restored or replaced through additional discovery, the court:

(1) on finding prejudice to another party from loss of the information, may order measures no greater than necessary to cure the prejudice; or

(2) only on a finding that the party acted with the intent to deprive another party of the information's use in the litigation may:

(A) presume that the lost information was unfavorable to the party;

(B) instruct the jury that it may or must presume the information was unfavorable to the party; or

(C) dismiss the action or enter a default judgment.

Committee Notes

1972 Amendment. Derived from Federal Rule of Civil Procedure 37 as amended in 1970. Subdivision (a)(3) is new and makes it clear that an evasive or incomplete answer is a failure to answer under the rule. Other clarifying changes have been made within the general scope of the rule to ensure that complete coverage of all discovery failures is afforded.

2003 Amendment. Subdivision (c) is amended to require a court to make a ruling on a request for reimbursement at the time of the hearing on the requesting party's motion for entitlement to such relief. The court may, in its discretion, defer ruling on the amount of the costs or fees in order to hold an evidentiary hearing whenever convenient to the court and counsel.

2005 Amendment. Following the example of Federal Rule of Civil Procedure 37 as amended in 1993, language is included in subdivision (a)(2) that requires litigants to seek to resolve discovery disputes by informal means before filing a motion with the court. This requirement is based on successful experience with the federal rule as well as similar local rules of state trial courts. Subdivision (a)(4) is revised to provide that a party should not be awarded its expenses for filing a motion that might have been avoided by

conferring with opposing counsel. Subdivision (d) is revised to require that, where a party failed to file any response to a rule 1.340 interrogatory or a rule 1.350 request, the discovering party should attempt to obtain such responses before filing a motion for sanctions.

2012 Amendment. Subdivision (e) is added to make clear that a party should not be sanctioned for the loss of electronic evidence due to the good-faith operation of an electronic information system; the language mirrors that of Federal Rule of Civil Procedure 37(e). Nevertheless, the good-faith requirement contained in subdivision (e) should prevent a party from exploiting the routine operation of an information system to thwart discovery obligations by allowing that operation to destroy information that party is required to preserve or produce. In determining good faith, the court may consider any steps taken by the party to comply with court orders, party agreements, or requests to preserve such information.

2013 Amendment. This rule was amended to add "substantially" before "justified" in subdivisions (a)(4), (b)(2), and (d), to make the rule internally consistent and to make it more consistent with Federal Rule of Civil Procedure 37, from which it was derived.

2019 Amendment. Subdivision (e) of this rule was amended to make it consistent with Federal Rule of Civil Procedure 37(e).

RULE 1.390. DEPOSITIONS OF EXPERT WITNESSES

(a) Definition. The term "expert witness" as used herein applies exclusively to a person duly and regularly engaged in the practice of a profession who holds a professional degree from a university or college and has had special professional training and experience, or one possessed of special knowledge or skill about the subject upon which called to testify.

(b) Procedure. The testimony of an expert or skilled witness may be taken at any time before the trial in accordance with the rules for taking depositions and may be used at trial, regardless of the place of residence of the witness or whether the witness is

within the distance prescribed by rule 1.330(a)(3). No special form of notice need be given that the deposition will be used for trial.

(c) Fee. An expert or skilled witness whose deposition is taken shall be allowed a witness fee in such reasonable amount as the court may determine. The court shall also determine a reasonable time within which payment must be made, if the deponent and party cannot agree. All parties and the deponent shall be served with notice of any hearing to determine the fee. Any reasonable fee paid to an expert or skilled witness may be taxed as costs.

(d) Applicability. Nothing in this rule shall prevent the taking of any deponent as otherwise provided by law.

Committee Notes

1972 Amendment. This rule has caused more difficulty in recent years than any other discovery rule. It was enacted as a statute originally to make the presentation of expert testimony less expensive and less onerous to the expert and to admit the expert's deposition at trial regardless of the expert's residence. In spite of its intent, courts seem determined to misconstrue the plain language of the rule and cause complications that the committee and the legislature did not envisage. See *Owca v. Zemzicki*, 137 So. 2d 876 (Fla. 2d DCA 1962); *Cook v. Lichtblau*, 176 So. 2d 523 (Fla. 2d DCA 1965); and *Bondy v. West*, 219 So. 2d 117 (Fla. 2d DCA 1969). The committee hopes the amendment to subdivision (b) will show that the intent of the rule is to permit a deposition taken of an expert in conformity with any rule for the taking of a deposition to be admitted, if otherwise admissible under the rules of evidence, regardless of the residence of the expert. In short, the rule eliminates the necessity of any of the requirements of rule 1.330(a)(3) when the deposition offered is that of an expert.

1988 Amendment. Subdivision (c) has been amended to clarify the procedure to be used in paying an expert witness for his or her appearance at a deposition.

RULE 1.410. SUBPOENA

(a) Subpoena Generally. Subpoenas for testimony before the court, subpoenas for production of tangible evidence, and subpoenas for taking depositions may be issued by the clerk of court or by any attorney of record in an action.

(b) Subpoena for Testimony before the Court.

(1) Every subpoena for testimony before the court must be issued by an attorney of record in an action or by the clerk under the seal of the court and must state the name of the court and the title of the action and must command each person to whom it is directed to attend and give testimony at a time and place specified in it.

(2) On oral request of an attorney or party, the clerk must issue a subpoena for testimony before the court or a subpoena for the production of documentary evidence before the court signed and sealed but otherwise in blank, both as to the title of the action and the name of the person to whom it is directed, and the subpoena must be filled in before service by the attorney or party.

(c) For Production of Documentary Evidence. A subpoena may also command the person to whom it is directed to produce the books, documents (including electronically stored information), or designated tangible things, but the court, on motion made promptly and in any event at or before the time specified in the subpoena for compliance, may:

(1) quash or modify the subpoena if it is unreasonable and oppressive, or

(2) condition denial of the motion on the advancement by the person in whose behalf the subpoena is issued of the reasonable cost of producing the books, documents, or tangible things.

If a subpoena does not specify a form for producing electronically stored information, the person responding must produce it in a form or forms in which it is ordinarily maintained or in a reasonably usable form or forms. A person responding to a subpoena may object to discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue costs or burden. On motion to compel discovery or to quash, the person from whom discovery is sought must show that the information sought or the form requested is not reasonably accessible because of undue costs or burden. If that showing is made, the court may nonetheless order discovery from the sources or in the forms requested if the requesting party shows good cause, considering the limitations set out in rule 1.280(e)(2). The court may specify conditions of the discovery, including ordering that some or all of the expenses of the discovery be paid by the party seeking the discovery. A party seeking a production of evidence at trial that would be subject to a subpoena may compel production by serving a notice to produce the evidence on an adverse party as provided in Florida Rule of General Practice and Judicial Administration 2.516. The notice has the same effect and is subject to the same limitations as a subpoena served on the party.

(d) Service. A subpoena may be served by any person authorized by law to serve process or by any other person who is not a party and who is not less than 18 years of age. Service of a subpoena on a person named within must be made as provided by law. The proof of service must be made by affidavit of the person making service except as applicable under rule 1.351(c) for the production of documents and things by a nonparty without deposition, if not served by an officer authorized by law to do so.

(e) Subpoena for Taking Depositions.

(1) Filing a notice to take a deposition as provided in rule 1.310(b) or 1.320(a) with a certificate of service showing service on all parties to the action authorizes the clerk or any attorney of record to issues subpoenas to persons named in the notice. The subpoena must state the method for recording the testimony. A party intending to audiovisually record a deposition must state in

the subpoena that the deposition is to be audiovisually recorded and identify the method for audiovisually recording the deposition, including, if applicable, the name and address of the operator of the audiovisual recording equipment. If a party intends to take a deposition by communication technology, the subpoena must state the deposition is to be taken using communication technology, identify the specific form of communication technology to be used, and provide instructions for access to the communication technology. The subpoena may command the person to whom it is directed to produce designated books, documents, or tangible things that constitute or contain evidence relating to any of the matters within the scope of the examination permitted by rule 1.280(c), but in that event the subpoena will be subject to the provisions of rule 1.280(d) and subdivision (c) of this rule. Within 10 days after its service, or on or before the time specified in the subpoena for compliance if the time is less than 10 days after service, the person to whom the subpoena is directed may serve a written objection to inspecting or copying of any of the designated materials. If objection is made, the party serving the subpoena will not be entitled to inspect and copy the materials except under an order of the court from which the subpoena was issued. If objection has been made, the party serving the subpoena may move for an order at any time before or during the taking of the deposition on notice to the deponent.

(2) A person may be required to attend an examination only in the county wherein the person resides or is employed or transacts business in person or at another convenient place as may be fixed by an order of court.

(f) Contempt. Failure by any person without adequate excuse to obey a subpoena served on that person may be deemed in contempt of the court from which the subpoena issued.

(g) Depositions before Commissioners Appointed in this State by Courts of Other States; Subpoena Powers; etc. When any person authorized by the laws of Florida to administer oaths is appointed by a court of record of any other state, jurisdiction, or government as commissioner to take the testimony of any named

witness within this state, that witness may be compelled to attend and testify before that commissioner by witness subpoena issued by the clerk of any circuit court at the instance of that commissioner or by other process or proceedings in the same manner as if that commissioner had been appointed by a court of this state; provided that no document will be compulsorily annexed as an exhibit to the deposition or otherwise permanently removed from the possession of the witness producing it, but in its place, a photostatic copy may be annexed to and transmitted with the executed commission to the court of issuance.

(h) Subpoena of Minor. Any minor subpoenaed for testimony has the right to be accompanied by a parent or guardian at all times during the taking of testimony notwithstanding the invocation of the rule of sequestration of section 90.616, Florida Statutes, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the credibility or accuracy of the minor's testimony, or that the interests of the parent or guardian are in actual or potential conflict with the interests of the minor.

Committee Notes

1972 Amendment. Subdivisions (a) and (d) are amended to show the intent of the rule that subpoenas for deposition may not be issued in blank by the clerk, but only for trial. The reason for the distinction is valid. A subpoena for appearance before the court is not subject to abuse because the court can correct any attempt to abuse the use of blank subpoenas. Since a judge is not present at a deposition, additional protection for the parties and the deponent is required and subpoenas should not be issued in blank. Subdivision (d) is also modified to conform with the revised federal rule on subpoenas for depositions to permit an objection by the deponent to the production of material required by a subpoena to be produced.

1980 Amendment. Subdivision (c) is revised to conform with section 48.031, Florida Statutes (1979).

1996 Amendment. This rule is amended to allow an attorney (as referred to in Fla. R. Jud. Admin. 2.060(a)B(b)), as an officer of

the court, and the clerk to issue subpoenas in the name of the court. This amendment is not intended to change any other requirement or precedent for the issuance or use of subpoenas. For example, a notice of taking the deposition must be filed and served before a subpoena for deposition may be issued.

2012 Amendment. Subdivision (c) is amended to reflect the relocation of the service rule from rule 1.080 to Fla. R. Jud. Admin. 2.516.

2012 Amendment. Subdivision (c) is amended to address the production of electronically stored information pursuant to a subpoena. The procedures for dealing with disputes concerning the accessibility of the information sought or the form for its production are intended to correspond to those set out in Rule 1.280(d).

RULE 1.420. DISMISSAL OF ACTIONS

(a) Voluntary Dismissal.

(1) *By Parties.* Except in actions in which property has been seized or is in the custody of the court, an action, a claim, or any part of an action or claim may be dismissed by plaintiff without order of court (A) before trial by serving, or during trial by stating on the record, a notice of dismissal at any time before a hearing on motion for summary judgment, or if none is served or if the motion is denied, before retirement of the jury in a case tried before a jury or before submission of a nonjury case to the court for decision, or (B) by filing a stipulation of dismissal signed by all current parties to the action. Unless otherwise stated in the notice or stipulation, the dismissal is without prejudice, except that a notice of dismissal operates as an adjudication on the merits when served by a plaintiff who has once dismissed in any court an action based on or including the same claim.

(2) *By Order of Court; If Counterclaim.* Except as provided in subdivision (a)(1) of this rule, an action shall not be dismissed at a party's instance except on order of the court and upon such terms and conditions as the court deems proper. If a counterclaim has been served by a defendant prior to the service

upon the defendant of the plaintiff's notice of dismissal, the action shall not be dismissed against defendant's objections unless the counterclaim can remain pending for independent adjudication by the court. Unless otherwise specified in the order, a dismissal under this paragraph is without prejudice.

(b) Involuntary Dismissal. Any party may move for dismissal of an action or of any claim against that party for failure of an adverse party to comply with these rules or any order of court. Notice of hearing on the motion shall be served as required under rule 1.090(d). After a party seeking affirmative relief in an action tried by the court without a jury has completed the presentation of evidence, any other party may move for a dismissal on the ground that on the facts and the law the party seeking affirmative relief has shown no right to relief, without waiving the right to offer evidence if the motion is not granted. The court as trier of the facts may then determine them and render judgment against the party seeking affirmative relief or may decline to render judgment until the close of all the evidence. Unless the court in its order for dismissal otherwise specifies, a dismissal under this subdivision and any dismissal not provided for in this rule, other than a dismissal for lack of jurisdiction or for improper venue or for lack of an indispensable party, operates as an adjudication on the merits.

(c) Dismissal of Counterclaim, Crossclaim, or Third-Party Claim. The provisions of this rule apply to the dismissal of any counterclaim, crossclaim, or third-party claim.

(d) Costs. Costs in any action dismissed under this rule shall be assessed and judgment for costs entered in that action, once the action is concluded as to the party seeking taxation of costs. When one or more other claims remain pending following dismissal of any claim under this rule, taxable costs attributable solely to the dismissed claim may be assessed and judgment for costs in that claim entered in the action, but only when all claims are resolved at the trial court level as to the party seeking taxation of costs. If a party who has once dismissed a claim in any court of this state commences an action based upon or including the same claim against the same adverse party, the court shall make such

order for the payment of costs of the claim previously dismissed as it may deem proper and shall stay the proceedings in the action until the party seeking affirmative relief has complied with the order.

(e) Failure to Prosecute. In all actions in which it appears on the face of the record that no activity by filing of pleadings, order of court, or otherwise has occurred for a period of 10 months, and no order staying the action has been issued nor stipulation for stay approved by the court, any interested person, whether a party to the action or not, the court, or the clerk of the court may serve notice to all parties that no such activity has occurred. If no such record activity has occurred within the 10 months immediately preceding the service of such notice, and no record activity occurs within the 60 days immediately following the service of such notice, and if no stay was issued or approved prior to the expiration of such 60-day period, the action shall be dismissed by the court on its own motion or on the motion of any interested person, whether a party to the action or not, after reasonable notice to the parties, unless a party shows good cause in writing at least 5 days before the hearing on the motion why the action should remain pending. Mere inaction for a period of less than 1 year shall not be sufficient cause for dismissal for failure to prosecute.

(f) Effect on Lis Pendens. If a notice of lis pendens has been filed in connection with a claim for affirmative relief that is dismissed under this rule, the notice of lis pendens connected with the dismissed claim is automatically dissolved at the same time. The notice, stipulation, or order shall be recorded.

Committee Notes

1976 Amendment. Subdivision (e) has been amended to prevent the dismissal of an action for inactivity alone unless 1 year has elapsed since the occurrence of activity of record. Nonrecord activity will not toll the 1-year time period.

1980 Amendment. Subdivision (e) has been amended to except from the requirement of record activity a stay that is ordered or approved by the court.

1992 Amendment. Subdivision (f) is amended to provide for automatic dissolution of lis pendens on claims that are settled even though the entire action may not have been dismissed.

2005 Amendment. Subdivision (e) has been amended to provide that an action may not be dismissed for lack of prosecution without prior notice to the claimant and adequate opportunity for the claimant to re-commence prosecution of the action to avert dismissal.

Court Commentary

1984 Amendment. A perennial real property title problem occurs because of the failure to properly dispose of notices of lis pendens in the order of dismissal. Accordingly, the reference in subdivision (a)(1) to disposition of notices of lis pendens has been deleted and a separate subdivision created to automatically dissolve notices of lis pendens whenever an action is dismissed under this rule.

RULE 1.430. DEMAND FOR JURY TRIAL; WAIVER

(a) Right Preserved. The right of trial by jury as declared by the Constitution or by statute is preserved to the parties inviolate.

(b) Demand. Any party may demand a trial by jury of any issue triable of right by a jury by filing a demand at any time after commencement of the action and not later than 10 days after the service of the last pleading directed to such issue. The demand may be included within a pleading of the party.

(c) Specification of Issues. In the demand a party may specify the issues that the party wishes to be tried; otherwise, the party is deemed to demand trial by jury for all triable issues. If a party has demanded trial by jury for only some of the issues, any other party may file a demand for trial by jury of any other or all of the issues triable by jury 10 days after service of the demand or as ordered by the court.

(d) Juror Participation Through Audio-Video Communication Technology. Prospective jurors may participate in voir dire or empaneled jurors may participate in the jury trial through audio-video communication technology, as described in Florida Rule of General Practice and Judicial Administration 2.530(c), if stipulated by the parties in writing and authorized by the court. The written stipulation and a written motion requesting authorization must be filed with the court within 60 days after service of a demand under subdivision (b) or as ordered by the court.

(e) Waiver. A party who fails to file a demand as required by this rule waives trial by jury. If waived, a jury trial may not be granted without the consent of the parties, but the court may order a trial by jury on its own motion. A demand for trial by jury may not be withdrawn without the consent of the parties.

Committee Notes

1972 Amendment. Subdivision (d) is amended to conform to the decisions construing it. See *Wood v. Warriner*, 62 So. 2d 728 (Fla. 1953); *Bittner v. Walsh*, 132 So. 2d 799 (Fla. 1st DCA 1961); and *Shores v. Murphy*, 88 So. 2d 294 (Fla. 1956). It is not intended to overrule *Wertman v. Tipping*, 166 So. 2d 666 (Fla. 1st DCA 1964), that requires a moving party to show justice requires a jury.

RULE 1.431. TRIAL JURY

(a) Questionnaire.

(1) The circuit court may direct the authority charged by law with the selection of prospective jurors to furnish each prospective juror with a questionnaire in the form approved by the supreme court from time to time to assist the authority in selecting prospective jurors. The questionnaire must be used after the names of jurors have been selected as provided by law but before certification and the placing of the names of prospective jurors in the jury box. The questionnaire must be used to determine those who are not qualified to serve as jurors under any statutory ground of disqualification.

(2) To assist in voir dire examination at trial, any court may direct the clerk to furnish prospective jurors selected for service with a questionnaire in the form approved by the supreme court from time to time. The prospective jurors must be asked to complete and return the forms. Completed forms may be inspected in the clerk's office and copies must be available in court during the voir dire examination for use by parties and the court.

(b) Examination by Parties. The parties have the right to examine jurors orally on their voir dire. The order in which the parties may examine each juror must be determined by the court. The court may ask such questions of the jurors as it deems necessary, but the right of the parties to conduct a reasonable examination of each juror orally must be preserved.

(c) Challenge for Cause.

(1) On motion of any party, the court must examine any prospective juror on oath to determine whether that person is related, within the third degree, to (i) any party, (ii) the attorney of any party, or (iii) any other person or entity against whom liability or blame is alleged in the pleadings, or is related to any person alleged to have been wronged or injured by the commission of the wrong for the trial of which the juror is called, or has any interest in the action, or has formed or expressed any opinion, or is sensible of any bias or prejudice concerning it, or is an employee or has been an employee of any party or any other person or entity against whom liability or blame is alleged in the pleadings, within 30 days before the trial. A party objecting to the juror may introduce any other competent evidence to support the objection. If it appears that the juror does not stand indifferent to the action or any of the foregoing grounds of objection exists or that the juror is otherwise incompetent, another must be called in that juror's place.

(2) The fact that any person selected for jury duty from bystanders or the body of the county and not from a jury list lawfully selected has served as a juror in the court in which that person is called at any other time within 1 year is a ground of challenge for cause.

(3) When the nature of any civil action requires a knowledge of reading, writing, and arithmetic, or any of them, to enable a juror to understand the evidence to be offered, the fact that any prospective juror does not possess the qualifications is a ground of challenge for cause.

(d) Peremptory Challenges. Each party is entitled to 3 peremptory challenges of jurors, but when the number of parties on opposite sides is unequal, the opposing parties are entitled to the same aggregate number of peremptory challenges to be determined on the basis of 3 peremptory challenges to each party on the side with the greater number of parties. The additional peremptory challenges accruing to multiple parties on the opposing side must be divided equally among them. Any additional peremptory challenges not capable of equal division must be exercised separately or jointly as determined by the court.

(e) Exercise of Challenges. All challenges must be addressed to the court outside the hearing of the jury in a manner selected by the court so that the jury panel is not aware of the nature of the challenge, the party making the challenge, or the basis of the court's ruling on the challenge, if for cause.

(f) Swearing of Jurors. No one shall be sworn as a juror until the jury has been accepted by the parties or until all challenges have been exhausted.

(g) Alternate Jurors.

(1) The court may direct that 1 or more jurors be impaneled to sit as alternate jurors in addition to the regular panel. Alternate jurors in the order in which they are called must replace jurors who have become unable or disqualified to perform their duties before the jury retires to consider its verdict. Alternate jurors must be drawn in the same manner, have the same qualifications, be subject to the same examination, take the same oath, and have the same functions, powers, facilities, and privileges as principal jurors. An alternate juror who does not replace a principal juror must be discharged when the jury retires to consider the verdict.

(2) If alternate jurors are called, each party is entitled to one peremptory challenge in the selection of the alternate juror or jurors, but when the number of parties on opposite sides is unequal, the opposing parties are entitled to the same aggregate number of peremptory challenges to be determined on the basis of 1 peremptory challenge to each party on the side with the greater number of parties. The additional peremptory challenges allowed pursuant to this subdivision may be used only against the alternate jurors. The peremptory challenges allowed pursuant to subdivision (d) of this rule must not be used against the alternate jurors.

(h) Interview of a Juror. A party who believes that grounds for legal challenge to a verdict exist may move for an order permitting an interview of a juror or jurors to determine whether the verdict is subject to the challenge. The motion must be served within 15 days after rendition of the verdict unless good cause is shown for the failure to make the motion within that time. The motion must state the name and address of each juror to be interviewed and the grounds for challenge that the party believes may exist. After notice and hearing, the trial judge must enter an order denying the motion or permitting the interview. If the interview is permitted, the court may prescribe the place, manner, conditions, and scope of the interview.

(i) Communication with the Jury. This rule governs all communication between the judge or courtroom personnel and jurors.

(1) *Communication to be on the Record.* The court must notify the parties of any communication from the jury pertaining to the action as promptly as practicable and in any event before responding to the communication. Except as set forth below, all communications between the court or courtroom personnel and the jury must be on the record in open court or must be in writing and filed in the action. The court or courtroom personnel must note on any written communication to or from the jury the date and time it was delivered.

(2) *Exception for Certain Routine Communication.* The court must, by pretrial order or by statement on the record with

opportunity for objection, set forth the scope of routine ex parte communication to be permitted and the limits imposed by the court with regard to such communication.

(A) Routine ex parte communication between the bailiff or other courtroom personnel and the jurors, limited to juror comfort and safety, may occur off the record.

(B) In no event shall ex parte communication between courtroom personnel and jurors extend to matters that may affect the outcome of the trial, including statements containing any fact or opinion concerning a party, attorney, or procedural matter or relating to any legal issue or lawsuit.

(3) *Instructions to Jury.* During voir dire, the court must instruct the jurors and courtroom personnel regarding the limitations on communication between the court or courtroom personnel and jurors. On empanelling the jury, the court must instruct the jurors that their questions are to be submitted in writing to the court, which will review them with the parties and counsel before responding.

(4) *Notification of Jury Communication.* Courtroom personnel must immediately notify the court of any communication to or from a juror or among jurors in contravention of the court's orders or instructions, including all communication contrary to the requirements of this rule.

Committee Notes

1971 Adoption. Subdivision (a) is new. It is intended to replace section 40.101, Florida Statutes, declared unconstitutional in *Smith v. Portante*, 212 So. 2d 298 (Fla. 1968), after supplying the deficiencies in the statute. It is intended to simplify the task of selecting prospective jurors, both for the venire and for the panel for trial in a particular action. The forms referred to in subdivision (a) are forms 1.983 and 1.984. Subdivisions (b)–(e) are sections 53.031, 53.021, 53.011, and 53.051, Florida Statutes, without substantial change.

1976 Amendment. Subdivision (e) has been added to establish a procedure for challenging jurors without members of the panel knowing the source of the challenge, to avoid prejudice. Subdivision (f) is a renumbering of the previously enacted rule regarding alternate jurors.

Subdivision (g) has been added to establish a procedure for interviewing jurors. See also Canons of Professional Responsibility DR 7 108.

1988 Amendment. Subdivision (f) has been added to ensure the right to "back-strike" prospective jurors until the entire panel has been accepted in civil cases. This right to back-strike until the jurors have been sworn has been long recognized in Florida. *Florida Rock Industries, Inc. v. United Building Systems*, Inc., 408 So. 2d 630 (Fla. 5th DCA 1982). However, in the recent case of *Valdes v. State*, 443 So. 2d 223 (Fla. 1st DCA 1984), the court held that it was not error for a court to swear jurors one at a time as they were accepted and thereby prevent retrospective peremptory challenges. The purpose of this subdivision is to prevent the use of individual swearing of jurors in civil cases. Former subdivisions (f) and (g) have been redesignated as (g) and (h) respectively.

1992 Amendment. Subdivision (g)(2) is amended to minimize the inequity in numbers of peremptory challenges allowed in selecting alternate jurors in actions with multiple parties.

2005 Amendment. Subdivision (c)(1) is amended to ensure that prospective jurors may be challenged for cause based on bias in favor of or against nonparties against whom liability or blame may be alleged in accordance with the decisions in Fabre v. Marin, 623 So. 2d 1182 (Fla. 1993), or Nash v. Wells Fargo Guard Services, Inc., 678 So. 2d 1262 (Fla. 1996).

2013 Amendment. Subdivision (i) governs the responsibility of the court for ensuring that parties and their counsel are aware of all contact with the jury that could affect the outcome of the case. Trial judges may have differing views on what constitutes harmless or routine ex parte communication with jurors. Reasonable variations are therefore permitted, provided the judge adequately

advises counsel, before the trial begins, of the specific circumstances under which the court has determined that jury communications will not be reported to the parties. The rule does not prevent the bailiff or other courtroom personnel from discussing such routine matters as juror parking, location of break areas, how and when to assemble for duty, dress, and which items of a juror's personal property may be brought into the courthouse or jury room. However, for example, questions or remarks from a juror about such matters as the length of a witness's testimony, when court will adjourn on a given day, or how long the trial may take to complete should be reported to the judge, as these matters may be of interest to the parties. Any doubt as to whether a communication may or may not be of interest to the parties should be resolved in favor of promptly informing the court, the parties, and counsel, even if it is after the fact. This will best ensure that the parties have the opportunity to object to any improper communication and give the court an opportunity to cure any prejudice, if an objection is made.

RULE 1.440. SETTING ACTION FOR TRIAL

(a) Pleadings. The failure of the pleadings to be closed will not preclude the court from setting a case for trial.

(b) Motion for Trial. For any case not subject to rule 1.200 or rule 1.201 or for any case in which any party seeks a trial for a date earlier than the projected or actual trial period specified in a case management order, any party may file and serve a motion to set the action for trial. The motion must include an estimate of the time required, whether there is a basis for expedited trial, whether it is to be a jury or non-jury trial, whether the trial is on the original action or a subsequent proceeding, and, if applicable, indicate that the court has authorized the participation of prospective jurors or empaneled jurors through audio-video communication technology under rule 1.430(d). The moving party must serve a copy of the motion on the presiding judge at the time the motion is filed.

(c) Setting Trial Period.

(1) On a party's motion or upon the court's own initiative, if the court finds the action ready to be set for a trial

period earlier than the projected or actual trial period specified in the case management order entered under rule 1.200 or rule 1.201, the court may enter an order setting an earlier trial period.

(2) For any case subject to rule 1.200 with a projected trial period in the case management order, not later than 45 days before the projected trial period set forth in the case management order, the court must enter an order setting the trial period.

(3) For any case not subject to rule 1.200 or 1.201, on a party's motion or upon the court's own initiative, if the court finds the action ready to be set for trial, the court must enter an order setting the trial period.

(4) Any order setting a trial period must set the trial period to begin at least 30 days after the date of the court's service of the order, unless all parties agree otherwise.

(d) Service on Defaulted Parties. In actions in which the damages are not liquidated and when otherwise required by rule 1.500(e), the order setting an action for trial must be served on parties against whom a default has been entered in accordance with Florida Rule of General Practice and Judicial Administration 2.516.

(e) Applicability. This rule does not apply to actions to under chapter 51, Florida Statutes.

Committee Notes

1972 Amendment. All references to the pretrial conference are deleted because these are covered in rule 1.200.

1980 Amendment. Subdivision (b) is amended to specify whether the trial will be on the original pleadings or subsequent pleadings under rule 1.110(h).

1988 Amendment. Subdivision (c) was amended to clarify a confusion regarding the notice for trial which resulted from a 1968 amendment.

2012 Amendment. Subdivision (c) is amended to reflect the relocation of the service rule from rule 1.080 to Fla. R. Jud. Admin. 2.516.

Court Commentary

1984 Amendment. Subdivision (a) is amended by adding a sentence to emphasize the authority given in rule 1.270(b) for the severing of issues for trial.

Subdivision (c) is amended to delete the reference to law actions so that the rule will apply to all actions in which unliquidated damages are sought.

2024 Amendment. This rule has been substantially amended. It no longer requires that a case be "at issue" before the case can be set for trial, and it ties the date of trial directly to any projected trial period set forth in a case management order.

RULE 1.442. PROPOSALS FOR SETTLEMENT

(a) Applicability. This rule applies to all proposals for settlement authorized by Florida law, regardless of the terms used to refer to such offers, demands, or proposals, and supersedes all other provisions of the rules and statutes that may be inconsistent with this rule.

(b) Service of Proposal. A proposal to a defendant may be served no earlier than 90 days after service of process on that defendant; a proposal to a plaintiff may be served no earlier than 90 days after the action has been commenced. No proposal may be served later than 45 days before the date set for trial or the first day of the docket on which the case is set for trial, whichever is earlier.

(c) Form and Content of Proposal for Settlement.

(1) A proposal must be in writing and must identify the applicable Florida law under which it is being made.

(2) A proposal must:

(A) name the party or parties making the proposal and the party or parties to whom the proposal is being made;

(B) state that the proposal resolves all damages that would otherwise be awarded in a final judgment in the action in which the proposal is served, subject to subdivision (c)(2)(F);

(C) exclude nonmonetary terms, with the exceptions of a voluntary dismissal of all claims with prejudice and any other nonmonetary terms permitted by statute;

(D) state the total amount of the proposal;

(E) state with particularity the amount proposed to settle a claim for punitive damages, if any;

(F) state whether the proposal includes attorneys' fees and whether attorneys' fees are part of the legal claim; and

(G) include a certificate of service in the form required by Florida Rule of General Practice and Judicial Administration 2.516.

(3) A proposal may be made by or to any party or parties and by or to any combination of parties properly identified in the proposal. A joint proposal must state the amount and terms attributable to each party.

(4) Notwithstanding subdivision (c)(3), when a party is alleged to be solely vicariously, constructively, derivatively, or technically liable, whether by operation of law or by contract, a joint proposal made by or served on such a party need not state the apportionment or contribution as to that party. Acceptance by any party is without prejudice to rights of contribution or indemnity.

(d) Service and Filing. A proposal must be served on the party or parties to whom it is made but must not be filed unless necessary to enforce the provisions of this rule.

(e) Withdrawal. A proposal may be withdrawn in writing provided the written withdrawal is delivered before a written acceptance is delivered. Once withdrawn, a proposal is void.

(f) Acceptance and Rejection.

(1) A proposal is deemed rejected unless accepted by delivery of a written notice of acceptance within 30 days after service of the proposal. The provisions of Florida Rule of General Practice and Judicial Administration 2.514(b) do not apply to this subdivision. Oral communications will not be considered an acceptance, rejection, or counteroffer under the provisions of this rule.

(2) In any case in which the existence of a class is alleged, the time for acceptance of a proposal for settlement is extended to 30 days after the date the order granting or denying certification is filed.

(g) Sanctions. Any party seeking sanctions under applicable Florida law, based on the failure of the proposal's recipient to accept a proposal, must do so by serving a motion in accordance with rule 1.525.

(h) Costs and Fees.

(1) If a party is entitled to costs and fees under applicable Florida law, the court may, in its discretion, determine that a proposal was not made in good faith. In such case, the court may disallow an award of costs and attorneys' fees.

(2) When determining the reasonableness of the amount of an award of attorneys' fees under this subdivision, the court must consider, along with all other relevant criteria, the following factors:

(A) the then-apparent merit or lack of merit in the claim;

(B) the number and nature of proposals made by the parties;

(C) the closeness of questions of fact and law at issue;

(D) whether the party making the proposal had unreasonably refused to furnish information necessary to evaluate the reasonableness of the proposal;

(E) whether the suit was in the nature of a test case presenting questions of far-reaching importance affecting nonparties; and

(F) the amount of the additional delay cost and expense that the party making the proposal reasonably would be expected to incur if the litigation were to be prolonged.

(i) Evidence of Proposal. Evidence of a proposal or acceptance of a proposal is admissible only in proceedings to enforce an accepted proposal or to determine the imposition of sanctions.

(j) Effect of Mediation. Mediation has no effect on the dates during which parties are permitted to make or accept a proposal for settlement under the terms of the rule.

Committee Notes

1996 Amendment. This rule was amended to reconcile, where possible, sections 44.102(6) (formerly 44.102(5)(b)), 45.061, 73.032, and 768.79, Florida Statutes, and the decisions of the Florida Supreme Court in *Knealing v. Puleo*, 675 So. 2d 593 (Fla. 1996), *TGI Friday's, Inc. v. Dvorak*, 663 So. 2d 606 (Fla. 1995), and *Timmons v. Combs*, 608 So. 2d 1 (Fla. 1992). This rule replaces former rule 1.442, which was repealed by the *Timmons* decision, and supersedes those sections of the Florida Statutes and the prior decisions of the court, where reconciliation is impossible, in order to provide a workable structure for proposing settlements in civil actions. The provision which requires that a joint proposal state the

amount and terms attributable to each party is in order to conform with *Fabre v. Marin*, 623 So. 2d 1182 (Fla. 1993).

2000 Amendment. Subdivision (f)(2) was added to establish the time for acceptance of proposals for settlement in class actions. "Filing" is defined in rule 1.080(e). Subdivision (g) is amended to conform with new rule 1.525.

2012 Amendment. Subdivision (c)(2)(G) is amended to reflect the relocation of the service rule from rule 1.080 to Fla. R. Jud. Admin. 2.516.

2013 Amendment. Subdivision (f)(1) was amended to reflect the relocation of the rule regarding additional time after service by mail or e-mail from rule 1.090(e) to Fla. R. Jud. Admin. 2.514(b).

2013 Amendment. Subdivision (c)(2)(B) is amended to clarify that a proposal for settlement must resolve all claims between the proponent and the party to whom the proposal is made except claims for attorneys' fees, which may or may not be resolved in the proposal.

RULE 1.450. EVIDENCE

(a) Record of Excluded Evidence. In an action tried by a jury if an objection to a question propounded to a witness is sustained by the court, the examining attorney may make a specific offer of what the attorney expects to prove by the answer of the witness. The court may require the offer to be made out of the hearing of the jury. The court may add such other or further statement as clearly shows the character of the evidence, the form in which it was offered, the objection made, and the ruling thereon. In actions tried without a jury the same procedure may be followed except that the court upon request shall take and report the evidence in full unless it clearly appears that the evidence is not admissible on any ground or that the witness is privileged.

(b) Filing. When documentary evidence is introduced in an action, the clerk or the judge shall endorse an identifying number or symbol on it and when proffered or admitted in evidence, it shall

be filed by the clerk or judge and considered in the custody of the court and not withdrawn except with written leave of court.

Committee Notes

1971 Amendment. Subdivision (d) is amended to eliminate the necessity of a court order for disposal of exhibits. The clerk must retain the exhibits for 1 year unless the court permits removal earlier. If removal is not effected within the year, the clerk may destroy or dispose of the exhibits after giving the specified notice.

1996 Amendment. Former subdivision (a) entitled "Adverse Witness" is deleted because it is no longer needed or appropriate because the matters with which it deals are treated in the Florida Evidence Code.

Court Commentary

1984 Amendment. Subdivision (d) was repealed by the supreme court; see 403 So. 2d 926.

Subdivision (e): This rule was originally promulgated by the supreme court in *Carter v. Sparkman*, 335 So. 2d 802, 806 (Fla. 1976).

In *The Florida Bar, in re Rules of Civil Procedure*, 391 So. 2d 165 (Fla. 1980), the court requested the committee to consider the continued appropriateness of rule 1.450(e). In response, the committee recommended its deletion. After oral argument in *The Florida Bar: In re Rules of Civil Procedure*, 429 So. 2d 311, the court specifically declined to abolish the rule or to adopt a similar rule for other types of actions.

The committee again considered rule 1.450(e) in depth and at length and again recommends its deletion for the reason that no exception should be made in the rule to a particular type of action.

Subdivision (f): The West's Desk Copy Florida Rules of Court, at page 62, points out:

"The per curiam opinion of the Florida Supreme Court of June 21, 1979 (403 So.2d 926) provides: 'On March 8, 1979, the Court proposed new Rule 1.450 of the Florida Rules of Civil Procedure which would provide for the disposal of exhibits and depositions in civil matters. Absent further action by the Court, the proposed rule was to become effective July 2, 1979. The Court has carefully considered the responses received regarding proposed Rule 1.450(f) and now feels that the July 2, 1979, effective date does not allow sufficient time for full reflection on matters raised in these responses. Therefore, the effective date for Rule 1.450(f) is, by this order, delayed until further order of the Court.'"

The retention of court records is the subject of Florida Rule of Judicial Administration 2.075.

RULE 1.452. QUESTIONS BY JURORS

(a) Questions Permitted. The court shall permit jurors to submit to the court written questions directed to witnesses or to the court. Such questions will be submitted after all counsel have concluded their questioning of a witness.

(b) Procedure. Any juror who has a question directed to the witness or the court shall prepare an unsigned, written question and give the question to the bailiff, who will give the question to the judge.

(c) Objections. Out of the presence of the jury, the judge will read the question to all counsel, allow counsel to see the written question, and give counsel an opportunity to object to the question.

RULE 1.453. JURY REQUEST TO REVIEW TESTIMONY

(a) Request for Readback or Playback of Testimony. If, after retiring to consider their verdict, any juror requests a readback or playback of testimony, the jury may be conducted into the courtroom and the court may order the readback or playback of testimony. The testimony may be read or played back only after notice to counsel for the parties. Any readback or playback of

testimony must be in open court in the presence of all parties. In its discretion, the court may respond in writing to a request for readback or playback of testimony without having the jury brought before the court, provided that the parties have received the opportunity to place objections on the record and both the request and response are made part of the record.

(b) Request for Transcripts. If any juror requests to have a transcript of trial testimony, the court must inform the jury that transcripts are not available but that they can request a readback or playback of testimony, which request may or may not be granted at the court's discretion. If a juror makes only a general request for transcripts, as opposed to identifying any particular witness's testimony that they wish to review, the court must also instruct the jury that, if they request a readback or playback, they must specify the particular trial testimony they wish to have read or played back. If, after being properly instructed in accordance with this subdivision, the jury requests a readback or playback of any trial testimony, the court must follow the procedures set forth in subdivision (a).

RULE 1.455. JUROR NOTEBOOKS

In its discretion, the court may authorize documents and exhibits to be included in notebooks for use by the jurors during trial to aid them in performing their duties.

RULE 1.460. MOTIONS TO CONTINUE TRIAL

(a) Generally. Motions to continue trial are disfavored and should rarely be granted and then only upon good cause shown. Successive continuances are highly disfavored. Lack of due diligence in preparing for trial is not grounds to continue the case. Motions for continuance based on parental leave are governed by Florida Rule of General Practice and Judicial Administration 2.570.

(b) Motion; Requirements. A motion to continue trial must be in writing unless made at a trial and, except for good cause shown, must be signed by the named party requesting the continuance.

(c) Motion; Timing of Filing. A motion to continue trial must be filed promptly after the appearance of good cause to support such motion. Failure to promptly request a continuance may be a basis for denying the motion to continue.

(d) Motion; Contents. All motions for continuance, even if agreed, must state with specificity:

(1) the basis of the need for the continuance, including when the basis became known to the movant;

(2) whether the motion is opposed;

(3) the action and specific dates for the action that will enable the movant to be ready for trial by the proposed date, including, but not limited to, confirming the specific date any required participants such as third-party witnesses or experts are available; and

(4) the proposed date by which the case will be ready for trial and whether that date is agreed by all parties.

(e) Efforts to Avoid Continuances. To avoid continuances, trial courts should use all appropriate methods to address the issues causing delay, including requiring depositions to preserve testimony, allowing remote appearances, and resolving conflicts with other judges as provided in the Florida Rules of General Practice and Judicial Administration.

(f) Setting Trial Date. When possible, continued trial dates must be set in collaboration with attorneys and self-represented litigants as opposed to the issuance of unilateral dates by the court.

(g) Dilatory Conduct. If a continuance is granted based on the dilatory conduct of an attorney or named party, the court may impose sanctions on the attorney, the party, or both.

(h) Order on Motion for Continuance. When ruling on a motion to continue, the court must state, either on the record or in a written order, the factual basis for the ruling. An order granting a

motion to continue must either set a new trial period or set a case management conference. If the trial is continued, the new trial must be set for the earliest date practicable, given the needs of the case and resources of the court. The order must reflect what further activity will or will not be permitted.

Committee Notes

1980 Amendment. Subdivision (a), deleted by amendment, was initially adopted when trials were set at a docket sounding prescribed by statute. Even then, the rule was honored more in the breach than the observance. Trials are no longer uniformly set in that manner, and continuances are granted generally without reference to the rule. Under the revised rule, motions for continuance can be filed at any time that the need arises and need not be in writing if the parties are before the court.

1988 Amendment. The supreme court, by adopting Florida Rule of Judicial Administration 2.085(c), effective July 1, 1986, required all motions for continuance to be signed by the litigant requesting the continuance. The amendment conforms rule 1.460 to rule 2.085(c); but, by including an exception for good cause, it recognizes that circumstances justifying a continuance may excuse the signature of the party.

RULE 1.470. EXCEPTIONS UNNECESSARY; JURY INSTRUCTIONS

(a) Adverse Ruling. For appellate purposes no exception shall be necessary to any adverse ruling, order, instruction, or thing whatsoever said or done at the trial or prior thereto or after verdict, which was said or done after objection made and considered by the trial court and which affected the substantial rights of the party complaining and which is assigned as error.

(b) Instructions to Jury. The Florida Standard Jury Instructions appearing on The Florida Bar's website may be used, as provided in Florida Rule of General Practice and Judicial Administration 2.580, by the trial judges in instructing the jury in civil actions. Not later than at the close of the evidence, the parties

shall file written requests that the court instruct the jury on the law set forth in such requests. The court shall then require counsel to appear before it to settle the instructions to be given. At such conference, all objections shall be made and ruled upon and the court shall inform counsel of such instructions as it will give. No party may assign as error the giving of any instruction unless that party objects thereto at such time, or the failure to give any instruction unless that party requested the same. The court shall orally instruct the jury before or after the arguments of counsel and may provide appropriate instructions during the trial. If the instructions are given prior to final argument, the presiding judge shall give the jury final procedural instructions after final arguments are concluded and prior to deliberations. The court shall provide each juror with a written set of the instructions for his or her use in deliberations. The court shall file a copy of such instructions.

(c) Orders on New Trial, Directed Verdicts, etc. It shall not be necessary to object or except to any order granting or denying motions for new trials, directed verdicts, or judgments non obstante veredicto or in arrest of judgment to entitle the party against whom such ruling is made to have the same reviewed by an appellate court.

Committee Notes

1988 Amendment. The word "general" in the third sentence of subdivision (b) was deleted to require the court to specifically inform counsel of the charges it intends to give. The last sentence of that subdivision was amended to encourage judges to furnish written copies of their charges to juries.

2010 Amendment. Portions of form 1.985 were modified and moved to subdivision (b) of rule 1.470 to require the court to use published standard instructions where applicable and necessary, to permit the judge to vary from the published standard jury instructions, and notes only when necessary to accurately and sufficiently instruct the jury, and to require the parties to object to preserve error in variance from published standard jury instructions and notes.

2014 Amendment. Florida Standard Jury Instructions include the Florida Standard Jury Instructions—Contract and Business Cases.

RULE 1.480. MOTION FOR A DIRECTED VERDICT

(a) Effect. A party who moves for a directed verdict at the close of the evidence offered by the adverse party may offer evidence in the event the motion is denied without having reserved the right to do so and to the same extent as if the motion had not been made. The denial of a motion for a directed verdict shall not operate to discharge the jury. A motion for a directed verdict shall state the specific grounds therefor. The order directing a verdict is effective without any assent of the jury.

(b) Reservation of Decision on Motion. When a motion for a directed verdict is denied or for any reason is not granted, the court is deemed to have submitted the action to the jury subject to a later determination of the legal questions raised by the motion. Within 15 days after the return of a verdict, a party who has timely moved for a directed verdict may serve a motion to set aside the verdict and any judgment entered thereon and to enter judgment in accordance with the motion for a directed verdict. If a verdict was not returned, a party who has timely moved for a directed verdict may serve a motion for judgment in accordance with the motion for a directed verdict within 15 days after discharge of the jury.

(c) Joined with Motion for New Trial. A motion for a new trial may be joined with this motion or a new trial may be requested in the alternative. If a verdict was returned, the court may allow the judgment to stand or may reopen the judgment and either order a new trial or direct the entry of judgment as if the requested verdict had been directed. If no verdict was returned, the court may direct the entry of judgment as if the requested verdict had been directed or may order a new trial.

Committee Notes

1996 Amendment. Subdivision (b) is amended to clarify that the time limitations in this rule are based on service.

2010 Amendment. Subdivision (b) is amended to conform to 2006 changes to Federal Rule of Civil Procedure 50(b) eliminating the requirement for renewing at the close of all the evidence a motion for directed verdict already made at the close of an adverse party's evidence.

2013 Amendment. Subdivision (b) is amended to change the time for service of a motion from 10 to 15 days after the specified event.

RULE 1.481. VERDICTS

In all actions when punitive damages are sought, the verdict shall state the amount of punitive damages separately from the amounts of other damages awarded.

RULE 1.490. MAGISTRATES

(a) General Magistrates. Judges of the circuit court may appoint as many general magistrates from among the members of the Bar in the circuit as the judges find necessary, and the general magistrates shall continue in office until removed by the court. The order making an appointment shall be recorded. Every person appointed as a general magistrate shall take the oath required of officers by the Constitution and the oath shall be recorded before the magistrate discharges any duties of that office.

(b) Special Magistrates. The court may appoint members of The Florida Bar as special magistrates for any particular service required by the court, and they shall be governed by all the provisions of law and rules relating to magistrates except they shall not be required to make oath or give bond unless specifically required by the order appointing them. Upon a showing that the appointment is advisable, a person other than a member of the Bar may be appointed.

(c) Reference. No reference shall be to a magistrate, either general or special, without the consent of the parties.

When a reference is made to a magistrate, either party may set the action for hearing before the magistrate.

(d) General Powers and Duties. Every magistrate shall perform all of the duties that pertain to the office according to the practice in chancery and under the direction of the court. Process issued by a magistrate shall be directed as provided by law. Hearings before any magistrate, examiner, or commissioner shall be held in the county where the action is pending, but hearings may be held at any place by order of the court within or without the state to meet the convenience of the witnesses or the parties. All grounds of disqualification of a judge shall apply to magistrates. Magistrates shall not practice law of the same case type in the court or circuit the magistrate is appointed to serve.

(e) Bond. When not otherwise provided by law, the court may require magistrates who are appointed to dispose of real or personal property to give bond and surety conditioned for the proper payment of all moneys that may come into their hands and for the due performance of their duties as the court may direct. The bond shall be made payable to the State of Florida and shall be for the benefit of all persons aggrieved by any act of the magistrate.

(f) Notice of Hearings. The magistrate shall assign a time and place for proceedings as soon as reasonably possible after the reference is made and give notice to each of the parties. The notice or order setting a matter for hearing before the magistrate must state if electronic recording or a court reporter will be used to create a record of the proceedings. If electronic recording is to be used, the notice must state that any party may have a court reporter transcribe the record of the proceedings at that party's expense. If any party fails to appear, the magistrate may proceed ex parte or may adjourn the proceeding to a future day, giving notice to the absent party of the adjournment.

(g) Hearings. The magistrate shall proceed with reasonable diligence in every reference and with the least practicable delay. Any party may apply to the court for an order to the magistrate to speed the proceedings and to make the report and to certify to the court the reason for any delay. The evidence shall be taken by the

magistrate or by some other person under the magistrate's authority in the magistrate's presence and shall be filed with the magistrate's report. The magistrate shall have authority to examine on oath the parties and all witnesses produced by the parties on all matters contained in the reference and to require production of all books, papers, writings, vouchers, and other documents applicable to the referenced matters. The magistrate shall admit evidence by deposition or that is otherwise admissible in court. The magistrate may take all actions concerning evidence that can be taken by the court and in the same manner. All parties accounting before a magistrate shall bring in their accounts in the form of accounts payable and receivable, and any other parties who are not satisfied with the account may examine the accounting party orally or by interrogatories or deposition as the magistrate directs. All depositions and documents that have been taken or used previously in the action may be used before the magistrate.

(h) Magistrate's Report. The magistrate must file the report on the referenced matters and serve copies on all parties, and include the name and address of any court reporter who transcribed the proceedings. The magistrate's report must contain the following language in bold type:

> IF YOU WISH TO SEEK REVIEW OF THE REPORT AND RECOMMENDATIONS MADE BY THE MAGISTRATE, YOU MUST FILE EXCEPTIONS IN ACCORDANCE WITH FLORIDA RULE OF CIVIL PROCEDURE 1.490(i). YOU WILL BE REQUIRED TO PROVIDE THE COURT WITH A RECORD SUFFICIENT TO SUPPORT YOUR EXCEPTIONS OR YOUR EXCEPTIONS WILL BE DENIED. A RECORD ORDINARILY INCLUDES A WRITTEN TRANSCRIPT OF ALL RELEVANT PROCEEDINGS. THE PERSON SEEKING REVIEW MUST HAVE THE TRANSCRIPT PREPARED IF NECESSARY FOR THE COURT'S REVIEW.

(i) Filing Report; Notice; Exceptions. The parties may file exceptions to the report within 10 days after it is served. Any party may file cross-exceptions within 5 days from the service of the exceptions. If no exceptions are timely filed the court shall take

appropriate action on the report. If exceptions are timely filed, the court shall resolve the exceptions at a hearing on reasonable notice. The filing of cross-exceptions shall not delay a hearing on the exceptions and cross-exceptions unless good cause is shown.

(j) Record. A party filing exceptions to the magistrate's report must provide the court in advance of the hearing a record sufficient to support that party's exceptions.

(1) The record shall include the court file, designated portions of the transcript of proceedings before the magistrate, and all depositions and evidence presented to the magistrate. The designated transcript portions must be delivered to the court and all other parties at least 48 hours before the hearing.

(2) If the party filing exceptions has the court reporter prepare less than a full transcript of proceedings before the magistrate, that party must promptly file a notice designating the portions of the transcript that have been ordered. The other parties must be given reasonable time after service of the notice to arrange for the preparation and designation of other portions of the transcript for the court to consider at the hearing.

Committee Notes

1971 Amendment. The entire rule has been revised. Obsolete language has been omitted and changes made to meet objections shown by the use of local rules in many circuits. Subdivisions (a) and (b) are not substantially changed. Subdivision (c) is shortened and eliminates the useless priority for setting the matter for hearing to permit either party to go forward. Subdivision (d) eliminates the right of the parties to stipulate to the place of hearing. Subdivision (e) is not substantially changed. Subdivisions (f), (g), (h), and (i) are combined. The right to use affidavits is eliminated because of the unavailability of cross-examination and possible constitutional questions. The vague general authority of the magistrate under subdivision (g) is made specific by limiting it to actions that the court could take. Subdivision (j) is repealed because it is covered in the new subdivision (f). Subdivision (g) is the same as former

subdivision (k) after eliminating the reference to affidavits. Subdivision (h) is the same as former subdivision (*l*).

1980 Amendment. Subdivision (d) is amended to delete the specific reference to the direction of process so that process issued by the master will be governed by the law applicable to process generally.

Court Commentary

1984 Amendment. The consent of all parties is required for any reference to a special master. Special masters may be used as provided by statute even with the rule change. See *Slatcoff v. Dezen*, 74 So. 2d 59 (Fla. 1954).

RULE 1.491. GENERAL MAGISTRATES FOR RESIDENTIAL MORTGAGE FORECLOSURE MATTERS

(a) General Magistrates for Residential Mortgage Foreclosure. The chief judge of each judicial circuit shall appoint such number of general magistrates to handle only residential mortgage foreclosures from among the members of the Bar in the circuit as are necessary to expeditiously preside over all actions and suits for the foreclosure of a mortgage on residential real property; and any other matter concerning the foreclosure of a mortgage on residential real property as allowed by the administrative order of the chief judge. Such general magistrates shall continue in office until removed by the court. The order making an appointment shall be recorded. Every person appointed as a general magistrate shall take the oath required of officers by the Constitution and the oath shall be recorded before the magistrate discharges any duties of that office. General magistrates appointed to handle residential mortgage foreclosure matters only shall not be required to give bond or surety.

(b) Reference.

(1) Consent to a magistrate for residential mortgage foreclosure actions and suits may be express or may be implied in accordance with the requirements of this rule.

(A) A written objection to the referral to a magistrate handling residential mortgage foreclosures must be filed within 10 days of the service of the order of referral or within the time to respond to the initial pleading, whichever is later.

(B) If the time set for the hearing is less than 10 days after service of the order of referral, the objection must be filed before commencement of the hearing.

(C) Failure to file a written objection to a referral to the magistrate handling residential mortgage foreclosures within the applicable time period is deemed to be consent to the order of referral.

(2) The order of referral to a magistrate handling residential mortgage foreclosures shall be in substantial conformity with this rule and shall contain the following language in bold type:

> **A REFERRAL TO A MAGISTRATE FOR A RESIDENTIAL MORTGAGE FORECLOSURE MATTER REQUIRES THE CONSENT OF ALL PARTIES. YOU ARE ENTITLED TO HAVE THIS MATTER HEARD BEFORE A JUDGE. IF YOU DO NOT WANT TO HAVE THIS MATTER HEARD BEFORE A MAGISTRATE, YOU MUST FILE A WRITTEN OBJECTION TO THE REFERRAL WITHIN 10 DAYS OF THE TIME OF SERVICE OF THIS ORDER OR WITHIN THE TIME TO RESPOND TO THE INITIAL PLEADING, WHICHEVER IS LATER. IF THE TIME SET FOR THE HEARING IS LESS THAN 10 DAYS AFTER THE SERVICE OF THIS ORDER, THE OBJECTION MUST BE MADE BEFORE THE HEARING. FAILURE TO FILE A WRITTEN OBJECTION WITHIN THE APPLICABLE TIME PERIOD IS DEEMED TO BE CONSENT TO THE REFERRAL. REVIEW OF THE REPORT AND RECOMMENDATIONS MADE BY THE MAGISTRATE SHALL BE BY EXCEPTIONS AS PROVIDED IN THIS RULE. A RECORD, WHICH INCLUDES A TRANSCRIPT OF PROCEEDINGS, MAY BE REQUIRED TO SUPPORT THE EXCEPTIONS.**

When a reference is made to a magistrate, either party may set the action for hearing before the magistrate.

(c) General Powers and Duties. The provisions for the general powers and duties of a magistrate in rule 1.490(d) shall apply to proceedings under this rule.

(d) Notice of Hearings; Hearings. The provisions for notice of hearings and hearings in rules 1.490(f)—(g) shall apply to proceedings under this rule.

(e) Magistrate's Report. The provisions for the requirement of the magistrate's report in rule 1.490(h) shall apply to proceedings under this rule.

(f) Filing Report; Notice; Exceptions; Record. The provisions for filing the report, notice, exceptions to the report, and requirements for a record in rules 1.490(i)—(j) shall apply to proceedings under this rule.

Committee Notes

2014 Adoption. This rule is the result of an emergency petition by the Trial Court Budget Commission and is intended to alleviate the backlog of residential mortgage foreclosure cases that Florida courts are currently facing.

2015 Amendment. The changes are intended to adopt certain procedural changes made to rule 1.490 by *In re Amendments to Florida Rules of Civil Procedure*, 131 So. 3d 643 (Fla. 2013).

RULE 1.500. DEFAULTS AND FINAL JUDGMENTS THEREON

(a) By the Clerk. When a party against whom affirmative relief is sought has failed to file or serve any document in the action, the party seeking relief may file and serve a motion for default after the required time for a response has expired. The clerk must enter a default if the party against whom affirmative relief has been sought has failed to file or serve any document.

(b) By the Court. When a party against whom affirmative relief is sought has failed to plead or otherwise defend as provided by these rules or any applicable statute or any order of court, the party seeking relief may file and serve a motion for default. The court may then enter a default against a party against whom affirmative relief is sought.

(c) Right to Plead and Right to Receive Service of Documents. Until a default is entered against a party, all documents filed in the action or otherwise required to be served must be served on that party. A party may plead or otherwise defend at any time before default is entered. If a party against whom a default has been entered files any document after the default is entered, the clerk must notify the party of the entry of the default. The clerk must make an entry on the progress docket showing the notification.

(d) Setting aside Default. The court may set aside a default, and if a final judgment consequent thereon has been entered, the court may set it aside in accordance with rule 1.540(b).

(e) Final Judgment. Final judgments after default may be entered by the court at any time, but no judgment may be entered against an infant or incompetent person unless represented in the action by a general guardian, committee, conservator, or other representative who has appeared in it or unless the court has made an order under rule 1.210(b) providing that no representative is necessary for the infant or incompetent. If it is necessary to take an account, to determine the amount of damages, to establish the truth of any averment by evidence, or to make an investigation of any other matter to enable the court to enter judgment, the court may receive affidavits, make references, or conduct hearings as it deems necessary. After notice to the defaulted party of any evidentiary hearing on the above matters and of any trials, and after service of the trial order in these circumstances, the court must accord a right of trial by jury to the parties when required by the Constitution or any statute.

Court Commentary

1984 Amendment. Subdivision (c) is amended to change the method by which the clerk handles papers filed after a default is entered. Instead of returning the papers to the party in default, the clerk will now be required to file them and merely notify the party that a default has been entered. The party can then take whatever action the party believes is appropriate.

This is to enable the court to judge the effect, if any, of the filing of any paper upon the default and the propriety of entering final judgment without notice to the party against whom the default was entered.

RULE 1.510. SUMMARY JUDGMENT

(a) Motion for Summary Judgment or Partial Summary Judgment. A party may move for summary judgment, identifying each claim or defense—or the part of each claim or defense—on which summary judgment is sought. The court shall grant summary judgment if the movant shows that there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law. The court shall state on the record the reasons for granting or denying the motion. The summary judgment standard provided for in this rule shall be construed and applied in accordance with the federal summary judgment standard.

(b) Time to File a Motion. A party may move for summary judgment at any time after the expiration of 20 days from the commencement of the action or after service of a motion for summary judgment by the adverse party. The movant must file and serve the motion for summary judgment consistent with any court-ordered deadlines.

(c) Procedures.

(1) *Supporting Factual Positions.* A party asserting that a fact cannot be or is genuinely disputed must support the assertion by:

(A) citing to particular parts of materials in the record, including depositions, documents, electronically stored

information, affidavits or declarations, stipulations (including those made for purposes of the motion only), admissions, interrogatory answers, or other materials; or

(B) showing that the materials cited do not establish the absence or presence of a genuine dispute, or that an adverse party cannot produce admissible evidence to support the fact.

(2) *Objection That a Fact Is Not Supported by Admissible Evidence.* A party may object that the material cited to support or dispute a fact cannot be presented in a form that would be admissible in evidence.

(3) *Materials Not Cited.* The court need consider only the cited materials, but it may consider other materials in the record.

(4) *Affidavits or Declarations.* An affidavit or declaration used to support or oppose a motion must be made on personal knowledge, set out facts that would be admissible in evidence, and show that the affiant or declarant is competent to testify on the matters stated.

(5) *Timing for Supporting Factual Positions.* At the time of filing a motion for summary judgment, the movant must also serve the movant's supporting factual position as provided in subdivision (1) above. No later than 40 days after service of the motion for summary judgment, the nonmovant must serve a response that includes the nonmovant's supporting factual position as provided in subdivision (1) above.

(6) *Timing for Hearing.* Any hearing on a motion for summary judgment must be set for a date at least 10 days after the deadline for serving a response, unless the parties stipulate or the court orders otherwise.

(d) When Facts Are Unavailable to the Nonmovant. If a nonmovant shows by affidavit or declaration that, for specified

reasons, it cannot present facts essential to justify its opposition, the court may:

(1) defer considering the motion or deny it;

(2) allow time to obtain affidavits or declarations or to take discovery; or

(3) issue any other appropriate order.

(e) Failing to Properly Support or Address a Fact. If a party fails to properly support an assertion of fact or fails to properly address another party's assertion of fact as required by rule 1.510(c), the court may:

(1) give an opportunity to properly support or address the fact;

(2) consider the fact undisputed for purposes of the motion;

(3) grant summary judgment if the motion and supporting materials—including the facts considered undisputed—show that the movant is entitled to it; or

(4) issue any other appropriate order.

(f) Judgment Independent of the Motion. After giving notice and a reasonable time to respond, the court may:

(1) grant summary judgment for a nonmovant;

(2) grant the motion on grounds not raised by a party; or

(3) consider summary judgment on its own after identifying for the parties material facts that may not be genuinely in dispute.

(g) Failing to Grant All the Requested Relief. If the court does not grant all the relief requested by the motion, it may enter

an order stating any material fact—including an item of damages or other relief—that is not genuinely in dispute and treating the fact as established in the case.

(h) Affidavit or Declaration Submitted in Bad Faith. If satisfied that an affidavit or declaration under this rule is submitted in bad faith or solely for delay, the court—after notice and a reasonable time to respond—may order the submitting party to pay the other party the reasonable expenses, including attorney's fees, it incurred as a result. An offending party or attorney may also be held in contempt or subjected to other appropriate sanctions.

Court Notes

2021 Amendment. The rule is amended to adopt almost all the text of Federal Rule of Civil Procedure 56. The "federal summary judgment standard" refers to the principles announced in *Celotex Corp. v. Catrett*, 477 U.S. 317 (1986), *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242 (1986), and *Matsushita Electric Industrial Co. v. Zenith Radio Corp.*, 475 U.S. 574 (1986), and more generally to case law interpreting Federal Rule of Civil Procedure 56.

Committee Notes

1976 Amendment. Subdivision (c) has been amended to require a movant to state with particularity the grounds and legal authority which the movant will rely upon in seeking summary judgment. This amendment will eliminate surprise and bring the summary judgment rule into conformity with the identical provision in rule 1.140(b) with respect to motions to dismiss.

1992 Amendment. The amendment to subdivision (c) will require timely service of opposing affidavits, whether by mail or by delivery, prior to the day of the hearing on a motion for summary judgment.

2005 Amendment. Subdivision (c) has been amended to ensure that the moving party and the adverse party are each given advance notice of and, where appropriate, copies of the evidentiary

material on which the other party relies in connection with a summary judgment motion.

2012 Amendment. Subdivision (c) is amended to reflect the relocation of the service rule from rule 1.080 to Fla. R. Jud. Admin. 2.516.

RULE 1.520. VIEW

Upon motion of either party the jury may be taken to view the premises or place in question or any property, matter, or thing relating to the controversy between the parties when it appears that view is necessary to a just decision; but the party making the motion shall advance a sum sufficient to defray the expenses of the jury and the officer who attends them in taking the view, which expense shall be taxed as costs if the party who advanced it prevails.

RULE 1.525. MOTIONS FOR COSTS AND ATTORNEYS' FEES

Any party seeking a judgment taxing costs, attorneys' fees, or both shall serve a motion no later than 30 days after filing of the judgment, including a judgment of dismissal, or the service of a notice of voluntary dismissal, which judgment or notice concludes the action as to that party.

Committee Notes

2000 Adoption. This rule is intended to establish a time requirement to serve motions for costs and attorneys' fees.

Court Commentary

2000 Adoption. This rule only establishes time requirements for serving motions for costs, attorneys' fees, or both, and in no way affects or overrules the pleading requirements outlined by this Court in *Stockman v. Downs*, 573 So. 2d 835 (Fla. 1991).

RULE 1.530. MOTIONS FOR NEW TRIAL AND REHEARING; AMENDMENTS OF JUDGMENTS; REMITTITUR OR ADDITUR

(a) Jury and Non-Jury Actions. A new trial may be granted to all or any of the parties and on all or a part of the issues. To preserve for appeal a challenge to the failure of the trial court to make required findings of fact in the final judgment, a party must raise that issue in a motion for rehearing under this rule. On a motion for a rehearing of matters heard without a jury, including summary judgments, the court may open the judgment if one has been entered, take additional testimony, and enter a new judgment.

(b) Time for Motion. A motion for new trial or for rehearing must be served not later than 15 days after the return of the verdict in a jury action or the date of filing of the judgment in a non-jury action. A timely motion may be amended to state new grounds in the discretion of the court at any time before the motion is determined.

(c) Time for Serving Affidavits. When a motion for a new trial is based on affidavits, the affidavits must be served with the motion. The opposing party has 10 days after such service within which to serve opposing affidavits, which period may be extended for an additional period not exceeding 20 days either by the court for good cause shown or by the parties by written stipulation. The court may permit reply affidavits.

(d) On Initiative of Court. Not later than 15 days after the date of filing of the judgment or within the time of ruling on a timely motion for a rehearing or a new trial made by a party, the court of its own initiative may order a rehearing or a new trial for any reason for which it might have granted a rehearing or a new trial on motion of a party.

(e) When Motion Is Unnecessary; Non-Jury Action. In a non-jury action, the sufficiency of the evidence to support the judgment may be raised on appeal whether or not the party raising the question has made any objection thereto in the trial court or

made a motion for rehearing, for new trial, or to alter or amend the judgment.

(f) Order Granting to Specify Grounds. All orders granting a new trial must state the specific grounds therefor. If such an order is appealed and does not state the specific grounds, the appellate court shall relinquish its jurisdiction to the trial court for entry of an order specifying the grounds for granting the new trial.

(g) Motion to Alter or Amend a Judgment. A motion to alter or amend the judgment shall be served not later than 15 days after the date of filing of the judgment, except that this rule does not affect the remedies in rule 1.540(b).

(h) Motion for Remittitur or Additur.

(1) Not later than 15 days after the return of the verdict in a jury action or the date of filing of the judgment in a non-jury action, any party may serve a motion for remittitur or additur. The motion must state the applicable Florida law under which it is being made, the amount the movant contends the verdict should be, and the specific evidence that supports the amount stated or a statement of the improper elements of damages included in the damages award.

(2) If a remittitur or additur is granted, the court must state the specific statutory criteria relied on.

(3) Any party adversely affected by the order granting remittitur or additur may reject the award and elect a new trial on the issue of damages only by filing a written election within 15 days after the order granting remittitur or additur is filed.

Committee Notes

1992 Amendment. In subdivision (e), the reference to assignments of error is eliminated to conform to amendments to the Florida Rules of Appellate Procedure.

2013 Amendment. Subdivisions (b) and (g) are amended to change the deadlines for service of certain motions from 10 to 15 days after the specified event. Subdivision (d) is amended to change the deadline for a court to act of its own initiative.

Court Commentary

1984 Amendment. Subdivision (b): This clarifies the time in which a motion for rehearing may be served. It specifies that the date of filing as shown on the face of the judgment in a non-jury action is the date from which the time for serving a motion for rehearing is calculated.

There is no change in the time for serving a motion for new trial in a jury action, except the motion may be served before the rendition of the judgment.

2022 Amendments. The amendment to subdivision (a) does not address or affect, by negative implication, any other instance in which a motion for rehearing is or might be necessary to preserve an issue for appellate review.

RULE 1.535. [REPEALED AUG. 25, 2022, EFFECTIVE OCT. 1, 2022]

See *In re: Amendments to Florida Rules of Civil Procedure 1.530 and 1.535*, 346 So. 3d 1157 (Fla. 2022).

RULE 1.540. RELIEF FROM JUDGMENT, DECREES, OR ORDERS

(a) Clerical Mistakes. Clerical mistakes in judgments, decrees, or other parts of the record and errors therein arising from oversight or omission may be corrected by the court at any time on its own initiative or on the motion of any party and after such notice, if any, as the court orders. During the pendency of an appeal such mistakes may be so corrected before the record on appeal is docketed in the appellate court, and thereafter while the appeal is pending may be so corrected with leave of the appellate court.

(b) Mistakes; Inadvertence; Excusable Neglect; Newly Discovered Evidence; Fraud; etc. On motion and upon such terms as are just, the court may relieve a party or a party's legal representative from a final judgment, decree, order, or proceeding for the following reasons:

(1) mistake, inadvertence, surprise, or excusable neglect;

(2) newly discovered evidence which by due diligence could not have been discovered in time to move for a new trial or rehearing;

(3) fraud (whether heretofore denominated intrinsic or extrinsic), misrepresentation, or other misconduct of an adverse party;

(4) that the judgment, decree, or order is void; or

(5) that the judgment, decree, or order has been satisfied, released, or discharged, or a prior judgment, decree, or order upon which it is based has been reversed or otherwise vacated, or it is no longer equitable that the judgment, decree, or order should have prospective application.

The motion shall be filed within a reasonable time, and for reasons (1), (2), and (3) not more than 1 year after the judgment, decree, order, or proceeding was entered or taken. A motion under this subdivision does not affect the finality of a judgment, decree, or order or suspend its operation. This rule does not limit the power of a court to entertain an independent action to relieve a party from a judgment, decree, order, or proceeding or to set aside a judgment, decree, or order for fraud upon the court.

Writs of coram nobis, coram vobis, audita querela, and bills of review and bills in the nature of a bill of review are abolished, and the procedure for obtaining any relief from a judgment or decree shall be by motion as prescribed in these rules or by an independent action.

Committee Notes

1992 Amendment. Subdivision (b) is amended to remove the 1 year limitation for a motion under this rule based on fraudulent financial affidavits in marital cases.

2003 Amendment. Subdivision (b) is amended to clarify that motions must be filed.

RULE 1.545. FINAL DISPOSITION FORM

A final disposition form (form 1.998) must be filed with the clerk by the prevailing party at the time of the filing of the order or judgment which disposes of the action. If the action is settled without a court order or judgment being entered, or dismissed by the parties, the plaintiff or petitioner immediately must file a final disposition form (form 1.998) with the clerk. The clerk must complete the final disposition form for a party appearing pro se, or when the action is dismissed by court order for lack of prosecution pursuant to rule 1.420(e).

Committee Note

2016 Amendment. This rule is identical to former rule 1.100(c)(3).

RULE 1.550. EXECUTIONS AND FINAL PROCESS

(a) Issuance. Executions on judgments must issue during the life of the judgment on the oral request of the party entitled to it or that party's attorney. No execution or other final process will issue until the judgment on which it is based has been recorded and the time for serving a motion for new trial or rehearing has run. If a motion for new trial or rehearing is timely served, no execution or other final process will issue until it is determined. Execution or other final process may be issued on special order of the court at any time after judgment.

(b) Stay. The court before which an execution or other process based on a final judgment is returnable may stay the

execution or other process and suspend the proceedings for good cause on motion and notice to all adverse parties.

RULE 1.560. DISCOVERY IN AID OF EXECUTION

(a) In General. In aid of a judgment, decree, or execution the judgment creditor or the successor in interest, when that interest appears of record, may obtain discovery from any person, including the judgment debtor, in the manner provided in these rules.

(b) Fact Information Sheet. In addition to any other discovery available to a judgment creditor under this rule, the court, at the request of the judgment creditor, must order the judgment debtor or debtors to complete form 1.977, including all required attachments, within 45 days of the order or other reasonable time as determined by the court. Failure to obey the order may be considered contempt of court.

(c) Final Judgment Enforcement Paragraph. In any final judgment, the judge must include the following enforcement paragraph if requested by the prevailing party or attorney:

> "It is further ordered and adjudged that the judgment debtor(s) must complete under oath Florida Rule of Civil Procedure Form 1.977 (Fact Information Sheet), including all required attachments, and serve it on the judgment creditor's attorney, or the judgment creditor if the judgment creditor is not represented by an attorney, within 45 days from the date of this final judgment, unless the final judgment is satisfied or post-judgment discovery is stayed.
>
> Jurisdiction of this case is retained to enter further orders that are proper to compel the judgment debtor(s) to complete form 1.977, including all required attachments, and serve it on the judgment creditor's attorney, or the judgment creditor if the judgment creditor is not represented by an attorney."

(d) Information Regarding Assets of Judgment Debtor's Spouse. In any final judgment, if requested by the judgment

creditor, the court must include the additional Spouse Related Portion of the fact information sheet on a showing that a proper predicate exists for discovery of separate income and assets of the judgment debtor's spouse.

Committee Notes

1972 Amendment. The rule is expanded to permit discovery in any manner permitted by the rules and conforms to the 1970 change in Federal Rule of Civil Procedure 69(a).

2000 Amendment. Subdivisions (b)–(e) were added and patterned after Florida Small Claims Rule 7.221(a) and Form 7.343. Although the judgment creditor is entitled to broad discovery into the judgment debtor's finances, Fla. R. Civ. P. 1.280(b); *Jim Appley's Tru-Arc, Inc. v. Liquid Extraction Systems*, 526 So. 2d 177, 179 (Fla. 2d DCA 1988), inquiry into the individual assets of the judgment debtor's spouse may be limited until a proper predicate has been shown. *Tru-Arc, Inc.*, 526 So. 2d at 179; *Rose Printing Co. v. D'Amato*, 338 So. 2d 212 (Fla. 3d DCA 1976).

Failure to complete form 1.977 as ordered may be considered contempt of court.

2013 Amendment. Subdivision (e) was deleted because the filing of a notice of compliance is unnecessary for the judgment creditor to seek relief from the court for noncompliance with this rule, and because the Fact Information Sheet itself should not be filed with the clerk of the court.

RULE 1.570. ENFORCEMENT OF FINAL JUDGMENTS

(a) Money Judgments. Final process to enforce a judgment solely for the payment of money shall be by execution, writ of garnishment, or other appropriate process or proceedings.

(b) Property Recovery. Final process to enforce a judgment for the recovery of property shall be by a writ of possession for real property and by a writ of replevin, distress writ, writ of

garnishment, or other appropriate process or proceedings for other property.

(c) Performance of an Act. If judgment is for the performance of a specific act or contract:

(1) the judgment shall specify the time within which the act shall be performed. If the act is not performed within the time specified, the party seeking enforcement of the judgment shall make an affidavit that the judgment has not been complied with within the prescribed time and the clerk shall issue a writ of attachment against the delinquent party. The delinquent party shall not be released from the writ of attachment until that party has complied with the judgment and paid all costs accruing because of the failure to perform the act. If the delinquent party cannot be found, the party seeking enforcement of the judgment shall file an affidavit to this effect and the court shall issue a writ of sequestration against the delinquent party's property. The writ of sequestration shall not be dissolved until the delinquent party complies with the judgment;

(2) the court may hold the disobedient party in contempt; or

(3) the court may appoint some person, not a party to the action, to perform the act insofar as practicable. The performance of the act by the person appointed shall have the same effect as if performed by the party against whom the judgment was entered.

(d) Vesting Title. If the judgment is for a conveyance, transfer, release, or acquittance of real or personal property, the judgment shall have the effect of a duly executed conveyance, transfer, release, or acquittance that is recorded in the county where the judgment is recorded. A judgment under this subdivision shall be effective notwithstanding any disability of a party.

(e) Proceedings Supplementary. Proceedings supplementary to execution and related discovery shall proceed as provided by chapter 56, Florida Statutes. Notices to Appear, as

defined by law, and supplemental complaints in proceedings supplementary must be served as provided by the law and rules of procedure for service of process.

Committee Notes

1980 Amendment. This rule has been subdivided and amended to make it more easily understood. No change in the substance of the rule is intended. Subdivision (d) is partly derived from Federal Rule of Civil Procedure 70.

2018 Amendment. Subdivision (e) has been added to address legislative amendments to chapter 56, Florida Statutes (2016).

RULE 1.580. WRIT OF POSSESSION

(a) Issuance. When a judgment or order is for the delivery of possession of real property, the judgment or order shall direct the clerk to issue a writ of possession. The clerk shall issue the writ forthwith and deliver it to the sheriff for execution.

(b) Third-Party Claims. If a person other than the party against whom the writ of possession is issued is in possession of the property, that person may retain possession of the property by filing with the sheriff an affidavit that the person is entitled to possession of the property, specifying the nature of the claim. Thereupon the sheriff shall desist from enforcing the writ and shall serve a copy of the affidavit on the party causing issuance of the writ of possession. The party causing issuance of the writ may apply to the court for an order directing the sheriff to complete execution of the writ. The court shall determine the right of possession in the property and shall order the sheriff to continue to execute the writ or shall stay execution of the writ, if appropriate.

Committee Notes

1980 Amendment. There was inadvertently continued the difference between writs of assistance and writs of possession when law and chancery procedure was consolidated. The amendment

eliminates the distinction. Writs of assistance are combined with writs of possession. The amendment provides for issuance and the determination of third-party claims. The only change is to shift the burden of the affidavit from the person causing the writ to be executed to the third person who contends that its execution is inappropriate.

RULE 1.590. PROCESS IN BEHALF OF AND AGAINST PERSONS NOT PARTIES

Every person who is not a party to the action who has obtained an order, or in whose favor an order has been made, may enforce obedience to such order by the same process as if that person were a party, and every person, not a party, against whom obedience to any order may be enforced shall be liable to the same process for enforcing obedience to such orders as if that person were a party.

RULE 1.600. DEPOSITS IN COURT

In an action in which any part of the relief sought is a judgment for a sum of money or the disposition of a sum of money or the disposition of any other thing capable of delivery, a party may deposit all or any part of such sum or thing with the court upon notice to every other party and by leave of court. Money paid into court under this rule shall be deposited and withdrawn by order of court.

RULE 1.610. INJUNCTIONS

(a) Temporary Injunction.

(1) A temporary injunction may be granted without written or oral notice to the adverse party only if:

(A) it appears from the specific facts shown by affidavit or verified pleading that immediate and irreparable injury, loss, or damage will result to the movant before the adverse party can be heard in opposition; and

(B) the movant's attorney certifies in writing any efforts that have been made to give notice and the reasons why notice should not be required.

(2) No evidence other than the affidavit or verified pleading shall be used to support the application for a temporary injunction unless the adverse party appears at the hearing or has received reasonable notice of the hearing. Every temporary injunction granted without notice shall be endorsed with the date and hour of entry and shall be filed forthwith in the clerk's office and shall define the injury, state findings by the court why the injury may be irreparable, and give the reasons why the order was granted without notice if notice was not given. The temporary injunction shall remain in effect until the further order of the court.

(b) Bond. No temporary injunction shall be entered unless a bond is given by the movant in an amount the court deems proper, conditioned for the payment of costs and damages sustained by the adverse party if the adverse party is wrongfully enjoined. Unless otherwise specified by the court, the bond shall be posted within 5 days of entry of the order setting the bond. When any injunction is issued on the pleading of a municipality or the state or any officer, agency, or political subdivision thereof, the court may require or dispense with a bond, with or without surety, and conditioned in the same manner, having due regard for the public interest. No bond shall be required for issuance of a temporary injunction issued solely to prevent physical injury or abuse of a natural person.

(c) Form and Scope. Every injunction shall specify the reasons for entry, shall describe in reasonable detail the act or acts restrained without reference to a pleading or another document, and shall be binding on the parties to the action, their officers, agents, servants, employees, and attorneys and on those persons in active concert or participation with them who receive actual notice of the injunction.

(d) Motion to Dissolve. A party against whom a temporary injunction has been granted may move to dissolve or modify it at any time. If a party moves to dissolve or modify, the motion shall be

heard within 5 days after the movant applies for a hearing on the motion.

Committee Notes

1980 Amendment. This rule has been extensively amended so that it is similar to Federal Rule of Civil Procedure 65. The requirement that an injunction not be issued until a complaint was filed has been deleted as unnecessary. A pleading seeking an injunction or temporary restraining order must still be filed before either can be entered. The rule now provides for a temporary restraining order without notice that will expire automatically unless a hearing on a preliminary injunction is held and a preliminary injunction granted. The contents of an injunctive order are specified. The binding effect of an injunctive order is specified, but does not change existing law. Motions to dissolve may be made and heard at any time. The trial on the merits can be consolidated with a hearing on issuance of a preliminary injunction, and the trial can be advanced to accommodate this.

Court Commentary

1984 Amendment. Considerable dissatisfaction arose on the adoption of the 1980 rule, particularly because of the creation of the temporary restraining order with its inflexible time limits. See *Sun Tech Inc. of South Florida v. Fortune Personnel Agency of Fort Lauderdale*, 412 So. 2d 962 (Fla. 4th DCA 1982). The attempt to balance the rights of the parties in 1980 failed because of court congestion and the inability in the existing circumstances to accommodate the inflexible time limits. These changes will restore injunction procedure to substantially the same as that existing before the 1980 change. The temporary restraining order terminology and procedure is abolished. The former procedure of temporary and permanent injunctions is restored. The requirement of findings and reasons and other details in an injunctive order are retained.

Subdivision (b) eliminates the need for a bond on a temporary injunction issued to prevent physical injury or abuse of a natural person.

Subdivision (e) institutes a requirement that a motion to dissolve an injunction shall be heard within 5 days after the movant applies for it. This provision emphasizes the importance of a prompt determination of the propriety of injunctive relief granted without notice or, if the circumstances have changed since the issuance of the injunctive order, the need for speedy relief as a result of the changes. Former subdivisions (a), (b)(3), and (b)(4) have been repealed because the new procedure makes them superfluous. The right of the court to consolidate the hearing on a temporary injunction with the trial of the action is not affected because that can still be accomplished under rule 1.270(a).

RULE 1.620. RECEIVERS

(a) Notice. The provisions of rule 1.610 as to notice shall apply to applications for the appointment of receivers.

(b) Report. Every receiver shall file in the clerk's office a true and complete inventory under oath of the property coming under the receiver's control or possession under the receiver's appointment within 20 days after appointment. Every 3 months unless the court otherwise orders, the receiver shall file in the same office an inventory and account under oath of any additional property or effects which the receiver has discovered or which shall have come to the receiver's hands since appointment, and of the amount remaining in the hands of or invested by the receiver, and of the manner in which the same is secured or invested, stating the balance due from or to the receiver at the time of rendering the last account and the receipts and expenditures since that time. When a receiver neglects to file the inventory and account, the court shall enter an order requiring the receiver to file such inventory and account and to pay out of the receiver's own funds the expenses of the order and the proceedings thereon within not more than 20 days after being served with a copy of such order.

(c) Bond. The court may grant leave to put the bond of the receiver in suit against the sureties without notice to the sureties of the application for such leave.

RULE 1.625. PROCEEDINGS AGAINST SURETY ON JUDICIAL BONDS

When any rule or statute requires or permits giving of bond by a party in a judicial proceeding, the surety on the bond submits to the jurisdiction of the court when the bond is approved. The surety must furnish the address for the service of documents affecting the surety's liability on the bond to the officer to whom the bond is given at that time. The liability of the surety may be enforced on motion without the necessity of an independent action. The motion must be served on the surety at the address furnished to the officer. The surety must serve a response to the motion within 20 days after service of the motion, asserting any defenses in law or in fact. If the surety fails to serve a response within the time allowed, a default may be taken. If the surety serves a response, the issues raised must be decided by the court on reasonable notice to the parties. The right to jury trial shall not be abridged in any such proceedings.

Committee Notes

1990 Adoption. This rule is intended to avoid the necessity of an independent action against a surety on judicial bonds. It does not abolish an independent action if the obligee prefers to file one.

RULE 1.630. EXTRAORDINARY REMEDIES

(a) Applicability. This rule applies to actions for the issuance of writs of mandamus, prohibition, quo warranto, and habeas corpus.

(b) Initial Pleading. The initial pleading must be a complaint. It must contain:

(1) the facts on which the plaintiff relies for relief;

(2) a request for the relief sought; and

(3) if desired, argument in support of the complaint with citations of authority.

The caption must show the action filed in the name of the plaintiff in all cases and not on the relation of the state. When the complaint seeks a writ directed to a lower court or to a governmental or administrative agency, a copy of as much of the record as is necessary to support the plaintiff's complaint must be attached.

(c) Time. A complaint must be filed within the time provided by law.

(d) Process. If the complaint shows a prima facie case for relief, the court must issue:

(1) an order nisi in prohibition;

(2) an alternative writ in mandamus that may incorporate the complaint by reference only;

(3) a writ of quo warranto; or

(4) a writ of habeas corpus.

The writ must be served in the manner prescribed by law.

(e) Response. Defendant must respond to the writ as provided in rule 1.140, but the answer in quo warranto must show better title to the office when the writ seeks an adjudication of the right to an office held by the defendant.

Court Commentary

1984 Amendment. Rule 1.630 replaces rules and statutes used before 1980 when the present Florida Rules of Appellate Procedure were adopted. Experience has shown that rule 9.100 is not designed for use in trial court. The times for proceeding, the methods of proceeding, and the general nature of the procedure is appellate and presumes that the proceeding is basically an appellate proceeding. When the extraordinary remedies are sought in the trial court, these items do not usually exist and thus the rule is difficult to apply. The uniform procedure concept of rule 9.100

has been retained with changes making the procedure fit trial court procedure. The requirement of attaching a copy of the record in subdivision (b) may not be possible within the time allowed for the initial pleading because of the unavailability of the record. In that event the plaintiff should file a motion to extend the time to allow the preparation of the record and supply it when prepared. The filing of a motion to extend the time should be sufficient to extend it until the motion can be decided by the court.

Committee Notes

2012 Amendment. Subdivision (d)(5) is amended to reflect the relocation of the service rule from rule 1.080 to Fla. R. Jud. Admin. 2.516.

2013 Amendment. Rule 1.630 has been amended to remove any reference to certiorari proceedings, which instead are governed by the Florida Rules of Appellate Procedure. The Florida Rules of Appellate Procedure apply when the circuit courts exercise their appellate jurisdiction.

RULE 1.650. MEDICAL MALPRACTICE PRESUIT SCREENING RULE

(a) Scope of Rule. This rule applies only to the procedures prescribed by section 766.106, Florida Statutes, for presuit screening of claims for medical malpractice.

(b) Service of Notice of Intent to Initiate Litigation.

(1) Before filing a complaint for medical negligence, a claimant must serve a notice of intent to initiate litigation on each prospective defendant by any of the verifiable means provided by section 766.106(2)(a), Florida Statutes. A notice served on any prospective defendant must operate as notice to that prospective defendant and any other prospective defendant who bears a legal relationship to the prospective defendant served with the notice. The notice must make the served prospective defendant a party to the proceeding under this rule.

(2) The notice must include the names and addresses of all other parties and must be sent to each party.

(3) If, during subsequent litigation, service is challenged in the first response to the complaint, the court must conduct an evidentiary hearing as provided by section 766.106(2)(b)(2), Florida Statutes.

(c) Discovery.

(1) *Types.* After a prospective defendant has been served with a notice of intent to initiate litigation, the parties may obtain presuit screening discovery by 1 or more of the following methods: unsworn statements on oral examination; production of documents or things; physical examinations; written questions; and unsworn statements of treating health care providers. Unless otherwise provided in this rule, the parties must make discoverable information available without formal discovery. Evidence of failure to comply with this rule may be grounds for dismissal of claims or defenses ultimately asserted

(2) *Procedures for Conducting.*

(A) Unsworn Statements. Any party may require other parties to appear for the taking of an unsworn statement. The statements must only be used for the purpose of presuit screening and are not discoverable or admissible in any civil action for any purpose by any party. A party desiring to take the unsworn statement of any party must give reasonable notice in writing to all parties. The notice must state the time and place for taking the statement and the name and address of the party to be examined. Unless otherwise impractical, the examination of any party must be done at the same time by all other parties. Any party may be represented by an attorney at the taking of an unsworn statement. Statements may be transcribed or electronically recorded, or audiovisually recorded. The taking of unsworn statements of minors is subject to the provisions of rule 1.310(b)(8). The taking of unsworn statements is subject to the provisions of rule 1.310(d) and may be terminated for abuses. If abuses occur, the abuses

must be evidence of failure of that party to comply with the good faith requirements of section 766.106, Florida Statutes.

(B) Documents or Things. At any time after service of a notice of intent to initiate litigation on a prospective defendant, a party may request discoverable documents or things. The documents or things must be produced at the expense of the requesting party within 20 days of serving the request. A party is required to produce discoverable documents or things within that party's possession or control. Copies of documents produced in response to the request of any party must be served on all other parties. The party serving the documents must list the name and address of the parties on whom the documents were served, the date of service, the manner of service, and the identity of the document served in the certificate of service. Failure of a party to comply with the above time limits must not relieve that party of its obligation under the statute but must be evidence of failure of that party to comply with the good faith requirements of section 766.106, Florida Statutes.

(C) Physical Examinations. After a prospective defendant has been served with a notice of intent to initiate litigation and within the presuit screening period, a party may require a claimant to submit to a physical examination. The party must give reasonable notice in writing to all parties of the time and place of the examination. Unless otherwise impractical, a claimant must be required to submit to only one examination on behalf of all parties. The practicality of a single examination must be determined by the nature of the claimant's condition as it relates to the potential liability of each party. The report of examination must be made available to all parties on payment of the reasonable cost of reproduction. The report must not be provided to any person not a party at any time. The report must only be used for the purpose of presuit screening and the examining physician may not testify concerning the examination in any subsequent civil action. All requests for physical examinations or notices of unsworn statements must be in writing and a copy served on all parties. The requests or notices must bear a certificate of service identifying the name and address of the person on whom the request or notice is

served, the date of the request or notice, and the manner of service. Any minor required to submit to examination under this rule must have the right to be accompanied by a parent or guardian at all times during the examination, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the minor's examination.

(D) Written Questions. Any party may request answers to written questions, the number of which may not exceed 30, including subparts. The party to whom the written questions are directed must respond within 20 days of service of the questions. Copies of the answers to the written questions must be served on all other parties. The party serving the answer to the written questions shall list the name and address of the parties on whom the answers to the written questions were served, the date of service, and the manner of service in the certificate of service. Failure of a party to comply with the above time limits will not relieve that party of its obligation under the statute, but will be evidence of failure of that party to comply with the good faith requirements of section 766.106, Florida Statutes.

(E) Unsworn Statements of Treating Healthcare Providers. A prospective defendant or his or her legal representative may also take unsworn statements of the claimant's treating healthcare providers. The statements must be limited to those areas that are potentially relevant to the claim of personal injury or wrongful death. Subject to the procedural requirements of subdivision (c)(2)(A), a prospective defendant may take unsworn statements from claimant's treating health care providers. The statements must only be used for the purpose of presuit screening and are not discoverable or admissible in any civil action for any purpose by any party. A party desiring to take the unsworn statement of treating healthcare providers must give reasonable notice in writing to all parties. The notice must state the time and place for taking the statement and the name and address of the treating healthcare provider to be examined. Unless otherwise impractical, the examination of any treating healthcare provider must be done at the same time by all other parties. Any party may be represented by an attorney at the taking of an unsworn

statement of treating healthcare providers. Statements may be transcribed or electronically recorded, or audiovisually recorded. The taking of unsworn statements of a treating healthcare provider is subject to the provisions of rule 1.310(d) and may be terminated for abuses. If abuses occur, the abuses will be evidence of failure of that party to comply with the good faith requirements of section 766.106, Florida Statutes.

(3) *Work Product.* Work product generated by the presuit screening process that is subject to exclusion in a subsequent proceeding is limited to verbal or written communications that originate under the presuit screening process.

(d) Time Requirements.

(1) Before the expiration of any applicable statute of limitations or statute of repose, the notice of intent to initiate litigation must be mailed to the prospective defendant as provided in sections 766.106(2)(a)1.–3., Florida Statutes, or an attempt to serve the prospective defendant must be made in accordance with section 766.106(2)(a)4., Florida Statutes. If an extension has been granted under section 766.104(2), Florida Statutes, or by agreement of the parties, the notice must be mailed or service first attempted within the extended period.

(2) A suit may not be filed against any prospective defendant for a period of 90 days after the notice of intent to initiate litigation was delivered to that party. A suit may be filed against any party at any time after the notice of intent to initiate litigation has been served and after the claimant has received a written rejection of the claim from that party.

(3) To avoid being barred by the applicable statute of limitations, an action must be filed within 60 days or within the remainder of the time of the statute of limitations after the notice of intent to initiate litigation was served, whichever is longer, after the earliest of the following:

(A) The expiration of 90 days after the date of service of the notice of intent to initiate litigation.

(B) The expiration of 180 days after service of the notice of intent to initiate litigation if the claim is controlled by section 768.28(6)(a), Florida Statutes.

(C) Receipt by claimant of a written rejection of the claim.

(D) The expiration of any extension of the 90-day presuit screening period stipulated to by the parties in accordance with section 766.106(4), Florida Statutes.

Committee Notes

2000 Amendment. The reference to the statute of repose was added to subdivision (d)(1) pursuant to *Musculoskeletal Institute Chartered v. Parham*, 745 So.2d 946 (Fla. 1999).

RULE 1.700. RULES COMMON TO MEDIATION AND ARBITRATION

(a) Referral by Presiding Judge or by Stipulation. Except as hereinafter provided or as otherwise prohibited by law, the presiding judge may enter an order referring all or any part of a contested civil matter to mediation or arbitration. The parties to any contested civil matter may file a written stipulation to mediate or arbitrate any issue between them at any time. The order of referral or written stipulation may provide for mediation or arbitration to be conducted in person, through the use of communication technology as that term is defined in Florida Rule of General Practice and Judicial Administration 2.530, or by a combination thereof. Absent direction in the order of referral, mediation or arbitration must be conducted in person, unless the parties stipulate or the court, on its own motion or on motion by a party, otherwise orders that the proceeding be conducted by communication technology or by a combination of communication technology and in-person participation.

(1) *Conference or Hearing Date.* Unless otherwise ordered by the court, the first mediation conference or arbitration hearing must be held within 60 days of the order of referral.

(2) *Notice.* Within 15 days after the designation of the mediator or the arbitrator, the court or its designee, who may be the mediator or the chief arbitrator, must notify the parties in writing of the date, the time, and, as applicable, the place of the conference or hearing and the instructions for access to communication technology that will be used for the conference or hearing, unless the order of referral, other order of the court or written stipulation specifies this information.

(b) Motion to Dispense with Mediation and Arbitration. A party may move, within 15 days after the order of referral, to dispense with mediation or arbitration, if:

(1) the issue to be considered has been previously mediated or arbitrated between the same parties pursuant to Florida law;

(2) the issue presents a question of law only;

(3) the order violates rule 1.710(b) or rule 1.800; or

(4) other good cause is shown.

(c) Motion to Defer Mediation or Arbitration. Within 15 days of the order of referral, any party may file a motion with the court to defer the proceeding. The movant shall set the motion to defer for hearing prior to the scheduled date for mediation or arbitration. Notice of the hearing shall be provided to all interested parties, including any mediator or arbitrator who has been appointed. The motion shall set forth, in detail, the facts and circumstances supporting the motion. Mediation or arbitration shall be tolled until disposition of the motion.

(d) Disqualification of a Mediator or Arbitrator. Any party may move to enter an order disqualifying a mediator or an arbitrator for good cause. If the court rules that a mediator or arbitrator is disqualified from hearing a case, an order shall be entered setting forth the name of a qualified replacement. Nothing in this provision shall preclude mediators or arbitrators from disqualifying themselves or refusing any assignment. The time for

mediation or arbitration shall be tolled during any periods in which a motion to disqualify is pending.

RULE 1.710. MEDIATION RULES

(a) Completion of Mediation. Mediation shall be completed within 45 days of the first mediation conference unless extended by order of the court or by stipulation of the parties.

(b) Exclusions from Mediation. A civil action shall be ordered to mediation or mediation in conjunction with arbitration upon stipulation of the parties. A civil action may be ordered to mediation or mediation in conjunction with arbitration upon motion of any party or by the court, if the judge determines the action to be of such a nature that mediation could be of benefit to the litigants or the court. Under no circumstances may the following categories of actions be referred to mediation:

(1) Bond estreatures.

(2) Habeas corpus and extraordinary writs.

(3) Bond validations.

(4) Civil or criminal contempt.

(5) Other matters as may be specified by administrative order of the chief judge in the circuit.

(c) Discovery. Unless stipulated by the parties or ordered by the court, the mediation process shall not suspend discovery.

Committee Notes

1994 Amendment. The Supreme Court Committee on Mediation and Arbitration Rules encourages crafting a combination of dispute resolution processes without creating an unreasonable barrier to the traditional court system.

RULE 1.720. MEDIATION PROCEDURES

(a) Interim or Emergency Relief. A party may apply to the court for interim or emergency relief at any time. Mediation shall continue while such a motion is pending absent a contrary order of the court, or a decision of the mediator to adjourn pending disposition of the motion. Time for completing mediation shall be tolled during any periods when mediation is interrupted pending resolution of such a motion.

(b) Appearance at Mediation. A party is deemed to appear at a mediation conference if the following persons are physically present, or if authorized under rule 1.700(a), participating through the use of communication technology:

(1) The party or a party representative having full authority to settle without further consultation; and

(2) The party's counsel of record, if any; and

(3) A representative of the insurance carrier for any insured party who is not such carrier's outside counsel and who has full authority to settle in an amount up to the amount of the plaintiff's last demand or policy limits, whichever is less, without further consultation.

(c) Party Representative Having Full Authority to Settle. A "party representative having full authority to settle" shall mean the final decision maker with respect to all issues presented by the case who has the legal capacity to execute a binding settlement agreement on behalf of the party. Nothing herein shall be deemed to require any party or party representative who appears at a mediation conference in compliance with this rule to enter into a settlement agreement.

(d) Appearance by Public Entity. If a party to mediation is a public entity required to operate in compliance with chapter 286, Florida Statutes, that party is deemed to appear at a mediation conference by the presence of a representative with full authority to negotiate on behalf of the entity and to recommend settlement to

the appropriate decision-making body of the entity. Such representative may be physically present or, if authorized under rule 1.700 (a), may participate through the use of communication technology.

(e) Certification of Authority. Unless otherwise stipulated by the parties, each party, 10 days prior to appearing at a mediation conference, must file with the court and serve all parties a written notice identifying the person or persons who will appear at the mediation conference as a party representative or as an insurance carrier representative, and confirming that those persons have the authority required by subdivision (b).

(f) Sanctions for Failure to Appear. If a party fails to appear at a duly noticed mediation conference without good cause, the court, upon motion, shall impose sanctions, including award of mediation fees, attorneys' fees, and costs, against the party failing to appear. The failure to file a confirmation of authority required under subdivision (e) above, or failure of the persons actually identified in the confirmation to appear at the mediation conference, shall create a rebuttable presumption of a failure to appear.

(g) Adjournments. The mediator may adjourn the mediation conference at any time and may set times for reconvening the adjourned conference notwithstanding rule 1.710(a). No further notification is required for parties present at the adjourned conference.

(h) Counsel. The mediator shall at all times be in control of the mediation and the procedures to be followed in the mediation. Counsel shall be permitted to communicate privately with their clients. In the discretion of the mediator and with the agreement of the parties, mediation may proceed in the absence of counsel unless otherwise ordered by the court.

(i) Communication with Parties or Counsel. The mediator may meet and consult privately with any party or parties or their counsel.

(j) Appointment of the Mediator.

(1) Within 10 days of the order of referral, the parties may agree upon a stipulation with the court designating:

(A) a certified mediator, other than a senior judge presiding over civil cases as a judge in that circuit; or

(B) a mediator, other than a senior judge, who is not certified as a mediator but who, in the opinion of the parties and upon review by the presiding judge, is otherwise qualified by training or experience to mediate all or some of the issues in the particular case.

(2) If the parties cannot agree upon a mediator within 10 days of the order of referral, the plaintiff or petitioner shall so notify the court within 10 days of the expiration of the period to agree on a mediator, and the court shall appoint a certified mediator selected by rotation or by such other procedures as may be adopted by administrative order of the chief judge in the circuit in which the action is pending. At the request of either party, the court shall appoint a certified circuit court mediator who is a member of The Florida Bar.

(3) If a mediator agreed upon by the parties or appointed by a court cannot serve, a substitute mediator can be agreed upon or appointed in the same manner as the original mediator. A mediator shall not mediate a case assigned to another mediator without the agreement of the parties or approval of the court. A substitute mediator shall have the same qualifications as the original mediator.

(k) Compensation of the Mediator. The mediator may be compensated or uncompensated. When the mediator is compensated in whole or part by the parties, the presiding judge may determine the reasonableness of the fees charged by the mediator. In the absence of a written agreement providing for the mediator's compensation, the mediator shall be compensated at the hourly rate set by the presiding judge in the referral order. Where appropriate, each party shall pay a proportionate share of the total charges of the mediator. Parties may object to the rate of the

mediator's compensation within 15 days of the order of referral by serving an objection on all other parties and the mediator.

Committee Notes

2011 Amendment. Mediated settlement conferences pursuant to this rule are meant to be conducted when the participants actually engaged in the settlement negotiations have full authority to settle the case without further consultation. New language in subdivision (c) now defines "a party representative with full authority to settle" in two parts. First, the party representative must be the final decision maker with respect to all issues presented by the case in question. Second, the party representative must have the legal capacity to execute a binding agreement on behalf of the settling party. These are objective standards. Whether or not these standards have been met can be determined without reference to any confidential mediation communications. A decision by a party representative not to settle does not, in and of itself, signify the absence of full authority to settle. A party may delegate full authority to settle to more than one person, each of whom can serve as the final decision maker. A party may also designate multiple persons to serve together as the final decision maker, all of whom must appear at mediation.

New subdivision (e) provides a process for parties to identify party representative and representatives of insurance carriers who will be attending the mediation conference on behalf of parties and insurance carriers and to confirm their respective settlement authority by means of a direct representation to the court. If necessary, any verification of this representation would be upon motion by a party or inquiry by the court without involvement of the mediator and would not require disclosure of confidential mediation communications. Nothing in this rule shall be deemed to impose any duty or obligation on the mediator selected by the parties or appointed by the court to ensure compliance.

The concept of self determination in mediation also contemplates the parties' free choice in structuring and organizing their mediation sessions, including those who are to participate.

Accordingly, elements of this rule are subject to revision or qualification with the mutual consent of the parties.

RULE 1.730. COMPLETION OF MEDIATION

(a) No Agreement. If the parties do not reach an agreement as to any matter as a result of mediation, the mediator must report the lack of an agreement to the court without comment or recommendation. With the consent of the parties, the mediator's report may also identify any pending motions or outstanding legal issues, discovery process, or other action by any party which, if resolved or completed, would facilitate the possibility of a settlement.

(b) Agreement. If a partial or final agreement is reached, it must be reduced to writing and signed by each party or the party's representative having full authority to settle under rule 1.720(c). Signatures may be original or electronic and may be in counterparts. The agreement must be filed when required by law or with the parties' consent. A report of the agreement must be submitted to the court or a stipulation of dismissal will be filed. By stipulation of the parties, the agreement may be transcribed or electronically recorded. In such event, the transcript may be filed with the court. The mediator must report the existence of the signed or transcribed agreement to the court without comment within 10 days. No partial or final agreement under this rule may be reported to the court except as provided in this rule.

(c) Enforceability. The parties may not object to the enforceability of an agreement on the ground that communication technology was used for participation in the mediation conference if the use was authorized under rule 1.700(a).

(d) Imposition of Sanctions. In the event of any breach or failure to perform under the agreement, the court on motion may impose sanctions, including costs, attorneys' fees, or other appropriate remedies including entry of judgment on the agreement.

Committee Notes

1996 Amendment. Subdivision (b) is amended to provide for partial settlements, to clarify the procedure for concluding mediation by report or stipulation of dismissal, and to specify the procedure for reporting mediated agreements to the court. The reporting requirements are intended to ensure the confidentiality provided for in section 44.102(3), Florida Statutes, and to prevent premature notification to the court.

RULE 1.750. COUNTY COURT ACTIONS

(a) Applicability. This rule applies to the mediation of county court matters and issues only and controls over conflicting provisions in rules 1.700, 1.710, 1.720, and 1.730.

(b) Limitation on Referral to Mediation. When a mediation program utilizing volunteer mediators is unavailable or otherwise inappropriate, county court matters may be referred to a mediator or mediation program which charges a fee. Such order of referral shall advise the parties that they may object to mediation on grounds of financial hardship or on any ground set forth in rule 1.700(b). If a party objects, mediation shall not be conducted until the court rules on the objection. The court may consider the amount in controversy, the objecting party's ability to pay, and any other pertinent information in determining the propriety of the referral. When appropriate, the court shall apportion mediation fees between the parties.

(c) Scheduling. In small claims actions, the mediator shall be appointed and the mediation conference held during or immediately after the pretrial conference unless otherwise ordered by the court. In no event shall the mediation conference be held more than 14 days after the pretrial conference.

(d) Appointment of the Mediator. In county court actions not subject to the Florida Small Claims Rules, rule 1.720(f) shall apply unless the case is sent to a mediation program provided at no cost to the parties.

(e) Appearance at Mediation. In small claims actions, an attorney may appear on behalf of a party at mediation provided that

the attorney has full authority to settle without further consultation. Unless otherwise ordered by the court, a nonlawyer representative may appear on behalf of a party to a small claims mediation if the representative has the party's signed written authority to appear and has full authority to settle without further consultation. In either event, the party need not appear in person. In any other county court action, a party will be deemed to appear if the persons set forth in rule 1.720(b) are physically present or, if authorized under rule 1.700(a), participating through the use of communication technology.

(f) Agreement. Any agreements reached as a result of small claims mediation must be written in the form of a stipulation. The stipulation may be entered as an order of the court. Signatures for the stipulation may be original, electronic, or facsimile and may be in counterparts.

RULE 1.800. EXCLUSIONS FROM ARBITRATION

A civil action shall be ordered to arbitration or arbitration in conjunction with mediation upon stipulation of the parties. A civil action may be ordered to arbitration or arbitration in conjunction with mediation upon motion of any party or by the court, if the judge determines the action to be of such a nature that arbitration could be of benefit to the litigants or the court. Under no circumstances may the following categories of actions be referred to arbitration:

(1) Bond estreatures.

(2) Habeas corpus or other extraordinary writs.

(3) Bond validations.

(4) Civil or criminal contempt.

(5) Such other matters as may be specified by order of the chief judge in the circuit.

Committee Notes

1994 Amendment. The Supreme Court Committee on Mediation and Arbitration Rules encourages crafting a combination of dispute resolution processes without creating an unreasonable barrier to the traditional court system.

RULE 1.810. SELECTION AND COMPENSATION OF ARBITRATORS

(a) Selection. The chief judge of the circuit or a designee shall maintain a list of qualified persons who have agreed to serve as arbitrators. Cases assigned to arbitration shall be assigned to an arbitrator or to a panel of 3 arbitrators. The court shall determine the number of arbitrators and designate them within 15 days after service of the order of referral in the absence of an agreement by the parties. In the case of a panel, one of the arbitrators shall be appointed as the chief arbitrator. Where there is only one arbitrator, that person shall be the chief arbitrator.

(b) Compensation. The chief judge of each judicial circuit shall establish the compensation of arbitrators subject to the limitations in section 44.103(3), Florida Statutes.

Committee Notes

2003 Amendment. The statutory reference in subdivision (b) is changed to reflect changes in the statutory numbering.

RULE 1.820. HEARING PROCEDURES FOR NON-BINDING ARBITRATION

(a) Authority of the Chief Arbitrator. The chief arbitrator has authority to commence and adjourn the arbitration hearing and carry out other duties under section 44.103, Florida Statutes. The chief arbitrator does not have authority to hold any person in contempt or to in any way impose sanctions against any person.

(b) Conduct of the Arbitration Hearing.

(1) The chief judge of each judicial circuit must set procedures for determining the time and place of the arbitration

hearing and may establish other procedures for the expeditious and orderly operation of the arbitration hearing to the extent such procedures are not in conflict with any rules of court.

(2) Hearing procedures must be included in the notice of arbitration hearing sent to the parties and arbitration panel.

(3) Individual parties or authorized representatives of corporate parties must attend the arbitration hearing unless excused in advance by the chief arbitrator for good cause shown.

(c) Rules of Evidence. The hearing must be conducted informally. Presentation of testimony must be kept to a minimum, and matters must be presented to the arbitrator(s) primarily through the statements and arguments of counsel.

(d) Orders. The chief arbitrator may issue instructions as are necessary for the expeditious and orderly conduct of the hearing. The chief arbitrator's instructions are not appealable. On notice to all parties the chief arbitrator may apply to the presiding judge for orders directing compliance with such instructions. Instructions enforced by a court order are appealable as are other orders of the court.

(e) Default of a Party. When a party fails to appear at a hearing, the chief arbitrator may proceed with the hearing, and the arbitration panel must render a decision based on the facts and circumstances as presented by the parties present.

(f) Record and Transcript. Any party may have a record and transcript made of the arbitration hearing at that party's expense.

(g) Completion of the Arbitration Process.

(1) Arbitration must be completed within 30 days of the first arbitration hearing unless extended by order of the court on motion of the chief arbitrator or of a party. Extensions of time must not exceed 60 days from the date of the first arbitration hearing.

(2) On the completion of the arbitration process, the arbitrator(s) must render a decision. In the case of a panel, a decision must be final on a majority vote of the panel.

(3) Within 10 days of the final adjournment of the arbitration hearing, the arbitrator(s) shall notify the parties, in writing, of their decision. The arbitration decision may set forth the issues in controversy and the arbitrator('s)(s') conclusions and findings of fact and law. The arbitrator('s)(s') decision and the originals of any transcripts shall be sealed and filed with the clerk at the time the parties are notified of the decision.

(4) Any transcripts or exhibits used in the arbitration must, unless otherwise ordered by the court or agreed by the parties, be retained by the party who introduced the transcripts or exhibits until the conclusion of the case, or until otherwise ordered by the court.

(h) Notice of Rejection of the Arbitration Decision and Request for Trial. To reject the arbitration decision, within 20 days of service of the arbitrator('s)(s') written decision, any party must file a notice of rejection of the arbitration decision and request for trial in the same document. No action or inaction by any party, other than the filing of the notice, will be deemed a rejection of the arbitration decision. If a notice of rejection of the arbitration decision and request for trial is filed by any party, any party having a third-party claim at issue at the time of arbitration may file a notice of rejection of the arbitration decision and request for trial within 10 days of service of the first notice of rejection of the arbitration decision and request for trial. If a notice of rejection of the arbitration decision and request for trial is not made within 20 days of service on the parties of the decision, the decision must be referred to the presiding judge, who must enter such orders and judgments as may be required to carry out the terms of the decision as provided by section 44.103(5), Florida Statutes.

Committee Notes

1988 Adoption. Arbitration proceedings should be informal and expeditious. The court should take into account the nature of

the proceedings when determining whether to award costs and attorneys' fees after a trial de novo. Counsel are free to file exceptions to an arbitration decision or award at the time it is to be considered by the court. The court should consider such exceptions when determining whether to award costs and attorneys' fees. The court should consider rule 1.442 concerning offers of judgment and section 45.061, Florida Statutes (1985), concerning offers of settlement, as statements of public policy in deciding whether fees should be awarded.

1994 Amendment. The Supreme Court Committee on Mediation and Arbitration Rules recommends that a copy of the local arbitration procedures be disseminated to the local bar.

2003 Amendment. The statutory reference in subdivision (h) is changed to reflect changes in the statutory numbering.

2007 Amendment. Subdivision (h) is amended to avoid the unintended consequences for defendants with third-party claims who prevailed at arbitration but could not pursue those claims in a circuit court action because no motion for trial was filed despite a plaintiff or plaintiffs having filed a motion for trial that covered those claims. See *State Dept. of Transportation v. BellSouth Telecommunications, Inc.*, 859 So. 2d 1278 (Fla. 4th DCA 2003).

RULE 1.830. VOLUNTARY BINDING ARBITRATION

(a) Absence of Party Agreement.

(1) *Compensation.* In the absence of an agreement by the parties as to compensation of the arbitrator(s), the court shall determine the amount of compensation subject to the provisions of section 44.104(3), Florida Statutes.

(2) *Hearing Procedures.* Subject to these rules and section 44.104, Florida Statutes, the parties may, by written agreement before the hearing, establish the hearing procedures for voluntary binding arbitration, including the use of communication technology as that term is defined in Florida Rule of General

Practice and Judicial Administration 2.530. In the absence of such agreement, the court shall establish the hearing procedures.

(b) Record and Transcript. A record and transcript may be made of the arbitration hearing if requested by any party or at the direction of the chief arbitrator. The record and transcript may be used in subsequent legal proceedings subject to the Florida Rules of Evidence.

(c) Arbitration Decision and Appeal.

(1) The arbitrator(s) shall serve the parties with notice of the decision and file the decision with the court within 10 days of the final adjournment of the arbitration hearing.

(2) A voluntary binding arbitration decision may be appealed within 30 days after service of the decision on the parties. Appeal is limited to the grounds specified in section 44.104(10), Florida Statutes.

(3) If no appeal is filed within the time period set out in subdivision (2) of this rule, the decision shall be referred to the presiding judge who shall enter such orders and judgments as required to carry out the terms of the decision as provided under section 44.104, Florida Statutes.

RULE 1.900. FORMS

(a) Process. The following forms of process, notice of lis pendens, and notice of action are sufficient. Variations from the forms do not void process or notices that are otherwise sufficient.

(b) Other Forms. The other forms are sufficient for the matters that are covered by them. So long as the substance is expressed without prolixity, the forms may be varied to meet the facts of a particular case.

(c) Formal Matters. Captions, except for the designation of the document, are omitted from the forms. A general form of

caption is the first form. Signatures are omitted from pleadings and motions.

FORM 1.901. CAPTION

(a) General Form

(name of court)

A.B.,	)	
Plaintiff,	)	
	)	
-vs-	)	No. .....
C.D.,	)	
Defendant	)	
	)	

(designation of pleading)

(b) Petition.

(name of court)

In re the Petition	)	
A.B for (type of	)	No. .....
relief)	)	

PETITION FOR (type of relief)

(c) In rem proceedings.

(name of court)

In re (name of general	)	
description of property)	)	No. .....

(designation of pleading)

(d) Forfeiture proceedings.

(name of court)

In re (name or general	)	
description of property)	)	No. .....

Committee Notes

1980 Amendment. Subdivision (b) is added to show the form of caption for a petition.

2010 Amendment. Subdivision (c) and (d) are added to show the form of caption for in rem proceedings, including in rem forfeiture proceedings.

FORM 1.902. SUMMONS

(a) General Form.

SUMMONS

THE STATE OF FLORIDA:

To Each Sheriff of the State:

YOU ARE COMMANDED to serve this summons and a copy of the complaint or petition in this action on defendant .....

Each defendant is required to serve written defenses to the complaint or petition on ....., plaintiff's attorney, whose address is ....., within 20 days[1] after service of this summons on that defendant, exclusive of the day of service, and to file the original of the defenses with the clerk of this court either before service on plaintiff's attorney or immediately after service. A defendant may either file the response electronically by using the Florida Courts E-filing Portal (MyFLCourtAccess.com), or by filing the written response with the clerk of court. If a defendant fails to do so, a default will be entered against that defendant for the relief demanded in the complaint or petition.

DATED on .....

(Name of Clerk)
As Clerk of the Court
By_____.
As Deputy Clerk

(b) Form for Personal Service on Natural Person.

SUMMONS

THE STATE OF FLORIDA:

To Each Sheriff of the State:

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[1] Except when suit is brought under section 768.28, Florida Statutes, if the State of Florida, one of its agencies, or one of its officials or employees sued in the official's or employee's official capacity is a defendant, the time to be inserted as to it is 40 days. When suit is brought under section 768.28, Florida Statutes, the time to be inserted is 30 days.

YOU ARE COMMANDED to serve this summons and a copy of the complaint in this lawsuit on defendant .....

DATED on .....

CLERK OF THE CIRCUIT COURT

(SEAL)

(Name of Clerk)
As Clerk of the Court
By_____.
As Deputy Clerk

IMPORTANT

1. A lawsuit has been filed against you.

2. You have 20 calendar days after this summons is served on you to file a written response to the attached complaint with the clerk of this court. If you choose to file a written response yourself, you may either file the response electronically by using the Florida Courts E-filing Portal (MyFLCourtAccess.com) or by filing the written response with the clerk of court.

3. A phone call will not protect you. Your written response, including the case number given above and the names of the parties, must be filed if you want the court to hear your side of the case.

4. If you do not file your response on time, you may lose the case, and your wages, money, and property may be taken without further warning from the court. There may be other legal requirements.

5. You may want to call an attorney right away. If you do not know an attorney, you can contact the Lawyer Referral Service listed on The Florida Bar's website (floridabar.org). If you cannot afford a lawyer, you may be eligible for free legal aid. You can locate legal aid programs by searching for "legal aid" on The Florida Bar's website.

6. If you file your written response directly with the clerk of court, you must also send a copy of your written response to the "Plaintiff/Plaintiff's Attorney" named below.

7. You must include an e-mail address in your written response, unless the clerk excuses you from electronic service under Florida Rule of General Practice and Judicial Administration 2.516. A party not represented by

an attorney may be excused from e-mail service by filing Florida Rule of General Practice and Judicial Administration form 2.601 with the clerk.

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [*identify applicable court personnel by name, address, and telephone number*] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

_____

Plaintiff/Plaintiff's Attorney
Attorney's Name: …….
Address: …….
Telephone Number: …….
E-mail Address: …….
Florida Bar No. …….

(c) Forms for Service by Mail; Registered Mail.

(1) *Notice of Lawsuit and Request for Waiver of Service of Process.*

NOTICE OF COMMENCEMENT OF ACTION

TO: (Name of defendant or defendant's representative)

A lawsuit has been commenced against you (or the entity on whose behalf you are addressed). A copy of the complaint is attached to this notice. The complaint has been filed in the (Circuit or County) Court for the ……. and has been assigned case no.: …….

This is not a formal summons or notification from the court, but is rather my request that you sign the enclosed waiver of service of process form in order to save the cost of serving you with a judicial summons and an additional copy of the complaint. The cost of service will be avoided if I receive a signed copy of the waiver within 20 days (30 days if you do not reside in the United States) after the date you receive this notice and request for waiver. I have enclosed a stamped self-addressed envelope for your use. An extra copy of the notice and request, including the waiver, is also attached for your records.

If you comply with this request and return the signed waiver, it will be filed with the court and no summons will be served on you. The lawsuit will then proceed as if you had been served on the date the waiver is filed, except

that you will not be obligated to respond to the complaint until 60 days after the date on which you received the notice and request for waiver.

If I do not receive the signed waiver within 20 days from the date you received the notice and the waiver of service of process form, formal service of process may be initiated in a manner authorized by the Florida Rules of Civil Procedure. You (or the party on whose behalf you are addressed) will be required to pay the full cost of such service unless good cause is shown for the failure to return the waiver of service.

I hereby certify that this notice of lawsuit and request for waiver of service of process has been sent to you on behalf of the plaintiff on .....(date)……

_____

Plaintiff's Attorney or
Unrepresented Plaintiff

(2) *Waiver of Service of Process.*

WAIVER OF SERVICE OF PROCESS

TO: (Name of plaintiff's attorney or unrepresented plaintiff)

I acknowledge receipt of your request that I waive service of process in the lawsuit of …… v. …… in the …… Court in …… I have also received a copy of the complaint, 2 copies of this waiver, and a means by which I can return the signed waiver to you without cost to me.

I agree to save the cost of service of process and an additional copy of the complaint in this lawsuit by not requiring that I (or the entity on whose behalf I am acting) be served with judicial process in the manner provided by Florida Rule of Civil Procedure 1.070.

If I am not the defendant to whom the notice of lawsuit and waiver of service of process was sent, I declare that my relationship to the entity or person to whom the notice was sent and my authority to accept service on behalf of such person or entity is as follows:

(describe relationship to person or entity
and authority to accept service)

I (or the entity on whose behalf I am acting) will retain all defenses or objections to the lawsuit or to the jurisdiction or venue of the court except for any objections based on a defect in the summons or in the service of the summons.

I understand that a judgment may be entered against me (or the party on whose behalf I am acting) if a written response is not served on you within 60 days from the date I received the notice of lawsuit and request for waiver of service of process.

DATED on .....

_____

Defendant or Defendant's
Representative

Committee Notes

1988 Amendment. Two forms are now provided: 1 for personal service on natural persons and 1 for other service by summons. The new form for personal service on natural persons is included to ensure awareness by defendants or respondents of their obligations to respond.

The summons form for personal service on natural persons is to be used for service on natural persons under the following provisions: sections 48.031 (service of process generally), 48.041 (service on minors), 48.042 (service on incompetents), 48.051 (service on state prisoners), 48.183 (service of process in action for possession of residential premises), and 48.194 (personal service outside the state), Florida Statutes.

The former, general summons form is to be used for all other service by summons, including service under sections 48.061 (service on partnership), 48.071 (service on agents of nonresidents doing business in the state), 48.081 (service on corporation), 48.101 (service on dissolved corporations), 48.111 (service on public agencies or officers), 48.121 (service on the state), 48.131 (service on alien property custodian), 48.141 (service on labor unions), 48.151 (service on statutory agents for certain purposes), Florida Statutes, and all statutes providing for substituted service on the secretary of state.

The form for personal service on natural persons contains Spanish and French versions of the English text to ensure effective notice on all Floridians. In the event of space problems in the summons form, the committee recommends that the non-English portions be placed on the reverse side of the summons.

1992 Amendment. (b): The title is amended to eliminate confusion by the sheriffs in effecting service.

1996 Amendment. Form 1.902(c) was added for use with rule 1.070(i).

2007 Amendment. Subdivision (a) is amended to conform form 1.902 to the statutory requirements of sections 48.111, 48.121, and 768.28, Florida Statutes. The form is similar to Federal Rule of Civil Procedure Form 1.

FORM 1.903. CROSSCLAIM SUMMONS

CROSSCLAIM SUMMONS

THE STATE OF FLORIDA:
To Each Sheriff of the State:

YOU ARE COMMANDED to serve this summons and a copy of the crossclaim in this action on defendant …….

Each crossclaim defendant is required to serve written defenses to the crossclaim on ……., defendant's attorney, whose address is ……., and on ……., plaintiff's attorney, whose address is ……., within 20 days after service of this summons on that defendant, exclusive of the day of service, and to file the original of the defenses with the clerk of this court either before service on the attorneys or immediately thereafter. If a crossclaim defendant fails to do so, a default will be entered against that defendant for the relief demanded in the crossclaim.

DATED on: …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

FORM 1.904. THIRD-PARTY SUMMONS

THIRD-PARTY SUMMONS

THE STATE OF FLORIDA:
To Each Sheriff of the State:

YOU ARE COMMANDED to serve this summons and a copy of the third-party complaint or petition in this action on third-party defendant, …….

Each third-party defendant is required to serve written defenses to the third-party complaint or petition on ……., plaintiff's attorney, whose address is ……., and on ……., defendant's attorney, whose address is ……., within 20 days after service of this summons on that defendant, exclusive of the date of service, and to file the original of the defenses with the clerk of this court either before service on the attorneys or immediately thereafter. If a third-

party defendant fails to do so, a default will be entered against that defendant for the relief demanded in the third-party complaint or petition.

DATED on …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

FORM 1.905. ATTACHMENT

WRIT OF ATTACHMENT

THE STATE OF FLORIDA:
To Each Sheriff of the State:

YOU ARE COMMANDED to attach and take into custody so much of the lands, tenements, goods, and chattels of defendant, ……., as is sufficient to satisfy the sum of $…….and costs.

ORDERED at ……., Florida, on …..(date)……

_____
Judge

Committee Notes

1980 Amendment. The direction is modernized and the combination with the summons deleted. A writ of attachment must now be issued by a judge under section 76.03, Florida Statutes (1979).

FORM 1.906. ATTACHMENT — FORECLOSURE

WRIT OF ATTACHMENT

THE STATE OF FLORIDA:
To Each Sheriff of the State:

YOU ARE COMMANDED to take and hold the following described property:

(describe property)

or so much of it as can be found sufficient to satisfy the debt to be foreclosed.

ORDERED at ....., Florida, on .....(date).....

_____
Judge

Committee Notes

1980 Amendment. The direction is modernized and the combination with the summons deleted. A writ of attachment must now be issued by a judge under section 76.03, Florida Statutes (1979).

FORM 1.907. GARNISHMENT

(a) Writ of Garnishment.

WRIT OF GARNISHMENT

THE STATE OF FLORIDA:
To Each Sheriff of the State:

YOU ARE COMMANDED to summon the garnishee, ……. to serve an answer to this writ on ……., plaintiff's attorney, whose address is , ……. within 20 days after service on the garnishee, exclusive of the day of service, and to file the original with the clerk of this court either before service on the attorney or immediately thereafter, stating whether the garnishee is indebted to defendant, ……., at the time of the answer or was indebted at the time of service of the writ, or at any time between such times, and in what sum and what tangible and intangible personal property of the defendant the garnishee is in possession or control of at the time of the answer or had at the time of service of this writ, or at any time between such times, and whether the garnishee knows of any other person indebted to the defendant or who may be in possession or control of any of the property of the defendant. The amount set in plaintiff's motion is $…….

DATED on …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

(b) Continuing Writ of Garnishment against Salary or Wages.

CONTINUING WRIT OF GARNISHMENT
AGAINST SALARY OR WAGES

THE STATE OF FLORIDA:
To Each Sheriff of the State:

YOU ARE COMMANDED to summon the garnishee, ……., whose address is ……., who is required to serve an answer to this writ on ……., plaintiff's attorney, whose address is …….,, within 20 days after service of this writ, exclusive of the day of service, and to file the original with the clerk of court either before service on the attorney or immediately thereafter. The answer shall state whether the garnishee is the employer of the defendant,……. and whether the garnishee is indebted to the defendant by reason of salary or wages. The garnishee's answer shall specify the periods of payment (for example, weekly, biweekly, or monthly) and amount of salary or wages and be based on the defendant's earnings for the pay period during which this writ is served on the garnishee.

During each pay period, a portion of the defendant's salary or wages as it becomes due shall be held and not disposed of or transferred until further order of this court. The amount of salary or wages to be withheld for each pay period shall be made in accordance with the following paragraph. This writ shall continue until the plaintiff's judgment is paid in full or until otherwise provided by court order.

Federal law (15 U.S.C. §§1671–1673) limits the amount to be withheld from salary or wages to no more than 25% of any individual defendant's disposable earnings (the part of earnings remaining after the deduction of any amounts required by law to be deducted) for any pay period or to no more than the amount by which the individual's disposable earnings for the pay period exceed 30 times the federal minimum hourly wage, whichever is less.

For administrative costs, the garnishee may collect $……. against the salary or wages of the defendant for the first deduction and $……. for each deduction thereafter.

The total amount of the final judgment outstanding as set out in the plaintiff's motion is $…….

FAILURE TO FILE AN ANSWER WITHIN THE TIME REQUIRED MAY RESULT IN THE ENTRY OF JUDGMENT AGAINST THE GARNISHEE FOR THE ABOVE TOTAL AMOUNT OF $…….

ORDERED at ……,, Florida, on …..(date)……

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

Committee Notes

1992 Amendment. This form is to be used to effectuate section 77.0305, Florida Statutes.

1996 Amendment. The following was adopted as a committee note, with no changes to the text of the forms: Both forms 1.907(a) and (b) are for use after judgment has been entered against a defendant. If a plaintiff seeks a writ of garnishment before judgment is entered, notice to the defendant of the right to an immediate hearing under sections 73.031 and 77.07, Florida Statutes, must be included in the writ and served on the defendant.

FORM 1.908. WRIT OF REPLEVIN

WRIT OF REPLEVIN

THE STATE OF FLORIDA:
To Each Sheriff of the State:

YOU ARE COMMANDED to replevy the goods and chattels in possession of the defendant, ..., described as follows:

(describe property)

and to dispose of it according to law.

Dated on.....

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

Committee Notes

1980 Amendment. The form is amended in accordance with the statutory changes as a result of *Fuentes v. Shevin*, 407 U.S. 67, 92 S. Ct. 1983, 32 L. Ed. 2d 556 (1972). The sheriff is commanded to dispose of the property according to law because of the conflict between sections 78.068(4) and 78.13, Florida Statutes (1979). The former apparently contemplates that the sheriff will hold the property for 5 days within which the bond can be posted, while the latter retains the old 3-day time period.

1996 Amendment. This amendment only changes the name of the form.

FORM 1.909. DISTRESS

DISTRESS WRIT

THE STATE OF FLORIDA:
To the Sheriff of ……. County, Florida:

YOU ARE COMMANDED to serve this writ and a copy of the complaint on defendant …….

This distress writ subjects all property liable to distress for rent on the following property in ……. County, Florida:

(describe property)

Each defendant is enjoined from damaging, disposing of, secreting, or removing any property liable to be distrained from the rented real property after the time of service of this writ until the sheriff levies on the property or this writ is vacated or the court otherwise orders. If a defendant does not move for dissolution of the writ, the court may order the sheriff to levy on the property liable to distress forthwith after 20 days from the time the complaint in this action is served. The amount claimed in the complaint is the sum of $……. with interest and costs.

DATED on …….

_____
Judge

Committee Notes

1980 Amendment. This form is substantially revised to comply with the statutory changes in section 83.12, Florida Statutes, as amended in 1980 to overcome the unconstitutionality of distress proceedings. See *Phillips v. Guin & Hunt, Inc.*, 344 So. 2d 568 (Fla. 1977). Because the revision is substantial, no struck-through or underscored type is indicated.

FORM 1.910. SUBPOENA FOR TRIAL

(a) For Issuance by Clerk.

SUBPOENA

THE STATE OF FLORIDA:
TO …….:

YOU ARE COMMANDED to appear before the Honorable ……., Judge of the Court, at the ……. County Courthouse in ……., Florida, on ……., at ……. (a.m./p.m.), to testify in this action. If you fail to appear, you may be in contempt of court.

You are subpoenaed to appear by the following attorney, and unless excused from this subpoena by this attorney or the court, you must respond to this subpoena as directed.

DATED on .....

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

.....(Name of Attorney).....
Attorney for .....(Name of Client).....
.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. .....

Any minor subpoenaed for testimony has the right to be accompanied by a parent or guardian at all times during the taking of testimony notwithstanding the invocation of the rule of sequestration of section 90.616, Florida Statutes, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the credibility or accuracy of the minor's testimony, or that the interests of the parent or guardian are in actual or potential conflict with the interests of the minor.

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify applicable court personnel by name, address, and telephone number] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

(b) For Issuance by Attorney of Record.

SUBPOENA

THE STATE OF FLORIDA:
TO .....

YOU ARE COMMANDED to appear before the Honorable . ..... Judge of the Court, at the .....County Courthouse in....., Florida, on .....(date)....., at .....(a.m./p.m.), to testify in this action. If you fail to appear, you may be in contempt of court.

You are subpoenaed to appear by the following attorney, and unless excused from this subpoena by this attorney or the court, you must respond to this subpoena as directed.

DATED on .....

(Name of Attorney)
For the Court

.....(Name of Attorney).....
Attorney for .....(Name of Client).....
.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. .....

Any minor subpoenaed for testimony has the right to be accompanied by a parent or guardian at all times during the taking of testimony notwithstanding the invocation of the rule of sequestration of section 90.616, Florida Statutes, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the credibility or accuracy of the minor's testimony, or that the interests of the parent or guardian are in actual or potential conflict with the interests of the minor.

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify applicable court personnel by name, address, and telephone number] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

Committee Notes

1996 Amendment. Form (b) was added to comply with amendments to rule 1.410.

2013 Amendment. The notice to persons with disabilities was amended to comply with amendments to Fla. R. Jud. Admin. 2.540.

FORM 1.911. SUBPOENA DUCES TECUM FOR TRIAL

(a) For Issuance by Clerk.

SUBPOENA DUCES TECUM

THE STATE OF FLORIDA:
TO .....

YOU ARE COMMANDED to appear before the Honorable ..... Judge of the Court, at the ..... County Courthouse in ....., Florida, on .....(date)....., at .....(a.m./p.m.), to testify in this action and to have with you at

that time and place the following: ……. If you fail to appear, you may be in contempt of court.

You are subpoenaed to appear by the following attorney, and unless excused from this subpoena by this attorney or the court, you must respond to this subpoena as directed.

DATED on …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

…..(Name of Attorney)…..
Attorney for …..(Name of Client)…..
…..Address…..
…..(Telephone number)…..
…..(E-mail address(es))…..
Florida Bar No. …….

Any minor subpoenaed for testimony has the right to be accompanied by a parent or guardian at all times during the taking of testimony notwithstanding the invocation of the rule of sequestration of section 90.616, Florida Statutes, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the credibility or accuracy of the minor's testimony, or that the interests of the parent or guardian are in actual or potential conflict with the interests of the minor.

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify applicable court personnel by name, address, and telephone number] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

(b) For Issuance by Attorney of Record.

SUBPOENA DUCES TECUM

THE STATE OF FLORIDA:
TO …….

YOU ARE COMMANDED to appear before the Honorable ……., Judge of the Court, at the ……. County Courthouse in ……., Florida, on …..(date)….., at ……. (a.m./p.m.), to testify in this action and to have with

you at that time and place the following: ..... If you fail to appear, you may be in contempt of court.

You are subpoenaed to appear by the following attorney, and unless excused from this subpoena by this attorney or the court, you must respond to this subpoena as directed.

DATED on .....

(Name of Attorney)
For the Court

.....(Name of Attorney).....
Attorney for .....(Name of Client).....
.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. .....

Any minor subpoenaed for testimony has the right to be accompanied by a parent or guardian at all times during the taking of testimony notwithstanding the invocation of the rule of sequestration of section 90.616, Florida Statutes, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the credibility or accuracy of the minor's testimony, or that the interests of the parent or guardian are in actual or potential conflict with the interests of the minor.

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify applicable court personnel by name, address, and telephone number] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

Committee Notes

1996 Amendment. Form (b) was added to comply with amendments to rule 1.410.

2013 Amendment. The notice to persons with disabilities was amended to comply with amendments to Fla. R. Jud. Admin. 2.540.

FORM 1.912. SUBPOENA FOR DEPOSITION

(a) For Issuance by Clerk.

SUBPOENA FOR DEPOSITION

THE STATE OF FLORIDA:
TO …….

YOU ARE COMMANDED to appear before a person authorized by law to take depositions at ……. in ……., Florida, on .....(date)....., at ……. (a.m./p.m.), for the taking of your deposition in this action. If you fail to appear, you may be in contempt of court.

You are subpoenaed to appear by the following attorney, and unless excused from this subpoena by this attorney or the court, you must respond to this subpoena as directed.

DATED on …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

.....(Name of Attorney).....
Attorney for .....(Name of Client).....
.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. …….

Any minor subpoenaed for testimony has the right to be accompanied by a parent or guardian at all times during the taking of testimony notwithstanding the invocation of the rule of sequestration of section 90.616, Florida Statutes, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the credibility or accuracy of the minor's testimony, or that the interests of the parent or guardian are in actual or potential conflict with the interests of the minor.

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify attorney or party taking the deposition by name, address and telephone number] at least 7 days before your scheduled deposition, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

(b) For Issuance by Attorney of Record.

SUBPOENA FOR DEPOSITION

THE STATE OF FLORIDA:
TO …….

YOU ARE COMMANDED to appear before a person authorized by law to take depositions at ……. in ……., Florida, on .....(date)....., at ……. (a.m./p.m.), for the taking of your deposition in this action. If you fail to appear, you may be in contempt of court.

You are subpoenaed to appear by the following attorney, and unless excused from this subpoena by this attorney or the court, you must respond to this subpoena as directed.

DATED on …….

(Name of Attorney)
For the Court

.....(Name of Attorney).....
Attorney for .....(Name of Client).....
.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. …….

Any minor subpoenaed for testimony has the right to be accompanied by a parent or guardian at all times during the taking of testimony notwithstanding the invocation of the rule of sequestration of section 90.616, Florida Statutes, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the credibility or accuracy of the minor's testimony, or that the interests of the parent or guardian are in actual or potential conflict with the interests of the minor.

If you are a person with a disability who needs any accommodation in order to participate in this deposition, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify attorney or party taking the deposition by name, address and telephone number] at least 7 days before your scheduled deposition, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

Committee Notes

1996 Amendment. Form (b) was added to comply with amendments to rule 1.410.

2013 Amendment. The notice to persons with disabilities was amended to make the procedure for obtaining accommodation consistent with the procedure required in court proceedings.

FORM 1.913. SUBPOENA DUCES TECUM FOR DEPOSITION

(a) For Issuance by Clerk.

SUBPOENA DUCES TECUM FOR DEPOSITION

THE STATE OF FLORIDA:
TO …….

YOU ARE COMMANDED to appear before a person authorized by law to take depositions at ……. in ……., Florida, on .....(date)....., at ……. (a.m./p.m.), for the taking of your deposition in this action and to have with you at that time and place the following: ……. If you fail to appear, you may be in contempt of court.

You are subpoenaed to appear by the following attorney, and unless excused from this subpoena by this attorney or the court, you must respond to this subpoena as directed.

DATED on …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

.....(Name of Attorney).....
Attorney for .....(Name of Client).....
.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. …….

Any minor subpoenaed for testimony has the right to be accompanied by a parent or guardian at all times during the taking of testimony notwithstanding the invocation of the rule of sequestration of section 90.616, Florida Statutes, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the credibility or accuracy of the minor's testimony, or that the interests of the parent or guardian are in actual or potential conflict with the interests of the minor.

If you are a person with a disability who needs any accommodation in order to participate in this deposition, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify

attorney or party taking the deposition by name, address and telephone number] at least 7 days before your scheduled deposition, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

(b) For Issuance by Attorney of Record.

THE STATE OF FLORIDA:
TO …….

YOU ARE COMMANDED to appear before a person authorized by law to take depositions at ……. in ……., Florida, on …..(date)….., at ……. (a.m./p.m.), for the taking of your deposition in this action and to have with you at that time and place the following: ……. If you fail to appear, you may be in contempt of court.

You are subpoenaed to appear by the following attorney, and unless excused from this subpoena by this attorney or the court, you must respond to this subpoena as directed.

DATED on …….

(Name of Attorney)
For the Court

…..(Name of Attorney)…..
Attorney for …..(Name of Client)…..
…..Address…..
…..(Telephone number)…..
…..(E-mail address(es))…..
Florida Bar No. …….

Any minor subpoenaed for testimony has the right to be accompanied by a parent or guardian at all times during the taking of testimony notwithstanding the invocation of the rule of sequestration of section 90.616, Florida Statutes, except on a showing that the presence of a parent or guardian is likely to have a material, negative impact on the credibility or accuracy of the minor's testimony, or that the interests of the parent or guardian are in actual or potential conflict with the interests of the minor.

If you are a person with a disability who needs any accommodation in order to participate in this deposition, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify attorney or party taking the deposition by name, address and telephone number] at least 7 days before your scheduled deposition, or immediately upon receiving this notification if the time before the scheduled

appearance is less than 7 days; if you are hearing or voice impaired, call 711.

Committee Notes

1996 Amendment. Form (b) was added to comply with amendments to rule 1.410.

2013 Amendment. The notice to persons with disabilities was amended to make the procedure for obtaining accommodation consistent with the procedure required in court proceedings.

FORM 1.914(a). EXECUTION

EXECUTION

THE STATE OF FLORIDA:
To Each Sheriff of the State:

YOU ARE COMMANDED to levy on the property subject to execution of ……. in the sum of $……. with interest at …….% a year from …..(date)….., until paid and to have this writ before the court when satisfied.

DATED on …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

Committee Notes

1980 Amendment. The description of the property to be levied on has to be made general so it encompasses all property subject to execution under section 56.061, Florida Statutes (1979).

FORM 1.914(b). NOTICE TO APPEAR

NOTICE TO APPEAR

TO …..(name of third party)…..

YOU ARE NOTIFIED that, pursuant to section 56.29, Florida Statutes, proceedings supplementary to satisfy a judgment by application of the following:…..(identify the property, debt, or other obligation due to the judgment debtor)….. in …….County, Florida have been initiated against you by …..(name of judgment creditor)…… You are required to serve an affidavit …..date….. stating that the [property] [debt] [other obligation] belongs to you.

The affidavit must include any fact or legal defense opposing the application of the [property] [debt] [other obligation] toward the satisfaction of the judgment on .....(name of the judgment creditor, or its attorney, and his/her/its address).....You must file the original affidavit with the clerk of this court either before service on the judgment creditor or immediately thereafter. Legal defenses need not be filed under oath but must be served contemporaneously with the affidavit.

If any of your property has been levied on and you choose to oppose the application of the property to be applied toward the satisfaction of the judgment, then you must furnish a bond with surety to be approved by the officer in favor of the judgment creditor. The amount of the bond must be double the value of the goods claimed as the value is fixed by the officer and conditioned to deliver said property on demand of said officer if it is adjudged to be the property of the judgment debtor and to pay the judgment creditor all damages found against you if it appears that the claim was interposed for the purpose of delay.

YOU HAVE A RIGHT TO A TRIAL BY JURY TO DETERMINE THE RIGHT TO THE [PROPERTY, DEBT OR OTHER OBLIGATION DUE TO THE JUDGMENT DEBTOR]. YOU ARE ENTITLED TO DISCOVERY UNDER THE FLORIDA RULES OF CIVIL PROCEDURE. IF THE COURT OR JURY DETERMINES THAT THE [PROPERTY] [DEBT] [OTHER OBLIGATION] BELONGS TO THE JUDGMENT DEBTOR AND IS SUBJECT TO APPLICATION TOWARD THE SATISFACTION OF ITS JUDGMENT, THEN YOU MAY BE ORDERED TO .....(PAY DAMAGES TO THE JUDGMENT CREDITOR OR SURRENDER THE PROPERTY OR OTHER OBLIGATION DUE TO THE JUDGMENT DEBTOR TO THE JUDGMENT CREDITOR).....

ORDERED at ....., Florida, on..... (date) .....

_____

Judge

FORM 1.914(c). AFFIDAVIT OF CLAIMANT IN RESPONSE TO NOTICE TO APPEAR

AFFIDAVIT OF CLAIMANT IN RESPONSE TO NOTICE TO APPEAR

BEFORE ME, the undersigned authority, appeared.....(name of claimant or claimant's agent)....., who, after being first duly sworn, deposes and states, under penalty of perjury:

1. I am the .....(claimant, or identify relationship to claimant).....

2. I (or claimant) was served with a Notice to Appear on.....(date).....

3. I (or claimant) own(s) and am/is entitled to possession of.....(describe the property, debt, or other obligation due to the judgment debtor identified in the Notice to Appear).....

4. This property should not be applied to satisfy the judgment because.....(state all reasons why the property, debt, or other obligation due to the judgment debtor identified in the Notice to Appear should not be applied to satisfy the judgment).....

5. (Select a or b)

a. I (or claimant) request(s) a trial by jury on all issues so triable.

b. I (or claimant) request(s) a non-jury trial on all issues.

FURTHER AFFIANT SAYETH NAUGHT.

Dated: _____

_____
Signature of Affiant
Printed Name:_____

STATE OF _____
COUNTY OF _____

Sworn to or affirmed and signed before me on this ___ day of _____, 20___ by (name of affiant)_____, who is personally known to me or who has produced _____, as identification and who did take an oath.

_____
NOTARY PUBLIC, STATE OF
.....(Print, Type or Stamp Commissioned
Name of Notary Public) .....

Committee Notes

1980 Amendment. The description of the property to be levied on has to be made general so it encompasses all property subject to execution under section 56.061, Florida Statutes (1979).

2018 Adoption. Form 1.914(c) is used by a claimant to respond to a Notice to Appear under section 56.29(2), Florida Statutes. Legal defenses need not be filed under oath, but must be served contemporaneously with the

affidavit. If the claimant's property has already been levied upon, he or she may obtain possession of the property by filing with the officer having the execution a copy of this affidavit and by furnishing the officer a bond with surety, as set forth in section 56.16, Florida Statutes.

FORM 1.915. WRIT OF POSSESSION

WRIT OF POSSESSION

THE STATE OF FLORIDA:
To the Sheriff of ..... County, Florida:

YOU ARE COMMANDED to remove all persons from the following described property in ..... County, Florida:

(describe property)

and to put ..... in possession of it.

DATED on .....

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

Committee Notes

1973 Amendment. The form is changed to make the direction conform to the statutory requirement in section 48.011, Florida Statutes.

1980 Amendment. The direction on this form is changed to the sheriff of the county where the property is located, and the conclusion is modernized.

FORM 1.916. REPLEVIN ORDER TO SHOW CAUSE

ORDER TO SHOW CAUSE

THE STATE OF FLORIDA:
To Each Sheriff of the State:

YOU ARE COMMANDED to serve this order on defendant, ..., by personal service as provided by law, if possible, or, if you are unable to personally serve defendant within the time specified, by placing a copy of this order with a copy of the summons on the claimed property located at ....., Florida, at least 5 days before the hearing scheduled below, excluding the day of service and intermediate Saturdays, Sundays, and legal holidays.

Nonpersonal service as provided in this order shall be effective to afford notice to defendant of this order, but for no other purpose.

Defendant shall show cause before the Honorable ……., on .....(date)....., at ……m. in the ……. County Courthouse in ……., Florida, why the property claimed by plaintiff in the complaint filed in this action should not be taken from the possession of defendant and delivered to plaintiff.

Defendant may file affidavits, appear personally or with an attorney and present testimony at the time of the hearing, or, on a finding by the court pursuant to section 78.067(2), Florida Statutes (1979), that plaintiff is entitled to possession of the property described in the complaint pending final adjudication of the claims of the parties, file with the court a written undertaking executed by a surety approved by the court in an amount equal to the value of the property to stay an order authorizing the delivery of the property to plaintiff.

If defendant fails to appear as ordered, defendant shall be deemed to have waived the right to a hearing. The court may thereupon order the clerk to issue a writ of replevin.

ORDERED at ……., Florida, on .....(date)……

_____
Judge

Committee Notes

1980 Adoption. Former form 1.916 is repealed because of the consolidation of writs of assistance with writs of possession. The new form is the replevin order to show cause prescribed by section 78.065, Florida Statutes (1979).

1996 Amendment. This form is amended to provide for service at least 5 days before the show cause hearing, rather than by a specified date.

FORM 1.917. NE EXEAT

WRIT OF NE EXEAT

THE STATE OF FLORIDA:
To Each Sheriff of the State:

YOU ARE COMMANDED to detain the defendant, ……. and to require the defendant to give bond in the sum of $……. payable to the Governor of Florida and the Governor's successors in office conditioned that the defendant will answer plaintiff's pleading in this action and will not depart from the state without leave of court and will comply with the lawful orders of this court, with

sureties to be approved by the clerk of this court. If the defendant does not give the bond, the defendant shall be taken into custody and be confined in the ……. County jail until the defendant gives the bond or until further order of this court. If the defendant does not give the bond, the defendant shall be brought before a judge of this court within 24 hours of confinement.

DATED on …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

Committee Notes

1976 Amendment. See 1976 Op. Att'y Gen. Fla. 076-13 (Jan. 23, 1976).

FORM 1.918. LIS PENDENS

NOTICE OF LIS PENDENS

TO DEFENDANT(S) ……., AND ALL OTHERS WHOM IT MAY CONCERN:

YOU ARE NOTIFIED OF THE FOLLOWING:

(a) The plaintiff has instituted this action against you seeking ("to foreclose a mortgage" or "to partition" or "to quiet title" or other type of action) with respect to the property described below.

(b) The plaintiff(s) in this action is/are:

(1) …….

(2) …….

(c) The date of the institution of this action is ……. OR: the date on the clerk's electronic receipt for the action's filing is ……. OR: the case number of the action is as shown in the caption.

(d) The property that is the subject matter of this action is in ……. County, Florida, and is described as follows:

(legal description of property)

DATED ON ……

…..(Name of Attorney)…..
Attorney for …..(Name of Client)…..

.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. .....

NOTE: This form is not to be recorded without the clerk's case number.

Committee Notes

2009 Amendment. This form was substantially rewritten due to the amendments to section 48.23, Florida Statutes (2009). Section 48.23 provides that the notice must contain the names of all of the parties, the name of the court in which the action is instituted, a description of the property involved or affected, a description of the relief sought as to the property, and one of the following: the date of the institution of the action, the date of the clerk's electronic receipt, or the case number. If the case number is used to satisfy the requirements of section 48.23, it should be inserted in the case caption of the notice.

FORM 1.919. NOTICE OF ACTION; CONSTRUCTIVE SERVICE — NO PROPERTY

NOTICE OF ACTION

TO .....

YOU ARE NOTIFIED that an action for ("construction of a will" or "re-establishment of a lost deed" or other type of action) has been filed against you and you are required to serve a copy of your written defenses, if any, to it on ....., the plaintiff's attorney, whose address is ....., on or before .....(date)....., and file the original with the clerk of this court either before service on the plaintiff's attorney or immediately thereafter; otherwise a default will be entered against you for the relief demanded in the complaint or petition.

DATED on .....

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

NOTE: This form must be modified to name the other defendants when there are multiple defendants and all are not served under the same notice. See section 49.08(1), Florida Statutes (1979).

FORM 1.920. NOTICE OF ACTION; CONSTRUCTIVE SERVICE — PROPERTY

NOTICE OF ACTION

TO …….

YOU ARE NOTIFIED that an action to ("enforce a lien on" or "foreclose a mortgage on" or "quiet title to" or "partition" or other type of action) the following property in……. County, Florida:

(describe property)

has been filed against you and you are required to serve a copy of your written defenses, if any, to it on ……., the plaintiff's attorney, whose address is ……., on or before .....(date)....., and file the original with the clerk of this court either before service on the plaintiff's attorney or immediately thereafter; otherwise a default will be entered against you for the relief demanded in the complaint or petition.

DATED on …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

NOTE: This form must be modified to name the other defendants when there are multiple defendants and all are not served under the same notice. See section 49.08(1), Florida Statutes (1979).

FORM 1.921. NOTICE OF PRODUCTION FROM NONPARTY

NOTICE OF PRODUCTION

To …….:

YOU ARE NOTIFIED that after 10 days from the date of service of this notice, if service is by delivery, or 15 days from the date of service, if service is by mail, and if no objection is received from any party, the undersigned will issue or apply to the clerk of this court for issuance of the attached subpoena directed to ……., who is not a party and whose address is ……., to produce the items listed at the time and place specified in the subpoena.

DATED on …….

.....(Name of Attorney).....
Attorney for .....(Name of Client).....

.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. .....

NOTE: This form of notice is for use with rule 1.351. A copy of the subpoena must be attached to this form for it to comply with the rule.

Committee Notes

1980 Adoption. This form is new.

1996 Amendment. This form was amended to comply with amendments to rules 1.351 and 1.410.

FORM 1.922. SUBPOENA DUCES TECUM WITHOUT DEPOSITION

(a) When Witness Has Option to Furnish Records Instead of Attending Deposition; Issuance by Clerk.

SUBPOENA DUCES TECUM

THE STATE OF FLORIDA:
TO …….

YOU ARE COMMANDED to appear at ……. in ……. Florida, on .....(date)....., at .....(a.m./p.m.), and to have with you at that time and place the following: …….

These items will be inspected and may be copied at that time. You will not be required to surrender the original items. You may comply with this subpoena by providing legible copies of the items to be produced to the attorney whose name appears on this subpoena on or before the scheduled date of production. You may condition the preparation of the copies upon the payment in advance of the reasonable cost of preparation. You may mail or deliver the copies to the attorney whose name appears on this subpoena and thereby eliminate your appearance at the time and place specified above. You have the right to object to the production pursuant to this subpoena at any time before production by giving written notice to the attorney whose name appears on this subpoena. THIS WILL NOT BE A DEPOSITION. NO TESTIMONY WILL BE TAKEN.

If you fail to:

(1) appear as specified; or

(2) furnish the records instead of appearing as provided above; or

(3) object to this subpoena,

you may be in contempt of court. You are subpoenaed to appear by the following attorney, and unless excused from this subpoena by this attorney or the court, you must respond to this subpoena as directed.

DATED on …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

.....(Name of Attorney).....
Attorney for .....(Name of Client).....

.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. .....

If you are a person with a disability who needs any accommodation to respond to this subpoena, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify attorney or party taking the deposition by name, address, and telephone number] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

(b) When Witness Must Appear and Produce the Records; Issuance by Clerk.

SUBPOENA DUCES TECUM

THE STATE OF FLORIDA:
TO .....:

YOU ARE COMMANDED to appear at ..... in ....., Florida, on .....(date)....., at .....(a.m./p.m.), and to have with you at that time and place the following: .....

These items will be inspected and may be copied at that time. You will not be required to surrender the original items. You have the right to object to the production pursuant to this subpoena at any time before production by giving written notice to the attorney whose name appears on this subpoena. THIS WILL NOT BE A DEPOSITION. NO TESTIMONY WILL BE TAKEN.

If you fail to:

(1) appear or furnish the records at the time and place specified instead of appearing; or

(2) object to this subpoena,

you may be in contempt of court. You are subpoenaed by the attorney whose name appears on this subpoena, and unless excused from this subpoena by the attorney or the court, you must respond to this subpoena as directed.

DATED on .....

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

.....(Name of Attorney).....
Attorney for .....(Name of Client).....
.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. .....

If you are a person with a disability who needs any accommodation to respond to this subpoena, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify attorney or party taking the deposition by name, address, and telephone number] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

(c) When Witness Has Option to Furnish Records Instead of Attending Deposition; Issuance by Attorney of Record.

SUBPOENA DUCES TECUM

THE STATE OF FLORIDA:

TO .....:

YOU ARE COMMANDED to appear at ..... in ....., Florida, on .....(date)....., at .....(a.m./p.m.), and to have with you at that time and place the following: .....

These items will be inspected and may be copied at that time. You will not be required to surrender the original items. You may comply with this subpoena by providing legible copies of the items to be produced to the attorney whose name appears on this subpoena on or before the scheduled date of production. You may condition the preparation of the copies upon the payment in advance of the reasonable cost of preparation. You may mail or deliver the copies to the attorney whose name appears on this subpoena and thereby eliminate your appearance at the time and place specified above. You have the right to object to the production pursuant to this subpoena at any time before production by giving written notice to the attorney whose name appears on this subpoena. THIS WILL NOT BE A DEPOSITION. NO TESTIMONY WILL BE TAKEN.

If you fail to:

(1) appear as specified; or

(2) furnish the records instead of appearing as provided above; or

(3) object to this subpoena,

you may be in contempt of court. You are subpoenaed to appear by the following attorney, and unless excused from this subpoena by this attorney or the court, you must respond to this subpoena as directed.
DATED on .....

(Name of Attorney)
For the Court

.....(Name of Attorney).....
Attorney for .....(Name of Client).....
.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. .....

If you are a person with a disability who needs any accommodation to respond to this subpoena, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify attorney or party taking the deposition by name, address, and telephone number] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

(d) When Witness Must Appear and Produce the Records; Issuance by Attorney of Record.

THE STATE OF FLORIDA:

TO .....:

YOU ARE COMMANDED to appear at ..... in ....., Florida, on .....(date)....., at .....(a.m./p.m.), and to have with you at that time and place the following: .....

These items will be inspected and may be copied at that time. You will not be required to surrender the original items. You have the right to object to the production pursuant to this subpoena at any time before production by giving written notice to the attorney whose name appears on this subpoena. THIS WILL NOT BE A DEPOSITION. NO TESTIMONY WILL BE TAKEN.

If you fail to:

(1) appear or furnish the records at the time and place specified instead of appearing; or

(2) object to this subpoena,

you may be in contempt of court. You are subpoenaed by the attorney whose name appears on this subpoena, and unless excused from this subpoena by the attorney or the court, you must respond to this subpoena as directed.

DATED on .....

(Name of Attorney)
For the Court

.....(Name of Attorney).....
Attorney for .....(Name of Client).....
.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. .....

If you are a person with a disability who needs any accommodation to respond to this subpoena, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify attorney or party taking the deposition by name, address, and telephone number] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

NOTE: These forms are to be used for production of documents under rule 1.351. Form (a) is used when the person having the records may furnish copies to the attorney requesting the subpoena instead of appearing at the time and place specified in the subpoena and the subpoena is to be issued by the clerk. Form (b) is used when the records must be produced at the time and place specified in the subpoena and the subpoena is to be issued by the clerk. Form (c) is used when the person having the records may furnish copies to the attorney requesting the subpoena instead of appearing at the time and place specified in the subpoena and the subpoena is to be issued by an attorney of record. Form (d) is used when the records must be produced at the time and place specified in the subpoena and the subpoena is to be issued by an attorney of record.

Committee Notes

1980 Adoption. This form is new.

1996 Amendment. Forms (a) and (b) were amended and forms (c) and (d) were added to comply with amendments to rules 1.351 and 1.410.

2013 Amendment. The notice to persons with disabilities was amended to make the procedure for obtaining accommodation consistent with the procedure required in court proceedings.

FORM 1.923(a). EVICTION SUMMONS—RESIDENTIAL

TO: .....(insert name, address, and phone number of tenant).....

PLEASE READ CAREFULLY

You are being sued by .....(insert landlord's name)..... to require you to move out of the property located at _____ _____ for the reasons given in the attached complaint.

You are entitled to a trial to decide whether you can be required to move, but you MUST do ALL of the things listed below. You must do them within 5 days (not including Saturdays, Sundays, or legal holidays) after the date these papers were given to you or to a person who lives with you or were posted at your home.

THE THINGS YOU MUST DO TO CHALLENGE THE EVICTION ARE AS FOLLOWS:

1. Write down the reason(s) why you think you should not be forced to move. (You may use Florida Supreme Court Form 1.947(b), Answer—Residential Eviction, to do this.) The written reason(s) must be given to the clerk of the court at .....(insert address of courthouse).....

2. Mail or take a copy of your written reason(s) to: _____

.....(insert landlord's name and address).....

3. Pay the clerk of court the rent that is due. You MUST pay the clerk of the court the rent each time it becomes due until the lawsuit is over. Whether you win or lose the lawsuit, the judge may release this rent to the landlord. [By statute, public housing tenants or tenants receiving rent subsidies must be required to pay only that portion of the full rent for which the tenant is responsible under the federal, state, or local program in which they are participating.]

4. If you and the landlord do not agree on the amount of rent owed, you must file a written request (motion) that asks the judge to decide how much money you must pay to the clerk of the court. The written request must be filed with your answer to the eviction complaint. A copy of your motion must also be mailed or hand delivered to the plaintiff(s) attorney, or if the plaintiff(s) has no attorney, to the plaintiff.

IF YOU DO NOT DO ALL OF THESE THINGS WITHIN 5 DAYS (NOT INCLUDING SATURDAYS, SUNDAYS, AND LEGAL HOLIDAYS FOR YOUR

COURTHOUSE) YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE.

You may want to call a lawyer right away. If you do not know a lawyer, you can contact the Lawyer Referral Service on The Florida Bar's website. If you cannot afford a lawyer, you may be eligible for free legal aid. You can locate legal aid programs by searching for "legal aid" on The Florida Bar's website.

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [*identify applicable court personnel by name, address, and telephone number*] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

THE STATE OF FLORIDA:

TO EACH SHERIFF OF THE STATE:

You are commanded to serve this summons and a copy of the complaint in this lawsuit on the above-named defendant.

DATED on the _____ day of _____, 20_____.

Clerk of the Court
By: _____
Deputy Clerk
Clerk's Address: _____
_____
Telephone No. _____

CITATORIO DE DESALOJO—RESIDENCIAL

DESTINATARIO: .....(Ponga el nombre, la dirección y el número de teléfono del inquilino)……

POR FAVOR LEA ATENTAMENTE

Usted ha sido demandado por ….(ponga el nombre del arrendador)….. para exigirle que desaloje la propiedad localizado en _____ _____ por las razones que se muestran en la demanda querella adjunta.

Usted tiene el derecho a un juicio para determinar si se le puede exigir que desaloje, pero DEBE cumplir con TODAS las acciones que se indican a continuación, las cuales tienen que hacerse dentro de los 5 días hábiles (es decir, sin incluir sábados, domingos ni días feriados) siguientes a la fecha en

que la presente documentación le haya sido entregada a usted, o a una persona que viva con usted, o haya sido posteada en su domicilio.

LAS ACCIONES QUE DEBE HACER PARA CUESTIONAR EL DESALOJO SON LAS SIGUIENTES:

1. Indique por escrito la razón(es) por las que considera que no se le debe obligar a mudarse (para eso, usted puede usar el Formulario 1.947(b) de la Corte Suprema de la Florida [Florida Supreme Court], "Answer—Residential Eviction"). La presentación de la razón(es) por escrito debe ser entregada al secretario del tribunal en .....(Ponga la dirección del tribunal).....

2. Envíe por correo postal o entregue una copia de sus razones por escrito a: _____ .....(Ponga el nombre y dirección del arrendador).....

3. Haga el pago del alquiler que se debe al secretario de la corte. Usted DEBE pagar el alquiler al secretario de la corte cada vez que haya que pagarlo, hasta que concluya el proceso judicial. Independientemente de si gana o pierde la demanda, el juez puede entregar este pago del alquiler al arrendador. [Según la ley, los inquilinos de viviendas públicas o quienes reciben subsidios de alquiler deben pagar únicamente la parte por la que son responsables con respecto al monto total del alquiler según el programa federal, estatal o local del que son participantes].

4. Si usted y el arrendador no llegan a un acuerdo respecto al monto del alquiler adeudado, usted deberá presentar una solicitud por escrito (una petición) para que el juez determine cuánto debe pagar al secretario del tribunal. La solicitud por escrito debe ser presentada junto con su respuesta a la demanda de desalojo. Una copia de su petición también deberá ser enviada por correo postal o entregada personalmente al abogado del demandante, o si el demandante no tiene abogado, al demandante mismo.

SI NO CUMPLE CON TODOS ESTOS REQUISITOS DENTRO DE LOS 5 DÍAS HÁBILES (SIN CONTAR SÁBADOS, DOMINGOS NI FERIADOS OFICIALES SEGÚN EL HORARIO DE ATENCIÓN SU TRIBUNAL), USTED PODRÍA SER DESALOJADO SIN QUE SE HAGA UNA AUDIENCIA NI SE LE DÉ PREVIO AVISO.

Sería recomendable que consulte a un abogado de inmediato. Si no cuenta con un abogado, puede contactar al Servicio de Consulta o Referencia Legal [Lawyer Referral Service] en el sitio web del Colegio de Abogados de la Florida [The Florida Bar.] Si no tiene el dinero necesario para contratar un

abogado, usted podría ser elegible para recibir asesoría jurídica gratuita. Puede encontrar programas de ayuda legal buscando “asistencia legal” [‘legal aid’] en el sitio web del Colegio de Abogados de la Florida [The Florida Bar.]

Si usted tiene una discapacidad y requiere alguna adaptación especial o servicio de apoyo para participar en este procedimiento, tiene derecho a recibir asistencia gratuita. Por favor contacte a *[identifique el personal del tribunal que corresponda incluyendo el nombre, dirección y número de teléfono]*, por lo menos 7 días antes de su comparecencia programada ante el tribunal, o inmediatamente después de recibir esta notificación si el plazo antes de la comparecencia es menor de 7 días; o si tiene discapacidad auditiva o del habla, llame al 711.

ESTADO DE LA FLORIDA [THE STATE OF FLORIDA:]
A CADA ALGUACIL DEL ESTADO [SHERIFF OF THE STATE:]

Se le ordena que haga entrega oficial de este citatorio, así como de una copia de la demanda que hace parte de este proceso judicial, al demandado mencionado anteriormente.

CON FECHA DEL _____ día del mes de _____ del 20_____.

Secretario(a) del Tribunal

Firmado por: _____
Secretario(a) Auxiliar
Dirección del Secretario(a) del Tribunal: _____
_____
No. de Teléfono _____

ASSIGNATION EN EXPULSION—RÉSIDENTIEL

À: .....(insérer le nom, l’adresse et le numéro de téléphone du locataire).....

VEUILLEZ LIRE ATTENTIVEMENT

Vous êtes poursuivi par .....(insérer le nom du propriétaire)..... pour vous obliger à quitter la propriété située à _____ _____ pour les raisons indiquées dans la plainte ci-jointe.

Vous avez le droit à un procès pour déterminer si vous pouvez être obligé de déménager, mais vous DEVEZ accomplir TOUTES les choses énumérées ci-dessous. Vous devez les réaliser dans les 5 jours (à l'exclusion des samedis, dimanches et jours fériés) suivant la date à laquelle ces documents vous ont été remis ou à une personne qui habite avec vous ou affichés à votre domicile.

POUR CONTESTER VOTRE EXPULSION, IL EST NÉCESSAIRE D'EFFECTUER LES DÉMARCHES SUIVANTES:

1. Indiquez les raisons pour lesquelles vous pensez que vous ne devriez pas être obligé de déménager. (Vous pouvez vous utiliser le formulaire 1.947(b) de la Cour Suprême de Floride [Florida Supreme Court], intitulé “Answer—Residential Eviction,” pour ce faire.) Les raisons écrites doivent être soumises au greffier du tribunal à .....(insérer l’adresse du palais de justice).....

2. Veuillez envoyer ou remettre une copie de vos raisons écrites à: ___

.....(insérer le nom et l’adresse du propriétaire).....

3. Vous devez payez au greffier du tribunal le loyer dû. Vous DEVEZ payez le loyer au greffier à chaque échéance jusqu’à la conclusion du procès. Que vous gagniez ou perdiez le procès, le juge peut décider de transférer ce loyer au propriétaire. En vertu de la loi, les locataires de logements sociaux ou ceux bénéficiant d’aides au loyer ne doivent payer que la part du loyer dont ils sont responsables selon le programme fédéral, étatique ou local auquel ils participent.

4. Si vous et le propriétaire ne parvenez pas à un accord sur le montant du loyer dû, vous devez soumettre une demande écrite (motion) au juge pour qu’il détermine le montant à verser au greffier. Cette demande écrite doit être déposée avec votre réponse à la plainte d’expulsion. Une copie de votre requête doit également être envoyée par courrier ou remise en main propre à l’avocat du plaignant, ou, si le plaignant n’a pas d’avocat, directement au plaignant.

SI VOUS NE RÉALISEZ PAS TOUTES CES CHOSES DANS UN DÉLAI DE 5 JOURS (HORS SAMEDIS, DIMANCHES ET JOURS FÉRIÉS POUR VOTRE TRIBUNAL), VOUS RISQUEZ D’ÊTRE EXPULSÉ SANS AUDIENCE NI PRÉAVIS SUPPLÉMENTAIRE.

Il est conseillé de joindre un avocat immédiatement. Si vous ne connaissez pas d'avocat, vous pouvez contacter le service de référence aux avocats sur le site Web du Florida Bar [The Florida Bar]. Si vos moyens financiers sont limités, vous pourriez avoir droit à une aide juridique gratuite. Vous pouvez trouver des programmes d’aide juridique en effectuant une recherche pour “aide juridique” [‘legal aid’] sur le site de de sur le site Web du Florida Bar [The Florida Bar].

Si vous êtes une personne handicapée nécessitant des aménagements pour participer à cette procédure, vous avez droit, sans frais, à certaines formes d'assistance. Veuillez contacter [*identifier le personnel judiciaire concerné par son nom, adresse et numéro de téléphone*] au moins 7 jours avant votre comparution prévue au tribunal, ou immédiatement après avoir reçu cette notification si le délai avant la comparution prévue est inférieur à 7 jours; si vous avez des problèmes d'audition ou de voix, composez le 711.

L'ÉTAT DE FLORIDE [THE STATE OF FLORIDA:]

À CHAQUE SHÉRIF DE L'ÉTAT [SHERIFF OF THE STATE:]

Vous êtes chargé de signifier cette citation et une copie de la plainte dans cette affaire au défendeur mentionné ci-dessus.

DATÉ le _____ jour de _____ 20_____.

Greffier du Tribunal

Par: _____
Greffier Adjoint
Adresse du Greffier: _____

_____
Numéro de téléphone: _____

KONVOKASYON DEGÈPISMAN—REZIDANS

A: .....(mete non, adrès, ak nimewo telefòn lokatè a).....

TANPRI LI AK ATANSYON

.....(mete non mèt kay la a) ..... ap rele w lajistis pou mande w deplase soti nan kay ki nan _____ _____ pou rezon ki bay nan plent ki tache la a.

Ou gen dwa a yon jijman pou deside si ou ka oblije kite kay la, men ou DWE fè TOUT bagay ki endike anba la a. Ou dwe fè yo nan 5 jou (sa pa enkli Samdi, Dimanch, oswa jou ferye legal) apre dat yo te ba ou papye sa yo oswa bay yon moun ki abite avèk ou oswa yo te afiche yo sou kay ou.

MEN BAGAY OU DWE FÈ YO POU DEFYE DEGÈPISMAN AN:

1. Ekri rezon (yo)ki fè w panse yo pa ta dwe fòse w soti nan kay la. (Ou ka itilize Fòm 1.947(b) Tribinal Siprèm Florid [Florida Supreme Court], Repons— Degèpisman Rezidansyèl, pou fè sa.) Ou dwe bay grefye tribinal la rezon (yo) alekri nan .....(mete adrès tribinal la) .....

2. Poste oswa pote yon kopi rezon (yo) ou ekri a (yo) bay: _____

.....(mete non ak adrès mèt kay la).....

3. Peye grefye tribinal la lwaye ou dwe a. Ou DWE peye grefye nan tribinal la lwaye a chak mwa lè w dwe jiskaske pwosè a fini. Kit ou genyen oswa ou pèdi pwosè a, jij la ka bay lwaye sa a bay mèt kay la. [Dapre lalwa, lokatè lojman piblik oswa lokatè k ap resevwa sibvansyon pou lwaye yo dwe oblije peye sèlman pòsyon total lwaye lokatè a responsab la dapre pwogram federal, leta oswa lokal yo ap patisipe ladann nan.]

4. Si oumenm ak mèt kay la pa dakò sou kantite lwaye ou dwe a, ou dwe depoze yon demann alekri (mosyon) ki mande jij la deside konbyen lajan ou dwe peye grefye tribinal la. Ou dwe ranpli demann alekri a ak repons ou pou plent degèpisman an. Ou dwe tou voye yon kopi mosyon w la pa lapòs oswa remèt avoka moun ki pote plent la (yo), oswa si moun ki pote plent la (yo) pa gen avoka, bay moun ki pote plent la li.

SI OU PA FÈ TOUT BAGAY SA YO NAN 5 JOU (SA PA ENKLI SAMDI, DIMANCH, AK JOU FERYE LEGAL POU TRIBINAL OU A) YO KA METE W DEYÒ SAN YON ODYANS OSWA SAN OKENN LÒT AVI.

Ou ka vle rele yon avoka touswit. Si w pa konnen yon avoka, ou ka kontakte Sèvis Referans Avoka [Lawyer Referral Service] sou sitwèb Bar Nan Florida [The Florida Bar]. Si ou pa kapab peye yon avoka, ou ka kalifye pou èd legal gratis. Ou ka jwenn pwogram èd legal lè w chèche “legal aid” [‘èd legal’] sou sitwèb Bar Nan Florida [The Florida Bar].

Si ou se yon moun ki gen yon andikap ki bezwen nenpòt aranjman pou patisipe nan pwosedi sa a, ou gen dwa, san okenn frè pou ou, pou w resevwa sèten asistans. Tanpri kontakte [*idantifye pèsonèl tribinal ki aplikab yo pa non, adrès, ak nimewo telefòn*] omwen 7 jou anvan dat tribinal la te fikse pou w te parèt la, oswa imedyatman apre w resevwa notifikasyon sa si dat pou w te parèt la pwograme pou mwens pase 7 jou. Si ou gen pwoblèm pou tande oswa pou w pale, rele 711.

ETA FLORID [THE STATE OF FLORIDA]:

POU CHAK CHERIF ETA A [SHERIFF OF THE STATE]:

Yo ba w lòd pou w sèvi manda sa a ak yon kopi plent nan pwosè sa a bayakize ki endike anwo a.

DAT _____ nan jou _____, 20_____.

Grefye Tribinal la

Pa: _____
Grefye Adjwen

Adrès Grefye a: _____

_____

Nimewo telefòn: _____

Committee Notes

1988 Adoption. This form was added to inform those sought to be evicted of the procedure they must follow to resist eviction.

1996 Amendment. This is a substantial revision of form 1.923 to comply with the requirements of section 83.60, Florida Statutes, as amended in 1993.

FORM 1.923(b). SUMMONS ACTION FOR BACK RENT OR OTHER DAMAGES

Each defendant is further required to serve written defenses to the demand for back rent or any other damages alleged in the complaint on the above .....(insert landlord's name and address)..... within 20 days after service of this summons on the defendant, exclusive of the day of service, and to file the original of the written defenses with the clerk of the court either before service on.....(insert landlord's name)..... or thereafter. If you fail to do so, a default may be entered against the defendant for the relief demanded in that portion of the complaint.

WITNESS my hand and seal of the Court this _____ day of _____ _____, 20_____.

(COURT SEAL) Clerk of the Court

By: _____

Deputy Clerk

FORM 1.924. AFFIDAVIT OF DILIGENT SEARCH AND INQUIRY

I,(*full legal name*) _____ (individually or an Employee of _____ _____), being sworn, certify that the following information is true:

1. I have made diligent search and inquiry to discover the current residence of _____, who is [over 18 years old] [under 18 years old] [age is unknown] (circle one). **Refer to checklist below and identify all actions taken (any additional information included such as the date the action was taken and the person with whom you spoke is helpful) (attach additional sheet if necessary):**

[check **all** that apply]

_____ Inquiry of Social Security Information
_____ Telephone listings in the last known locations of defendant's residence
_____ Statewide directory assistance search
_____ Internet people finder search {specify sites searched}
_____ Voter registration in the area where defendant was last known to reside.
_____ Nationwide Masterfile Death Search
_____ Tax Collector's records in area where defendant was last known to reside.
_____ Tax Assessor's records in area where defendant was last known to reside
_____ Department of Motor vehicle records in the state of defendant's last known address
_____ Driver's License records search in the state of defendant's last known address.
_____ Department of Corrections records in the state of defendant's last known address.
_____ Federal Prison records search.
_____ Regulatory agencies for professional or occupation licensing.
_____ Inquiry to determine if defendant is in military service.
_____ Last known employment of defendant.

{List all additional efforts made to locate defendant}

_____
_____
_____
_____

Attempts to Serve Process and Results

_____
_____

_____

_____

_____ I inquired of the occupant of the premises whether the occupant knows the location of the borrower-defendant, with the following results:_____

_____

_____

_____

2. _____ current residence

[check one only]

_____ a. _____'s current residence is unknown to me

_____ b. _____'s current residence is in some state or country _____other than Florida and _____'s last known address is:

_____

_____

c. The_____, having residence in Florida, has been absent from Florida for more than 60 days prior to the date of this affidavit, or conceal him (her) self so that process cannot be served personally upon him or her, and I believe that there is no person in the state upon whom service of process would bind this absent or concealed _____.

I understand that I am swearing or affirming under oath to the truthfulness of the claims made in this affidavit and that the punishment for knowingly making a false statement includes fines and/or imprisonment.

Dated: _____ _____

Signature of Affiant
Printed Name: _____
Address: _____
City, State, Zip:_____
Phone: _____
Telefacsimile: _____

STATE OF _____
COUNTY OF _____
Sworn to or affirmed and signed before me on this ____ day of _____, 20 __. by __
_____.

_____

NOTARY PUBLIC
STATE OF _____

_____
(Print, Type, or Stamp Commissioned
Name of Notary Public)

_____ Personally known
_____ Produced identification
_____ Type of identification produced: _____

NOTE: This form is used to obtain constructive service on the defendant.

FORM 1.925. COMPLAINT TO QUIET TITLE

COMPLAINT TO QUIET TITLE
BASED ON FRAUDULENT CONVEYANCE
UNDER SECTION 65.091, FLORIDA STATUTES

The plaintiff(s), _____, sue(s) defendant(s), _____, defendant's unknown spouse, heirs, devisees, grantees, judgment creditors, and all other parties claiming by, through, under, or against defendants or parties or claiming to have any right, title, or interest in the property described in this complaint, and alleges:

(1) This is an action to quiet and confirm title of plaintiff in and to lands located in _____ County, Florida.

(2) Plaintiff owns the following real property:

_____

_____

_____

_____

(3) Plaintiff shows entitlement to (deraigns) title as follows (must show chain of title for at least the past 7 years):

Plaintiff obtained ownership by deed or instrument dated _____ _____, recorded on _____, in official records book _____, page _____ _____ of the public records of _____ County, Florida. The property description in that deed is as follows:

_____

_____

_____

_____

(4) The deed or instrument purported to have been signed by plaintiff(s), or purporting to convey the property to defendant(s), dated _____ _____, recorded _____, in official records book _____, page _____ _____ of the public records of _____ County, Florida, is fraudulent.

(5) Plaintiff did not execute the deed and has not conveyed the property to any person since obtaining the conveyance(s) described in paragraph (3).

(6) The deed or instrument described in paragraph (4) did not convey title to defendant because the grantor had no title, but the recording of the deed casts a cloud on plaintiff's title.

WHEREFORE, the plaintiff(s) respectfully request (requests) the court to enter an order to quiet title in and award the plaintiff(s) with the same title and rights to the land that the plaintiff enjoyed before the attempted conveyance.

Date: _____

_____
Plaintiff

_____
Address

_____
City, State, Zip Code

_____
Phone

_____
E-mail address

(Include signature for each Plaintiff)

FORM 1.932. OPEN ACCOUNT

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. Defendant owes plaintiff $..... that is due with interest since .....(date)....., according to the attached account.

WHEREFORE plaintiff demands judgment for damages against defendant.

NOTE: A copy of the account showing items, time of accrual of each, and amount of each must be attached.

FORM 1.933. ACCOUNT STATED

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. Before the institution of this action plaintiff and defendant had business transactions between them.

3. (*Use A or B*).

A. Plaintiff and defendant agreed on the balance due on .....(date).....

[OR]

B. Plaintiff sent a statement to defendant on .....(date)..... and defendant failed to object within a reasonable time after receiving the statement.

4. (*Use A or B*).

A. Defendant expressly promised to pay plaintiff the balance due.

[OR]

B. Defendant implicitly promised to pay plaintiff the amount set forth in the statement.

Defendant has not paid plaintiff the amount owed on the account. $....., plus interest since .....(date).....

WHEREFORE plaintiff demands judgment for damages against defendant.

NOTE: Attach a copy of any accounts, statements, or other documents required to be attached or incorporated by rule 1.130.

FORM 1.934. PROMISSORY NOTE

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. On .....(date)....., defendant executed and delivered a promissory note, a copy being attached, to plaintiff in ..... County, Florida.

3. Plaintiff owns and holds the note.

4. Defendant failed to pay (use a or b)

a. the note when due.

b. the installment payment due on the note on .....(date)....., and plaintiff elected to accelerate payment of the balance.

5. Defendant owes plaintiff $..... that is due with interest since .....(date)....., on the note.

6. Plaintiff is obligated to pay his/her attorneys a reasonable fee for their services.

WHEREFORE plaintiff demands judgment for damages against defendant.

NOTE: A copy of the note must be attached. Use paragraph 4a. or b. as applicable and paragraph 6 if appropriate.

Committee Notes

1980 Amendment. Paragraph 3 is added to show ownership of the note, and paragraph 4 is clarified to show that either 4a or 4b is used, but not both.

FORM 1.935. GOODS SOLD

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. Defendant owes plaintiff $..... that is due with interest since .....(date)....., for the following goods sold and delivered by plaintiff to defendant between .....(date)....., and .....(date).....:

(list goods and prices)

WHEREFORE plaintiff demands judgment for damages against defendant.

FORM 1.936. MONEY LENT

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. Defendant owes plaintiff $..... that is due with interest since .....(date)....., for money lent by plaintiff to defendant on .....(date)......

WHEREFORE plaintiff demands judgment for damages against defendant.

FORM 1.937. REPLEVIN

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action to recover possession of personal property in ..... County, Florida.

2. The description of the property is:

(list property)

To the best of plaintiff's knowledge, information, and belief, the value of the property is $.....

3. Plaintiff is entitled to the possession of the property under a security agreement dated ....., a copy of the agreement being attached.

4. To plaintiff's best knowledge, information, and belief, the property is located at .....

5. The property is wrongfully detained by defendant. Defendant came into possession of the property by (method of possession). To plaintiff's best knowledge, information, and belief, defendant detains the property because (give reasons).

6. The property has not been taken for any tax, assessment, or fine pursuant to law.

7. The property has not been taken under an execution or attachment against plaintiff's property.

WHEREFORE plaintiff demands judgment for possession of the property.

NOTE: Paragraph 3 must be modified if the right to possession arose in another manner. Allegations and a demand for damages, if appropriate, can be added to the form.

Committee Notes

1980 Amendment. The form is amended to comply with the amendments to the replevin statutes pursuant to *Fuentes v. Shevin*, 407 U.S. 67, 92 S. Ct. 1983, 32 L. Ed. 2d 556 (1972).

FORM 1.938. UNLAWFUL DETAINER; FORCIBLE ENTRY; OR UNLAWFUL ENTRY

COMPLAINT

Plaintiff, A. B., sues defendant, C.D., and alleges:

1. This is an action to recover possession of real property in _____ _____ County, Florida, under chapter 82 and section 51.011, Florida Statutes.

2. Plaintiff is entitled to possession of the following real property in said county:

(insert the legal description and the street address of the real property,
including unit number if applicable)

3. Plaintiff is entitled to possession of the real property based on 1 of the following grounds. Plaintiff is: (choose a or b.)

_____ a. the owner of the real property; or

_____ b. otherwise entitled to possession of the real property (and briefly state the reason why).

_____

_____

_____

4. Defendant came into possession of the real property by 1 of the following methods: (choose a, b, or c.)

_____ a. *Unlawful Detention.* Defendant is in possession of the real property without consent of a person entitled to possession or after consent was withdrawn on .....(date that consent was withdrawn).....

_____ b. *Forcible Entry.* Defendant entered into and took possession of the real property with force, in a manner that was not peaceable, easy, or open, even if the entry was authorized by a person entitled to possession of the real property.

_____ c. *Unlawful Entry.* Defendant entered into and is in possession of the real property when the entry was not authorized by law or without consent of a person entitled to possession of the real property.

WHEREFORE plaintiff demands judgment for possession of the real property and damages against defendant.

NOTE: This form cannot be used for residential tenancies.

FORM 1.939. CONVERSION

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. On or about .....(date)....., defendant converted to his/her own use (insert description of property converted) that was then the property of plaintiff of the value of $.....

WHEREFORE plaintiff demands judgment for damages against defendant.

FORM 1.940. EJECTMENT

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

This is an action to recover possession of real property in ..... County, Florida.

2. Defendant is in possession of the following real property in the county:

(describe property)

to which plaintiff claims title as shown by the attached statement of plaintiff's chain of title.

3. Defendant refuses to deliver possession of the property to plaintiff or pay plaintiff the profits from it.

WHEREFORE plaintiff demands judgment for possession of the property and damages against defendant.

NOTE: A statement of plaintiff's chain of title must be attached.

Committee Notes

1980 Amendment. The words "possession of" are inserted in paragraph 1 for clarification.

FORM 1.941. SPECIFIC PERFORMANCE

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action for specific performance of a contract to convey real property in ……. County, Florida.

2. On …..(date)….., plaintiff and defendant entered into a written contract, a copy being attached.

3. Plaintiff tendered the purchase price to defendant and requested a conveyance of the real property described in the contract.

4. Defendant refused to accept the tender or to make the conveyance.

5. Plaintiff offers to pay the purchase price.

WHEREFORE plaintiff demands judgment that defendant be required to perform the contract for damages.

NOTE: A copy of the sales contract must be attached.

Committee Notes

1980 Amendment. Paragraph 3 is divided into 2 paragraphs to properly accord with rule 1.110(f).

FORM 1.942. CHECK

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. On …..(date)….., defendant executed a written order for the payment of $……., commonly called a check, a copy being attached, payable to the order of plaintiff and delivered it to plaintiff.

3. The check was presented for payment to the drawee bank but payment was refused.

4. Plaintiff holds the check and it has not been paid.

5. Defendant owes plaintiff $..... that is due with interest from .....(date)....., on the check.

WHEREFORE plaintiff demands judgment for damages against defendant.

NOTE: A copy of the check must be attached. Allegations about endorsements are omitted from the form and must be added when proper.

Committee Notes

1980 Amendment. Paragraph 4 is divided into 2 paragraphs to properly accord with rule 1.110(f).

FORM 1.944(a). MORTGAGE FORECLOSURE

(When location of original note known)

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action to foreclose a mortgage on real property in ..... County, Florida.

2. On .....(date)....., defendant executed and delivered a promissory note and a mortgage securing payment of the note to .....(plaintiff or plaintiff's predecessor)..... The mortgage was recorded on .....(date)....., in Official Records Book ..... at page ..... of the public records of ..... County, Florida, and mortgaged the property described in the mortgage then owned by and in possession of the mortgagor, a copy of the mortgage and the note being attached.

3. (Select a, b, c, or d)

(a) Plaintiff is the holder of the original note secured by the mortgage.

(b) Plaintiff is a person entitled to enforce the note under applicable law because .....(allege specific facts).....

(c) Plaintiff has been delegated the authority to institute a mortgage foreclosure action on behalf of .....(name of holder)....., the holder of the original note. The document(s) that grant(s) plaintiff the authority to act on behalf of the holder of the original note is/are as follows .....

(d) Plaintiff has been delegated the authority to institute a mortgage foreclosure action on behalf of .....(name of non-holder)....., who is not the holder but is entitled to enforce the note under section 673.3011(2), Florida Statutes, because .....(allege specific facts)..... The document(s) that grant(s) plaintiff the authority to act on behalf of the person entitled to enforce the note is are as follows .....

4. The property is now owned by defendant who holds possession.

5. Defendant has defaulted under the note and mortgage by failing to pay the payment due .....(date)....., and all subsequent payments .....(allege other defaults as applicable).....

6. Plaintiff declares the full amount payable under the note and mortgage to be due.

7. Defendant owes plaintiff $..... that is due on principal on the note and mortgage, interest from .....(date)....., and title search expense for ascertaining necessary parties to this action.

8. Plaintiff is obligated to pay plaintiff's attorneys a reasonable fee for their services. Plaintiff is entitled to recover its attorneys' fees under .....(allege statutory and/or contractual bases, as applicable).....

WHEREFORE plaintiff demands judgment foreclosing the mortgage, for costs (and, when applicable, for attorneys' fees), and, if the proceeds of the sale are insufficient to pay plaintiff's claim, a deficiency judgment.

NOTE: An action for foreclosure of a mortgage on residential real property must contain an oath, affirmation, or the following statement as required by rule 1.115(e).

VERIFICATION

Under penalty of perjury, I declare that I have read the foregoing, and the facts alleged therein are true and correct to the best of my knowledge and belief.

Executed on this .....(date).....

_____

Person Signing Verification]

CERTIFICATION OF POSSESSION OF ORIGINAL NOTE

The undersigned hereby certifies:

1. That plaintiff is in possession of the original promissory note upon which this action is brought.

2. The location of the original promissory note is: .....(location).....

3. The name and title of the person giving the certification is: .....(name and title).....

4. The name of the person who personally verified such possession is: .....(name).....

5. The time and date on which possession was verified were: .....(time and date).....

6. Correct copies of the note (and, if applicable, all endorsements, transfers, allonges, or assignments of the note) are attached to this certification.

7. I give this statement based on my personal knowledge.

Under penalties of perjury, I declare that I have read the foregoing Certification of Possession of Original Note and that the facts stated in it are true.

Executed on .....(date).....

(Person Signing Certification)

NOTE: This form is for installment payments with acceleration. It omits allegations about junior encumbrances, unpaid taxes, and unpaid insurance premiums, other nonmonetary defaults, and for a receiver. They must be added when appropriate. A copy of the note and mortgage must be attached. This form may require modification. This form is designed to incorporate the pleading requirements of section 702.015, Florida Statutes (2013) and rule 1.115. It is also designed to conform to section 673.3011, Florida Statutes (2013), except that part of section 673.3011, Florida Statutes, which defines a person entitled to enforce an instrument under section 673.3091, Florida Statutes. See form 1.944(b). Pursuant to section 702.015, Florida Statutes (2013), a certification of possession of the original promissory note must be filed contemporaneously with the Complaint (form 1.944(a)) or, in the event that the plaintiff seeks to enforce a lost, destroyed, or stolen instrument, an affidavit setting forth the facts required by law must be attached to the complaint (form 1.944(b)).

FORM 1.944(b). MORTGAGE FORECLOSURE

(When location of original note unknown)

COMPLAINT

Plaintiff, ABC, sues defendant, XYZ, and states:

1. This is an action to foreclose a mortgage on real property in ..... County, Florida.

2. On .....(date)....., defendant executed and delivered a promissory note and a mortgage securing the payment of said note to .....(plaintiff or plaintiff's predecessor)..... The mortgage was recorded on .....(date)....., in Official Records Book ..... at page ..... of the public records of ..... County, Florida, and mortgaged the property described therein which was then owned by and in possession of the mortgagor. A copy of the mortgage and note are attached to the affidavit which is attached hereto as Composite Exhibit "1"; the contents of the affidavit are specifically incorporated by reference.

3. Plaintiff is not in possession of the note but is entitled to enforce it.

4. (select a, b, c, or d) Plaintiff cannot reasonably obtain possession of the note because

(a) the note was destroyed.

(b) the note is lost.

(c) the note is in the wrongful possession of an unknown person.

(d) the note is in the wrongful possession of a person that cannot be found or is not amenable to service of process.

5. (select a, b, c, d, e, or f)

(a) When loss of possession occurred, plaintiff was the holder of the original note secured by the mortgage.

(b) When loss of possession occurred, plaintiff was a person entitled to enforce the note under applicable law because .....(allege specific facts).....

(c) Plaintiff has directly or indirectly acquired ownership of the note from a person entitled to enforce the note when loss of possession occurred as follows: .....(allege facts as to transfer of ownership).....

(d) Plaintiff has been delegated the authority to institute a mortgage foreclosure action on behalf of the holder of the original note who lost possession of the note. The document(s) that grant(s) plaintiff the authority to act on behalf of the person entitled to enforce the note is/are as follows ..... (attach documents if not already attached).

(e) Plaintiff has been delegated the authority to institute a mortgage foreclosure action on behalf of the person entitled to enforce the note when loss of possession occurred because .....(allege specific facts)..... The document(s) that grant(s) plaintiff the authority to act on behalf of the person entitled to enforce the note is/are as follows ..... (attach documents if not already attached).

(f) Plaintiff has been delegated the authority to institute a mortgage foreclosure action on behalf of the person or entity who directly or indirectly acquired ownership of the note from a person entitled to enforce the note when loss of possession occurred, as follows: .....(allege specific facts)..... the document(s) that grant(s) plaintiff the authority to act on behalf of the person entitled to enforce the note is/are as follows ..... (attach documents if not already attached).

6. Plaintiff did not transfer the note or lose possession of it as the result of a lawful seizure.

7. The property is now owned by defendant who holds possession.

8. Defendant has defaulted under the note and mortgage by failing to pay the payment(s) due .....(date(s))..... , and all subsequent payments ..... (identify other defaults as applicable)……

9. Plaintiff declares the full amount payable under the note and mortgage to be due.

10. Defendant owes plaintiff $…….. that is due on principal on the note and mortgage, interest from .....(date)....., and title search expense for ascertaining necessary parties to this action.

11. Plaintiff is obligated to pay its attorneys a reasonable fee for their services. Plaintiff is entitled to recover its attorneys' fees for prosecuting this claim pursuant to .....(identify statutory and/or contractual bases, as applicable)……

WHEREFORE, Plaintiff demands judgment re-establishing the promissory note, determining the amount and nature of adequate protection to be required by sections 673.3091(2) and 702.11, Florida Statutes, foreclosing the mortgage, for costs (and, where applicable, for attorneys' fees), and if the proceeds of the sale are insufficient to pay plaintiff's claim, a deficiency judgment.

NOTE: An action for foreclosure of a mortgage on residential real property must contain an oath, affirmation, or the following statement as required by rule 1.115(e).

VERIFICATION

Under penalty of perjury, I declare that I have read the foregoing, and the facts alleged therein are true and correct to the best of my knowledge and belief.

Executed on .....(date)……

_____

(Person Signing Verification)

*****

AFFIDAVIT OF COMPLIANCE

STATE OF FLORIDA

COUNTY OF .....

BEFORE ME, the undersigned authority, personally appeared .....(name)....., who, after being first duly sworn, deposes and states, under penalty of perjury:

1. I am the plaintiff (or plaintiff's .....) (identify relationship to plaintiff).

I am executing this affidavit in support of plaintiff's Complaint against defendant and I have personal knowledge of the matters set forth herein.

2. On .....(date)..... , the public records reflect that defendant executed and delivered a mortgage securing the payment of the note to .....(plaintiff/plaintiff's predecessor)..... The mortgage was recorded on .....(date)..... , in Official Records Book ..... at page ..... of the public records of ..... County, Florida, and mortgaged the property described therein, which was then owned by and in possession of the mortgagor, a copy of the mortgage and the note being attached.

3. Plaintiff is not in possession of the note but is entitled to enforce it.

4. (select a, b, c, or d) Plaintiff cannot reasonably obtain possession of the note because

(a) the note was destroyed.

(b) the note is lost.

(c) the note is in the wrongful possession of an unknown person.

(d) the note is in the wrongful possession of a person who cannot be found or is not amenable to service of process.

5. (select a, b, c, d, e, or f)

(a) When loss of possession occurred, plaintiff was the holder of the original note secured by the mortgage.

(b) When loss of possession occurred, plaintiff was a person entitled to enforce the note under applicable law because .....(allege specific facts).....

(c) Plaintiff has directly or indirectly acquired ownership of the note from a person entitled to enforce the note when loss of possession occurred as follows: .....(allege facts regarding transfer of ownership).....

(d) Plaintiff has been delegated the authority to institute a mortgage foreclosure action on behalf of the holder of the original note who lost possession of the note. The document(s) that grant(s) plaintiff the authority to act on behalf of the person entitled to enforce the note is/are as follows ..... (attach copy of document(s) or relevant portion(s) of the document(s)).

(e) Plaintiff has been delegated the authority to institute a mortgage foreclosure action on behalf of the person entitled to enforce the original note when loss of possession occurred, because .....(allege specific facts)..... The document(s) that grant(s) plaintiff the authority to act on behalf of the person entitled to enforce the note is/are as follows ..... (attach documents if not already attached).

(f) Plaintiff has been delegated the authority to institute a mortgage foreclosure action on behalf of the person or entity who directly or indirectly acquired ownership of the note from a person entitled to enforce the original note when loss of possession occurred, as follows .....(allege specific facts)..... The document(s) that grant(s) plaintiff the authority to act on behalf of the person entitled to enforce the note is/are as follows ..... (attach documents if not already attached).

6. Below is the clear chain of the endorsements, transfers, allonges or assignments of the note and all documents that evidence same as are available to Plaintiff: .....(identify in chronological order all endorsements, transfers, assignments of, allonges to, the note or other evidence of the acquisition, ownership and possession of the note)..... Correct copies of the foregoing documents are attached to this affidavit.

7. Plaintiff did not transfer the note or lose possession of it as the result of a lawful seizure.

FURTHER, AFFIANT SAYETH NAUGHT.

_____

[signature]

.....

[typed or printed name of affiant]

STATE OF FLORIDA

COUNTY OF .....

BEFORE ME, the undersigned authority appeared .....(name of affiant)....., who .....is personally known to me or ..... produced identification ..... and acknowledged that he/she executed the foregoing instrument for the purposes expressed therein and who did take an oath.

WITNESS my hand and seal in the State and County aforesaid, this .....(date).....

_____
NOTARY PUBLIC, State of Florida
Print Name: .....
Commission Expires:.....

Committee Note

2014 Adoption. This form is for installment payments with acceleration. It omits allegations about junior encumbrances, unpaid taxes, unpaid insurance premiums, other nonmonetary defaults, and for a receiver. Allegations must be added when appropriate. This form may require modification. This form is designed to incorporate the pleading requirements of section 702.015, Florida Statutes (2013), and rule 1.115. It is also designed to comply with section 673.3091, Florida Statutes (2013). Adequate protection as required by sections 702.11 (2013) and 673.3091(2), Florida Statutes (2013), must be provided before the entry of final judgment.

FORM 1.944(c) MOTION FOR ORDER TO SHOW CAUSE

PLAINTIFF'S MOTION FOR ORDER TO SHOW CAUSE FOR ENTRY OF FINAL JUDGMENT OF FORECLOSURE

1. Plaintiff is a lienholder of real property located at .....(address)..... or is a .....Condominium Association/Cooperative Association/Homeowner's Association.....

2. The plaintiff has filed a verified complaint in conformity with applicable law, which is attached.

3. The plaintiff requests this court issue an order requiring defendant(s) to appear before the court to show cause why a final judgment of foreclosure should not be entered against defendant(s).

4. The date of the hearing may not occur sooner than the later of 20 days after service of the order to show cause or 45 days after service of the initial complaint.

OR

COMMENT: Use the following when service is by publication:

4. When service is obtained by publication, the date for the hearing may not be set sooner than 30 days after the first publication.

5. The accompanying proposed order to show cause affords defendant(s) all the rights and obligations as contemplated by applicable law.

6. Upon the entry of the order to show cause, plaintiff shall serve a copy of the executed order to show cause for entry of final judgment as required by law.

Plaintiff requests the court review this complaint and grant this motion for order to show cause for entry of final judgment of foreclosure, and grant such further relief as may be awarded at law or in equity.

_____

Plaintiff

Certificate of Service

Committee Note

2014 Adoption. This form is designed to comply with section 702.10, Florida Statutes (2013).

FORM 1.944(d) ORDER TO SHOW CAUSE

ORDER TO SHOW CAUSE

THIS CAUSE has come before the court on .....plaintiff's/lien holder's..... motion for order to show cause for entry of final judgment of mortgage foreclosure and the court having reviewed the motion and the verified complaint, and being otherwise fully advised in the circumstances, finds and it is

ORDERED AND ADJUDGED that:

1. The defendant(s) shall appear at a hearing on foreclosure on .....(date)..... at .....(time)..... before the undersigned judge, in the .....(county)..... Courthouse at .....(address)....., to show cause why the attached final judgment of foreclosure should not be entered against the defendant(s) in this cause. This hearing referred to in this order is a "show cause hearing."

2. This ORDER TO SHOW CAUSE shall be served on the defendant(s) in accordance with the Florida Rules of Civil Procedure and applicable law as follows:

a. If the defendant(s) has/have been served under Chapter 48, Florida Statutes, with the verified complaint and original process has already been effectuated, service of this order may be made in the manner provided in the Florida Rules of Civil Procedure; or, if the other party is a plaintiff in the action, service of the order to show cause on that party may be made in the manner provided in the Florida Rules of Civil Procedure.

b. If the defendant(s) has/have not been served under Chapter 48, Florida Statutes, with the verified complaint and original process, the order to show cause, together with the summons and a copy of the verified complaint, shall be served on the party in the same manner as provided by law for original process.

3. The filing of defenses by a motion or verified answer at or before the show cause hearing constitutes cause for which the court may not enter the attached final judgment.

4. Defendant(s) has/have the right to file affidavits or other papers at the time of the show cause hearing and may appear at the hearing personally or by an attorney.

5. If defendant(s) file(s) motions, they may be considered at the time of the show cause hearing.

6. Defendant(s)' failure to appear either in person or by an attorney at the show cause hearing or to file defenses by motion or by a verified or sworn answer, affidavits, or other papers which raise a genuine issue of material fact which would preclude entry of summary judgment or which would otherwise constitute a legal defense to foreclosure, after being served as provided by law with the order to show cause, will be deemed presumptively a waiver of the right to a hearing. In such case, the court may enter a final judgment of foreclosure ordering the clerk of the court to conduct a foreclosure sale. An order requiring defendant(s) to vacate the premises may also be entered.

7. If the mortgage provides for reasonable attorneys' fees and the requested fee does not exceed 3% of the principal amount owed at the time the complaint is filed, the court may not need to hold a hearing to adjudge the requested fee to be reasonable.

8. Any final judgment of foreclosure entered under section 702.10(1) Florida Statutes, shall be only for in rem relief; however, entry of such final judgment of foreclosure shall not preclude entry of an in personam money damages judgment or deficiency judgment where otherwise allowed by law.

9. A copy of the proposed final judgment is attached and will be entered by the court if defendant(s) waive(s) the right to be heard at the show cause hearing.

DONE AND ORDERED at .....(county)....., Florida .....(date).....

_____
CIRCUIT JUDGE

Copies to:

Committee Note

2014 Adoption. This form is designed to comply with section 702.10(1), Florida Statutes (2013).

FORM 1.945. MOTOR VEHICLE NEGLIGENCE COMPLAINT

COMPLAINT

Plaintiff, A. B., sues defendants, C. D., and E. F., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. (Use a or b) a. On or about .....(date)....., defendant, C. D., owned a motor vehicle that was operated with his/her consent by defendant, E. F., at ..... in ....., Florida.

b. On or about .....(date)....., defendant owned and operated a motor vehicle at ..... in ....., Florida.

3. At that time and place defendants negligently operated or maintained the motor vehicle so that it collided with plaintiff's motor vehicle.

4. As a result plaintiff suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money, and aggravation of a previously existing condition. The losses are either permanent or continuing and plaintiff will suffer the losses in the future. Plaintiff's automobile was damaged and he/she lost the use of it during the period required for its repair or replacement.

WHEREFORE plaintiff demands judgment for damages against defendants.

NOTE: This form, except for paragraph 2b, is for use when owner and driver are different persons. Use paragraph 2b when they are the same. If paragraph 2b is used, "defendants" must be changed to "defendant" wherever it appears.

Committee Notes

1980 Amendment. This form was changed to show that one of the alternatives in paragraph 2 is used, but not both, and paragraph 4 has been changed to paraphrase Standard Jury Instruction 6.2.

FORM 1.946. MOTOR VEHICLE NEGLIGENCE WHEN PLAINTIFF IS UNABLE TO DETERMINE WHO IS RESPONSIBLE

COMPLAINT

Plaintiff, A. B., sues defendants, C. D., and E. F., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. On or about .....(date)....., defendant, C. D., or defendant, E. F., or both defendants, owned and operated motor vehicles at ..... in ....., Florida.

3. At that time and place defendants, or one of them, negligently operated or maintained their motor vehicles so that one or both of them collided with plaintiff's motor vehicle.

4. As a result plaintiff suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money, and aggravation of a previously existing condition. The losses are either permanent or continuing and plaintiff will suffer the losses in the future. Plaintiff's automobile was damaged and he/she lost the use of it during the period required for its repair or replacement.

WHEREFORE plaintiff demands judgment for damages against defendants.

NOTE: Allegations when owner and driver are different persons are omitted from this form and must be added when proper.

Committee Notes

1980 Amendment. Paragraph 4 is changed to paraphrase Standard Jury Instruction 6.2.

FORM 1.947. TENANT EVICTION

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action to evict a tenant from real property in ..... County, Florida.

2. Plaintiff owns the following described real property in said county:

(describe property)

3. Defendant has possession of the property under (oral, written) agreement to pay rent of $..... payable .....

4. Defendant failed to pay rent due .....(date).....

5. Plaintiff served defendant with a notice on .....(date)....., to pay the rent or deliver possession but defendant refuses to do either.

WHEREFORE plaintiff demands judgment for possession of the property against defendant.

NOTE: Paragraph 3 must specify whether the rental agreement is written or oral and if written, a copy must be attached.

FORM 1.947(b). ANSWER—RESIDENTIAL EVICTION

1. The defendant answers the complaint as follows: (Check ONLY 1, a. or b.)

a. _____ Defendant generally denies each statement of the complaint.

b. _____ Defendant admits that all the statements of the complaint are true EXCEPT:

(i) _____ The following statement(s) in paragraph(s) _____ _____ of the complaint is/are false. Please explain: _____
_____
_____
_____

(ii) _____ I do not know whether the information in paragraph(s) _____ of the complaint is/are true or false, so I am denying them.

_____

2. If you write down any defense other than payment of rent, then you must take one of the following steps:

a. If you agree with the landlord about the rent owed, then you must pay the rent owed into the court registry when you file this response.

b. If you disagree with the landlord about the rent owed for any reason, then you must check box 3(b) below and describe with detail why you disagree.

c. You MUST pay the clerk of court the rent each time it becomes due until the lawsuit is over.

If you fail to follow these instructions, then you will lose your defenses. You will not have a hearing in your case and you may be evicted without a court date.

3. The defendant sets forth the following defenses to the complaint: (Check ONLY the defenses that apply, and state brief facts to support each checked defense.)

a. _____ The landlord did not make repairs, and I withheld my rent after sending written notice to the landlord. (Attach a copy of the written notice to the landlord.) Please explain:_____
_____
_____
_____

b. _____ I do not owe the total amount of rent or ongoing amount of rent the landlord claims I owe. I am also asking this court to determine the amount of rent that must be deposited into the court registry and requesting a hearing. **(Motion to Determine Rent.)** Please explain:_____
_____
_____
_____

c. _____ I attempted/offered to pay all the rent due before the notice to pay rent expired, but the landlord did not accept the rent payment. Please explain:_____
_____
_____
_____

d. _____ I paid the rent demanded by the landlord in the notice to pay rent. Please explain:_____
_____
_____
_____

e. _____ The landlord waived, changed, or canceled the notice that required me to move out of the residence. Please explain:_____
_____
_____
_____

f. _____ The landlord filed the eviction in retaliation against me. For example, the tenant has complained to a governmental agency charged

with responsibility for enforcement of building, housing, or health codes of a suspected violation, or tenant has complained directly to the landlord. Please explain: _____

_____

_____

_____

g. _____ The landlord filed the eviction in violation of the Federal Fair Housing Act and/or the Florida Fair Housing Act. Please explain:__

_____

_____

_____

_____

h. _____ The landlord accepted rent from me after sending me the notice to terminate. Please explain:_____

_____

_____

_____

i. _____ I already corrected the violations claimed by the landlord on the notice to terminate. Please explain:_____

_____

_____

_____

j. _____ The landlord is not the owner of the property where I live. Please explain:_____

_____

_____

_____

k. _____ I did not receive the notice to terminate or the notice was legally incorrect. Please explain:_____

_____

_____

_____

l. _____ Other defenses. Please explain:_____

_____

_____

_____

4. **You have a constitutional right to request a trial by a jury of your peers instead of a judge. However, there are some things you should know about this right:**

a. You may have waived this right in your lease, so review it carefully before requesting a jury trial.

b. If you want a jury trial, you should request it in writing when you file your answer or you may waive your right to a jury trial.

c. Jury trials are not simple to conduct. You will bear some responsibility in the process and, if you are unprepared, it may be difficult to represent yourself in a jury trial. Additionally, once you request a jury trial, if you change your mind and you want the judge to decide your case, the landlord will need to agree.

d. If you have questions about whether to request a jury trial, you should speak with an attorney.

5. Select whether you want to request a jury trial: (Check only one.)

_____ I want a judge to decide my case.

_____ I want a jury to decide my case.

All of the statements made above are true to the best of my knowledge and belief.

Signature: _____
Printed Name: _____
Date: _____
Address: _____
Telephone Number: _____
E-mail Address: _____

NOTE: Each defendant named in the complaint for whom this answer is filed must sign this answer unless the defendant's attorney signs.

FORM 1.948. THIRD-PARTY COMPLAINT. GENERAL FORM

THIRD-PARTY COMPLAINT

Defendant, C. D., sues third-party defendant, E. F., and alleges:

1. Plaintiff filed a complaint against defendant, C. D., a copy being attached.

2. (State the cause of action that C. D. has against E. F. for all or part of what A. B. may recover from C. D. as in an original complaint.)

WHEREFORE defendant C. D., demands judgment against the third-party defendant, E. F., for all damages that are adjudged against defendant, C.D., in favor of plaintiff.

NOTE: A copy of the complaint from which the third-party complaint is derived must be attached.

Committee Notes

1988 Amendment. The first sentence was changed to eliminate the words "and third party plaintiff."

FORM 1.949. IMPLIED WARRANTY

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. Defendant manufactured a product known and described as (describe product).

3. Defendant warranted that the product was reasonably fit for its intended use as (describe intended use).

4. On .....(date)....., at ..... in ..... County, Florida, the product (describe the occurrence and defect that resulted in injury) while being used for its intended purpose, causing injuries to plaintiff who was then a user of the product.

5. As a result plaintiff was injured in and about his/her body and extremities, suffered pain therefrom, incurred medical expense in the treatment of the injuries, and suffered physical handicap, and his/her working ability was impaired; the injuries are either permanent or continuing in their nature and plaintiff will suffer the losses and impairment in the future.

WHEREFORE plaintiff demands judgment for damages against defendant.

Committee Notes

1972 Amendment. This form is changed to require an allegation of the defect in paragraph 4. Contentions were made in trial courts that the form as presently authorized eliminated the substantive requirement that the plaintiff prove a defect except under those circumstances when substantive law eliminates the necessity of such proof. Paragraph 4 is amended to show that no substantive law change was intended.

FORM 1.951. FALL-DOWN NEGLIGENCE COMPLAINT

COMPLAINT

Plaintiff, A. B., sues defendant, C. D., and alleges:

1. This is an action for damages that (insert jurisdictional amount).

2. On .....(date)....., defendant was the owner and in possession of a building at ..... in ....., Florida, that was used as a (describe use).

3. At that time and place plaintiff went on the property to (state purpose).

4. Defendant negligently maintained (describe item) on the property by (describe negligence or dangerous condition) so that plaintiff fell on the property.

5. The negligent condition was known to defendant or had existed for a sufficient length of time so that defendant should have known of it.

6. As a result plaintiff was injured in and about his/her body and extremities, suffered pain therefrom, incurred medical expense in the treatment of the injuries, and suffered physical handicap, and his/her working ability was impaired; the injuries are either permanent or continuing in nature and plaintiff will suffer the losses and impairment in the future.

WHEREFORE plaintiff demands judgment for damages against defendant.

FORM 1.960. BOND. GENERAL FORM

(TYPE OF BOND)

WE, (plaintiff's name), as principal and (surety's name), as Surety, are bound to (defendant's name) in the sum of $..... for the payment of which we bind ourselves, our heirs, personal representatives, successors, and assigns, jointly and severally.

THE CONDITION OF THIS BOND is that if plaintiff shall (insert condition), then this bond is void; otherwise it remains in force.

SIGNED AND SEALED on .....

_____

As Principal
(surety's name)

By_____

As Attorney in Fact
As Surety

Approved on …..(date)…..
(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

Committee Notes

1992 Amendment. The "Approved on [.....(date).....]" line is moved to a location immediately above the clerk's name.

FORM 1.961. VARIOUS BOND CONDITIONS

The following conditions are to be inserted in the second paragraph of form 1.960 in the blank provided for the condition of the bond. Other proper conditions must be inserted for other types of bonds.

(a) Attachment, Garnishment, and Distress.

. . . pay all costs and damages that defendant sustains in consequence of plaintiff improperly suing out (type of writ) in this action . . .

NOTE: The condition of an attachment bond in aid of foreclosure when the holder of the property is unknown is different from the foregoing condition. See section 76.12, Florida Statutes.

(b) Costs.

. . . pay all costs and charges that are adjudged against plaintiff in this action . . .

(c) Replevin.

. . . prosecute this action to effect and without delay, and if defendant recovers judgment against plaintiff in this action, plaintiff shall return the property replevied if return of it is adjudged, and shall pay defendant all money recovered against plaintiff by defendant in this action . . .

FORM 1.965. DEFENSE. STATUTE OF LIMITATIONS

Each cause of action, claim, and item of damages did not accrue within the time prescribed by law for them before this action was brought.

FORM 1.966. DEFENSE. PAYMENT

Before commencement of this action defendant discharged plaintiff's claim and each item of it by payment.

FORM 1.967. DEFENSE. ACCORD AND SATISFACTION

On .....(date)....., defendant delivered to plaintiff and plaintiff accepted from defendant (specify consideration) in full satisfaction of plaintiff's claim.

FORM 1.968. DEFENSE. FAILURE OF CONSIDERATION

The sole consideration for the execution and delivery of the promissory note described in paragraph ..... of the complaint was plaintiff's promise to lend defendant $1,000; plaintiff failed to lend the sum to defendant.

NOTE: This form is for failure to complete the loan evidenced by a promissory note. The contract, consideration, and default of the plaintiff must be varied to meet the facts of each case.

FORM 1.969. DEFENSE. STATUTE OF FRAUDS

The agreement alleged in the complaint was not in writing and signed by defendant or by some other person authorized by defendant and was to answer for the debt, default, or miscarriage of another person.

NOTE: This form is for one of the cases covered by the Statute of Frauds. It must be varied to meet the facts of other cases falling within the statute.

FORM 1.970. DEFENSE. RELEASE

On .....(date)....., and after plaintiff's claim in this action accrued, plaintiff released defendant from it, a copy of the release being attached.

NOTE: This form is for the usual case of a written release. If the release is not in writing, the last clause must be omitted and the word "orally" inserted before "released."

FORM 1.971. DEFENSE. MOTOR VEHICLE CONTRIBUTORY NEGLIGENCE

Plaintiff's negligence contributed to the accident and his/her injury and damages because he/she negligently operated or maintained the motor vehicle in which he/she was riding so that it collided with defendant's motor vehicle.

FORM 1.972. DEFENSE. ASSUMPTION OF RISK

Plaintiff knew of the existence of the danger complained of in the complaint, realized and appreciated the possibility of injury as a result of the danger, and, having a reasonable opportunity to avoid it, voluntarily exposed himself/herself to the danger.

Committee Note

1980 Amendment. This form is amended to show the substantive changes caused by the substitution of the doctrine of comparative negligence for contributory negligence. The form is paraphrased from Standard Jury Instruction 3.8.

FORM 1.975. NOTICE OF COMPLIANCE WHEN CONSTITUTIONAL CHALLENGE IS BROUGHT

NOTICE OF COMPLIANCE WITH
SECTION 86.091, FLORIDA STATUTES

The undersigned hereby gives notice of compliance with Fla. R. Civ. P. 1.071, with respect to the constitutional challenge brought pursuant to .....(Florida statute, charter, ordinance, or franchise challenged)..... The undersigned complied by serving the .....(Attorney General for the state of Florida or State Attorney for the ……. Judicial Circuit)..... with a copy of the pleading or motion challenging .....(Florida statute, charter, ordinance, or franchise challenged)....., by .....(certified or registered mail)..... on .....(date).....

.....(Name of Attorney).....
Attorney for .....(Name of Client).....
.....Address.....
.....(Telephone number).....
.....(E-mail address(es)).....
Florida Bar No. …….

Committee Notes

2010 Adoption. This form is to be used to provide notice of a constitutional challenge as required by section 86.091, Florida Statutes. See rule 1.071. This form is to be used when the Attorney General or the State Attorney is not a named party to the action, but must be served solely in order to comply with the notice requirements set forth in section 86.091.

FORM 1.976. STANDARD INTERROGATORIES

The forms of Florida standard interrogatories approved by the supreme court shall be used in the actions to which they apply, subject to the requirements of rule 1.340.

FORM 1.977. FACT INFORMATION SHEET

(a) For Individuals.

(CAPTION)

FACT INFORMATION SHEET

Full Legal Name: _____

Nicknames or Aliases: _____

Residence Address:_____

Mailing Address (if different): _____

Telephone Numbers: (Home) _____

(Business) _____

Name of Employer: _____

Address of Employer: _____

Position or Job Description: _____

Rate of Pay: $_____ per _____ Average Paycheck: $_____ per _____

Average Commissions or Bonuses: $ _____ per _____.

Commissions or bonuses are based on _____

Other Personal Income: $_____ from _____

(Explain details on the back of this sheet or an additional sheet if necessary.)

Social Security Number: _____ Birthdate: _____

Driver's License Number: _____

Marital Status: _____ Spouse's Name: _____

****

Spouse Related Portion

Spouse's Address (if different): _____

Spouse's Social Security Number: _____ Birthdate: _____

Spouse's Employer: _____

Spouse's Average Paycheck or Income: $_____per _____

Other Family Income: $_____per_____(Explain details on back of this sheet or an additional sheet if necessary.)

Describe all other accounts or investments you may have, including stocks, mutual funds, savings bonds, or annuities, on the back of this sheet or on an additional sheet if necessary.

****

Names and Ages of All Your Children (and addresses if not living with you): ____

_____

Child Support or Alimony Paid: $ _____ per _____

Names of Others You Live With: _____

Who is Head of Your Household?_____ You_____ Spouse

_____ Other Person

Checking Account at: _____ Account # _____

Savings Account at:_____ Account # _____

For Real Estate (land) You Own or Are Buying: _____

Address: _____

All Names on Title: _____

Mortgage Owed to: _____

Balance Owed: _____

Monthly Payment: $ _____

(Attach a copy of the deed or mortgage, or list the legal description of the property on the back of this sheet or an additional sheet if necessary. Also provide the same information on any other property you own or are buying.)

For All Motor Vehicles You Own or Are Buying: _____

Year/Make/Model: _____ Color: _____

Vehicle ID #:_____ Tag No: _____ Mileage: _____

Names on Title: _____ Present Value: $ _____

Loan Owed to: _____

Balance on Loan: $ _____

Monthly Payment: $ _____

(List all other automobiles, as well as other vehicles, such as boats, motorcycles, bicycles, or aircraft, on the back of this sheet or an additional sheet if necessary.)

Have you given, sold, loaned, or transferred any real or personal property worth more than $100 to any person in the last year? If your answer is "yes," describe the property, market value, and sale price, and give the name and address of the person who received the property.

Does anyone owe you money? Amount Owed: $ _____

Name and Address of Person Owing Money: _____

Reason money is owed: _____

Please attach copies of the following:

a. Your last pay stub.

b. Your last 3 statements for each bank, savings, credit union, or other financial account.

c. Your motor vehicle registrations and titles.

d. Any deeds or titles to any real or personal property you own or are buying, or leases to property you are renting.

e. Your financial statements, loan applications, or lists of assets and liabilities submitted to any person or entity within the last 3 years.

f. Your last 2 income tax returns filed.

UNDER PENALTY OF PERJURY, I SWEAR OR AFFIRM THAT THE FOREGOING ANSWERS ARE TRUE AND COMPLETE.

_____
Judgment Debtor

STATE OF FLORIDA
COUNTY OF .....

Sworn to (or affirmed) and subscribed before me this _____ day of _____ (year) by (name of person making statement)

_____
Notary Public State of Florida
My Commission expires: .....

Personally known _____ OR Produced Identification _____
Type of identification produced _____

YOU MUST MAIL OR DELIVER THIS COMPLETED FORM, WITH ALL ATTACHMENTS, TO THE JUDGMENT CREDITOR OR THE JUDGMENT CREDITOR'S ATTORNEY, BUT DO NOT FILE THIS FORM WITH THE CLERK OF COURT.

(b) For Corporations and Other Business Entities.

(CAPTION)

FACT INFORMATION SHEET

Name of entity: _____

Name and title of person filling out this form: _____

Telephone number: _____

Place of business: _____

Mailing address (if different): _____

Gross/taxable income reported for federal income tax purposes last three years:

$_____/$_____$_____/$_____$_____/$_____

Taxpayer identification number: _____

Is this entity an S corporation for federal income tax purposes? _____ Yes _____ No

Average number of employees per month_____

Name of each shareholder, member, or partner owning 5% or more of the entity's common stock, preferred stock, or other equity interest:

_____

_____

_____

Names of officers, directors, members, or partners: _____

_____

Checking account at: _____ Account # _____

Savings account at: _____ Account # _____

Does the entity own any vehicles?_____ Yes_____ No

For each vehicle please state: _____

Year/Make/Model: _____ Color: _____

Vehicle ID No: _____ Tag No: _____ Mileage: _____

Names on Title: _____ Present Value: $ _____

Loan Owed to: _____

Balance on Loan: $ _____

Monthly Payment: $ _____

Does the entity own any real property? _____ Yes _____ No

If yes, please state the address(es):_____

Please check if the entity owns the following

_____ Boat

_____ Camper

_____ Stocks/bonds

_____ Other real property

_____ Other personal property

Please attach copies of the following:

1. Copies of state and federal income tax returns for the past 3 years.

2. All bank, savings and loan, and other account books and statements for accounts in institutions in which the entity had any legal or equitable interest for the past 3 years.

3. All canceled checks for the 12 months immediately preceding the service date of this Fact Information Sheet for accounts in which the entity held any legal or equitable interest.

4. All deeds, leases, mortgages, or other written instruments evidencing any interest in or ownership of real property at any time within the 12 months immediately preceding the date this lawsuit was filed.

5. Bills of sale or other written evidence of the gift, sale, purchase, or other transfer of any personal or real property to or from the entity within the 12 months immediately preceding the date this lawsuit was filed.

6. Motor vehicle or vessel documents, including titles and registrations relating to any motor vehicles or vessels owned by the entity alone or with others.

7. Financial statements as to the entity's assets, liabilities, and owner's equity prepared within the 12 months immediately preceding the service date of this Fact Information Sheet.

8. Minutes of all meetings of the entity's members, partners, shareholders, or board of directors held within 2 years of the service date of this Fact Information Sheet.

9. Resolutions of the entity's members, partners, shareholders, or board of directors passed within 2 years of the service date of this Fact Information Sheet.

UNDER PENALTY OF PERJURY, I SWEAR OR AFFIRM THAT THE FOREGOING ANSWERS ARE TRUE AND COMPLETE.

_____
Judgment Debtor's Designated Representative/Title

STATE OF FLORIDA
COUNTY OF …….

Sworn to (or affirmed) and subscribed before me this _____ day of _____ (year) by (name of person making statement).

Personally known ____ OR Produced identification _____
Type of identification produced _____

YOU MUST MAIL OR DELIVER THIS COMPLETED FORM, WITH ALL ATTACHMENTS, TO THE PLAINTIFF'S JUDGMENT CREDITOR OR THE PLAINTIFF'S JUDGMENT CREDITOR'S ATTORNEY, BUT DO NOT FILE THIS FORM WITH THE CLERK OF THE COURT.

Committee Notes

2000 Adoption. This form is added to comply with amendments to rule 1.560.

2013 Amendment. This amendment clarifies that the judgment debtor should mail or deliver the Fact Information Sheet only to the judgment creditor or the judgment creditor's attorney, and should not file the Fact Information Sheet with the clerk of the court.

FORM 1.980. DEFAULT

MOTION FOR DEFAULT

Plaintiff moves for entry of a default by the clerk against defendant ……. for failure to serve any document on the undersigned or file any document as required by law.

_____
Attorney for Plaintiff

DEFAULT

A default is entered in this action against the defendant named in the foregoing motion for failure to serve or file any document as required by law.

Dated on …….

(Name of Clerk)
As Clerk of the Court
By_____
As Deputy Clerk

FORM 1.981. SATISFACTION OF JUDGMENT

SATISFACTION OF JUDGMENT

The undersigned, owner and holder of a final judgment rendered in the above-captioned civil action, dated ……., recorded in ……. County, Official Records Book ….. beginning at Page ….., acknowledges that all sums due under it have been fully paid and that final judgment is hereby canceled and satisfied of record.

Dated on …….

_____
Judgment Owner and Holder (or their attorney)

STATE OF FLORIDA
COUNTY OF _____

The foregoing instrument was acknowledged before me this _____ day of _____, 20___, by (name of person acknowledging).

(NOTARY SEAL)

_____
(Signature of Notary Public-State of Florida)
(Name of Notary Typed, Printed, or Stamped)

Personally Known _____ OR Produced Identification _____
Type of Identification Produced _____

Committee Notes

2003 Amendment. This satisfaction of judgment is a general form. It is a new form. To ensure identity of the signer, notarization is prudent but not required. If a certified copy of the judgment is recorded, it may be prudent to include that recording information.

2013 Amendment. This form has been changed to remove unnecessary language and to include the acknowledgment required by sections 695.03 and 701.04, Florida Statutes.

FORM 1.982. CONTEMPT NOTICE

MOTION AND NOTICE OF HEARING

TO: (name of attorney for party, or party if not represented)

YOU ARE NOTIFIED that plaintiff will apply to the Honorable ……. , Circuit Judge, on .....(date)....., at ……m., in the ……. County Courthouse at ……., Florida, for an order adjudging (defendant's name) in contempt of court for violation of the terms of the order or judgment entered by this court on .....(date)....., by failing to ……., and I certify that a copy hereof has been furnished to ……. by mail on .....(date)……

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact [identify applicable court personnel by name, address, and telephone number] at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before your scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

NOTE: The particular violation must be inserted in the motion and notice. A separate motion is unnecessary.

Committee Note

2013 Amendment. The notice to persons with disabilities was amended to make the procedure for obtaining accommodation consistent with the procedure required in court proceedings.

FORM 1.983. PROSPECTIVE JUROR QUESTIONNAIRE

DIRECTIONS TO ATTORNEYS AND PRO SE LITIGANTS:

Before you file a copy of this form, redact the month and date of the prospective juror's birth in question #3, but retain the year of birth. Fla. R. Gen. Prac. & Jud. Admin. 2.425(a)(2)

QUESTIONNAIRE FOR PROSPECTIVE JURORS

1. Name: (print)

.....
(first) (middle) (last)

2. Residence address:

.....
(street and number)

.....
(city) (zip)

3. Date of birth:

.....

Sex: ..... Occupation: .....

4. Do you understand the English language?

....
(yes) (no)

5. Do you read and write the English language?

....
(yes) (no)

6. Have you ever been convicted of a crime and not restored to your civil rights?

....

(yes) (no)

If "yes," state the nature of crime(s), the date of the conviction(s), and the name of the court in which you were convicted:

.....

.....

7. Are there any criminal charges pending against you of which you are aware?

....
(yes) (no)

If "yes," state the nature of the charge and the name of the court (s) in which the case(s) is pending:

.....

.....

8. FULL TIME LAW ENFORCEMENT OFFICERS AND LAW ENFORCEMENT INVESTIGATIVE PERSONNEL ONLY. Section 40.013(2)(b), Florida Statutes, provides that "[a]ny full-time federal state, or local law enforcement officer or such entities' investigative personnel shall be excused from jury service unless such persons choose to serve." Do you choose to serve?

....
(yes) (no)

9. List any official executive office you now hold with the federal, state, or ..... county government:

.....

.....

10. Is your hearing good? ....
(yes) (no)

Is your eyesight good? ....
(yes) (no)

(The court may require a medical certificate.)

11. Do you have any physical or mental disability (mental illness, intellectual disability, senility, or other physical or mental incapacity) that would interfere with your service as a juror?

....
(yes) (no)

If "yes," state the nature:

.....

(The court may require a written statement from a physician.)

12. Do you know of any reason (s) why you cannot serve as a juror?

....
(yes) (no)

If "yes," state the reason (s):

.....

.....

13. EXPECTANT MOTHERS AND PARENTS ONLY: Section 40.013(4), Florida Statutes, provides that "[a]ny expectant mother and parent who is not employed full time and who has custody of a child under 6 years of age, upon request, shall be excused from jury service." Do you want to be excused under this provision?

....
(yes) (no)

If "yes," what are the ages of your children?

.....

14. NEW MOTHERS ONLY: Section 40.013(12), Florida Statutes, provides that "[a] woman who has given birth within the 6 months before the reporting date on a summons for jury service shall be excused upon request." Do you want to be excused under this provision?

....
(yes) (no)

15. CAREGIVER: Section 40.013(10), Florida Statutes, provides that "[a]ny person who is responsible for the care of a person who, because of mental illness, intellectual disability, senility, or other physical or mental

incapacity, is incapable of caring for himself or herself shall be excused from jury service upon request." Do you want to be excused under this provision?

....
(yes) (no)

If "yes," state the reason(s):
.....

16. FULL-TIME STUDENTS: Section 40.013(11), Florida Statutes, provides that "[u]pon request, a full-time student between 18 and 21 years of age, inclusive, who is attending high school or any state university, private postsecondary educational institution, Florida College System institution, or career center shall be excused from that specific summons for jury service." Do you want to request to be excused under this provision?

....
(yes) (no)

If "yes," what is the name of your school?
.....

_____
Signature

This is not a summons for jury duty. If your name is later drawn for jury service, you will be summoned by clerk of court by mail.

NOTE: This form does not use a caption as shown in form 1.901. It may be headed with the designation of the jury authority charged by law with the selection of prospective jurors.

FORM 1.984. JUROR VOIR DIRE QUESTIONNAIRE

JURY QUESTIONNAIRE

Instructions to Jurors

You have been selected as a prospective juror. It will aid the court and help shorten the trial of cases if you will answer the questions on this form and return it in the enclosed self-addressed stamped envelope within the next 2 days. Please complete the form in blue or black ink and write as dark and legibly as you can.

1. Name (print) _____
(first) (middle) (last)

2. Residence address _____

3. Years of residence: In Florida _____
In this county _____

4. Former residence _____

5. Marital status: (married, single, divorced, widow, or widower) _____

6. State the highest level of education you completed

_____Less than high school _____ Some college

_____ High school _____Associate degree

_____Vocational/Technical school _____College degree

_____Post graduate degree

7. Your occupation and employer _____

8. If you are not now employed, give your last occupation and employer _____

9. If married, name and occupation of husband or wife _____

10. Have you served as a juror before? _____

11. Have you or any member of your immediate family been a party to any lawsuit? _____

If so, when and in what court? _____

12. Are you either a close friend of or related to any law enforcement officer? _____

13. Has a claim for personal injuries ever been made against you or any member of your family? _____

_____

14. Have you or any member of your family ever made any claim for personal injuries? _____

_____
Juror's Signature

NOTE: This form does not have a caption as shown in form 1.901, but should be headed with the name of the court summoning the juror.

FORM 1.986. VERDICTS

In all civil actions tried by a jury, the parties should refer to the model verdict forms contained in the Florida Standard Jury Instructions in Civil Cases, as applicable.

FORM 1.988. JUDGMENT AFTER DEFAULT

(a) General Form. This form is the general form for a judgment after default, not including recovery for prejudgment interest and attorneys' fees:

FINAL JUDGMENT

This action was heard after entry of default against defendant and

IT IS ADJUDGED that plaintiff, ...(name and address)....., recover from defendant, ...(name and address, and last 4 digits of social security number if known)....., the sum of $..... with costs in the sum of $....., that shall bear interest at the rate of .....% a year, for which let execution issue.

ORDERED at ....., Florida, on .....(date).....

_____

Judge

(b) Form with Interest and Fees. This form is for judgment after default including prejudgment interest and attorneys' fees recovered:

FINAL JUDGMENT

This action was heard after entry of default against defendant and

IT IS ADJUDGED that plaintiff, ...(name and address)....., recover from defendant, ...(name and address, and last 4 digits of social security number if known)....., the sum of $..... on principal, $..... for attorneys' fees with costs in the sum of $....., and pre-judgment interest in the sum of $....., making a total of $..... that shall bear interest at the rate of .....% a year, for which let execution issue.

ORDERED at ....., Florida, on .....(date).....

_____

Judge

NOTE: The address of the person who claims a lien as a result of the judgment must be included in the judgment in order for the judgment to become a lien on real estate when a certified copy of the judgment is recorded. Alternatively, an affidavit with this information may be simultaneously recorded. For the specific requirements, see section 55.10(1), Florida Statutes; *Hott Interiors, Inc. v. Fostock*, 721 So. 2d 1236 (Fla. 4th DCA 1998). The address and social security number (if known) of each person against whom the judgment is rendered must be included in the judgment, pursuant to section 55.01(2), Florida Statutes. However, for privacy reasons, only the last 4 digits of the social security number should be shown.

Committee Notes

1980 Adoption. This form is new.

2003 Amendment. Subdivision (b) is amended to include prejudgment interest in the total judgment pursuant to Quality Engineered Installation, Inc. v. Higley South, Inc., 670 So. 2d 929 (Fla. 1996).

FORM 1.989. ORDER OF DISMISSAL FOR LACK OF PROSECUTION

(a) Notice of Lack of Prosecution.

NOTICE OF LACK OF PROSECUTION

PLEASE TAKE NOTICE that it appears on the face of the record that no activity by filing of pleadings, order of court, or otherwise has occurred for a period of 10 months immediately preceding service of this notice, and no stay has been issued or approved by the court. Pursuant to rule 1.420(e), if no such record activity occurs within 60 days following the service of this notice, and if no stay is issued or approved during such 60-day period, this action may be dismissed by the court on its own motion or on the motion of any interested person, whether a party to the action or not, after reasonable notice to the parties, unless a party shows good cause in writing at least 5 days before the hearing on the motion why the action should remain pending.

(b) Order Dismissing Case for Lack of Prosecution.

ORDER OF DISMISSAL

This action was heard on the .....respondent's/court's/interested party's..... motion to dismiss for lack of prosecution served on .....(date)..... The court finds that (1) notice pre-scribed by rule 1.420(e) was served on .....(date).....; (2) there was no record activity during the 10 months immediately preceding service of the foregoing notice; (3) there was no record activity during the 60 days immediately following service of the foregoing notice; (4) no stay

has been issued or approved by the court; and (5) no party has shown good cause why this action should remain pending. Accordingly,

IT IS ORDERED that this action is dismissed for lack of prosecution.

ORDERED at ....., Florida, on .....(date).....

_____
Judge

FORM 1.990. FINAL JUDGMENT FOR PLAINTIFF. JURY ACTION FOR DAMAGES

FINAL JUDGMENT

Pursuant to the verdict rendered in this action

IT IS ADJUDGED that plaintiff, ...(name and address)....., recover from defendant, ...(name and address, and last 4 digits of social security number if known)....., the sum of $..... with costs in the sum of $....., making a total of $....., that shall bear interest at the rate of .....% a year, for which let execution issue.

ORDERED at ....., Florida, on .....(date).....

_____
Judge

NOTE: The address of the person who claims a lien as a result of the judgment must be included in the judgment in order for the judgment to become a lien on real estate when a certified copy of the judgment is recorded. Alternatively, an affidavit with this information may be simultaneously recorded. For the specific requirements, see section 55.10(1), Florida Statutes; *Hott Interiors, Inc. v. Fostock*, 721 So. 2d 1236 (Fla. 4th DCA 1998). The address and social security number (if known) of each person against whom the judgment is rendered must be included in the judgment, pursuant to section 55.01(2), Florida Statutes. However, for privacy reasons, only the last 4 digits of the social security number should be shown.

FORM 1.991. FINAL JUDGMENT FOR DEFENDANT. JURY ACTION FOR DAMAGES

FINAL JUDGMENT

Pursuant to the verdict rendered in this action

IT IS ADJUDGED that plaintiff, ...(name and address, and last 4 digits of social security number if known)....., take nothing by this action and that defendant, ...(name and address)....., shall go hence without day and recover costs from plaintiff in the sum of $..... that shall bear interest at the rate of .....% a year, for which let execution issue.

ORDERED at ....., Florida, on .....(date).....

_____

Judge

NOTE: The address of the person who claims a lien as a result of the judgment must be included in the judgment in order for the judgment to become a lien on real estate when a certified copy of the judgment is recorded. Alternatively, an affidavit with this information may be simultaneously recorded. For the specific requirements, see section 55.10(1), Florida Statutes; *Hott Interiors, Inc. v. Fostock*, 721 So. 2d 1236 (Fla. 4th DCA 1998). The address and social security number (if known) of each person against whom the judgment is rendered must be included in the judgment, pursuant to section 55.01(2), Florida Statutes. However, for privacy reasons, only the last 4 digits of the social security number should be shown.

FORM 1.993. FINAL JUDGMENT FOR PLAINTIFF. GENERAL FORM NON-JURY

FINAL JUDGMENT

This action was tried before the court. On the evidence presented

IT IS ADJUDGED that:

1. (list adjudications in numbered paragraphs)

2. .....

(See note below on name, address, and social security number requirements.)

ORDERED at ....., Florida, on .....(date).....

_____

Judge

NOTE: Findings of fact can be inserted after "presented" if desired. The address of the person who claims a lien as a result of the judgment must be included in the judgment in order for the judgment to become a lien on real estate when a certified copy of the judgment is recorded. Alternatively, an

affidavit with this information may be simultaneously recorded. For the specific requirements, see section 55.10(1), Florida Statutes; *Hott Interiors, Inc. v. Fostock,* 721 So. 2d 1236 (Fla. 4th DCA 1998). The address and social security number (if known) of each person against whom the judgment is rendered must be included in the judgment, pursuant to section 55.01(2), Florida Statutes. However, for privacy reasons, only the last 4 digits of the social security number should be shown.

FORM 1.994. FINAL JUDGMENT FOR DEFENDANT. GENERAL FORM. NON-JURY FINAL JUDGMENT

This action was tried before the court. On the evidence presented

IT IS ADJUDGED that plaintiff, ...(name and address, and last 4 digits of social security number if known)....., take nothing by this action and that defendant, ...(name and address)....., shall go hence without day and recover costs from plaintiff in the sum of $..... that shall bear interest at the rate of .....% a year, for which let execution issue.

ORDERED at ....., Florida, on .....(date).....

_____

Judge

NOTE: Findings of fact can be inserted after "presented" if desired. The address of the person who claims a lien as a result of the judgment must be included in the judgment in order for the judgment to become a lien on real estate when a certified copy of the judgment is recorded. Alternatively, an affidavit with this information may be simultaneously recorded. For the specific requirements, see section 55.10(1), Florida Statutes; *Hott Interiors, Inc. v. Fostock*, 721 So. 2d 1236 (Fla. 4th DCA 1998). The address and social security number (if known) of each person against whom the judgment is rendered must be included in the judgment, pursuant to section 55.01(2), Florida Statutes. However, for privacy reasons, only the last 4 digits of the social security number should be shown.

FORM 1.995. FINAL JUDGMENT OF REPLEVIN

NOTE APPLICABLE TO FORMS (a)–(d): The address of the person who claims a lien as a result of the judgment must be included in the judgment in order for the judgment to become a lien on real estate when a certified copy of the judgment is recorded. Alternatively, an affidavit with this information may be simultaneously recorded. For the specific requirements, see section 55.10(1), Florida Statutes; *Hott Interiors, Inc. v. Fostock*, 721 So. 2d 1236 (Fla. 4th DCA 1998). The address and social security number (if known) of each person against whom the judgment is rendered must be included in the

judgment, pursuant to section 55.01(2), Florida Statutes. However, for privacy reasons, only the last 4 digits of the social security number should be shown.

(a) Judgment in Favor of Plaintiff when Plaintiff Has Possession.

FINAL JUDGMENT OF REPLEVIN

This matter was heard on plaintiff's complaint. On the evidence presented

IT IS ADJUDGED that:

1. Plaintiff, ...(name and address)....., has the right against defendant, ...(name and address, and last 4 digits of social security if known)....., to retain possession of the following described property:

(list the property and include a value for each item)

2. Plaintiff shall recover from defendant the sum of $..... as damages for the detention of the property and the sum of $..... as costs, making a total of $....., which shall bear interest at the rate of .....% per year, for which let execution issue.

ORDERED at ....., Florida, on .....(date).....

_____

Judge

NOTE: This form applies when the plaintiff has recovered possession under a writ of replevin and prevailed on the merits. Pursuant to section 78.18, Florida Statutes (1995), paragraph 2 of the form provides that the plaintiff can also recover damages for the wrongful taking and detention of the property, together with costs. Generally these damages are awarded in the form of interest unless loss of use can be proven. *Ocala Foundry & Machine Works v. Lester*, 49 Fla. 199, 38 So. 51 (1905).

If the defendant has possession of part of the property, see form 1.995(b).

(b) Judgment in Favor of Plaintiff when Defendant Has Possession.

FINAL JUDGMENT OF REPLEVIN

This matter was heard on plaintiff's complaint. On the evidence presented

IT IS ADJUDGED that:

1. Plaintiff, ...(name and address)....., has the right against defendant, ...(name and address, and last 4 digits of social security number if known)....., to possession of the following described property:

(list the property and include a value for each item)

for which the clerk of the court shall issue a writ of possession; or

2. Plaintiff shall recover from defendant [if applicable add "and surety on the forthcoming bond"] the sum of $..... for the value of the property, which shall bear interest at the rate of .....% per year, for which let execution issue.

3. Plaintiff shall recover from defendant the sum of $..... as damages for the detention of the property and the sum of $..... as costs, making a total of $....., which shall bear interest at the rate of .....% per year, for which let execution issue.

ORDERED at ....., Florida, on .....(date).....

_____

Judge

NOTE: This form applies when the plaintiff prevails on the merits and the defendant retains possession of the property. Section 78.19, Florida Statutes (1995), allows the plaintiff to recover the property or its value or the value of the plaintiff's lien or special interest. The value for purposes of paragraph 2 is either the value of the property or the value of the plaintiff's lien or special interest.

Paragraph 3 of the form provides for damages for detention only against the defendant because the defendant's surety obligates itself only to ensure forthcoming of the property, not damages for its detention.

Pursuant to section 78.19(2), Florida Statutes, paragraphs 1 and 2 of the form provide the plaintiff the option of obtaining either a writ of possession or execution against the defendant and defendant's surety on a money judgment for property not recovered. *Demetree v. Stramondo*, 621 So. 2d 740 (Fla. 5th DCA 1993). If the plaintiff elects the writ of possession for the property and the sheriff is unable to find it or part of it, the plaintiff may immediately have execution against the defendant for the whole amount recovered or the amount less the value of the property found by the sheriff. If the plaintiff elects execution for the whole amount, the officer shall release all property taken under the writ.

If the plaintiff has possession of part of the property, see form 1.995(a).

(c) Judgment in Favor of Defendant when Defendant Has Possession under Forthcoming Bond.

FINAL JUDGMENT OF REPLEVIN

This matter was heard on plaintiff's complaint. On the evidence presented

IT IS ADJUDGED that:

1. Defendant, ...(name and address)....., has the right against plaintiff, ...(name and address, and last 4 digits of social security number if known)....., to possession of the following described property:

(list the property and include a value for each item)

2. Defendant retook possession of all or part of the property under a forthcoming bond, and defendant's attorney has reasonably expended ..... hours in representing defendant in this action and $..... is a reasonable hourly rate for the services.

3. Defendant shall recover from plaintiff the sum of $..... for the wrongful taking of the property, costs in the sum of $....., and attorneys' fees in the sum of $....., making a total of $....., which shall bear interest at the rate of .....% per year, for which let execution issue.

ORDERED at ....., Florida, on .....(date).....

_____

Judge

NOTE: This form applies when the defendant prevails and the property was retained by or redelivered to the defendant. Section 78.20, Florida Statutes (1995), provides for an award of attorneys' fees. The prevailing defendant may be awarded possession, damages, if any, for the taking of the property, costs, and attorneys' fees.

If the plaintiff has possession of part of the property, see form 1.995(d).

(d) Judgment in Favor of Defendant when Plaintiff Has Possession.

FINAL JUDGMENT OF REPLEVIN

This matter was heard on plaintiff's complaint. On the evidence presented

IT IS ADJUDGED that:

1. Defendant, ...(name and address)....., has the right against plaintiff, ...(name and address, and last four digits of social security number if known)....., to recover possession of the following described property:

(list the property and include a value for each item)

for which the clerk of the court shall issue a writ of possession; or

2. Defendant shall recover from plaintiff [if applicable add "and surety on plaintiff's bond"] the sum of $..... for the value of the property, which shall bear interest at the rate of .....% per year, for which let execution issue.

3. Defendant shall recover from plaintiff the sum of $..... as damages for detention of the property and the sum of $..... as costs, making a total of $....., which shall bear interest at the rate of .....% per year, for which let execution issue.

ORDERED at ....., Florida, on .....(date).....

_____

Judge

NOTE: This form should be used when the defendant prevails but the plaintiff has possession of the property. Section 78.21, Florida Statutes (1995), does not provide for an award of attorneys' fees when the defendant prevails and possession had been temporarily retaken by the plaintiff. Sections 78.21 and 78.19 allow the defendant to recover the property or its value or the value of the defendant's special interest.

Paragraphs 1 and 2 of the form provide to the defendant the option of obtaining either a writ of possession or execution against the plaintiff and plaintiff's surety on a money judgment for property not recovered and costs. *Demetree v. Stramondo*, 621 So. 2d 740 (Fla. 5th DCA 1993). If the defendant elects the writ of possession for the property and the sheriff is unable to find it or part of it, the defendant may immediately have execution against the plaintiff and surety for the whole amount recovered or the amount less the value of the property found by the sheriff. If the defendant elects execution for the whole amount, the officer shall release all property taken under the writ.

If the defendant has possession of part of the property, see form 1.995(c).

FORM 1.996(a). FINAL JUDGMENT OF FORECLOSURE

FINAL JUDGMENT

This action was tried before the court. On the evidence presented

IT IS ADJUDGED that:

1. Amounts Due. Plaintiff, ...(name and address)....., is due

Principal	$.....
Interest to date of this judgement	.....
Title Search expenses	.....
Taxes	.....
Attorney's fees total	.....
Court costs, now taxed	.....
Other	.....
Subtotal	$.....
LESS: Escrow balance	$.....
LESS: Other	$.....
TOTAL	$.....

That must bear interest at a rate of ..... per year.

2. Lien on Property. Plaintiff holds a lien for the total sum superior to all claims or estates of defendant(s), on the following described property in ..... County, Florida:

(describe property)

3. Sale of Property. If the total sum with interest at the rate described in paragraph 1 and all costs accrued subsequent to this judgment are not paid, the clerk of this court must sell the property at public sale on .....(date)....., to the highest bidder for cash, except as prescribed in paragraph 4, at the courthouse located at .....(street address of courthouse)..... in ..... County in .....(name of city)....., Florida, in accordance with section 45.031, Florida Statutes, using the following method (CHECK ONE):

..... At .....(location of sale at courthouse; e.g., north door)....., beginning at .....(time of sale)..... on the prescribed date.

..... By electronic sale beginning at .....(time of sale)..... on the prescribed date at .....(website)......

4. Costs. Plaintiff must advance all subsequent costs of this action and must be reimbursed for them by the clerk if plaintiff is not the purchaser of the property for sale, provided, however, that the purchaser of the property for sale must be responsible for the documentary stamps payable on the

certificate of title. If plaintiff is the purchaser, the clerk must credit plaintiff's bid with the total sum with interest and costs accruing subsequent to this judgment, or such part of it as is necessary to pay the bid in full.

5. Distribution of Proceeds. On filing the certificate of title the clerk must distribute the proceeds of the sale, so far as they are sufficient, by paying: first, all of plaintiff's costs; second, documentary stamps affixed to the certificate; third, plaintiff's attorneys' fees; fourth, the total sum due to plaintiff, less the items paid, plus interest at the rate prescribed in paragraph 1 from this date to the date of the sale; and by retaining any remaining amount pending further order of this court.

6. Right of Redemption/Right of Possession. On filing the certificate of sale, defendant(s) and all persons claiming under or against defendant(s) since the filing of the notice of lis pendens must be foreclosed of all estate or claim in the property and defendant's right of redemption as prescribed by section 45.0315, Florida Statutes, must be terminated, except as to the rights of a bona fide tenant occupying residential premises under the federal Protecting Tenants at Foreclosure Act, 12 U.S.C § 5220, note, or section 83.5615, Florida Statutes, and claims or rights under chapter 718 or chapter 720, Florida Statutes, if any. On the filing of the certificate of title, the person named on the certificate of title must be let into possession of the property, subject to the rights of a bona fide tenant occupying residential premises under the federal Protecting Tenants at Foreclosure Act, 12 U.S.C. § 5220, note, or section 83.5615, Florida Statutes.

7. Attorneys' Fees.

[If a default judgment has been entered against the mortgagor]

Because a default judgment has been entered against the mortgagor and because the fees requested do not exceed 3% of the principal amount owed at the time the complaint was filed, it is not necessary for the court to hold a hearing or adjudge the requested attorneys' fees to be reasonable.

[If no default judgment has been entered against the mortgagor]

The court finds, based on the affidavits/testimony presented and on inquiry of counsel for the plaintiff that ..... hours were reasonably expended by plaintiff's counsel and that an hourly rate of $..... is appropriate. Plaintiff's counsel represents that the attorneys' fees awarded does not exceed its contract fee with the plaintiff. The court finds that there is/are no reduction or enhancement factors for consideration by the court under *Florida Patients Compensation Fund v. Rowe*, 472 So. 2d 1145 (Fla. 1985). (If the court has found that there are reduction or enhancement factors to be applied, then such factors must be identified and explained herein).

[If the fees to be awarded are a flat fee]

The requested attorneys' fees are a flat rate fee that the firm's client has agreed to pay in this matter. Given the amount of the fee requested and the labor expended, the court finds that a lodestar analysis is not necessary and that the flat fee is reasonable.

8. Jurisdiction Retained. Jurisdiction of this action is retained to enter further orders that are proper including, without limitation, a deficiency judgment.

IF THIS PROPERTY IS SOLD AT PUBLIC AUCTION, THERE MAY BE ADDITIONAL MONEY FROM THE SALE AFTER PAYMENT OF PERSONS WHO ARE ENTITLED TO BE PAID FROM THE SALE PROCEEDS PURSUANT TO THE FINAL JUDGMENT.

IF YOU ARE A SUBORDINATE LIENHOLDER CLAIMING A RIGHT TO FUNDS REMAINING AFTER THE SALE, IF ANY, YOU MUST FILE A CLAIM WITH THE CLERK NO LATER THAN THE DATE THAT THE CLERK REPORTS THE FUNDS AS UNCLAIMED. IF YOU FAIL TO FILE A TIMELY CLAIM, YOU WILL NOT BE ENTITLED TO ANY REMAINING FUNDS.

[If the property being foreclosed on has qualified for the homestead tax exemption in the most recent approved tax roll, the final judgment must additionally contain the following statement in conspicuous type:]

IF YOU ARE THE PROPERTY OWNER, YOU MAY CLAIM THESE FUNDS YOURSELF. YOU ARE NOT REQUIRED TO HAVE A LAWYER OR ANY OTHER REPRESENTATION AND YOU DO NOT HAVE TO ASSIGN YOUR RIGHTS TO ANYONE ELSE IN ORDER FOR YOU TO CLAIM ANY MONEY TO WHICH YOU ARE ENTITLED. PLEASE CONTACT THE CLERK OF THE COURT, (INSERT INFORMATION FOR APPLICABLE COURT) **WITHIN 10 DAYS AFTER THE SALE TO SEE IF THERE IS ADDITIONAL MONEY FROM THE FORECLOSURE SALE THAT THE CLERK HAS IN THE REGISTRY OF THE COURT.**

IF YOU DECIDE TO SELL YOUR HOME OR HIRE SOMEONE TO HELP YOU CLAIM THE ADDITIONAL MONEY, YOU SHOULD READ VERY CAREFULLY ALL PAPERS YOU ARE REQUIRED TO SIGN, ASK SOMEONE ELSE, PREFERABLY AN ATTORNEY WHO IS NOT RELATED TO THE PERSON OFFERING TO HELP YOU, TO MAKE SURE THAT YOU UNDERSTAND WHAT YOU ARE SIGNING AND THAT YOU ARE NOT TRANSFERRING YOUR PROPERTY OR THE EQUITY IN YOUR PROPERTY WITHOUT THE PROPER INFORMATION. IF YOU CANNOT AFFORD TO PAY AN ATTORNEY, YOU MAY CONTACT

(INSERT LOCAL OR NEAREST LEGAL AID OFFICE AND TELEPHONE NUMBER) **TO SEE IF YOU QUALIFY FINANCIALLY FOR THEIR SERVICES. IF THEY CANNOT ASSIST YOU, THEY MAY BE ABLE TO REFER YOU TO A LOCAL BAR REFERRAL AGENCY OR SUGGEST OTHER OPTIONS. IF YOU CHOOSE TO CONTACT (NAME OF LOCAL OR NEAREST LEGAL AID OFFICE AND TELEPHONE NUMBER) FOR ASSISTANCE, YOU SHOULD DO SO AS SOON AS POSSIBLE AFTER RECEIPT OF THIS NOTICE.**

ORDERED at ....., Florida, on .....(date).....

_____

Judge

NOTE: Paragraph 1 must be varied in accordance with the items unpaid, claimed, and proven. The form does not provide for an adjudication of junior lienors' claims nor for redemption by the United States of America if it is a defendant. The address of the person who claims a lien as a result of the judgment must be included in the judgment in order for the judgment to become a lien on real estate when a certified copy of the judgment is recorded. Alternatively, an affidavit with this information may be simultaneously recorded. For the specific requirements, see section 55.10(1), Florida Statutes; *Hott Interiors, Inc. v. Fostock*, 721 So.2d 1236 (Fla. 4th DCA 1998).

Committee Notes

1980 Amendment. The reference to writs of assistance in paragraph 7 is changed to writs of possession to comply with the consolidation of the 2 writs.

2010 Amendment. Mandatory statements of the mortgagee/property owner's rights are included as required by the 2006 amendment to section 45.031, Florida Statutes. Changes are also made based on 2008 amendments to section 45.031, Florida Statutes, permitting courts to order sale by electronic means.

Additional changes were made to bring the form into compliance with chapters 718 and 720 and section 45.0315, Florida Statutes, and to better align the form with existing practices of clerks and practitioners. The breakdown of the amounts due is now set out in column format to simplify calculations. The requirement that the form include the address and social security number of all defendants was eliminated to protect the privacy interests of those defendants and in recognition of the fact that this form of judgment does not create a personal final money judgment against the defendant borrower, but rather an in rem judgment against the property. The address and social security number of the defendant borrower should be

included in any deficiency judgment later obtained against the defendant borrower.

2014 Amendment. These amendments added titles, updated statutory reference to time for right of redemption, and added a paragraph on attorneys' fees.

2019 Amendment. An amendment to paragraph 6 is intended to notify all involved in mortgage foreclosure proceedings of section 83.561, Florida Statute (2015), Termination of Rental Agreement upon Foreclosure, by adding language from the statute.

2024 Amendment. The Florida Protecting Tenants at Foreclosure Act, section 83.5615, Florida Statutes (2020), becomes effective only on the repeal of the federal Protecting Tenants at Foreclosure Act, Pub. L. No. 111-22, 12 U.S.C. § 5220, note.

FORM 1.996(b). FINAL JUDGMENT OF FORECLOSURE FOR REESTABLISHMENT OF LOST NOTE

FINAL JUDGMENT

This action was tried before the court. On the evidence presented

IT IS ADJUDGED that:

1. Amounts Due. Plaintiff, ...(name and address)....., is due

Principal	$.....
Interest to date of this judgement	.....
Title Search expenses	.....
Taxes	.....
Attorney's fees total	.....
Court costs, now taxed	.....
Other	.....
Subtotal	$.....
LESS: Escrow balance	.....
LESS: Other	.....

TOTAL $.....

That must bear interest at a rate of ..... per year.

2. Lien on Property. Plaintiff holds a lien for the total sum superior to all claims or estates of defendant(s), on the following described property ..... County, Florida:

(describe property)

3. Sale of Property. If the total sum with interest at the rate described in paragraph 1 and all costs accrued subsequent to this judgment are not paid, the clerk of this court must sell the property at public sale on .....(date)....., to the highest bidder for cash, except as prescribed in paragraph 4, at the courthouse located at .....(street address of courthouse)..... in ..... County in .....(name of city)....., Florida, in accordance with section 45.031, Florida Statutes, using the following method (CHECK ONE):

..... At .....(location of sale at courthouse; e.g., north door)....., beginning at .....(time of sale)..... on the prescribed date.

..... By electronic sale beginning at .....(time of sale)..... on the prescribed date at .....(website)......

4. Costs. Plaintiff must advance all subsequent costs of this action and must be reimbursed for them by the clerk if plaintiff is not the purchaser of the property for sale, provided, however, that the purchaser of the property for sale must be responsible for the documentary stamps payable on the certificate of title. If plaintiff is the purchaser, the clerk must credit plaintiff's bid with the total sum with interest and costs accruing subsequent to this judgment, or such part of it as is necessary to pay the bid in full.

5. Distribution of Proceeds. On filing the certificate of title the clerk must distribute the proceeds of the sale, so far as they are sufficient, by paying: first, all of plaintiff's costs; second, documentary stamps affixed to the certificate; third, plaintiff's attorneys' fees; fourth, the total sum due to plaintiff, less the items paid, plus interest at the rate prescribed in paragraph 1 from this date to the date of the sale; and by retaining any remaining amount pending further order of this court.

6. Right of Redemption/Right of Possession. On filing the certificate of sale, defendant(s) and all persons claiming under or against defendant(s) since the filing of the notice of lis pendens must be foreclosed of all estate or claim in the property and defendant's right of redemption as prescribed by section 45.0315, Florida Statutes, must be terminated, except as to the rights of a bona fide tenant occupying residential premises under the federal Protecting Tenants at Foreclosure Act, 12 U.S.C. § 5220, note, or

section 83.5615, Florida Statutes, and claims or rights under chapter 718 or chapter 720, Florida Statutes, if any. On the filing of the certificate of title, the person named on the certificate of title must be let into possession of the property, subject to the rights of a bona fide tenant occupying residential premises under the federal Protecting Tenants at Foreclosure Act, 12 U.S. C. § 5220, note, or section 83.5615, Florida Statutes.

7. Attorneys' Fees.

[If a default judgment has been entered against the mortgagor]

Because a default judgment has been entered against the mortgagor and because the fees requested do not exceed 3% of the principal amount owed at the time the complaint was filed, it is not necessary for the court to hold a hearing or adjudge the requested attorneys' fees to be reasonable.

[If no default judgment has been entered against the mortgagor]

The court finds, based upon the affidavits/testimony presented and upon inquiry of counsel for the plaintiff that ..... hours were reasonably expended by plaintiff's counsel and that an hourly rate of $ ..... is appropriate. Plaintiff's counsel represents that the attorney fee awarded does not exceed its contract fee with the plaintiff. The court finds that there are no reduction or enhancement factors for consideration by the court under Florida Patients Compensation Fund v. Rowe, 472 So. 2d 1145 (Fla. 1985). (If the court has found that there are reduction or enhancement factors to be applied, then such factors must be identified and explained herein).

[If the fees to be awarded are a flat fee]

The requested attorneys' fees are a flat rate fee that the firm's client has agreed to pay in this matter. Given the amount of the fee requested and the labor expended, the court finds that a lodestar analysis is not necessary and that the flat fee is reasonable.

8. Re-establishment of Lost Note. The court finds that the plaintiff has re-established the terms of the lost note and its right to enforce the instrument as required by applicable law. Plaintiff must hold the defendant(s) maker of the note harmless and must indemnify defendant(s) for any loss defendant(s) may incur by reason of a claim by any other person to enforce the lost note. Adequate protection has been provided as required by law by the following means: .....(identify means of security under applicable law: a written indemnification agreement, a surety bond, include specific detail)……

Judgment is hereby entered in favor of the plaintiff as to its request to enforce the lost note.

9. Jurisdiction Retained. Jurisdiction of this action is retained to enforce the adequate protection ordered and to enter further orders that are proper including, without limitation, a deficiency judgment.

IF THIS PROPERTY IS SOLD AT PUBLIC AUCTION, THERE MAY BE ADDITIONAL MONEY FROM THE SALE AFTER PAYMENT OF PERSONS WHO ARE ENTITLED TO BE PAID FROM THE SALE PROCEEDS PURSUANT TO THE FINAL JUDGMENT.

IF YOU ARE A SUBORDINATE LIENHOLDER CLAIMING A RIGHT TO FUNDS REMAINING AFTER THE SALE, IF ANY, YOU MUST FILE A CLAIM WITH THE CLERK NO LATER THAN THE DATE THAT THE CLERK REPORTS THE FUNDS AS UNCLAIMED. IF YOU FAIL TO FILE A TIMELY CLAIM, YOU WILL NOT BE ENTITLED TO ANY REMAINING FUNDS.

[If the property being foreclosed on has qualified for the homestead tax exemption in the most recent approved tax roll, the final judgment must additionally contain the following statement in conspicuous type:]

IF YOU ARE THE PROPERTY OWNER, YOU MAY CLAIM THESE FUNDS YOURSELF. YOU ARE NOT REQUIRED TO HAVE A LAWYER OR ANY OTHER REPRESENTATION AND YOU DO NOT HAVE TO ASSIGN YOUR RIGHTS TO ANYONE ELSE IN ORDER FOR YOU TO CLAIM ANY MONEY TO WHICH YOU ARE ENTITLED. PLEASE CHECK WITH THE CLERK OF THE COURT, (INSERT INFORMATION FOR APPLICABLE COURT) **WITHIN 10 DAYS AFTER THE SALE TO SEE IF THERE IS ADDITIONAL MONEY FROM THE FORECLOSURE SALE THAT THE CLERK HAS IN THE REGISTRY OF THE COURT.**

IF YOU DECIDE TO SELL YOUR HOME OR HIRE SOMEONE TO HELP YOU CLAIM THE ADDITIONAL MONEY, YOU SHOULD READ VERY CAREFULLY ALL PAPERS YOU ARE REQUIRED TO SIGN, ASK SOMEONE ELSE, PREFERABLY AN ATTORNEY WHO IS NOT RELATED TO THE PERSON OFFERING TO HELP YOU, TO MAKE SURE THAT YOU UNDERSTAND WHAT YOU ARE SIGNING AND THAT YOU ARE NOT TRANSFERRING YOUR PROPERTY OR THE EQUITY IN YOUR PROPERTY WITHOUT THE PROPER INFORMATION. IF YOU CANNOT AFFORD TO PAY AN ATTORNEY, YOU MAY CONTACT (INSERT LOCAL OR NEAREST LEGAL AID OFFICE AND TELEPHONE NUMBER) T**O SEE IF YOU QUALIFY FINANCIALLY FOR THEIR SERVICES. IF THEY CANNOT ASSIST YOU, THEY MAY BE ABLE TO REFER YOU TO A LOCAL BAR REFERRAL AGENCY OR SUGGEST OTHER OPTIONS. IF YOU CHOOSE TO CONTACT** (NAME OF LOCAL OR NEAREST LEGAL AID OFFICE AND TELEPHONE NUMBER) **FOR**

ASSISTANCE, YOU SHOULD DO SO AS SOON AS POSSIBLE AFTER RECEIPT OF THIS NOTICE.

ORDERED at ....., Florida, on .....(date).....

_____
Judge

NOTE: Paragraph 1 must be varied in accordance with the items unpaid, claimed, and proven. The form does not provide for an adjudication of junior lienors' claims or for redemption by the United States of America if it is a defendant. The address of the person who claims a lien as a result of the judgment must be included in the judgment in order for the judgment to become a lien on real estate when a certified copy of the judgment is recorded. Alternatively, an affidavit with this information may be simultaneously recorded. For the specific requirements, see section 55.10(1), Florida Statutes; *Hott Interiors, Inc. v. Fostock*, 721 So. 2d 1236 (Fla. 4th DCA 1998).

Committee Note

2014 Amendment. This new form is to be used when the foreclosure judgment re-establishes a lost note.

2019 Amendment. The amendment to paragraph 6 is intended to notify all involved in mortgage foreclosure proceedings of section 83.561, Florida Statutes (2015), Termination of Rental Agreement upon Foreclosure, by adding language from the statute.

2024 Amendment. The Florida Protecting Tenants at Foreclosure Act, section 83.5615, Florida Statutes (2020), becomes effective only on the repeal of the federal Protecting Tenants at Foreclosure Act, Pub. L. No. 111-22, 12 U.S.C. § 5220, note.

FORM 1.996(c). MOTION TO CANCEL AND RESCHEDULE FORECLOSURE SALE

Plaintiff moves to cancel and reschedule the mortgage foreclosure sale because:

1. On .....(date)..... this court entered a Final Judgment of Foreclosure pursuant to which a foreclosure sale was scheduled for .....(date).....

2. The sale needs to be canceled for the following reason(s):

a. _____ Plaintiff and defendant are continuing to be involved in loss mitigation;

b. _____ Defendant is negotiating for the sale of the property that is the subject of this matter and plaintiff wants to allow the defendant an opportunity to sell the property and pay off the debt that is due and owing to plaintiff.

c. _____ Defendant has entered into a contract to sell the property that is the subject of this matter and plaintiff wants to give the defendant an opportunity to consummate the sale and pay off the debt that is due and owing to plaintiff.

d. _____ Defendant has filed a Chapter _____ Petition under the Federal Bankruptcy Code;

e. _____ Plaintiff has ordered but has not received a statement of value/appraisal for the property;

f. _____ Plaintiff and defendant have entered into a Forbearance Agreement;

g. _____ Other

_____

_____

_____

3. If this Court cancels the foreclosure sale, plaintiff moves that it be rescheduled.

I hereby certify that a copy of the foregoing motion has been furnished by .....(method of service)..... to .....(name(s))..... on .....(date).....

NOTE. This form is used to move the court to cancel and reschedule a foreclosure sale.

FORM 1.997. CIVIL COVER SHEET

The civil cover sheet and the information contained in it neither replace nor supplement the filing and service of pleadings or other documents as required by law. This form must be filed by the plaintiff or petitioner with the Clerk of Court for the purpose of reporting uniform data pursuant to section 25.075, Florida Statutes. (See instructions for completion.)

_____

I. CASE STYLE

(Name of Court)_____.

Plaintiff _____ Case # _____
_____ Judge _____

vs.
Defendant_____
_____

II. AMOUNT OF CLAIM

Please indicate the estimated amount of the claim, rounded to the nearest dollar. The estimated amount of the claim is requested for data collection and clerical processing purposes only. The amount of the claim shall not be used for any other purpose.

_____ $8,000 or less
_____ $8,001 - $30,000
_____ $30,001- $50,000
_____ $50,001- $75,000
_____ $75,001-$100,000
_____ over $100,000.00

III. TYPE OF CASE (If the case fits more than one type of case, select the most definitive category.) If the most descriptive label is a subcategory (is indented under a broader category), place an x on both the main category and subcategory lines.

CIRCUIT CIVIL

_____ Condominium

_____ Contracts and indebtedness

_____ Eminent domain

_____ Auto negligence

_____ Negligence—other

_____ Business governance

_____ Business torts

_____ Environmental/Toxic tort

_____ Third party indemnification

_____ Construction defect

_____ Mass tort

_____ Negligent security

_____ Nursing home negligence

_____Premises liability—commercial

_____ Premises liability—residential

_____ Products liability

___ Real property/Mortgage foreclosure

_____ Commercial foreclosure

_____ Homestead residential foreclosure

_____ Non-homestead residential foreclosure

_____ Other real property actions

_____ Professional malpractice

_____ Malpractice—business

_____ Malpractice—medical

_____ Malpractice—other professional

_____ Other

_____ Antitrust/Trade regulation

_____ Business transactions

_____ Constitutional challenge—statute or ordinance

_____ Constitutional challenge—proposed amendment

_____ Corporate trusts

_____ Discrimination—employment or other

_____ Insurance claims

_____ Intellectual property

_____ Libel/Slander

_____ Shareholder derivative action

_____ Securities litigation

_____ Trade secrets

_____ Trust litigation

COUNTY CIVIL

_____ Civil

_____ Real Property/Mortgage foreclosure

_____ Replevins

_____ Evictions

_____ Residential Evictions

_____ Non-residential Evictions

_____ Other civil (non-monetary)

IV. REMEDIES SOUGHT (check all that apply):

_____ Monetary;

_____ Nonmonetary declaratory or injunctive relief;

_____ Punitive

V. NUMBER OF CAUSES OF ACTION: [ ]

(Specify) _____

_____

VI. IS THIS CASE A CLASS ACTION LAWSUIT?

_____ yes

_____ no

VII. HAS NOTICE OF ANY KNOWN RELATED CASE BEEN FILED?

_____ no

_____ yes If "yes," list all related cases by name, case number, and court._____

VIII. IS JURY TRIAL DEMANDED IN COMPLAINT?

_____ yes

_____ no

IX. DOES THIS CASE INVOLVE ALLEGATIONS OF SEXUAL ABUSE?

_____ yes

_____ no

I CERTIFY that the information I have provided in this cover sheet is accurate to the best of my knowledge and belief, and that I have read and will comply with the requirements of Florida Rule of General Practice and Judicial Administration 2.425.

Signature _____ Fla. Bar # _____
Attorney or party (Bar # if attorney)

_____
(type or print name) Date

FORM 1.997. INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET

Plaintiff must file this cover sheet with the first document filed in the action or proceeding (except small claims cases, probate, or family cases). Domestic and juvenile cases should be accompanied by a completed Florida Family Law Rules of Procedure Form 12.928, Cover Sheet for Family Court Cases. Failure to file a civil cover sheet in any civil case other than those excepted above may result in sanctions.

I. Case Style. Enter the name of the court, the appropriate case number assigned at the time of filing of the original complaint or petition, the name of the judge assigned (if applicable), and the name (last, first, middle initial) of plaintiff(s) and defendant(s).

II. Amount of Claim. Enter the estimated amount of the claim, rounded to the nearest dollar. The estimated amount of the claim is requested for data collection and clerical processing purposes only. The amount of the claim shall not be used for any other purpose.

III. Type of Case. Place an "X" on the appropriate line. If the cause fits more than one type of case, select the most definitive. If the most definitive label is a subcategory (indented under a broader category label), place an "X" on the category and subcategory lines. Definitions of the cases are provided below in the order they appear on the form.

Circuit Civil

(A) Condominium—all civil lawsuits pursuant to Chapter 718, Florida Statutes, in which a condominium association is a party.

(B) Contracts and indebtedness—all contract actions relating to promissory notes and other debts, including those arising from the sale of goods, but excluding contract disputes involving condominium associations.

(C) Eminent domain—all matters relating to the taking of private property for public use, including inverse condemnation by state agencies, political subdivisions, or public service corporations.

(D) Auto negligence—all matters arising out of a party's allegedly negligent operation of a motor vehicle.

(E) Negligence—other—all actions sounding in negligence, including statutory claims for relief on account of death or injury, that are not included in other main categories.

(F) Business governance—all matters relating to the management, administration, or control of a company.

(G) Business torts—all matters relating to liability for economic loss allegedly caused by interference with economic or business relationships.

(H) Environmental/Toxic tort—all matters relating to claims that violations of environmental regulatory provisions or exposure to a chemical caused injury or disease.

(I) Third party indemnification—all matters relating to liability transferred to a third party in a financial relationship.

(J) Construction defect—all civil lawsuits in which damage or injury was allegedly caused by defects in the construction of a structure.

(K) Mass tort—all matters relating to a civil action involving numerous plaintiffs against one or more defendants.

(L) Negligent security—all matters involving injury to a person or property allegedly resulting from insufficient security.

(M) Nursing home negligence—all matters involving injury to a nursing home resident resulting from negligence of nursing home staff or facilities.

(N) Premises liability—commercial—all matters involving injury to a person or property allegedly resulting from a defect on the premises of a commercial property.

(O) Premises liability—residential—all matters involving injury to a person or property allegedly resulting from a defect on the premises of a residential property.

(P) Products liability—all matters involving injury to a person or property allegedly resulting from the manufacture or sale of a defective product or from a failure to warn.

(Q) Real property/Mortgage foreclosure—all matters relating to the possession, title, or boundaries of real property. All matters involving foreclosures or sales of real property, including foreclosures associated with condominium associations or condominium units. (The amount of claim specified in Section II. of the form determines the filing fee pursuant to section 28.241, Florida Statutes.)

(R) Commercial foreclosure—all matters relating to the termination of a business owner's interest in commercial property by a lender to gain title or force a sale to satisfy the unpaid debt secured by the property.

(S) Homestead residential foreclosure—all matters relating to the termination of a residential property owner's interest by a lender to gain title or force a sale to satisfy the unpaid debt secured by the property where the property has been granted a homestead exemption.

(T) Nonhomestead residential foreclosure—all matters relating to the termination of a residential property owner's interest by a lender to gain title or force a sale to satisfy the unpaid debt secured by the property where the property has not been granted a homestead exemption.

(U) Other real property actions—all matters relating to land, land improvements, or property rights not involving commercial or residential foreclosure.

(V) Professional malpractice—all professional malpractice lawsuits.

(W) Malpractice—business—all matters relating to a business's or business person's failure to exercise the degree of care and skill that someone in the same line of work would use under similar circumstances.

(X) Malpractice—medical—all matters relating to a doctor's failure to exercise the degree of care and skill that a physician or surgeon of the same medical specialty would use under similar circumstances.

(Y) Malpractice—other professional—all matters relating to negligence of those other than medical or business professionals.

(Z) Other—all civil matters not included in other categories.

(AA) Antitrust/Trade regulation—all matters relating to unfair methods of competition or unfair or deceptive business acts or practices.

(AB) Business transactions—all matters relating to actions that affect financial or economic interests.

(AC) Constitutional challenge—statute or ordinance—a challenge to a statute or ordinance, citing a violation of the Florida Constitution.

(AD) Constitutional challenge—proposed amendment—a challenge to a legislatively initiated proposed constitutional amendment, but excluding challenges to a citizen-initiated proposed constitutional amendment because the Florida Supreme Court has direct jurisdiction of such challenges.

(AE) Corporate trusts—all matters relating to the business activities of financial services companies or banks acting in a fiduciary capacity for investors.

(AF) Discrimination—employment or other—all matters relating to discrimination, including employment, sex, race, age, handicap, harassment, retaliation, or wages.

(AG) Insurance claims—all matters relating to claims filed with an insurance company.

(AH) Intellectual property—all matters relating to intangible rights protecting commercially valuable products of the human intellect.

(AI) Libel/Slander—all matters relating to written, visual, oral, or aural defamation of character.

(AJ) Shareholder derivative action—all matters relating to actions by a corporation's shareholders to protect and benefit all shareholders against corporate management for improper management.

(AK) Securities litigation—all matters relating to the financial interest or instruments of a company or corporation.

(AL) Trade secrets—all matters relating to a formula, process, device, or other business information that is kept confidential to maintain an advantage over competitors.

(AM) Trust litigation—all civil matters involving guardianships, estates, or trusts and not appropriately filed in probate proceedings.

County Civil

(AN) Civil – all matters involving claims ranging from $8,001 through $30,000 in damages, exclusive of interest, costs, and attorney fees.

(AO) Real property/Mortgage foreclosure-all matters involving claims up to $30,000 relating to the possession, title, or boundaries of real property. All matters involving foreclosures or sales of real property up to $30,000, including foreclosures associate with condominium associations or condominium units.

(AP) Replevins—all lawsuits pursuant to Chapter 78, Florida Statutes, involving claims up to $30,000.

(AQ) Evictions—all matters involving the recovery of possession of leased land or rental property by process of law.

(AR) Other civil (non-monetary)—includes all other non-monetary county civil matters that were not described in other county civil categories.

IV. Remedies Sought. Place an "X" on the appropriate line. If more than one remedy is sought in the complaint or petition, check all that apply.

V. Number of Causes of Action. If the complaint or petition alleges more than one cause of action, note the number and the name of the cause of action.

VI. Class Action. Place an "X" on the appropriate line.

VII. Related Cases. Place an "X" on the appropriate line.

VIII. Is Jury Trial Demanded In Complaint? Check the appropriate line to indicate whether a jury trial is being demanded in the complaint.

IX. Sexual Abuse. Plan an "X" on the appropriate line.

ATTORNEY OR PARTY SIGNATURE. Sign the civil cover sheet. Print legibly the name of the person signing the civil cover sheet. Attorneys must include a Florida Bar number. Insert the date the civil cover sheet is signed. Signature is a certification that the filer has provided accurate information on the civil cover sheet, **and has read and complied with the requirements of Florida Rule of General Practice and Judicial Administration 2.425.**

FORM 1.998. FINAL DISPOSITION FORM

This form shall be filed by the prevailing party with the Clerk of Court for the purpose of reporting uniform case data pursuant to Florida Statutes section 25.075. (See instructions on the reverse of the form.)

I. CASE STYLE

(Name of Court)_____.

Plaintiff _____ Case # _____
_____ Judge _____

vs.

Defendant_____
_____

II. AMOUNT OF FINAL JUDGMENT
Please indicate the amount of the final judgment, rounded to the nearest dollar. $_____

III. MEANS OF FINAL DISPOSITION (Place an "x" in one box for major category and one subcategory, if applicable, only)

- ☐ Dismissed Before Hearing
  - ☐ Dismissed Pursuant to Settlement—Before Hearing
  - ☐ Dismissed Pursuant to Mediated Settlement—Before Hearing
  - ☐ Other—Before Hearing
- ☐ Dismissed After Hearing
  - ☐ Dismissed Pursuant to Settlement—After Hearing
  - ☐ Dismissed Pursuant to Mediated Settlement—After Hearing
  - ☐ Other After Hearing—After Hearing
- ☐ Disposed by Default
- ☐ Disposed by Judge
- ☐ Disposed by Non-jury Trial

☐ Disposed by Jury Trial

☐ Other

DATE _____ _____

SIGNATURE OF ATTORNEY FOR PREVAILING PARTY

INSTRUCTIONS FOR ATTORNEYS COMPLETING FINAL DISPOSITION FORM

I. Case Style. Enter the name of the court, the appropriate case number assigned at the time of filing of the original complaint or petition, the name of the judge assigned to the case and the names (last, first, middle initial) of plaintiff(s) and defendant(s).

II. Amount of Final Judgment. Enter the amount as recorded in the final judgment.

III. Means of Final Disposition. Place an "x" in the appropriate major category box and in the appropriate subcategory box, if applicable. The following are the definitions of the disposition categories.

(A) Dismissed Before Hearing—the case is settled, voluntarily dismissed, or otherwise disposed of before a hearing is held;

(B) Dismissed Pursuant to Settlement—Before Hearing—the case is voluntarily dismissed by the plaintiff after a settlement is reached without mediation before a hearing is held;

(C) Dismissal Pursuant to Mediated Settlement—Before Hearing—the case is voluntarily dismissed by the plaintiff after a settlement is reached with mediation before a hearing is held;

(D) Other—Before Hearing—the case is dismissed before hearing in an action that does not fall into one of the other disposition categories listed on this form;

(E) Dismissed After Hearing—the case is dismissed by a judge, voluntarily dismissed, or settled after a hearing is held;

(F) Dismissal Pursuant to Settlement—After Hearing—the case is voluntarily dismissed by the plaintiff after a settlement is reach without mediation after a hearing is held;

(G) Dismissal Pursuant to Mediated Settlement—After Hearing—the case is voluntarily dismissed by the plaintiff after a settlement is reach with mediation after a hearing is held;

(H) Other—After Hearing—the case is dismissed after hearing in an action that does not fall into one of the other disposition categories listed on this form;

(I) Disposed by Default—a defendant chooses not to or fails to contest the plaintiff's allegations and a judgment against the defendant is entered by the court;

(J) Disposed by Judge—a judgment or disposition is reached by the judge in a case that is not dismissed and in which no trial has been held. Includes stipulations by the parties, conditional judgments, summary judgment after hearing and any matter in which a judgment is entered excluding cases disposed of by default as in category (I) above;

(K) Disposed by Non-Jury Trial—the case is disposed as a result of a contested trial in which there is no jury and in which the judge determines both the issues of fact and law in the case;

(L) Disposed by Jury Trial—the case is disposed as a result of a jury trial (consider the beginning of a jury trial to be when the jurors and alternates are selected and sworn);

(M) Other—the case is consolidated, submitted to arbitration or mediation, transferred, or otherwise disposed of by other means not listed in categories (A) through (L).

DATE AND ATTORNEY SIGNATURE. Date and sign the final disposition form.

FORM 1.999. ORDER DESIGNATING A CASE COMPLEX

This form order is for designating a case complex under rule 1.201 and directing the clerk of court to update the court's records and to report the case activity to the Supreme Court.

ORDER DESIGNATING CASE A "COMPLEX CASE"
DIRECTIONS TO THE CLERK OF COURT

THIS CAUSE was considered on [the court's own motion] [the motion of a party] to designate this case a "complex case" as defined in rule 1.201, Fla. R. Civ. P. Being fully advised in the circumstances, the court determines that the case meets the criteria for proceeding under the rule and designates it as a "complex case."

The clerk of the court shall designate this case a "complex case," update the court's records accordingly, and report such designation and the case activity to the Supreme Court pursuant to section 25.075, Florida Statutes, and rule 2.245(a), Fla. R. Gen. Prac. & Jud. Admin.

DONE AND ORDERED at ……. County, Florida, on .....(date)……

Judge

APPENDIX I— STANDARD INTERROGATORIES FORMS

FORM 1. GENERAL PERSONAL INJURY NEGLIGENCE — INTERROGATORIES TO PLAINTIFF

(If answering for another person or entity, answer with respect to that person or entity, unless otherwise stated.)

1. What is the name and address of the person answering these interrogatories, and, if applicable, the person's official position or relationship with the party to whom the interrogatories are directed?

2. List the names, business addresses, dates of employment, and rates of pay regarding all employers, including self-employment, for whom you have worked in the past 10 years.

3. List all former names and when you were known by those names. State all addresses where you have lived for the past 10 years, the dates you lived at each address, your Social Security number, your date of birth, and, if you are or have ever been married, the name of your spouse or spouses.

4. Do you wear glasses, contact lenses, or hearing aids? If so, who prescribed them, when were they prescribed, when were your eyes or ears last examined, and what is the name and address of the examiner?

5. Have you ever been convicted of a crime, other than any juvenile adjudication, which under the law under which you were convicted was punishable by death or imprisonment in excess of 1 year, or that involved dishonesty or a false statement regardless of the punishment? If so, state as to each conviction the specific crime and the date and place of conviction.

6. Were you suffering from physical infirmity, disability, or sickness at the time of the incident described in the complaint? If so, what was the nature of the infirmity, disability, or sickness?

7. Did you consume any alcoholic beverages or take any drugs or medications within 12 hours before the time of the incident described in the complaint? If so, state the type and amount of alcoholic beverages, drugs, or medication which were consumed, and when and where you consumed them.

8. Describe in detail how the incident described in the complaint happened, including all actions taken by you to prevent the incident.

9. Describe in detail each act or omission on the part of any party to this lawsuit that you contend constituted negligence that was a contributing legal cause of the incident in question.

10. Were you charged with any violation of law (including any regulations or ordinances) arising out of the incident described in the complaint? If so, what was the nature of the charge; what plea or answer, if any, did you enter to the charge; what court or agency heard the charge; was any written report prepared by anyone regarding this charge, and, if so, what is the name and address of the person or entity that prepared the report; do you have a copy of the report; and was the testimony at any trial, hearing, or other proceeding on the charge recorded in any manner, and, if so, what is the name and address of the person who recorded the testimony?

11. Describe each injury for which you are claiming damages in this case, specifying the part of your body that was injured, the nature of the injury, and, as to any injuries you contend are permanent, the effects on you that you claim are permanent.

12. List each item of expense or damage, other than loss of income or earning capacity, that you claim to have incurred as a result of the incident described in the complaint, giving for each item the date incurred, the name and business address of the person or entity to whom each was paid or is owed, and the goods or services for which each was incurred.

13. Do you contend that you have lost any income, benefits, or earning capacity in the past or future as a result of the incident described in the complaint? If so, state the nature of the income, benefits, or earning capacity, and the amount and the method that you used in computing the amount.

14. Has anything been paid or is anything payable from any third party for the damages listed in your answers to these interrogatories? If so, state the amounts paid or payable, the name and business address of the person or entity who paid or owes said amounts, and which of those third parties have or claim a right of subrogation.

15. List the names and business addresses of each physician who has treated or examined you, and each medical facility where you have received any treatment or examination for the injuries for which you seek damages in this case; and state as to each the date of treatment or examination and the injury or condition for which you were examined or treated.

16. List the names and business addresses of all other physicians, medical facilities, or other health care providers by whom or at which you have been examined or treated in the past 10 years; and state as to each the dates of examination or treatment and the condition or injury for which you were examined or treated.

17. List the names and addresses of all persons who are believed or known by you, your agents, or your attorneys to have any knowledge concerning any of the issues in this lawsuit; and specify the subject matter about which the witness has knowledge.

18. Have you heard or do you know about any statement or remark made by or on behalf of any party to this lawsuit, other than yourself, concerning any issue in this lawsuit? If so, state the name and address of each person who made the statement or statements, the name and address of each person who heard it, and the date, time, place, and substance of each statement.

19. State the name and address of every person known to you, your agents, or your attorneys, who has knowledge about, or possession, custody, or control of, any model, plat, map, drawing, audio recording, visual recording, audiovisual recording, or photograph pertaining to any fact or issue involved in this controversy; and describe as to each, what item such person has, the name and address of the person who took or prepared it, and the date it was taken or prepared.

20. Do you intend to call any expert witnesses at the trial of this case? If so, state as to each such witness the name and business address of the witness, the witness's qualifications as an expert, the subject matter upon which the witness is expected to testify, the substance of the facts and opinions to which the witness is expected to testify, and a summary of the grounds for each opinion.

21. Have you made an agreement with anyone that would limit that party's liability to anyone for any of the damages sued upon in this case? If so, state the terms of the agreement and the parties to it.

22. Please state if you have ever been a party, either plaintiff or defendant, in a lawsuit other than the present matter, and, if so, state whether you were plaintiff or defendant, the nature of the action, and the date and court in which such suit was filed.

FORM 2. GENERAL PERSONAL INJURY NEGLIGENCE — INTERROGATORIES TO DEFENDANT

(If answering for another person or entity, answer with respect to that person or entity, unless otherwise stated.)

1. What is the name and address of the person answering these interrogatories, and, if applicable, the person's official position or relationship with the party to whom the interrogatories are directed?

2. List all former names and when you were known by those names. State all addresses where you have lived for the past 10 years, the dates you lived at each address, your Social Security number, and your date of birth.

3. Have you ever been convicted of a crime, other than any juvenile adjudication, which under the law under which you were convicted was punishable by death or imprisonment in excess of 1 year, or that involved dishonesty or a false statement regardless of the punishment? If so, state as to each conviction the specific crime and the date and place of conviction.

4. Describe any and all policies of insurance which you contend cover or may cover you for the allegations set forth in plaintiff's complaint, detailing as to such policies the name of the insurer, the number of the policy, the effective dates of the policy, the available limits of liability, and the name and address of the custodian of the policy.

5. Describe in detail how the incident described in the complaint happened, including all actions taken by you to prevent the incident.

6. Describe in detail each act or omission on the part of any party to this lawsuit that you contend constituted negligence that was a contributing legal cause of the incident in question.

7. State the facts upon which you rely for each affirmative defense in your answer.

8. Do you contend any person or entity other than you is, or may be, liable in whole or part for the claims asserted against you in this lawsuit? If so, state the full name and address of each such person or entity, the legal basis for your contention, the facts or evidence upon which your contention is based, and whether or not you have notified each such person or entity of your contention.

9. Were you charged with any violation of law (including any regulations or ordinances) arising out of the incident described in the complaint? If so, what was the nature of the charge; what plea or answer, if any, did you enter to the charge; what court or agency heard the charge; was any written report prepared by anyone regarding the charge, and, if so, what is the name and address of the person or entity who prepared the report; do you have a copy of the report; and was the testimony at any trial, hearing, or other proceeding on the charge recorded in any manner, and, if so, what is the name and address of the person who recorded the testimony?

10. List the names and addresses of all persons who are believed or known by you, your agents, or your attorneys to have any knowledge concerning any of the issues in this lawsuit; and specify the subject matter about which the witness has knowledge.

11. Have you heard or do you know about any statement or remark made by or on behalf of any party to this lawsuit, other than yourself, concerning any issue in this lawsuit? If so, state the name and address of each person who made the statement or statements, the name and address of each person who heard it, and the date, time, place, and substance of each statement.

12. State the name and address of every person known to you, your agents, or your attorneys who has knowledge about, or possession, custody, or control of, any model, plat, map, drawing, audio recording, visual recording, audiovisual recording, or photograph pertaining to any fact or issue involved in this controversy; and describe as to each, what item such person has, the name and address of the person who took or prepared it, and the date it was taken or prepared.

13. Do you intend to call any expert witnesses at the trial of this case? If so, state as to each such witness the name and business address of the witness, the witness's qualifications as an expert, the subject matter upon which the witness is expected to testify, the substance of the facts and opinions to which the witness is expected to testify, and a summary of the grounds for each opinion.

14. Have you made an agreement with anyone that would limit that party's liability to anyone for any of the damages sued upon in this case? If so, state the terms of the agreement and the parties to it.

15. Please state if you have ever been a party, either plaintiff or defendant, in a lawsuit other than the present matter, and, if so, state whether you were plaintiff or defendant, the nature of the action, and the date and court in which such suit was filed.

FORM 3. MEDICAL MALPRACTICE — INTERROGATORIES TO PLAINTIFF

(These interrogatories should be used in conjunction with the General Personal Injury Negligence Interrogatories to Plaintiff.)

23. Do you contend that you have experienced any injury or illness as a result of any negligence of this defendant? If so, state the date that each such injury occurred, a description of how the injury was caused, and the exact nature of each such injury.

24. What condition, symptom, or illness caused you to obtain medical care and treatment from this defendant?

25. Do you claim this defendant neglected to inform or instruct or warn you of any risk relating to your condition, care, or treatment? If so, state of what, in your opinion, the defendant failed to inform, instruct, or warn you.

26. If you contend that you were not properly informed by this defendant regarding the risk of the treatment or the procedure performed, state what alternative treatment or procedure, if any, you would have undergone had you been properly informed.

27. State the date and place and a description of each complaint for which you contend the defendant refused to attend or treat you.

28. State the date you became aware of the injuries sued on in this action, and describe in detail the circumstances under which you became aware of each such injury; state the date you became aware that the injuries sued on in this action were caused or may have been caused by medical negligence; and describe in detail the circumstances under which you became aware of the cause of said injuries.

29. State the name and address of every person or organization to whom you have given notice of the occurrence sued on in this case because you, your agents, or your attorneys believe that person or organization may be liable in whole or in part to you.

FORM 4. MEDICAL MALPRACTICE — INTERROGATORIES TO DEFENDANT

(These interrogatories should be used in conjunction with the General Personal Injury Negligence Interrogatories to Defendant.)

NOTE: When the word "Plaintiff" is mentioned, these interrogatories are directed to be answered regarding (name of plaintiff/patient).

16. Please give us your entire educational background, starting with your college education and chronologically indicating by date and place each school, college, course of study, title of seminars, length of study, and honors received by you up to the present time, including internships, residencies, degrees received, licenses earned or revoked, medical specialty training, board memberships, authorship of any books, articles, or texts, including the names of those writings and their location in medical journals, awards or honors received, and continuing medical education.

17. Please give us your entire professional background up to the present time, including dates of employment or association, the names of all physicians with whom you have practiced, the form of employment or business relationship such as whether by partnership, corporation, or sole

proprietorship, and the dates of the relationships, including hospital staff privileges and positions, and teaching experience.

18. With respect to your office library or usual place of work, give us the name, author, name of publisher, and date of publication of every medical book or article, journal, or medical text to which you had access, which deals with the overall subject matter described in paragraph [whatever paragraph number that concerns negligence] of the complaint. (In lieu of answering this interrogatory you may allow plaintiff's counsel to inspect your library at a reasonable time.)

19. If you believe there was any risk to the treatment you rendered to the plaintiff, state the nature of all risks, including whether the risks were communicated to the plaintiff; when, where, and in what manner they were communicated; and whether any of the risks in fact occurred.

20. Tell us your experience in giving the kind of treatment or examination that you rendered to the plaintiff before it was given to the plaintiff, giving us such information as the approximate number of times you have given similar treatment or examinations, where the prior treatment or examinations took place, and the successful or unsuccessful nature of the outcome of that treatment or those examinations.

21. Please identify, with sufficient particularity to formulate the basis of a request to produce, all medical records of any kind of which you are aware which deal with the medical treatment or examinations furnished to the plaintiff at any time, whether by you or another person or persons.

22. Please state whether any claim for medical malpractice has ever been made against you alleging facts relating to the same or similar subject matter as this lawsuit, and, if so, state as to each such claim the names of the parties, the claim number, the date of the alleged incident, the ultimate disposition of the claim, and the name of your attorney, if any.

FORM 5. AUTOMOBILE NEGLIGENCE — INTERROGATORIES TO PLAINTIFF

(These interrogatories should be used in conjunction with the General Personal Injury Negligence Interrogatories to Plaintiff.)

23. At the time of the incident described in the complaint, were you wearing a seat belt? If not, please state why not; where you were seated in the vehicle; and whether the vehicle was equipped with a seat belt that was operational and available for your use.

24. Did any mechanical defect in the motor vehicle in which you were riding at the time of the incident described in the complaint contribute to the

incident? If so, describe the nature of the defect and how it contributed to the incident.

FORM 6. AUTOMOBILE NEGLIGENCE — INTERROGATORIES TO DEFENDANT

(These interrogatories should be used in conjunction with the General Personal Injury Negligence Interrogatories to Defendant.)

16. Do you wear glasses, contact lenses, or hearing aids? If so, who prescribed them, when were they prescribed, when were your eyes or ears last examined, and what is the name and address of the examiner?

17. Were you suffering from physical infirmity, disability, or sickness at the time of the incident described in the complaint? If so, what was the nature of the infirmity, disability, or sickness?

18. Did you consume any alcoholic beverages or take any drugs or medications within 12 hours before the time of the incident described in the complaint? If so, state the type and amount of alcoholic beverages, drugs, or medication which were consumed, and when and where you consumed them.

19. Did any mechanical defect in the motor vehicle in which you were riding at the time of the incident described in the complaint contribute to the incident? If so, describe the nature of the defect and how it contributed to the incident.

20. List the name and address of all persons, corporations, or entities who were registered title owners or who had ownership interest in, or right to control, the motor vehicle that the defendant driver was driving at the time of the incident described in the complaint; and describe both the nature of the ownership interest or right to control the vehicle, and the vehicle itself, including the make, model, year, and vehicle identification number.

21. At the time of the incident described in the complaint, did the driver of the vehicle described in your answer to the preceding interrogatory have permission to drive the vehicle? If so, state the names and addresses of all persons who have such permission.

22. At the time of the incident described in the complaint, was the defendant driver engaged in any mission or activity for any other person or entity, including any employer? If so, state the name and address of that person or entity and the nature of the mission or activity.

23. Was the motor vehicle that the defendant driver was driving at the time of the incident described in the complaint damaged in the incident, and, if so, what was the cost to repair the damage?

APPENDIX II

STATEWIDE UNIFORM GUIDELINES FOR TAXATION OF COSTS IN CIVIL ACTIONS

Purpose and Application. These guidelines are advisory only. The taxation of costs in any particular proceeding is within the broad discretion of the trial court. The trial court should exercise that discretion in a manner that is consistent with the policy of reducing the overall costs of litigation and of keeping such costs as low as justice will permit. With this goal in mind, the trial court should consider and reward utilization of innovative technologies by a party which subsequently minimizes costs and reduce the award when use of innovation technologies that were not used would have resulted in lowering costs. In addition, these guidelines are not intended to (1) limit the amount of costs recoverable under a contract or statute, or (2) prejudice the rights of any litigant objecting to an assessment of costs on the basis that the assessment is contrary to applicable substantive law.

Burden of Proof. Under these guidelines, it is the burden of the moving party to show that all requested costs were reasonably necessary either to defend or prosecute the case at the time the activity precipitating the cost was undertaken.

I. Litigation Costs That Should Be Taxed.

A. *Depositions*

1. The original and one copy of the deposition and court reporter's per diem for all depositions.

2. The original and/or one copy of the electronic deposition, including audiovisually recorded depositions, and the cost of the services of a technician for electronic depositions used at trial.

3. Telephone toll and electronic conferencing charges for the conduct of telephone and electronic depositions.

B. *Documents and Exhibits*

1. The costs of copies of documents filed (in lieu of "actually cited") with the court, which are reasonably necessary to assist the court in reaching a conclusion.

2. The costs of copies obtained in discovery, even if the copies were not used at trial.

C. *Expert Witnesses*

1. A reasonable fee for deposition and/or court testimony, and the costs of preparation of any court ordered report.

D. *Witnesses*

1. Costs of subpoena, witness fee, and service of witnesses for deposition and/or trial.

E. *Court Reporting Costs Other than for Depositions*

1. Reasonable court reporter's per diem for the reporting of evidentiary hearings, trial and post-trial hearings.

F. *Reasonable Charges Incurred for Requiring Special Magistrates, Guardians Ad Litem, and Attorneys Ad Litem*

G. *Filing Fees and Service of Process Fees.*

II. Litigation Costs That May Be Taxed as Costs.

A. *Mediation/Nonbinding Arbitration Fees and Expenses*

1. Costs of mediation, including mediator fees.

2. Costs of court-ordered nonbinding arbitration, including arbitrator fees.

B. *Reasonable Travel Expenses*

1. Reasonable travel expenses of expert when traveling in excess of 100 miles from the expert's principal place of business (not to include the expert's time).

2. Reasonable travel expenses of witnesses.

C. *Electronic Discovery Expenses*

1. The cost of producing copies of relevant electronic media in response to a discovery request.

2. The cost of converting electronically stored information to a reasonably usable format in response to a discovery request that seeks production in such format.

D. *Testifying Expert Witnesses.*

1. A reasonable fee for conducting examinations, investigations, tests, and research and preparing reports.

2. A reasonable fee for testimony at court-ordered nonbinding arbitration.

3. A reasonable fee for preparing for deposition, court-ordered nonbinding arbitration, and/or court testimony.

III. Litigation Costs That Should Not Be Taxed as Costs.

A. *The Cost of Long Distance Telephone Calls with Witnesses, both Expert and Non-Expert* (including conferences concerning scheduling of depositions or requesting witnesses to attend trial)

B. *Any Expenses Relating to Consulting But Non-Testifying Experts*

C. *Cost Incurred in Connection with Any Matter Which Was Not Reasonably Calculated to Lead to the Discovery of Admissible Evidence*

D. *Travel Time*

1. Travel time of attorney(s).

2. Travel time of expert(s).

E. *Travel Expenses of Attorney(s)*

F. *The Cost of Privilege Review of Documents, including Electronically Stored Information.*